



PROFILE OF INTERNAL DISPLACEMENT : TURKEY

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PROFILE SUMMARY

Turkey: EU accession process puts issue of internal displacement on political agenda

Hundreds of thousands of people were internally displaced from Turkey's south-eastern provinces during the 1984-1999 fighting between the Kurdish PKK and Turkish military and security forces, which was accompanied by massive human rights violations and the destruction of property. According to official figures, 353,000 people were displaced during the conflict, while international observers and Turkish NGOs estimate that the total number may be as high as 1 to 4.5 million. Return has been possible on a limited scale following the PKK's declaration of a ceasefire in 1999 and the lifting of the state of emergency in the south-east in 2002. The government claims over 92,000 people have returned, but this figure has not been independently verified. Most internally displaced people (IDPs) are unable to return because of obstruction by village guards, landmines, and poor socio-economic conditions in former conflict-areas. The government's return programmes have lacked transparency and adequate consultation with the displaced population and relevant organisations; and compensation to returnees has been limited. Many IDPs live in extremely difficult conditions in slums on the periphery of cities and towns. But little is known about their concrete situation and needs as humanitarian organisations have been blocked from assisting the displaced. In the context of Turkey's application for EU membership, the issue of finding durable solutions for the displaced – a key accession requirement – appears to have finally been placed on the political agenda. In a new sign of openness and transparency, the government invited the UN Representative on IDPs to visit the country in May 2002. As a follow-up, first steps were made in early 2004 to establish a framework for cooperation between the government and the international community on addressing internal displacement. It is critical that the government now move forward in its collaboration with relevant national and international actors and implement the recommendations of the UN Representative. There is a particularly urgent need for the development of a coherent IDP policy, addressing return, resettlement and reintegration. This requires the collection of comprehensive and reliable data on the number of IDPs, as well as on their whereabouts, specific needs and intentions as regards return or resettlement.

Background and main causes of displacement

The Kurdish population constitutes the largest ethnic minority in Turkey, and was estimated to be between 12-20 million in 1995 (US DOS 31 March 2003). Since the formation of the Turkish state in 1923, Turkish authorities have habitually displaced members of the Kurdish minority in the south-east and often brutally repressed signs of cultural expression (KHRP September 2003, p.12). In 1984, the Kurdistan Workers' Party, the PKK, which changed its name to the Kurdistan Freedom and Democracy Congress (KADEK), and then in 2003 to the Kurdistan Peoples Congress (KHK), launched attacks in south-eastern Turkey. The Turkish state responded with a violent counter-insurgency campaign, targeting both the PKK and the Kurdish rural population. Part of the state's strategy against the PKK was to employ paramilitary militia or "village guards". Village guards and their families were the targets of deliberate and arbitrary killings by the PKK, while villagers who refused to join the guard often faced reprisals from Turkish security forces (HRW 30 October 2002). Government security forces were granted exceptional powers under a State of Emergency Decree declared in ten provinces in 1987, which encompassed a heavy military presence, martial law and severe restrictions on civil and political rights enforced by a special Governor. Both PKK and government-employed village guards and military forces committed serious human rights violations including torture, arbitrary arrests, disappearances, and the destruction of villages and crops.

During the height of the conflict between 1985 and 1999, over 35,000 people lost their lives and there was large-scale forced displacement in south-eastern Turkey. Although there is no comprehensive information on the number of displaced, the government maintains that 353,000 people were displaced from the southeast; while outside observers and Turkish NGOs report between 1 and 4.5 million IDPs (Turkish

Mission to the UN Geneva 18 March 2004; COE/PA March 2004; US DOS 25 February 2004). Internal displacement in the country is also part of a broader rural to urban migration, which was exacerbated by the violence in the southeast. Large-scale development projects, such as the South-Anatolia Project (GAP) and natural disasters have also been the cause of displacement (OHCHR 27 November 2002, p.8).

Since the arrest of PKK leader Abdullah Öcalan in June 1999 and his subsequent announcement of a unilateral cessation of armed activities by Kurdish armed groups, the level of violence in south-eastern Turkey has significantly decreased. In November 2002, the 15-year-long state of emergency was lifted in the last two provinces (Diyarbakir and Sirnak) where it had remained in force (UK Home Office April 2003). In a bid to meet conditions for European Union (EU) membership, the Turkish parliament has in recent years adopted extensive legislative reform, in areas such as religious freedom, combating torture, freedom of expression and association, and permitting media outlets to broadcast in Kurdish and other minority languages.

While the overall security situation has greatly improved, Turkish human rights NGOs documented an increase of human rights abuses in the south-eastern provinces in 2003, and there were some reports of the displacement of villagers by Turkish soldiers in Curkura District of Hakkari and Cemisgezek District of Tunceli in the Southeast (KHRP/Goç-Der/HRA September 2003, p.25).

Return remains perilous

Only a small percentage of IDPs have been able to return, and for most IDPs return continues to be hazardous (HRW 26 January 2004). Government authorities claim that 94,029 people returned to their villages between January 2000 and December 2003, but these figures have not been independently verified (COE/PA March 2004; US DOS 25 February 2004). Even if government figures are taken as accurate, the figures indicate the return of only a quarter of IDPs (HRW 30 October 2002).

The continued presence of village guards may constitute the greatest obstacle to return (FIDH July 2003). In 2003, the government maintained some 60,000 village guards, mostly in the southeast, to control the PKK/KADEK/KHK. Village guards hindered return by setting up checkpoints, denying displaced villagers access to their fields and pastures and attacking or intimidating those attempting to return to their homes with official permission. Village guards have also occupied the homes and land of IDPs. In the first eight months of 2003, village guards deliberately killed five displaced villagers attempting to return to their homes (HRW March 2003; US DOS 25 February 2004, Sect.1c). The rarity of convictions and the light sentences imposed on village guards and other security forces fostered a climate of impunity (US DOS 25 February 2004, Sect. 1d).

Return movements were further restricted by the concentration of minefields in the south-eastern provinces of the country. In 2003, international human rights organisations expressed concern following an increase in landmine accidents and allegations that the government had placed additional minefields along the Iraqi border in response to the conflict in Iraq (FIDH July 2003). In connection with the Iraq war there was also an increased military presence that restricted freedom of movement in the region, including checkpoints and road blocks (FIDH July 2003; EC 5 November 2003, p.39).

A further obstacle to return has been administrative procedures that require IDPs to relinquish their legal right to seek compensation for their displacement (HRW 30 January 2003). The government has required returnees to sign a document stating that they were displaced due to terrorism rather than by government actions. The forms also require the applicants to declare that they would not seek compensation from the state (US DOS 25 February 2004).

For many displaced people return is not an option because most lack the means to reconstruct their homes; and there is an overall absence of basic infrastructure in former conflict areas. IDPs have been offered limited compensation by the state for their destroyed properties (EC 5 November 2003, p.40). A mission

undertaken by the Council of Europe found that the eastern and south-eastern provinces of the country suffer from a chronic lack of social facilities and infrastructure (COE PA March 2004, pp.45-46).

Physical security and living conditions remain problematic

The European Commission describes the current situation of internally displaced people as “still critical”, noting that large numbers of IDPs live in “extremely poor conditions” on the periphery of cities and larger villages (EC 5 November 2003, p.40). IDPs face acute social and economic problems and limited access to educational and health facilities and psychosocial care. This is particularly the case for displaced women and children (COE/PA March 2004, p.44). However, it is difficult to assess the numbers of IDPs, their current location, conditions and precise needs, and intention to return, since no comprehensive data-collection or survey has been undertaken (OHCHR 27 November 2002).

National Response

Consecutive governments have done little to support returns (COE/PA March 2004, p.45). National authorities have long denied the role of government forces in displacement and claimed two decades of terrorism as the root cause of internal displacement in Turkey (OHCHR 7 November 2003). Until recently, national authorities blocked national and international organisations from providing any assistance to IDPs. Turkish organisations working with displaced populations have been excluded from the government’s return initiatives, and have often been targeted by the government (HRW 30 January 2003). In 2004, the courts fined the director of an NGO working on displacement for publishing a report on the situation of IDPs in the country (HRW 3 March 2004).

Though the authorities have launched numerous projects to enable IDPs to return, the government’s return policy has been questioned by international observers over its lacking transparency, clear strategy, and adequate consultation with the displaced population and the international community. Implementation of the “Return to Village and Rehabilitation Project”, launched in 1994, has drawn criticism from international organisations on the grounds that it has progressed slowly, is ad hoc, discriminatory, and under-financed (HRW 26 January 2004; EC 5 November 2003, p.40). Although some financial assistance has been provided to returnees, international observers point out that the state has generally failed to financially support return, provide compensation and develop basic infrastructure in post-conflict areas (EC 5 November 2003, p.40).

A major sign of progress in 2003-2004 has been the government’s initiative to work together with the international community, following the mission and recommendations by the UN Special Representative on IDPs, Francis Deng (OHCHR 27 November 2002). In the first two months of 2004, governmental authorities met representatives of the UN, World Bank and EU to define a framework for collaboration. The government has also stated that it foresees future cooperation with national and international NGOs (Turkish Mission to the UN Geneva, 18 March 2004).

Another significant step by the national authorities is a draft law on compensation for people who suffered loss or damage as a result of “action by terrorist organisations and measures taken by the government to combat it” which is expected to be adopted in 2004 (COE/PA March 2004, p.45). However, some Turkish NGOs and legal experts have expressed concern the bill would limit compensation to material damage and would not cover psycho-social trauma, and that the Commission that would assess claims for compensation is to be composed only of government officials, thereby excluding representatives of the victims and relevant NGOs from the process (HRF January 2004).

International response

The UN Representative on IDPs, Dr. Francis Deng, undertook a mission to Turkey in May 2002 to study the situation of internal displacement and to initiate a dialogue with the government, international agencies, representatives of donor countries and NGOs. Other fact-finding missions have been undertaken by the UN,

EU and international NGOs, such as Human Rights Watch and the International Federation of Human Rights. UN human rights treaty monitoring committees have also raised the issue of displacement in evaluating Turkey's commitments under the treaties to which it is party (CAT 27 May 2003; CRC 9 June 2001). The situation of displacement in south-east Turkey has likewise been the subject of a number of reports and recommendations by the Council of Europe's Parliamentary Assembly and Council of Ministers (COE/PA 3 June 1998, 29 May 2002; 3 March 2004). The European Court of Human Rights has repeatedly held the Turkish state responsible for its involvement in the forced displacement of the Kurds, particularly in judgments regarding village destruction and disappearances. The Court has ordered Turkey to pay substantive compensation to the victims, though the government has not yet implemented a number of these judgments (KHRP/Goç-Der/HRA September 2003, p.8). Turkey was recognised as an EU candidate in 1999, and the EU has underlined improvement of "the situation in the south-east with a view to enhancing economic, social and cultural opportunities for all citizens" as a condition for Turkey's accession (HRW 30 January 2003).

Although the international community was long excluded from national initiatives concerning IDPs, following meetings with the government in early 2004, it is foreseen that the UNHCR, UNDP, UNICEF, and the EU will assume a larger role in monitoring the situation of IDPs and the return process. It is critical that the government now move forward in its collaboration with relevant national and international actors and implement the recommendations of the UN Representative. There is a particularly urgent need for the development of a coherent IDP policy, addressing return, resettlement and reintegration. This requires the collection of comprehensive and reliable data on the number of IDPs, as well as on their whereabouts, specific needs and intentions as regards return or resettlement.

(5 April 2004)

CAUSES AND BACKGROUND

Background

The Kurds: history and profile

- Kurds constitute the largest minority ethnic group in Turkey but there are no accurate figures available
- They are traditionally organised in tribes with pastoral or agricultural activities
- Kurds do not represent a cohesive ethnic minority
- Kurds were not formally acknowledged as minorities under the 1923 Treaty of Lausanne
- Atatürk's secular state brutally prohibited any manifestation of Kurdish identity, including through mass killings and deportation (1925-1938)
- Nationalist ideas within Kurdish society reappeared in intellectual circles in the 1950s
- During the 1970s many Kurds were attracted to the leftist revolutionary socialist groups and then created specifically Kurdish nationalist groups to challenge State denial
- The most successful of these was the Kurdistan Workers' Party (PKK) which steadily widened its sphere of influence during the 1980s

"Who are the Kurds?"

The Kurds are the descendants of Indo-European tribes who settled among the inhabitants of the Zagros mountains in various epochs, but probably mainly during the second millennium BC. The first mention of Kurds, as 'Cyrtii', occurred in the second century BC. At the time of the Arab conquest in the seventh century AD, the term 'Kurd' was used to denote nomadic people.

The Kurds today, numbering at least 26 million, struggle to obtain political recognition and rights as national communities within the state boundaries in which they find themselves. They form the largest ethnic community in the Middle East without a state of its own.

Population estimates (1993)*

Country	Total population	Kurds	%
Iran	61,000,000	6,100,000	10%
Iraq	19,300,000	4,400,000	23%
Syria	13,400,000	1,100,000	8%
Turkey	60,000,000	13,200,000	22%
Former Soviet Union		500,000	
Elsewhere		700,000	
Total		26,000,000	

(*Estimates are in rounded figures.)

Where do the Kurds live?

Although Kurds are to be found in Syria, the Caucasian republics of Armenia and Azerbaijan, Khorasan (in eastern Iran), and in Lebanon, the main concentration lives today where the Kurdish people have always lived - in the mountains where Iran, Iraq and Turkey meet. The heart of this area consists of the extremely

rugged mountains of the Zagros range, running in ridges north-west to south-east. In the west these mountain folds give way to rolling hills, and to the Mesopotamian plain. To the north the mountains slowly turn to steppe-like plateau and the highlands of Anatolia. To the east the mountains fall away to lowlands onto which the Kurds have also spread.

Although the population is not exclusively Kurdish in much of this area, the dominant culture is Kurdish. From the early thirteenth century onwards much of this area has been called Kurdistan, although it was not until the sixteenth century, after the Kurds had moved north and west onto the Anatolian plateau, that the term Kurdistan came into common usage to denote a system of Kurdish fiefs. Since then, although the term Kurdistan appears on few maps, it is clearly more than a geographical term since it also refers to a human culture which exists in that land.

Nevertheless no map of Kurdistan can be drawn without contention, and for this reason the demographic map is not a political statement, but a statement of where large numbers of Kurds are found." (MRG 2001)

"In 1989 the average gross reproduction rate in the predominantly Kurdish provinces was 2.75 per cent, compared with that in the predominantly Turkish regions of the Republic of 1.49 per cent. Fifty per cent of the Kurdish population is under the age of 15 compared with only 35 per cent of Turks. Whereas Kurds probably constituted 19 per cent of the population in 1975, today they almost certainly constitute approximately 24 per cent." (Atreya, N.; McDowall, D.; Ozbolat, P. February 2001, p. 1000)

"Estimates of the number of Kurds in Turkey vary considerably; there may be 12 - 15 million Kurds in Turkey out of a total population of 64.4 million, making Kurds the largest minority ethnic group in Turkey. The Kurdish birth rate is high and the proportion of Kurds in the national population of Turkey is likely to increase.

In the 19th century most Kurds were tribal pastoralists, but a significant minority were peasantry. Religious feeling tended to be very strong among the Kurdish tribes, with devotion to particular local religious leaders who belonged to the brotherhoods of "folk-Islam". These leaders quite often became tribal chiefs in their own right, with secular as well as religious authority. At the end of the 19th century thinkers among the different ethnic groups within the Ottoman Empire began to think of themselves for the first time in ethnic terms. Both the Arabs and Turks evolved ideas of ethnic nationhood, but such ideas were slower to develop within Kurdish society, which remained fragmented and tribal.

Many Kurdish tribes supported Mustafa Kemal (Atatürk)'s war of independence in the expectation that they were repelling the infidel (Greeks, Armenians, and the Allies) to re-establish the Muslim Fatherland with its Sultan/Caliph. But Atatürk established an ethnic definition of the new Republic as "Turkish, secular and modern", and he set about suppressing all manifestations that contradicted that aim: tribal life, Kurdish language and culture, and the religious brotherhoods that were so strong in the Kurdish region. From 1925 to 1938 the Turkish Government ruthlessly suppressed Kurdish rebellions and resistance to the enforcement of this new ideology which denied their identity. Kurdish leaders tended to appeal to nationalist ideas, the rank and file probably simply wanted their old way of life back. Atatürk's measures involved mass killings, village destruction, and the forced deportation of hundreds of thousands of Kurds.

By the 1950s it seemed as if the Kurds had finally been hammered into Turks. The end of one party politics in the 1940s led the new opposition to woo the old tribal chiefs and the new landlord class in the Kurdish region to deliver the peasant vote. This became a key feature of Turkish electoral politics. The landlord class benefited in material ways and obeyed the State ideology. It was young middle class intellectuals in the 1950s who reawakened nationalist ideas within Kurdish society, challenging the State's view that Kurds were mountain Turks. (Kurdish is a member of the Iranian branch of the Indo-European family of languages. Kurds have no ethnic connection with Turks, whose language is a member of the Altaic family).

During the 1970s many Kurds were attracted to the leftist revolutionary socialist groups which soon found themselves in armed conflict against right wing groups that frequently enjoyed the tacit support of the

State. Counter insurgency operations routinely involved human rights violations against villagers in affected areas. With these disorders proliferating, the army intervened in September 1980. It is estimated that during the three years of military government probably over 100,000 Kurds were detained by the security forces. Many were tortured.

Many Kurds became disillusioned with Turkish leftist movements in the 1970s, and started to form specifically Kurdish nationalist groups to challenge State denial and repression. The most successful of these was the Kurdistan Workers' Party (PKK), which was given substantial help and facilities by Syria. The PKK matched Turkish Government ruthlessness, killing pro-government villagers and their families and also Turkish civil servants in rural areas, most notably teachers, who were suspected of being government informants. Thus both sides routinely violated the rules of war and other legal instruments for the protection of basic rights.

During the 1980s the PKK steadily widened its sphere of influence. Most Kurds were initially hostile to the PKK and hated its methods. But they had little time for a government that denied their identity and rights. When government forces made them choose sides, large numbers started to support the PKK, despite misgivings over its methods. Many were not interested in, or did not know about, its atrocities. They saw government atrocities on a far more widespread scale, and saw the PKK as defending the Kurdish corner.

[...]

Kurds do not represent a cohesive ethnic minority and range from persons tranquilly integrated in the larger society through political activists to committed terrorists. A significant number of historically ethnic Kurds have been completely assimilated into Turkish society and no longer even speak Kurdish." (UK Home Office April 2001, paras. 6.1-6.10)

The Kurdish conflict (1984-1999)

- Kurdish insurgency erupted in 1984 with the PKK, mainly in southeastern Turkey
- In July 1987, ten provinces in the southeast were placed under emergency rule due to an increased level of fighting
- The conflict led to the displacement of Kurds from exposed villages, forcible evacuation and the destruction of villages
- The arrest of Abdullah Öcalan, the PKK leader in 1999 and his appeal for a cease-fire was followed by a considerable reduction of violence in southeastern Turkey

"On 12 September 1980 the armed forces, led by General Kenan Evren, Chief of the General Staff, seized power in a bloodless coup. Martial law was declared throughout the country and the new government succeeded in reducing the level of political violence and in restoring law and order, but at the expense of compromising or suspending many democratic freedoms. A new Constitution was adopted in 1982." (UK Home Office April 2001, para. 3.3)

"Four years after the 12 September 1980 coup, which crushed the activities of urban insurgents and fundamentalists, Turkey faced a different threat from a similar source - rural insurgency, initially concentrated in the south east region along the borders with Iran, Iraq and Syria. Almost all the rural insurgent groups had their origins in the student groups based in the cities, one particular case in point being Abdullah Öcalan's PKK (Kurdistan Workers' Party). The separatist activities soon spread to the cities.

Following the coup, there was a sharp decline in the number of insurgent acts and resulting deaths. Official statistics showed a 70% decline in ordinary crimes while the number of political murders decreased by 82%. This downward trend continued in the three years following the coup, suggesting that the insurgent threat had been crushed. After 1983 there was a strong belief that the insurgent organisations would never

come back to the Turkish scene. However, by 1984, this opinion proved baseless when insurgency (in the form of the PKK) resurrected suddenly. Instead of a resumption of armed activities in Turkey's main cities, the emphasis was on attacks concentrated in the south east.

In July 1987, ten provinces in the southeast were placed under emergency rule due to an increased level of fighting; Van, Bitlis, Tunceli, Diyarbakir, Siirt, Bingol, Batman, Hakkari, Sirnak, Mardin. The state of emergency was lifted in Mardin in November 1996, in Batman, Bingol and Bitlis in October 1997, in Siirt in November 1999, and in Van in July 2000. It continues in Diyarbakir, Hakkâri, Sirnak, and Tunceli provinces.

In a speech in December 1998, President Demirel stated that, since 1984, 23,638 PKK members, 5,555 security force members, and 5,302 civilians had lost their lives in the fighting between the security forces and the PKK, which fought, initially, for Kurdish self-rule in the southeast. The conflict has led to the migration of Kurds from exposed villages to district and provincial centres, or out of the southeast altogether. Forcible evacuations by the Turkish security forces are reported to have led to the destruction of 3500 villages in the region and the displacement of between 330,000 and 3 million people. As so many villages have now been evacuated and because the fighting has now moved to the mountains, the rate of evacuations has decreased in recent years, with 30 villages being evacuated in 1998. The Human Rights Association states that, as of October 2000, no village clearances took place during the year.

The situation in the southeast was reported to be calmer in 1998 than in previous years. In September 1998, rapporteurs from the Council of Europe Parliamentary Assembly said the region had started a process of 'normalization' in comparison to their last visit there. Since the PKK ceasefire in August 1999, there has, as of October 2000, been a 90% reduction in violence in the south-east.

In October 1998 the PKK's leader, Abdullah Öcalan, was expelled from Syria. Following his expulsion he unsuccessfully attempted to claim asylum in several European countries before being apprehended in Kenya and flown to Turkey. He was tried and convicted of treason and sentenced to death. After his sentencing he instructed PKK fighters to withdraw from Turkey, and a Turkish general confirmed that this was actually happening." (UK Home Office April 2001, paras. 4.23-4.28)

"In 1999 Abdullah Öcalan, the PKK leader, was captured and brought to trial by a Turkish court. In June he was found guilty of treason, and was sentenced to death. In early August the PKK indicated its willingness to comply with Öcalan's request for a cease-fire in south-eastern Turkey. On 12 January 2000 the Turkish Government agreed to respect an injunction from the European Court of Human Rights calling for the suspension of Öcalan's execution, pending his appeal to the Court. In a written statement from prison, Öcalan said that the Government's decision was a step towards democracy. He pledged that the PKK would not exploit the move, and said that he now believed that the PKK's war for a Kurdish state was a 'historic mistake'. A ruling from the ECHR could take up to two years from January 2000." (UK Home Office April 2001, paras. 6.8-6.9)

State of emergency in southeastern Turkey: severe restriction of human rights (1987-2002)

- The state of emergency (OHAL) lifted in the last 2 provinces in November 2002
- The state of emergency was originally declared in 8 provinces in southeastern Turkey in 1987
- Official figures put the number of casualties to 30,000 people during the OHAL period
- OHAL consisted of military presence, martial law, maintenance of the village guard system and other restrictions to normal economic and social life
- The emergency region governor had sweeping powers to restrict exercise of civil and political rights

"The state of emergency was lifted in the provinces of Tunceli and Hakkari in July [2002], and in the last two provinces, Diyarbakır and Şırnak, in November [2002]. The mainly Kurdish southeast had been under martial law or state of emergency since 1987." (HRW, 14 January 2003)

"At the beginning of the year, four provinces remained under a state of emergency; but the Government completed the phased lifting of the regime on November 30 [2002] and closed the State of Emergency Regional Governor's Office, which exercised authority over the governors of the emergency provinces, as well as the adjacent provinces. The Regional Governor held certain quasi-martial law powers, including the authority to impose restrictions on the press, remove from the area persons whose activities were deemed detrimental to public order, and order village evacuations. The Government continued to maintain a heavy security presence in the region, including numerous roadway checkpoints. The level of violence has decreased substantially since 1999." (US DOS, 31 March 2003)

"Due to a decision in the Grand National Assembly of Turkey (GNAT) of 19 June the state of emergency was lifted in the two remaining provinces of Diyarbakir and Sirnak. On 19 July 1987 the state of emergency had replaced martial law in the provinces of Bingöl, Diyarbakir, Elazig, Hakkari, Mardin, Siirt, Tunceli and Van. The provinces of Adiyaman, Bitlis and Mus were included as neighboring provinces. When Batman and Sirnak became separate provinces they had been included in the region under a state of emergency (OHAL) on 6 May 1990. The whole time gross human rights violations were reported from the OHAL region. Official figures put the number of casualties as high as 30,000 people, who were killed during the 15 years. A large number of political killings were attributed to the radical Islamic organization Hezbollah. Large-scale operations against Hezbollah started in 2000, but many killings remain unclarified.

Even though Article 2 of the Decree 285 with the Power of Law allowed the Governor for the Region under a State of Emergency (OHAL) to evacuate, resettle and exile whole settlement most of the 3,500 settlements, were evacuated under the pressure to become village guards and/or burning down or destruction of houses by the security forces. The Parliamentary Research Commission stated in its 1998 report that 905 villages and 2,523 hamlets had completely or partly been evacuated. The number of displaced people was put at 'only' 378,335. The US State Department put this figure in its 2001 report to be around one million. Human rights organizations estimated the number of displace people to be around 4 million people from some 4,000 settlements.

Decree No. 430 with the Power of Law 'Regarding Additional Measures in the State of Emergency Governor's Office and during the State of Emergency Period' was introduced on 15 December 1990. Article 1 allowed the OHAL Governor to exile people from the region. The 'exiled' persons had no possibility to appeal against such a decision (Article 8). Article 3 of the Decree No. 430 allowed for prolonged periods of detention of 10 days each. Detentions of up to 40 days were reported in 2001 and 2002. Relying on the competences of Decree No. 430 the OHAL governor also banned some 30 newspapers and journals from entering and distribution in the region.

On 4 April 1985 Law No. 3175 amended the Village Law numbered 442 introducing the system of 'temporary village guards'. The system was introduced with 40 village guards in Eruh district (Siirt) and became systematic with the introduction of OHAL. Throughout the 1990s the village guards became known for kidnapping, killing, torture and rape. The Inspection Committee of the Prime Ministry stated in its Susurluk Report in January 1998 that the village guards were the part of society that had most intensely been involved in "dirty jobs". Even though the number of human rights violations in the OHAL region decreased after the armed clashes went down, the HRFT received information on 11 killings committed by the village guards in 2002." (HRFT, November 2002)

"The state of emergency called Emergency Rule (OHAL) introduced on Jul. 19, 1987 is now into its 15th year, the Anatolia news agency reported yesterday. At first, martial law had been introduced into certain provinces in East and Southeast Anatolia on Jul. 12, 1980 because of escalating terrorist action, but was upgraded to OHAL in 1987 when separatist terrorists began mounting bloody attacks in eight provinces. OHAL has been extended 42 time since being declared by the late President Turgut Ozal.

The first provinces to be covered by OHAL were Bingöl, Diyarbakir, Elazig, Hakkari, Mardin, Siirt, Tunceli and Van. The provinces of Adiyaman, Bitlis and Mus became covered by the definition 'neighboring provinces'. Later on Adiyaman, Bitlis, Batman and Sirmak were to be covered by OHAL's scope. At its height, OHAL covered 13 provinces, but with the reduction in the terrorist threat, only four provinces: Diyarbakir, Sirmak, Hakkari and Tunceli are still covered.

The OHAL region has been run by six 'super' governors with special powers above and beyond those of regular provincial governors. One governor, Aydin Arslan, died in office in 1999. The current OHAL Governor is Gokhan Aydin.

To date, some 29,712 Kurdistan Workers Party (PKK) separatist terrorists have been caught or killed or have surrendered within the boundaries of OHAL. A total of 1,117 village guards and 5,040 security forces personnel have been martyred as a result of terrorist activity within OHAL." (Turkish Daily News 19 July 2001)

"This state of emergency implies military presence in full operation [endnote 23], martial law, maintenance of the village guard system [Endnote 24], regular roadblock, curfews, identity controls and many other impediments of a normal economic and social life. The Turkish authorities recalled that the source of the present difficulties of the region is the security problem resulting from the PKK terror since the 1980's rather than the present state of emergency. Should the decline of the PKK terror prove to be permanent, the state of emergency will also be abolished in the remaining four provinces. "

[Endnote 23]: During their trip to Sirmak the co-rapporteurs did not see any potentially strategic mountain pass or hilltop without the presence of security forces.

[Endnote 24:] In March 2000, the number of village guards was said to be 65,000, with about 335 000 - 400 000 family members, who are paid by the State. (COE 13 June 2001, para. 141)

"In accordance with article 120 of the Constitution, the Council of Ministers, meeting under the chairmanship of the President of the Republic and after consultation with the National Security Council, may declare a state of emergency in one or more regions or throughout the country in the event of serious indications of widespread acts of violence aimed at the destruction of the free democratic order or of fundamental rights and freedoms, or serious deterioration of public order. The state of emergency is declared for a period not exceeding six months. This decision shall be submitted immediately to the Turkish Grand National Assembly, which may extend the period for a maximum of four months each time." (UNCHR 28 December 1998, para. 14)

"Under the 1983 State of Emergency Law and supplementary decrees, the emergency region governor had sweeping powers to move populations, confiscate publications and limit the right of assembly. Maximum police detention periods could be extended from seven to ten days within the emergency region. The governor's extraordinary powers were still regularly exercised in 2000. For example, in May, the emergency region governor banned the distribution of twelve journals. Rights to compensation for acts carried out by the emergency region governor were limited, and there was no judicial review of such actions." (IHF 2001, p. 303)

State of Emergency in Southeast extended for 4 months (November 2001):

"Parliamentary General Assembly on Tuesday adopted the Prime Ministry Official Communication pertaining to the extension of the implementation of emergency rule in four provinces for another four months. The provinces are Diyarbakir, Hakkari, Sirmak and Tunceli.

According to the Official Communication Emergency Rule will be extended starting as of November 30, 2001." (Info-Türk November 2001, "State of Emergency Extended in Southeast for 4 Months")

Significant decline of fighting following PKK leader Ocalan's call for an end to the armed struggle (1999-2001)

- There were reports of some clashes between security forces and PKK groups withdrawing to Northern Iraq (2000)
- PKK attacks against civilians and law enforcement personnel has virtually ended

"In 1999 the Kurdistan Workers' Party (PKK) declared that it would abandon armed activities in Turkey, thus reducing the armed turbulence, particularly in the southeast, although some units of the PKK continued sporadic attacks, and there were some clashes between security forces and PKK groups withdrawing to Northern Iraq. Other illegal organizations, including the Workers and Peasants' Army of Turkey (TIKKO), the Islamic Raiders of the Big East-Front (IBDA-C) and the Revolutionary People's Liberation Party/Front (DHKP/C), continued their armed activities. Nevertheless, the number of clashes diminished considerably. The Anatolia New Agency reported in May [2000] that armed incidents had decreased from 3,300 in 1994, to 1,436 in 1995, to 488 in 1999, to eighteen in the first five months of 2000." (HRW 2000, p. 326)

"During the year [2000], Turkish ground forces with air support conducted several operations in northern Iraq against the PKK. The Kurdistan Democratic Party and the Patriotic Union of Kurdistan cooperated with the Turkish Government in shutting down certain PKK facilities in northern Iraq. Turkish government policy is to target only PKK fighters in northern Iraq; however, Turkish planes accidentally killed 38 civilians in Sedakan, northern Iraq, during an operation in August against the PKK. The Government is taking steps to compensate the victims' families. At the end of the year, an operation against the PKK involving hundreds of Turkish soldiers continued in northern Iraq, according to press reports.

In February [2000] Parliament renewed legislation allowing members of terrorist organizations (and criminal gangs) to apply for amnesty or reductions in sentences, if they provide useful information that helps lead to the dissolution of the organization. Government figures are not available for the number of persons who applied for the amnesty, but human rights attorneys speculate that the number is above 2,500. According to press reports, many applicants, including some who were members of Turkish Hizbullah, have obtained sentence reductions or release.

The PKK remained almost completely inactive during the year. There were reports of internal divisions over jailed PKK leader Ocalan's call for ending the armed struggle, but by year's end no rival faction appeared to have gained control of the group. Apparently on orders from the PKK leadership, several groups of 8 to 10 former militants turned themselves in to the authorities, asking for amnesty. They are all currently standing trial for charges relating to membership in the PKK. Although PKK attacks against civilians and law enforcement personnel in the southeast have virtually ended, the military did engage the PKK, killing several alleged terrorists. Government authorities acknowledge that the level of violent conflict is considerably lower than in the past and that the main reason is an absence of PKK activity and the fact that the security forces were able to effectively end Hizbullah operations.

Other terrorist organizations, most notably DHKP-C, conducted attacks mainly against police targets." (U.S.DOS February 2001, sect. 1g)

"An armed clash broke out in the region between Kulp and Lice districts of Diyarbakir and Genç district of Bingöl on 13 and 14 April. 5 soldiers named nder Altay, Abdülkadir Kocatürk, Turgay Türmen, Kadir Altnöz and Kamil ngör lost their lives and another two were injured. The Emergency State Region Governor Office claimed that 9 PKK militants had lost their lives, whereas PKK declared 2 militants and 7 soldiers died, and 1 Militant had been caught.

In a statement the Emergency State Region Governor Office, alleged that 4 PKK militants died in the armed clash broke out on 24-25 April in the vicinity of Hakkari." (Human Rights Foundation in Turkey April 2001, sect. 3.10)

"According to the information given by the PKK through daily *zgür Politika* on 7 May, 5 soldiers lost their lives during the operations deployed by the Turkish Armed Forces in Sirnak between 26 April and 3 May.

According to the information given by the Governor of the Emergency State Region, 200 PKK militants lost their lives during the operations started in Bingöl as of 21 May. Reports on the casualties stated that *zgen Bingöl* was among the victims." (Human Rights Foundation of Turkey May 2001, sect. 3.10)

State of Emergency ended in two of the four remaining OHAL provinces (July 2002)

- The State of Emergency in the Southeast was extended for 4 months in November 2001
- It ended on 1 July 2002 in the provinces of Hakkari and Tunceli and was extended a last time in Diyarbakir and Sirnak

"Parliamentary General Assembly on Tuesday adopted the Prime Ministry Official Communication pertaining to the extension of the implementation of emergency rule in four provinces for another four months. The provinces are Diyarbakir, Hakkari, Sirnak and Tunceli.

According to the Official Communication Emergency Rule will be extended starting as of November 30, 2001." (Info-Türk November 2001, "State of Emergency Extended in Southeast for 4 Months")

Restrictions were eased:

"Turkey's National Security Council has agreed to lift the state of emergency which has been in force for the past 15 years in two predominantly Kurdish provinces.

The council - which groups Turkey's top generals and government leaders - said emergency rule in two other eastern provinces would be lifted in four months time.

The measure is one of the European Union's conditions for opening negotiations for Turkey's membership.

The council called on the EU to set out a timetable to start talks for Turkey's eventual membership before the end of the year.

[...]

In a statement, the council pledged to speed up other reforms needed to join the EU, but did not detail the measures it would adopt.

The EU has demanded that Ankara grant its 12 million strong Kurdish minority more rights and abolish the death penalty.

[...]

It is due to end on 1 July in the provinces of Hakkari and Tunceli, according to the council, and will be extended "one last time" in Diyarbakir and Sirnak.

Emergency rule was first imposed in 13 provinces in 1987, but was gradually lifted as fighting between Kurdish separatists and government troops died down." (BBC 31 May 2002)

Food embargo resulted in serious economic consequences (November 2002)

“During the period of OHAL food embargoes and bans to go to the pasturelands became a serious economic obstacle. The food embargo was first introduced in Tunceli but soon extended to districts in Bingöl and Diyarbakir province. In Sirnak the embargo started in 1992 to cover villages in the districts of Cizre, Idil, Beytüşsebap, Güçlükönak and Uludere. The practice was less intense in the second half of the 1990s affecting mainly regions in the provinces of Tunceli, Sirnak, Bingöl, Diyarbakir, Siirt, Batman, Bitlis, Hakkari, Mardin and Agri. Tunceli Governor Atil Uzelgün even closed the mills producing flower. On 2 October 2000 the governor’s office declared that the food embargo that officially never existed had come to an end.” (HRFT, November 2002)

“The food embargo in Tunceli continues to be imposed in Hakkari where the state of emergency has been lifted. Permission is required to bring in food in 20 villages belonging to Yüksekova. In Yüksekova, a food embargo has been imposed in the region of Daglica, of which the following belong: Kamisli, Daglica (Oramar), Yesiltas (Stazin), Tuglu (Hacyan), Köskönü (Pêspesrê), Gürkavak (Sahkulu), Bostancik (Gulort). It is becoming increasingly difficult for the villagers to obtain food. Military and civilian authorities claim that the food is being passed on to KADEK, but have not taken into account existing levels of stocks and continue to impose the embargo. The embargo, brought in during the armed conflict, continues despite the lifting of the state of emergency.” (IAHRK 15 September 2002)

OSCE: Parliamentary elections demonstrated vibrancy of Turkey's democracy yet public debate is limited (2002)

- Elections took place in a period of constitutional and legal reform
- The end of hostilities in the southeast led to a less highly charged political atmosphere
- Non-violent expression of political views is still restricted by a variety of laws
- Voter turnout 78.9%, DEHAP got 6.2% votes

“The 3 November elections for the Turkish Grand National Assembly (TGNA) demonstrated the vibrancy of Turkey's democracy. A large number of parties campaigned actively throughout the country, offering the electorate a broad and varied choice. The sweeping victory of opposition parties showed the power of the Turkish electorate to institute governmental change.

The elections were held under election laws that establish a framework for democratic elections in line with international standards. Significant constitutional and legal reforms instituted over the past two years have further improved the overall legal framework under which the elections were carried out.

At the same time, the broader legal framework and its implementation establish strict limits on the scope of political debate in Turkey. Non-violent expression of political views beyond these limits is still restricted by a variety of laws and is rigorously enforced. Several parties faced action aimed at closing them down during the current elections, notably the Justice and Development Party (AK), the winner of the elections. Many candidates were also banned from running, including AK's leader and leaders of several other parties, generally as a result of past convictions for non-violent political speech. These restrictions on free speech and the practice of dissolving political parties and banning candidates stand in stark contrast to the otherwise pluralist election system in Turkey, as well as its international commitments.

Parties must win at least 10% of the vote to enter the TGNA; this is an exceptionally high threshold by European standards. Only two of the 18 parties running passed the threshold. As a result, 45% of the electorate cast votes for parties that will not be represented in the TGNA, and a party that drew less than 35% of the total vote will control almost two thirds of the seats in the TGNA. To avoid such distortions, the authorities should consider reviewing the level of the threshold. Other aspects of the law that might be reviewed are the absence of any judicial appeals against the decisions of the Supreme Board of Elections, and the absence of procedures for voting abroad.

[...]

The elections took place in a period of significant constitutional and legal reform in Turkey, during which human rights and fundamental freedoms have been substantially strengthened. Since the last elections in 1999, the government adopted a major constitutional reform package in October 2001, a new civil code in November 2001, and three additional legal reform packages in February, March, and August 2002. The adoption of these reforms was to a large extent in the context of the government's efforts to meet the Copenhagen political criteria for future membership in the European Union.

Several other factors also set the political framework for the elections. Since the previous elections, Turkey underwent a serious economic downturn, which continues to affect many sectors of the population. This was a major issue in the campaign and was reflected in the apparent disaffection of the voters for all parliamentary parties. The capture in early 1999 of Abdullah Öcalan, leader of the outlawed Kurdistan Workers Party (PKK), and the subsequent end of active hostilities by the PKK led to a less highly charged political atmosphere, particularly in the southeast. In addition, the question of Islamist influence in politics remained an election issue.

[...]

Many laws include restrictions on free expression. For example, Article 159 of the Penal Code provides possible prison sentences for 'insult to the State and to State institutions and threats to the indivisible unity of the Turkish Republic'. Article 312 of the Penal Code, mentioned above, was used to bar candidates for incitement of religious hatred. Articles 7 and 8 of the Anti-Terrorism Law include penalties for separatist propaganda or 'propaganda in connection with' a terrorist organization that can encourage the use of terrorist methods. Article 169 of the Penal Code, 'support for illegal organizations', has also been used in recent months to prosecute individuals for non-violent speech. Recent amendments to some of these laws as a result of the reform process may result in improvements in conditions for freedom of expression. Nevertheless, continuing restrictions and prosecutions had an effect on the election campaign, limiting the parameters of allowable legal debate.

Under Article 58 of the Law on Basic Provisions on Elections and Voter Registers, it is strictly forbidden to use any language other than Turkish in electioneering. As part of its reform process, a number of previous prohibitions on the use of other languages have been eliminated, and in August 2002 laws were changed to allow broadcasting and education in languages other than Turkish. The Democratic People's Party (DEHAP) asserted that the remaining restrictions interfered with its ability to communicate with many of the ethnic Kurdish voters who make up its primary base of support. A DEHAP candidate told the Election Assessment Mission that he had four cases against him for speaking Kurdish at election meetings or rallies. Three DEHAP supporters were reported to have been detained in Sîrnak for having played Kurdish music in a DEHAP bus; they have been charged with supporting an illegal organization. Abdulmelik Firat, Chairman of the Rights and Freedom Party, was detained briefly for greeting a crowd in Kurdish during the election campaign. The lifting of restrictions on the use of other languages than Turkish in the field of broadcasting and education should be extended to political campaigning.

[...]

On 9 November, the Supreme Board of Elections announced the final election results. As noted above, only two parties passed the 10% threshold. The Justice and Development Party (AK) won 34.3% of the vote and was awarded 363 of the 550 seats in the TGNA. The Republican People's Party won 19.4% of the vote and was awarded 178 seats. Neither of these parties had been represented in the outgoing Parliament. Nine independent candidates were also elected.

The outgoing Prime Minister Bülent Ecevit's Democratic Left Party (DSP) drew only 1.2% of the vote, while his governing partners, the National Movement Party (MHP) and the Motherland Party (ANAP) drew 8.3% and 5.1% respectively. Other notable results included the True Path Party (DYP) 9.55%, The Youth Party (Genç) Party 7.25%, DEHAP 6.2% and the Felicity Party (Saadet) 2.5%. Voter turnout was 78.9%." (OSCE, 4 December 2003)

Turkey's south-east emerges poor and devastated (2002-2004)

- Rural depopulation is an inevitable phenomenon in Turkey, yet the regions of the east and south-east have also become depopulated for security reasons, as well as because of economic factors
- The ban on pasturing herds on the high plateaux, considered to be PKK strongholds, the first Gulf War that interrupted trade and trafficking with Iraq, and under-development of a region which lacks investment due to insecurity are also important factors
- Most NGOs consider that improving economic and social conditions is a primary condition for the return of the population
- Destruction of infrastructure, crops, houses and other resources made the majority of the region uninhabitable
- The conflict also paralysed the infrastructure of the rural economy and destroyed the culture of a constitutional state
- Death of bread-winners, lack of education of children and displacement have undermined the recovery potential of Turkish Southeast

“Rural depopulation is an inevitable phenomenon in Turkey as elsewhere, but the regions of the east and south-east have also become depopulated for security reasons, as well as because of economic factors. The co-rapporteurs were told that the ban on pasturing herds on the high plateaux, considered to be PKK strongholds, the first Gulf War, which totally interrupted trade and trafficking with Iraq, and the under-development of a region where insecurity means that no one wants to invest are just as significant as the destruction of villages and the enforced displacements imposed by the security forces. Most NGOs consider that improving economic and social conditions is a sine qua non for the return of the population, whether it left under compulsion or voluntarily.” (COE PA Monitoring Committee March 2004, pp.44-45)

“The armed conflict has disrupted the region, which even before had been one of the poorest and least economically developed regions of Turkey with rates of illiteracy, poverty etc. much higher than in the rest of the country. Systematic destruction of the infrastructure, economic resources, livestock, crops, houses, and farming machinery has made large areas of the region uninhabitable. The infrastructure of the rural economy has been paralysed. The cultivable land and the irrigation channels have fallen into disuse, numerous landmines add to the problem. Deprived of a market economy and industry, the region has also lost its more traditional forms of economic activity, namely livestock rearing and agriculture. Leaving their homes the peasants had to abandon all farming machinery and sell off their livestock at very low prices (if their animals had not been killed or taken away by the PKK beforehand). Unemployment in overcrowded cities and towns is disastrous.” (CoE 22 March 2002)

“But it is unlikely that they will get the opportunity for a decent life. After 15 years of war and 25 years without rule of the law, the region is economically, socially and morally in ruin.

It is also still highly questionable whether an official lifting of the states of emergency can in practice effect a quick return to a normal life under a constitutional state. There will certainly be many gains with the lifting of the war-like rule by the authorities. Under state of emergency regulations, governors can clear whole villages, ban undesirable persons from the region, censor the media, authorize house searches without court permission, and to issue decrees without requiring any scrutiny by the Turkish courts. What cannot be restored by the security council's resolution is the culture of a constitutional state, something which has been completely destroyed. Because state and security authorities in state of emergency regions cannot have legal action taken against them, state despotism has established deep roots for itself.

Even when the special authorities have been disbanded, an immense tragedy will still be left behind. Villages have been devastated, the land has gone to waste, animals have been slaughtered. There are no

opportunities in the regions devastated by war: in the province of Hakkari only 16,600 people are employed out 200,000 inhabitants.

Loans, funding and aid are needed for rebuilding the regions and this is where the problems begin: Tens of thousands of people have lost their bread-winners in the war, hundreds of thousands of children have not received any education, millions have fled to Istanbul, Izmir and Europe - all of these require support for a new beginning.” (Info-Turk June 2002, “No Real Improvement in Living Conditions for Kurds”)

Significant legislative reform in preparation for EU accession (2002)

- Four legislative reform packages were ratified in 2002 in preparation for EU Accession, including the removal of several restrictions on minority language education and broadcasting
- The death penalty in peace time was abolished and steps were taken to prevent the use of torture
- The state of emergency was lifted in the remaining two provinces where it had remained in force (Diyarbakir and Sirnak)
- Despite the reform packages, Turkey must fulfill a number of other conditions to adhere to European human rights, economic, and political standards
- Among the human rights issues which remained unaddressed is support for the return of thousands of internally displaced people

“In 2002, many positive human rights developments took place in Turkey: the death penalty was abolished; several restrictions on minority language education and broadcasting were removed; and some necessary but not yet sufficient formal steps were taken to prevent the use of torture. On November 30, the 15-year-long state of emergency was lifted in the two provinces (Diyarbakir and Sirnak) where it had remained in force. The state of emergency had seriously restricted some basic human rights, particularly those related to arrest, detention and investigation of criminal suspects.

Three legislative reform packages were ratified in February, March, and August 2002, and a fourth one was announced in December 2002. The changes were mainly intended to meet European Union (EU) human rights accession standards in advance of the EU Copenhagen Summit in December 2002, which concluded the membership negotiations with ten countries, reinforced the candidate status of two others and decided on the candidate status of Turkey.

Despite the reform packages, many of the steps detailed in the EU document *Accession Partnership - 2000*, as necessary for Turkey to take in the economic and political spheres in order to qualify for membership negotiations, remained outstanding. Restrictions on freedom of expression persisted, exacerbated by the courts’ failure to adhere to the European Convention for the Protection of Human Rights and Fundamental Freedoms (ECHR). Turkish police and gendarmes still commonly tortured or ill-treated detainees. The recommendation of the European Committee for the Prevention of Torture (CPT) to guarantee immediate access to all detainees was not followed in respect to detainees subject to state security court jurisdiction.

Former Kurdish parliamentarians remained imprisoned; thorough reform of the Law on Associations was long overdue; and problems in the prison system needed urgent solution. Human rights defenders continued to be persecuted, and there was insufficient support for the return of hundreds of thousands internally displaced people (IDPs).

[...]

The fourth harmonization package in December included a major improvement in the field of freedom of expression: editors-in-chief and news journalists no longer needed to reveal their sources to authorities. But serious concerns remained. As of the end of 2002, Turkish legislation still included hundreds of provisions, which inhibited free expression. Serious moves to abolish any of these provisions were met with accusations of willingness to compromise with ‘separatism,’ ‘religious extremism,’ ‘betrayal of the state’

and even 'treason.' Despite a large number of independent media outlets and active debate in the media, certain topics remained forbidden: criticism of the power of the military and the plight of the Kurdish minority as well as dissenting views about the role of Islam frequently resulted in judicial proceedings and prison sentences. This was frequently done under the pretext of incitement to racial, ethnic or religious enmity, punishable under article 312 of the Criminal Code. Criticism of authorities or, for example, the introduction of the F-type prison system, were often interpreted as insulting the state and its officials under article 159 of the Penal Code. Both articles were amended under EU pressure but were still used to restrict freedom of expression.

The prison term under article 159 was reduced from the maximum of six years to three years (the minimum length remained one year) and fines were abolished. Later a clause was added to the article specifying that speech intended to criticize, but not insult, state institutions shall no longer constitute a reason for punishment." (IHF, 8 May 2003)

"On 3 August 2002 the Turkish Parliament formally approved a package of key democratic reforms, designed to improve Turkey's chances of EU membership. The package consisted of the following measures:

- i. An end to the death penalty in peacetime and its replacement with life imprisonment without the possibility of parole. Capital punishment will, however, remain on the statute books for wartime.
- ii. TV and radio broadcasts allowed in languages other than Turkish but not in contravention of principles of national sovereignty laid out in the Constitution. This change allows broadcasts in Kurdish. The Turkish Radio and Television Supreme Council will act as regulator.
- iii. Kurdish dialects to be taught in special courses at private schools, under the regulation of the Ministry of Education.
- iv. An end to penalties for written, vocal or pictorial criticism of state institutions, including the armed forces.
- v. The easing of restrictions on public demonstrations and association, allowing 48 hour notification to the authorities.
- vi. The easing of restrictions on both foreign and local non-governmental organisations working in Turkey.
- vii. Tougher penalties for people- and organ-smugglers, and those who help them, especially if the lives of immigrants are endangered.
- viii. Greater freedom for non-Muslim minority religions.
- ix. Revision of press laws and regulations.
- x. Changes to laws and regulations defining the duties of the police.
- xi. Prison sentences of up to 10 years for persons found to be profiting from forced labour.

The European Commission welcomed the package as an important signal of the determination of the majority of Turkey's political leaders to align Turkey further with the values and standards of the European Union. The EC's statement said that these reforms were significant steps towards better protection of human rights and the rights of minorities in Turkey. Stressing that the overall reform package needed to be carefully analysed in order to assess fully its impact, the EC said that this would be done in the regular report to be presented in the autumn. It added that much would depend on the package's practical implementation, which would be closely monitored in the months to come. Commissioner Günter Verheugen, responsible for EU enlargement, said 'I welcome the courageous decision of the Turkish Parliament. This decision would not have been possible without a clear European perspective that the EU has developed for Turkey since the European Council of Helsinki in 1999. The Turkish decision also shows that the EU is right in being firm as regards human rights and the protection of minorities... Not to give in on these issues makes our partners better understand why we so strongly defend our values, and that they are precious to us.'

One Turkish human rights activist described the reforms as 'the most positive changes made during the history of the Turkish Republic'. Another, Osman Baydemir, who leads the Diyarbakır branch of Turkey's Human Rights Association, said, in referring to the Kurdish role in Turkey, 'For the first time the differences were accepted - a denial has stopped - they actually acknowledged that cultural differences

exist.' [...] Human Rights Watch commented 'During the past year we have seen more substantial human rights improvements than any year since the 1980 coup. Instead of the previous tiny grudging steps, we have seen two major strides and the promise of further improvements.' HRW added, however, that there were two areas in particular where Turkey must still act in order to demonstrate that it has broken with its history of human rights abuses: torture and freedom of expression.

The European Commission's October 2002 'Regular Report on Turkey's Progress Towards Accession' welcomed the fundamental reforms which Turkey has introduced since the decision in 1999 on candidate status for European Union membership. (The political criteria for membership are that countries must have achieved 'stability of institutions guaranteeing democracy, the rule of law, human rights and respect for and protection of minorities.') The report noted the major constitutional reform of October 2001, which strengthened guarantees in the field of human rights and fundamental freedoms, and restricted the grounds for capital punishment. A new Civil Code was adopted in November 2001. Three sets of reform packages were adopted in February, March and August 2002. The death penalty had been lifted in peacetime. The state of emergency had been lifted in two provinces on the southeast, and the decision had been taken to lift it by the end of 2002 in the two provinces where it still applied. The building of political consensus around these major changes (which were adopted under difficult political and economic circumstances) was prepared by an intensive public debate about EYU accession, a debate which took place with the participation of political parties, civil society, business as well as academic circles. The report concluded that, overall, Turkey had made noticeable progress towards meeting the political criteria for EU membership since 1998, and in particular in the course of the year ending October 2002. The August 2002 reforms were particularly far-reaching. Taken together, the reforms provide much of the groundwork for strengthening democracy and the protection of human rights in Turkey. They open the way for further changes which should enable Turks progressively to enjoy rights and freedoms commensurate with those prevailing in the EU.

Nonetheless, the Commission concluded that Turkey does not fully meet the political criteria for EU membership for the following reasons:

- (i) The reforms contain a number of significant limitations on the full enjoyment of fundamental rights and freedoms. Important restrictions remain, notably to freedom of expression, including in particular the written press and broadcasting, freedom of peaceful assembly, freedom of association, freedom of religion and the right to legal redress.
- (ii) Many of the reforms require the adoption of regulations or other administrative measures, which should be in line with European standards. Some of these measures have already been introduced and others are being drawn up. To be effective, the reforms will need to be implemented in practice by executive and judicial bodies at different levels throughout the country. The Commission considers that the decision of the High Electoral Board to prevent Mr Erdogan, the leader of a major political party, from participating in the November 3 general election did not reflect the spirit of the reforms.
- (iii) A number of important issues arising under the political criteria have yet to be adequately addressed. These include the fight against torture and ill-treatment, civilian control of the military, the situation of persons imprisoned for expressing non-violent opinions, and compliance with the decisions of the European Court of Human Rights.

In the light of the noticeable progress made in recent years and of the remaining areas requiring further attention, the Commission encouraged Turkey to pursue the reform process to strengthen democracy and the protection of human rights, in law and in practice. This will enable Turkey to overcome the remaining obstacles to full compliance with the political criteria.

It emerged in late October 2002 that Europe's leaders might make, at the Copenhagen summit in December 2002, a firm pledge on membership talks with Turkey. Many EU states had come under pressure from USA to make concessions to Turkey, which the USA sees as a reliable NATO ally and a friend in the campaign against terrorism. Plans to give new encouragement to the Turks were urged by Greece and the UK; the British Foreign Secretary said that UK was 'extremely positive about helping Turkey's accession to the EU'.

[...]

The European Union summit in Copenhagen on 12 and 13 December 2002 decided that Turkey would have to wait until December 2004 before a review that could lead to negotiations for Turkey to join the EU. The review would decide whether Turkey met human rights criteria.” (UK Home Office, April 2003)

The Kurdistan Workers' Party announces end to unilateral ceasefire declared in 1999, and changes its name (September 2003)

- In April 2002, the PKK changed its name to KADEK (Congress for Freedom and Democracy in Kurdistan)
- The group declared a ceasefire in September 1999 after the capture of Abdullah Ocalan, saying it would use political channels to resolve the conflict with Ankara
- The group announced that the unilateral ceasefire has come to an end as of 1 September and that the ceasefire can only continue bilaterally
- A KADEK spokeswoman accused the Government of failing to fully address Kurdish cultural rights, despite the passing by parliament of a number of laws removing restrictions on Kurds
- The KADEK representative also insisted there had been no ‘military activities’ by the PKK, although the rebels have been blamed for some recent violence in the south-east

“The main militant Kurdish group in Turkey says it is ending a unilateral ceasefire declared after the capture of its leader, Abdullah Ocalan, four years ago.

A spokeswoman for the group, which has been pressing the government to announce a truce of its own, accused the authorities of failing to grant Kurds greater political and cultural rights.

However, she said she did not expect a return to all-out conflict.

More than 30,000 people were killed over a 15-year period as the Kurdistan Workers' Party (PKK) fought for autonomy in the overwhelmingly Kurdish south-east.

The announcement came as thousands of Kurds staged a demonstration in Diyarbakir - the biggest city in the south-east - to press for more rights and to urge a general amnesty for Kurdish prisoners.

Last month, the government introduced a partial amnesty aimed mainly at the PKK but it did not cover the group's leaders.

The Kurds are Turkey's biggest ethnic minority, estimated to make up about one-fifth of the population of around 70 million people.

Reforms 'fall short'

The PKK, which last year changed its name to Kadek (Congress for Freedom and Democracy in Kurdistan) said it had become impossible to maintain the ceasefire called after Abdullah Ocalan's arrest in February 1999.

‘It is announced that the unilateral ceasefire has come to an end as of 1 September and that the ceasefire can only continue bilaterally,’ a statement from the group was quoted as saying.

Kadek had previously threatened to end the ceasefire at the start of September if Turkey did not respond to its calls for a truce.

‘I foresee some sort of low-intensity warfare,’ Mizgin Sen, a spokeswoman for the group said.

She accused the Turkish Government of failing to fully address demands for Kurdish cultural rights, constitutional changes and freedom of expression, despite the passing by parliament of a number of laws removing restrictions on Kurds.

‘Taking decisions is one thing. Implementing is another... There are still serious problems concerning the Kurdish issue,’ she told the BBC.

The spokeswoman said Ankara had recently stepped up operations against the group's guerrillas.

She also insisted there had been no ‘military activities’ by the PKK, although the rebels have been blamed by unnamed officials for some recent violence in the south-east.

The group declared its ceasefire in September 1999 after the capture of Abdullah Ocalan, saying it would use political channels to resolve the conflict with Ankara.

However Turkey - which along with the US and many European countries regards the PKK as a terrorist organisation - has repeatedly rejected calls to negotiate a solution to the Kurdish conflict.” (BBC 2 September 2003)

See also “Le PKK change de nom et devient le KADEK” Info-Turk, April 2003 [Internet]

Turkish government passes Amnesty Bill (July 2003)

- Parliament adopted a law offering reduced prison sentences to PKK/KADEK/KHK members and other “terrorist” organisations who agree disarm and to provide information to the authorities
- The government reported that as of December 19, 2003, over 2,400 prisoners had applied for benefits under the law and over 580 active militants had surrendered

“In July, Parliament adopted a ‘Reintegration Law’ offering reduced prison sentences to combatants belonging to the PKK/KADEK/KHK and other terrorist organizations as identified by the Government who agreed to lay down their weapons and provide information to authorities. The law offered full amnesty to those guilty of providing non-lethal support to terrorist organizations. At year's end, most of those who had applied for benefits under the law were already serving prison sentences; the Government reported that, as of December 19, 2,486 prisoners had applied for benefits under the law and 586 active militants had turned themselves in.” (US DOS 25 February 2004, Sect.2d)

Turkey continues legislative reform process in its bid to join EU (2003)

- The first reform package came into effect in January 2003, addressing a number of issues including provisions addressing torture, the right of minority communities to acquire property
- A second ‘reform package’ came into effect in February 2003 granted the right to automatic retrial for those who the European Court of Human Rights ruled had suffered a violation of the ECHR
- A ‘sixth reform package’ includes: the abolition of article 8 of the Anti-Terror Law (crime of spreading separatist propaganda); lifting restrictions on Kurdish broadcasting on private television and radio stations
- The sixth reform package also includes lifting of prohibition on non-Turkish (Kurdish) names; and upholding the right of all detainees to have immediate access to legal counsel
- A ‘seventh adjustment package’ envisaged, among other measures, changes in the organization and status of the National Security Council.

“The first ‘adjustment package’ this year came into effect on 11 January and included a number of important provisions. Among these was the stipulation that sentences for the crimes of torture and ill-treatment could no longer be converted to fines, suspensions on probation or postponement. The requirement to secure permission from the relevant senior official in order to proceed with investigation and prosecution of an official accused of acts of torture or ill-treatment was lifted. Medical examinations of prisoners on being transferred to and from prison were made obligatory. Detainees other than those detained for offences under the remit of the State Security Courts were given the right to meet with a lawyer immediately after being detained. The Press Law was amended to uphold the right of journalists not to disclose their sources. Foundations connected with the religious minority communities of Turkey were granted permission to acquire property. The process of initiating the closure of a political party was changed to become more formalized and extended. However, the People's Democracy Party (HADEP) was closed down by a Constitutional Court ruling on 13 March.

A second ‘adjustment package’ that came into effect on 4 February granted the right to automatic retrial for those who the European Court of Human Rights (ECHR) had ruled had suffered a violation of the European Convention of Human Rights as a result of a court judgment in Turkey. This opened the way for a retrial of the four imprisoned Democracy Party (DEP) deputies – Leyla Zana, Hatip Dicle, Orhan Dogan and Selim Sadak – who, according to an ECHR ruling, had been found not to have received a fair trial in 1994.

Further legislation in the form of the reforms known as the ‘sixth adjustment package’ had been fully agreed upon but not implemented by June. Reforms included: the abolition of article 8 of the Anti-Terror Law (the crime of spreading separatist propaganda); lifting of restrictions on non-Turkish-language (thus Kurdish) broadcasting on private television and radio stations; lifting of prohibition on non-Turkish (thus Kurdish) names; and upholding the right of *all* detainees (including those detained for offences falling under the remit of the State Security Courts) to have immediate access to legal counsel. A ‘seventh adjustment package’ envisaged, among other measures, changes in the organization and status of the National Security Council.” (AI 1 October 2003)

For more information on political developments since 2001 see also Section B of the report by the COE Parliamentary Monitoring Committee, "Turkey: Explanatory memorandum", by the co-rapporteurs, Mrs. Mady Delvaux-Stehres and Mr. Luc Van den Brande (Co-rapporteurs) March 2004 [Internet].

For information on the “Seventh reform package”, see “Turkey reform targets army power” BBC News, 30 July 2003 [Internet]

Turkey ratifies key international human rights instruments (2003-2004)

- Turkey ratified the sixth optional protocol to the European Convention for the Protection of Human Rights and Fundamental Freedoms (ECHR) in November 2003, abolishing capital punishment in times of conflict
- In January 2004, Turkey ratified article 13 ECHR that provides for the abolition of the death penalty in all circumstances, including times of conflict
- Turkey ratified the UN Conventions on Civil and Political Rights and Economic, Social and Cultural Rights in 2003

“In 2002 Turkey made a substantial contribution to the international movement for abolition of the death penalty by removing capital punishment for all peacetime offences, and in November 2003 made permanent this commitment by ratifying the sixth optional protocol to the European Human Rights

Convention. In January 2004 Turkey completed abolition of the death penalty by ratifying article 13, which covers wartime executions” (HRW 26 January 2004)

On 23 September 2003, Turkey ratified the United Nations International Covenant on Civil and Political Rights and the UN International Covenant on Economic Social and Cultural Rights. Both conventions entered into force in December 2003. (OHCHR November 2003)

UNHCR, Turkish and Iraqi governments reach agreement on return of Kurdish refugees from Iraq (2004)

- An estimated 13,000 Turkish citizens (ethnic Kurds) have lived in exile in Iraq since the 1990s
- Under the agreement, Iraqi authorities ensure return is voluntary
- The agreement provides that UNHCR will have full and unhindered access to the refugees in Iraq as well as in Turkey
- Turkish authorities are to ensure that refugees who return voluntarily to Turkey are free to return to their former places of residence or any other place of their choice in the country

“We are pleased to announce that Iraqi, Turkish and UNHCR officials on Thursday agreed on the modalities of voluntary return to Turkey from Iraq of up to 13,000 Turkish citizens (ethnic Kurds) who have lived in exile in Iraq since early 1990s. An estimated 9,200 of them are living in Makhmour Camp, near Erbil, while others are living in Dohuk and Erbil areas of northern Iraq.

Under the agreement reached at the Turkish capital, Ankara, the Iraqi authorities will ensure that the return is voluntary and that the refugees are not subjected to pressure. The accord stipulates that UNHCR will have full and unhindered access to the refugees both on Iraq territory and once they have gone back to Turkey.

The Turkish authorities are to ensure that the refugees who volunteer to go back to Turkey are free to return their former places of residence or any other places of their choice within Turkey.” (UNHCR 23 January 2004)

Human rights reform is undermined by uneven implementation (2004)

- In December 2004, the EU is scheduled to decide whether Turkey has fulfilled the “Copenhagen criteria” on human rights, democracy and the rule of law
- Formal negotiations on Turkey’s membership bid will depend significantly on the country’s ability to meet EU requirements on human rights, democracy and the rule of law
- HRW notes uneven progress in freedom of expression and assembly in the first two months of the year
- Legislative progress toward EU criteria has been undermined by lacking or reluctant implementation
- Extensive human rights-related reforms were passed by Parliament in January and July 2003, yet many of these, and some reforms adopted in 2002, had not been implemented by the end of 2003
- Human Rights Watch said the key to successful reform is more and closer supervision by the national government and independent bodies

“In January and July [2003], Parliament passed extensive human rights-related reforms intended to meet the Government's democratization goals and requirements for European Union (EU) membership. The

reforms applied to areas such as torture, religious freedom, free expression, the role of the military in government, and freedom of association and included: prohibiting courts from suspending sentences or converting prison sentences to fines in torture cases; prohibiting trials in torture cases from recessing for the summer; providing all detainees the right to immediate attorney access; permitting private media outlets to broadcast in Kurdish and other traditional non-Turkish languages; and allowing for a civilian to serve as head of the National Security Council. However, many of the reforms were not implemented by year's end, and some reforms adopted in 2002 were still not implemented." (US DOS 25 February 2004)

"Turkey's progress on human rights reforms was marred by blunders and lapses in the first two months of a critical year in its bid for European Union membership, Human Rights Watch said today. On March 8, EU foreign ministers are scheduled to meet in Ankara to discuss Turkey's progress toward meeting membership requirements.

In December, the European Union is due to decide whether Turkey has fulfilled the so-called 'Copenhagen criteria' on human rights, democracy and the rule of law. Turkey's progress in meeting these standards will be a key factor in the European Union's decision on whether to open formal negotiations on Turkey's membership bid.

'Turkey has until the end of the year to show the European Union that it is meeting the European Union's expectations on human rights,' said Rachel Denber, acting executive director of Human Rights Watch's Europe and Central Asia division. 'The reform process is genuine, but the government needs to keep a much firmer grip on what's actually happening. It shouldn't just stand by and watch while police and courts blot the record.'

The first two months of the year yielded a mixed record in freedom of expression and assembly. Despite strong opposition from university authorities, the Supreme Court in January affirmed that students had a right to petition for optional courses in Kurdish. But in the same month, another chamber of the high court confirmed a one-year prison sentence imposed on radio broadcaster Sabri Öziç for expressing the view that the parliament had committed a 'terrorist' act by authorizing deployment of troops to Iraq. Öziç was convicted and sentenced to one year in prison under article 159 of the Turkish criminal code, which punishes insults against state institutions.

'Öziç was exercising his right to free speech. His conviction confounds common sense and violates Turkey's obligations under the European Convention on Human Rights,' said Denber.

In January, courts in Turkey also continued the trial against the Turkish Human Rights Foundation, accused of breaching the Law on Foundations by passing information to the European Parliament and the United Nations. The courts handed down a 10-month prison sentence—later converted to a fine—to Sefika Gurbuz, director of an organization addressing the plight of internally displaced persons, for publishing a report on the issue.

The state security court in Ankara again refused to release four Kurdish members of parliament who are serving their tenth year in prison for non-violent political activities. They are now being retried after the European Court of Human Rights found that their initial trial was unfair. The European Parliament has repeatedly called for their release.

Police continue to keep a tight rein on freedom of assembly. In January alone, police broke up at least 11 peaceful demonstrations, using clearly unwarranted force in several cases.

'The reform process is certainly moving forward,' said Denber. 'But Turkish citizens will not experience real reform until they are free to assemble without fear of being beaten, tear-gassed and arrested.'

Some opponents of reform in Turkey fear that recognizing Kurdish language rights will encourage violent secessionism. Some also fear that other liberalizing measures are part of a hidden agenda by the ruling

Justice and Development party, which has a strong Islamic identity, to reduce military control and impose a theocracy. Other opponents discount the stabilizing benefits of EU membership because they are still not convinced that Europe will reward the reforms with accession, even if Turkey meets the established criteria for its membership bid.

In other areas, legislative progress toward EU criteria has been undermined by grudging and uneven implementation. Amendments to the Turkish criminal procedure code to guarantee detainees access to legal counsel have reduced previously commonplace allegations of severe torture. But a persistent trickle of alarming reports indicates that police continue to subject suspects to beatings and mock executions before bringing them to the police station.

Access to legal counsel has improved considerably, but bar associations report that police are experimenting with ways to circumvent the new protections by means that include failing to inform detainees of their right to see a lawyer free of charge, or telling lawyers that their clients do not want to speak to them.

Last month, a group of 13 minors, detained in connection with a demonstration in Siirt on February 14, spent nine hours in incommunicado detention. Police breached rules on access to legal counsel, provision of medical reports and protection of minors in custody. The minors subsequently made credible allegations of torture and ill-treatment, but the Turkish government has failed to launch an investigation into the incident.

[...]

Instead of ensuring implementation of reforms at home, Turkish Prime Minister Recep Tayip Erdogan and Foreign Minister Abdullah Gül spent much of the first month of this critical year abroad, promoting Turkey's EU candidacy and refreshing diplomatic contacts with allies who might support their EU bid.

'The government should skip its rhetoric about Turkey's role as a bridge between East and West, and remember that this is a test of real performance in protecting human rights and democracy,' said Denber. 'The ten best arguments for a positive EU decision in December would be ten months without torture, ill-treatment, or citizens tried and sentenced for expressing their opinions.'

Human Rights Watch said the key to successful reform is more and closer supervision by the national government and independent bodies. The Interior Ministry should open a major internal investigation into each and every allegation of ill-treatment, and make the results of these investigations public. The Turkish government should also closely monitor its security forces, through a concerted program of visits to places of detention by official agencies and high-ranking police officers, as well as by bar associations and nongovernmental organizations.

The prosecution and the judiciary should cease their pursuit of cases based on legal provisions that are in flagrant violation of regional and international human rights standards, including the European Convention on Human Rights and the International Covenant on Civil and Political Rights, which are applicable law within Turkey." (HRW 3 March 2003)

For more information, see "2003 Regular Report on Turkey's progress towards accession", European Commission, 5 November 2003 [Internet]

See also:

- *"Report by the Commissioner for Human Rights on his visit to Turkey 11-12 June 2003", Office of the Commissioner for Human Rights of the Council of Europe, 19 December 2003 [Internet]*
- *"Turkey: Acceleration of Reforms needed now for EU Bid", Human Rights Watch, 30 October 2003 [Internet]*
- *"Significant legislative reform in preparation for EU accession (2002)" [Internal link]*

Causes of displacement

Up to 3500 villages in south-eastern Turkey have been forcibly evacuated, mostly by the Turkish army (1984-1999)

- The authorities' objective was to deprive the PKK of any logistical support
- The evacuation of villages often took place following the refusal of villagers to join the village guard system
- Evacuations were carried out with extreme brutality, with reports of severe human rights violations, such as rape, property destruction, beatings and extrajudicial executions
- The responsibility of the Turkish authorities for the evacuation of most villages has been confirmed by national and international institutions
- The majority of villages and hamlets in the region were forcibly emptied between 1993 and 1995
- The rate of evacuations decreased considerably in recent years

"The Government's states purposes for the evacuations were to protect civilians or prevent PKK guerrillas from obtaining logistical support from the inhabitants. Villagers and other observers alleged that the security forces evacuated them for refusing to participate in the paramilitary village guard program." (U.S. DOS 26 February 2000, sect. 1g)

"The evacuation of villages refusing to join the village guard system is carried out by the army with extreme brutality and no civilian supervision. It is frequently accompanied by the destruction of property and further violation of human rights such as sexual assault and humiliation, beatings and extrajudicial executions.

The Turkish authorities until recently have denied responsibility for these operations, claiming that the PKK was to blame for the destruction of villages and that individuals had left voluntarily, or under pressure from the PKK. However the complicity of the Turkish authorities was confirmed in two recent rulings of the European Court of Human Rights: on 16 September 1996 in the case of Akdivar and others vs Turkey, and on 28 November 1997 in the case of Mentes and others vs Turkey, in which Turkish security forces were found guilty of burning houses in villages in south-eastern Turkey, causing the villagers to flee.

Undoubtedly, the PKK has some responsibility for the burning of villages, in particular those run by village guards or refusing to support the PKK. [...]

However, the responsibility of both parties, the PKK on the one hand, and the Turkish armed forces on the other, should be viewed in appropriate proportions. In the Rapporteur's opinion the Turkish authorities bear more blame for the uncontrolled escalation of violence in the region, first because the provocative nature of their suppression of the rights of the Kurdish minority lies at the origin of the conflict, and secondly because they have at their disposal the whole machinery of the state, which they use abusively against the Kurdish population in the region.

A step towards the clarification of this important question has been undertaken by the Turkish Parliament. At the request of one of its members, Mr Algan Hacaloglu of the Republican People's Party (CHP), a former state minister for human rights, the Turkish Parliament set up a Committee on Migration in 1997 to investigate the causes of displacement and to provide aid to the displaced.

On 28 July 1997, the Chairman of this Committee, Mr Seyit Hasim Hasimi, held a press conference in Diyarbakir. He announced that forced evacuation of villages and hamlets by the Turkish armed forces in the region had resulted in large numbers of displaced people and potential refugees. He confirmed that 364

742 inhabitants of 3 185 villages and hamlets had been forced out since 1990 in the framework of the fight against terrorism. These figures were publicly confirmed later by Mr Bülent Ecevit, Deputy Prime Minister, who said that the villages had been emptied 'for security reasons'. The US State Department cited 560 000 as 'a credible estimate' of the number of people deprived of their homes as a result of the evacuations." (COE 3 June 1998, paras. 8-17)

"Independent observers confirm that most displacement in the 1990s has been caught by government army and security forces, including the village guards. In its 1994 report, Turkey: Forced Displacement of Ethnic Kurds from Southeastern Turkey, Human Rights Watch concludes, 'According to our research, the vast majority of those displaced in south-eastern Turkey is largely the result of actions by Turkish security forces. Forced displacement usually comes as collective punishment for refusal to join the village guard system or for supporting the PKK, usually for giving food and a place to sleep (yardim ve yataklik), or for suspicion of committing such acts'. The U.S. Department of State has reached the same conclusion, characterizing forced displacement as a 'systematic process of evacuating and often burning villages throughout the southeast. The scale of evacuations and their continuance suggest that they are part of the Government of Turkey strategy designed to deprive the PKK of any logistical base in the southeast.'" (USCR 1999, pp. 13-16)

"From 1997 the rate of evacuation declined. By 1999 most human rights organisations reckoned there were in excess of 3500 villages evacuated and between 2.5 and 3 million people rendered homeless. These were not confined to the State of Emergency provinces; neighbouring provinces such as K. Maras, Sivas, Erzurum and Kangol were also affected." (UK Home Office April 2001, para. 6.8)

"According to Human Rights Watch the majority of villages and hamlets in the region were forcibly emptied between 1993 and 1995. After that the large-scale evacuations ceased, but smaller operations by the Turkish armed forces continued in 1996 and 1997. The most probable reason for the lower rate of evacuations is that there are now very few 'frontline' villages left outside the village guard system and the process of depopulation is virtually complete." (COE 3 June 1998, para. 18)

"As so many villages have now been evacuated and because the fighting has now moved to the mountains, the rate of evacuations has decreased in recent years, with 30 villages being evacuated in 1998. The Human Rights Association states that, as of October 2000, no village clearances took place during the year." (UK Home Office April 2001, para. 4.26)

See also Human Rights Watch "Weapons Transfers and Violations of the Laws of War in Turkey", November 1995 [[Internet](#)]

A source of insecurity: the "village guards" (1984-2001)

- More than 65,000 civilians in south-eastern Turkey have been pressured by the authorities to join "village guards", paramilitary militias set up to fight the PKK
- Villagers faced danger from both the PKK and the Government when choosing whether or not to join the guard force
- Village guards have been accused repeatedly of drug trafficking, rape, corruption, theft, and human rights abuses
- No steps have been taken to disband the village militia which remain an obstacle to the return of the displaced

"The 'village guards' are armed and paid by the authorities to defend their villages against attack by the PKK and to deny them logistical support from the villages in the area. Although recruitment into the village guard corps is voluntary (indeed, some Kurdish tribes are pro-government and enthusiastic in their

participation) refusal by individuals or entire villages to participate in the system is usually considered by the local forces as an indication of active or passive support for the guerrillas. The evacuation of the village, and its subsequent complete or partial destruction on security grounds, can follow a refusal to join." (UK Home Office April 2001, para. 6.19)

"The Government organizes, arms, and pays a civil defense force in the region of more than 65,000 persons, which is known as the village guards. Participation in this paramilitary militia is mainly voluntary, but villagers faced danger from both the PKK and the Government when choosing whether or not to join the guard force. Village guards have a reputation for being the least disciplined of the Government's security forces and have been accused repeatedly of drug trafficking, rape, corruption, theft, and human rights abuses. Inadequate oversight and compensation contribute to this problem, and in some cases Jandarma allegedly have protected village guards from prosecution." (U.S. DOS February 2001, sect. 1g)

"It might be assumed that with the apparent end of the guerilla war, the village guard is in the process of disbandment. By 2000 there were probably in the order of 80,000 village guards under arms. This poses a major problem for the State, since they have become reliant on their village guard salaries. If they are disbanded it is feared this could unleash massive criminal activity, backed with firearms. Not only, therefore, has the government taken no steps to disband them, but it has considered recruitment of 'penitent' PKK guerillas into the village guard there have been cases in 2000 of displaced villagers being refused permission to return to their villages unless they enrol in the village guard. In other words the current evidence indicates that the village guard militia may have become a long-term feature of the region." (Atreya, N.; McDowall, D.; Ozbolat, P. February 2001, pp. 45-46)

See also:

- *"Les gardiens de village restent maîtres dans le sud-est", AFP 4 Juillet 2000 (published in Info-Turk) [Internet]*
- *"IDPs fear returning to their villages due to the ongoing threat from the village guards (2002-2004)" [Internal link]*

The PKK is also responsible for significant internal displacement (1984-2000)

- The Kurdish armed group also has civilians among its targets, in particular village guards and their families
- The number of civilians whom the PKK arbitrarily killed declined after it announced that it would respect the Geneva Conventions
- Amnesty International continued to receive reports of indiscriminate killings of civilians even after the PKK declared to respect Article 3 of the Geneva Conventions

"Although smaller armed opposition groups have operated in Turkey, the PKK has been the most significant, and most violent of them [110]. Although the numbers it is responsible for displacing is hard to quantify, the PKK is undoubtedly directly responsible for significant internal displacement that has occurred in Turkey. Among its civilian targets have been local political figures, such as mayors, and teachers, who teach the Turkish language [111]. The PKK's principal target appears to have been the village guards and their families."

[Endnote 110: Other violent opposition groups reportedly include the Revolutionary Left (Dev Sol/DHKP-C) and the Turkish Workers's and Peasants' Liberation Army (TIKKO).]

[Endnote 111: in the 1998, the PKK abducted three mayors in the southeast, killing one. (HRW, World Report 1999, p. 295)] (USCR 1999, pp. 27-28)

"Armed opposition groups responsible for human rights abuses include the PKK, the DHKP-C, the Turkish Revolutionary Communist Party (TIKB), the Turkish Liberation Army of Peasants and Workers (TIKKO) and the Islamic Raiders of the Big East-Front (IBDA-C). Of these, the PKK is responsible for most deliberate and arbitrary killings. It is a bitter irony that during the 12 years in which the PKK has pursued its military objectives most victims of its deliberate and arbitrary killings have been Kurdish villagers. Reports from various sources show that armed PKK members killed at least 400 prisoners and civilians between 1993 and 1995. Most were killed because they had joined the government-armed village guard forces. Male village guards are frequently killed after being taken prisoner during PKK raids. Village guards Ramazan Baran and Habib Kaya were apparently abducted by PKK members on 11 September 1995. They were found dead near Saribalta village, Tunceli province, the following morning.

Armed opposition groups have an obligation to respect basic humanitarian principles. Yet they knowingly put civilians at risk and have murdered others who took no part in the conflict. Since the conflict began, both sides have treated villagers in southeast Turkey as a soft target. In the 1980s the PKK frequently massacred whole families. Many women and children are caught in the cross-fire and killed in the course of armed clashes when the PKK attacks village guards in their villages, but relatives of village guards are also sometimes deliberately and arbitrarily killed. Eleven children were apparently deliberately killed when PKK members attacked the village of Daltepe, near Siirt, in October 1993. In the same month PKK members abducted 32 males, including six juveniles, from Yavi, in the Çat district of Erzurum, and killed them. In August 1995 the PKK reportedly returned to the Çat district, and abducted and killed Zülküf Kiliç and his two young brothers, Kadir, aged 16, and Halim, aged 13, from the village of Aga.

In August 1994 a representative of the PKK told Amnesty International in a meeting in London that the organization had committed itself to abide by common Article 3 of the 1949 Geneva Conventions. This stipulates that people taking no active part in the hostilities, including members of the armed forces who have laid down their arms or who are out of action because of sickness, wounds, detention, or any other cause, must be treated humanely in all circumstances and should not be ill-treated or killed. Common Article 3 applies to all parties to an internal armed conflict, including armed opposition groups. The number of deliberate and arbitrary killings by the PKK fell after August 1994. However, Amnesty International continues to receive reports of such killings; there were 50 in 1995 and at least 16 in the first half of 1996.

Some individuals have been abducted and killed because they were suspected of being collaborators or informers.

[...]

The PKK have also claimed responsibility for acts of indiscriminate violence in which civilians, including children, were killed and maimed. [...]

The PKK have also planted bombs in public places, posing an indiscriminate threat to civilians. [...]

In March 1995 and again in April 1996, PKK leader Abdullah calan publicly threatened that the organization would intensify bomb attacks on certain civilian targets in Turkey and abroad. While claiming to respect common Article 3 of the Geneva Conventions, the PKK has continued to execute captured village guards, while its declared intention to attack civilian targets suggests that, contrary to the assurances given to Amnesty International, the PKK would be prepared to resume indiscriminate killings of civilians.

[...]

The PKK has treated teachers as a military target on the pretext that state education is delivered only in Turkish and that education in Kurdish is forbidden. Ninety teachers have been killed by the PKK since 1984. In late 1994 armed PKK members abducted and killed 19 teachers, most of whom were working in small villages in southeast Turkey." (AI 1 October 1996, sect. 3 "Abuses by armed opposition groups")

Serious violations of human rights by security forces in the fight against the PKK (1984-2000)

- Since 1984, Police, Jandarma, village guards, and the armed forces have conducted an intense campaign to suppress PKK terrorism
- 4,460 civilians have lost their lives in the fighting since 1987
- Civilians have also been victims of forced disappearance, torture, extrajudicial executions
- Indiscriminate attacks on civilian populations by the armed forces have also been reported

"Since 1984 the PKK has waged a violent terrorist insurgency in southeast Turkey, directed against both security forces and civilians. In response, police, Jandarma, village guards, and the armed forces conducted an intense campaign to suppress PKK terrorism. However, since 1999 almost all such violent activity by the PKK has ceased, although some armed clashes between the two sides continued to occur. Security forces continued to target active PKK units as well as those persons they believed supported or sympathized with the PKK. There continued to be few reports of government and PKK human rights abuses committed against noncombatants. According to statistics from the governor of the state of emergency region, 23,415 PKK members, 5,029 security force members, and 4,460 civilians have lost their lives in the fighting since 1987. During the year, 29 members of the security forces and 15 civilians died, according to the military.

Unlike in the previous year, there were no credible allegations of serious abuses by security forces during the course of operations against the PKK." (U.S. DOS February 2001, sect. 1g)

"Security forces forcibly displaced peasants in the 1980s and 1990s as a tactic to combat PKK insurgency. Founded by its leader Abdullah Öcalan in Diyarbakir province in 1978, the PKK drew its membership and logistical support from the local Kurdish peasantry. In its early years, the PKK mainly fought rival leftist and Kurdish organizations, but in August 1984 it attacked a gendarmerie post in Eruh, Siirt province, part of the mainly Kurdish southeast that had been a closed military zone since the 1920s. As the PKK stepped up its actions, the gendarmerie (soldiers carrying out police duties under the authority of the Interior Ministry) responded with widespread village raids and mass detentions. Detention almost invariably meant torture by beating, electric shocks, and sexual assault, as well as deprivation of food and water. Most of the nearly five hundred detainees who died in Turkey between 1980 and 2000 were villagers under interrogation in police stations and gendarmeries in the southeast. The security forces' repressive methods merely provoked ever larger numbers of disaffected youth to join the PKK, and within a few years the organization had grown to a substantial force, recruiting more than 30,000 between 1984 and 1999.

Turkish security forces failed to distinguish the armed militants they were pursuing from the civilian population they were supposed to be protecting, but whom they knew included people who were supplying and hiding the militants, willingly or unwillingly. The government resorted to a solution used by other states faced with similar adversaries in other parts of the world: they required the local populace to show their loyalty by bearing arms against the insurgents. After 1987, rural communities were expected to put up a sufficient number of men to form a platoon of 'provisional village guards,' armed, paid, and supervised by the local gendarmerie post. Communities could refuse to join the village guard system, but from then on the security forces would view them as PKK sympathizers. Villages that did opt to join the system were angry when neighboring settlements refused, because this left their flank exposed to PKK attacks. The village guard corps was well armed, but they had no formal chain of command and usually wore no uniforms or means of identification. Where tribal bonds were strong, clan leaders used village guards as a private army to reinforce their local supremacy.

In response, the PKK declared Kurds who joined the village guard system to be traitors. When they caught them, they often executed them. The PKK also carried out massacres of village guards' noncombatant families, including women and children. When the PKK melted away into the mountains after such attacks,

the state military's counter-operations routinely started by rounding up the inhabitants of any nearby non-village guard communities and torturing them in order to extract information about PKK movements, and government forces sometimes committed massacres in reprisal for PKK attacks and abuses.

[...]

The resort to outright lawlessness was reflected in the methods of the gendarmes in rural areas. Armed PKK members had been using the guerrilla tactic of swimming 'like fishes in the sea of the people,' as Mao Zedong had described, and the security forces used the counter-guerrilla tactic of 'draining the sea.'

Rather than simply harass and threaten villagers who refused to join the village guard system, they methodically destroyed recalcitrant settlements.

Helicopters, armored vehicles, troops, and village guards surrounded village after village. They burned stored produce, agricultural equipment, crops, orchards, forests, and livestock. They set fire to houses, often giving the inhabitants no opportunity to retrieve their possessions. During the course of such operations, security forces frequently abused and humiliated villagers, stole their property and cash, and ill-treated or tortured them before herding them onto the roads and away from their former homes. There were many 'disappearances' and extrajudicial executions. By 1994, more than 3,000 villages had been virtually wiped from the map and more than a quarter of a million peasants had been made homeless. Most of the displacements were from the ten southeastern provinces then under a state of emergency." (HRW, 30 October 2002)

"Turkey is situated in a politically unstable region and has experienced two decades of intense political violence by armed opposition groups, principally the Kurdish Workers Party (PKK), which have attacked and killed civilians. The state has responded with a wide range of security measures which, by violating basic human rights, have further endangered the persona security of individual citizens. Despite all the promises of reform, Turkish citizens can still be swept off the streets and into a police station or gendarmerie post, where they may be held for up to a month. There they will be unprotected by even the most basic safeguards against torture, still a standard method of interrogation. Since 1980 more than 400 people have died in police custody, apparently as a result of torture. The exact status of security forces allegedly responsible for violations is sometimes hard to establish, particularly in the southeast, where security forces do not always wear standard uniform or insignia. In most reports of torture, the detainee was interrogated by plainclothes police officers of the Criminal Investigation or Anti-Terror branches or by gendarmes. Gendarmes are soldiers who carry out police duties in rural Turkey. Many allegations of extrajudicial execution have been made against members of Special Operations Teams. These are technically police officers under the authority of the Interior Ministry, heavily armed for close combat with the PKK. Special Operations Team members frequently accompany members of the paramilitary village guard force and gendarmes in security raids on villages. Regular army and air forces also participate in large operations in the southeast." (AI 1 October 1996, "A state of insecurity")

"Ten years ago people did not disappear in custody in Turkey. In 1991 there were a handful of reports, and several more in 1992. In 1993 there were at least 26. In 1994 there were more than 50 reported disappearances, the highest number in any country reported that year to the UN Working Group in Enforced Disappearances, which expressed particular concern at this considerable increase. At least 35 people disappeared in 1995.

Most of the disappeared are Kurdish villagers with no history of political activity, detained during the course of security raids on suspicion of giving food or shelter to PKK members. Many families of the disappeared fear their relatives have died under torture, or that they were arbitrarily killed in reprisal of the deaths of soldiers in clashes with the PKK." (AI 1 October 1996, "Disappearances - how to torture a whole family")

"Repression has long been the response to security problems in Turkey, but in 1991 certain elements in the security forces went even further. They stepped outside the law and began to wage a full-scale dirty war.

An unprecedented wave of political murder swept through the southeast but continued onto the streets of Ankara and Istanbul.

In the late 1980s Amnesty International had received occasional allegations of extrajudicial execution, but in the spring of 1991 the organization began to receive a large number of reports of death squad style killings of Kurdish villagers in the Midyat area of Sirnak province. The security forces were clearly involved in the killings. The perpetrators were able to pass through military check-points and were sometimes moved around using military vehicles and helicopters.

In mid-1999 Kurdish leaders began to be targeted and by early 1992 scores of people were being gunned down in the first of hundreds of street killings by small groups of assassins in the cities in the southeast. In most cases the killers were never identified but there is evidence that the security forces were orchestrating the killings by arming and paying the assassins. Most of the victims were perceived by the security forces as potential enemies of the state. They were people who worked for left-wing or Kurdish nationalist publications, and people who had previously been detained or imprisoned on suspicion of membership of the PKK or other illegal Kurdish groups.

More than 1,000 people have died in these political street killings since 1991." (AI 1 October 1996, Extrajudicial execution in the southeast)

"Although the armed conflict in the southeast lessened in intensity, both government forces and the PKK continued to commit serious human rights violations. Village guards - ethnic Kurdish villagers who function as government-appointed civil guards in remote areas of the southeast - continued to be implicated in many abuses, and civilians remained particularly vulnerable in the region. During a parliamentary human rights commission hearing in February, the governor of Batman was reported to have said that 'methods beyond the accepted norms' were often used to convince villagers that they should not assist the PKK. Victims who petitioned the parliamentary commission described methods such as forcing villagers to walk on mine fields or torturing family members and neighbors. Several village guards stood trial during 1998 for crimes such as rape and the execution of civilians.

In addition to the village guards, Jandarma and police 'special teams' are viewed as those most responsible for abuses. However, the incidence of credible allegations of serious abuses by security forces, in the course of operations against the PKK, is significantly lower than in the past." (U.S. DOS February 2001, sect. 1g)

"Although indiscriminate fire by Turkish security forces is not the most consistent violation of international law in Turkey's southeast, it remains a persistent problem. In some cases, the security forces have grossly overreacted to actual or suspected PKK attacks. In these incidents, which have occurred primarily in the towns and cities, security forces appear to have taken advantage of suspected or actual PKK activity to unleash a barrage of fire on civilian neighborhoods suspected of containing PKK sympathizers.

In some instances, the indiscriminate fire may have been due to negligence on the part of Turkish gunners seeking to hit PKK targets. But lack of intent to kill or cause destruction is no excuse for failing to care for the well-being of civilians.

In other cases, security forces have shelled, bombed or strafed villages, either as punishment for presumed PKK sympathies or as a method of intimidation aimed at forcing villagers from their homes. In the latter set of cases, the security forces appear to have relied on indiscriminate fire as a quick and easy way of evacuating villages in preparation for their later destruction. In some such attacks, civilians have been wounded or killed; in others, they fled their homes which were partially destroyed. Later, troops came and completed the destruction.

In a number of cases, Turkish security forces have targeted civilian settlements for serious attack with the intention of causing large numbers of civilian casualties. This is best exemplified by the March 1994 series

of Air Force bombing raids on villages in the Ôirnak area, in which dozens of civilians were killed and entire villages were destroyed. Other similar cases occurred in 1992 and 1993, however, suggesting that the March 1994 attacks, while remarkable in their scope and intensity, were not isolated events." (AI November 1995, sect. V)

Internal exile: a discretionary decision of the state of emergency region's governor (1987-2001)

- The governor has the authority to remove citizens from the region for reasons of general security and public order
- Teachers, party officials and trade unionists have been affected by this practice

"Although there is no legal internal exile, since 1990 the state of emergency region's governor in the southeast has had the authority to 'remove from the region,' for a period not to exceed the duration of the state of emergency (in place for 15 years), citizens under his administration whose activities 'give an impression that they are prone to disturb general security and public order.' Teachers, party officials, and trade unionists have been affected by this provision in the past, and dozens of unionists were kept out of the southeast this year, according to press reports. In July security officials in Batman took the passports of two visiting British parliamentarians who were looking into the issue of the Ilisu dam, and also took documents of a Republican People's Party (CHP) official and some accompanying journalists." (U.S.DOS February 2001, sect. 2d)

"A number of trade unionists were exiled from the State of Emergency Region starting from January [2001], reaching 33 in February. The practice targeted the executives of the Education Union (Egitim Sen) in particular. Since a discretionary act of the Regional Governor under the State of Emergency Legislation [1] cannot be challenged in courts, the unionists declared that they would petition the European Court of Human Rights. While the unionists were exiled to the western provinces, there have been no investigations launched against the persons affected. The unionists declared that the practice was a political one as the administration had not launched any investigation related to their participation in a one-day act of protest of the Confederation of the Public Labour Unions (KESK). Tunceli Governor Mustafa Erkal, answering questions in a press briefing on 30 January, said for his part that they did not dismiss the teachers, but 'changed their locations due to their behaviours that offended the quiet in the province as well as on the basis of the evidence that they commit crimes'".

[Endnote 1: State of Emergency Law, Article 11/c: [As amended by Decree 3076 dated 14 November 1984] Suspension of the activities or associations for periods not exceeding three months, after considering each individual case] (Human Rights Foundation of Turkey February 2001, sect. 1)

Turkish authorities imposed food embargo on several Kurdish villages (1991-2001)

- The objective was to deny logistical support to the PKK
- Access to high pastures have been recently restored and the food embargo has been lifted by governors in several provinces

"In an effort to deny the PKK logistical support, the Jandarma during the year occasionally rationed food and other essentials in some rural areas in the emergency region. Security forces returned to evacuated villages and burned homes, to deny the PKK, and have shot livestock, burned forests and orchards, or denied villagers permission to harvest fields." (U.S. DOS 26 February 2000, sect. 1g)

"In Tunceli province, a food embargo imposed by the army was reportedly in effect in 1991. Sporadic food blockades have also been reported in parts of Bingöl and in the village of Tepe, near Lice in Diyarbakir province. These have allegedly caused severe shortages and hardship among the inhabitants. The usual aim was to limit the amount of staple foods which villagers could obtain, and therefore reduce supplies available to the PKK, though in the case of Tepe, a two-month blockade was imposed in reprisal for the PKK murder of a village guard." (Graham Brown April 1998, sect. 3.1)

In October [2000] the governor of Tunceli formally abolished the food embargo in that region, the last large-scale rationing in the region. Food rationing also had been justified as a means of denying logistical support to the PKK. Provincial authorities deny villagers access to some high pasture for grazing, citing security concerns, but have allowed other villages access to their high pastures." (U.S. DOS February 2001, sect. 1g)

Villagers were evacuated by force (August 2001)

- Four villages were forcefully evacuated on 3 August 2001
- Many villagers were detained, following a raid on villages in Baskale district at the end of August 2001

"The evacuation of villages and forced migration that slowed down after 1999 came back to the agenda by evacuation of some villages in the province of Sırnak, Hakkari and Van.

It was reported that on 3 August the villages Sirangêl (Tokagaç), Memiste (Ikizli), Sêgizan (Cevizli) and Glort (Bostaniçi) in Yüksekova district of Hakkari province were raided by soldiers and that the population had been forced to leave the settlements. Abidin Enis, member of the general assembly of Hakkari province said that they had to contact the commander with the headmen of the four villages concerned, but had not been able to meet. They had asked the governor of Yüksekova to stop the initiative.

During a raid on the villages Salidere, Samandöken, German and Baris in Baskale district (Van) at the end of August many villagers were detained. Among them the names of Hüseyin Durmaz, Hamit Kiliç (80), Hamza Kiliç, Bülent Koç, Vedat Ayhan, Nihat Ayhan, Nejat Ayhan and Baykal Ayhan were mentioned." (HRFT August 2001)

Report stated that village guards served local landlords rather than state (November-December 2001)

- A report on 19 villages and rural settlements stated that village guards were serving local landlords
- The report also said that because the village guards were very familiar with the difficult terrain, they played an important role in the anti-terrorism drive of the state
- Village guards were charged on the basis of allegations that they helped the PKK

"A report prepared by the Yüzüncü Yıl University and Van Gendarmerie Command underlined that village guards, once instrumental in fighting separatist Kurdistan Workers's Party (PKK) terrorism, were serving local landlords rather than the state.

Associate Professor Cahit Bağcı, who administered the research into the subject by Yüzüncü Yıl Science Faculty students, said during the study, 19 villages and rural settlements where village guards existed in the Van region were surveyed and the results were analysed.

The report, which was presented to local administration executives, underlined that the village guard system was instrumental in fighting separatist terrorism in an area where, because of rough geographical terrain, strong state tradition could not be developed.

[...]

The report stated that with the village guards system the central administration had tried to make best use of the pro-government local population in fighting separatist terrorism. Stressing that the majority of local people were loyal to the state, the report stressed that that was a major factor in establishing and maintaining the village guard system, as well as utilizing it effectively in combatting terrorism.

Because the village guards were very familiar with the difficult terrain of the region, they undertook a very important role in the anti-terrorism drive of the state, the report said.

Besides this, the report said, the village guards system helped the state cut links between the local population and the separatist gang, provide effective security to local people and thus helped greatly with the consolidation of state rule in the troubled region.

On the other hand, the report said, while the income of the local people had suffered seriously because of separatist terrorism -- as they could not use their lands or continue raising animals because of the terrorist threat -- the paid village guard system provided an opportunity to keep the economic activity of the area.

However, the report said as separatist terrorism had subsided in the region, the village guard system had lost its importance, and now the village guards were serving their landlords rather than the state." (Turkish Daily News 21 December 2001)

Village guards charged with helping the PKK (November 2001):

"Diyarbakir State Security Court (DGM) has finished work on an indictment against 31 suspects of whom 30 are village guards all accused of aiding and abetting the Kurdistan Workers Party (PKK) separatist terrorist organization, the Anatolia news agency reported yesterday. Of the 31 suspects, 28 are in remand.

The indictment accuses 13 of the suspects of setting a trap for the security forces in the district of Beytüssebap in which one soldier was martyred and five maimed in two separate landmine explosions. Other suspects are accused of passing on intelligence to the PKK while working as temporary village guards, while others are accused of providing rations to the PKK and of hiding PKK weapons from the security forces. Other guards are accused of donating part of their wages to the PKK and of planting and growing marijuana in order to provide the PKK with funds.

The trial against the suspects will start this month with sentences being asked ranging from five years for five of them to death for 16 more." (Turkish Daily News 8 November 2001)

Village evacuations and food embargo imposed (August 2001-March 2002)

- Four villages were raided following the death of one soldier and the injury of two others in Beytüssebap district
- Ortali and Asat villages were evacuated
- Tivor, Ilicak and Hisarkapi villages were under siege with villagers close to starvation because of a food embargo
- On 11 August 2001, the weekly paper "Yedinci Gündem" published a document confirming the application of a food embargo in Dagalti and Ilicak villages
- The president of the association MAZLUM-DER contradicted official state reports and reported the obstruction of its journalists by the authorities

- The majority of the persons evacuated from Asat and Ortakli villages stayed for two months in 80 tents with no assistance
- The national media totally ignored the events in Betussebap

"The Beytüssebap Incident

Following the death of one and injury of two soldiers by a mine explosion near Ilicak (Germav) village in Beytüssebap district (Sirnak province) on 9 July Germav village and the surrounding villages of Bêzal (Ortali), Tivor (Dagalti) and Çemêpîrê (Asat) were subjected to intense pressure. These four villages were raided and 32 people were detained. They were held in custody for 10 days and at the end 10 of them were arrested in charges of „aiding and bedding PKK members“. All of the villagers belonged to the Gevdan tribe. They alleged that they had been tortured in detention. The names of the arrested villagers are: Cafer Aslan (78), Kerim Acar (66), Isa Abi (61), Yakup Ceylan (55), Fahri Ceylan (30), Seyhmus Abi (25), Isa Abi (30), Yasin Abi (23), Hadi Abi (30), Keser Acar (49), Hamit Acar (78), Orhan Abi (239), Kemal Acar (25) and Semsettin Abi, Turan Aslan, Bahattin Aslan, Mirza Aslan and Hekim Aslan.

On 28 July Kasim Aslan from Ulucak village could escape, despite the blockade against the village and reported to the Diyarbakir branch of the Human Rights Association (HRA). He told the Human Rights Association (HRA) that Ortali and Asat village had been evacuated, Tivor, Ilicak and Hisarkapi villages were under siege and that the villagers were close to starvation because of an embargo on food. Some 250 villagers were living in tents outside Beytüssebap and 70 villagers, who had been working as village guards had been deprived of their arms.

First a delegation of Abdulvahap Ertan, from the Human Rights Association (HRA) in Van, Abdulbasit Bildirici from Mazlum-Der in Van and Sirin Aslan went to Beytüssebap and talked to the villagers and the prisoners Turan Aslan, Bahattin Aslan, Cafer Aslan, Kerim Acar, Mirza Asan, Yakup Asan and Hekim Aslan. In their report they stated that the villagers had been beaten, suspended on hooks, hosed with pressurized water, raped with truncheons and forced to eat excrements. They were being subjected to an embargo on food and their families were under severe pressure. The mine explosion had happened some 30 to 40 kilometers away from the village in an area that had mainly been used by soldiers.

On 5 August the Sirnak Governor paid a visit to Hisarkapi village in an attempt to deny the news on food embargo. Soldiers, who cursed at the population and tried to force them to deny the existence of an embargo, accompanied him. It was reported that 35 members of the Temel family had to leave the village within 24 hours.

On 8 August a second delegation with members of the Human Rights Association (HRA), Mazlum-Der, the Chamber of Architects and Engineers, HRFT, Turkish Medical Association, Gök-Der and the Democracy Platform of Diyarbakir went to the area and investigated the situation over two days. The results were announced during a press conference at the Human Rights Association (HRA) Diyarbakir on 10 August. On 11 August the weekly 'Yedinci Gündem' published a document confirming the application of a food embargo in Dagalti and Ilicak villages." (HRFT August 2001)

“The majority of the persons evacuated from Asat and Ortakli villages stayed for two months in 80 tents with no assistance. A number of male villagers were arrested and allegedly tortured.” (CoE 22 March 2002)

The reaction of the Turkish media and authorities:

"Yilmaz Ensaroglu, président de l'association MAZLUM-DER, comparant les deux événements de la semaine impliquant la responsabilité de la gendarmerie [ndlr: l'intervention de la gendarmerie dans la commune d'Akkise (Konya- centre) et les faits du district kurde de Beytussebap] a dénoncé les réactions à géométrie variable de la presse et des autorités civiles et militaires turques: 'Nous avons envoyé des observateurs pour les deux événements. Pour le premier [Konya], ils ont pu s'y rendre aussitôt et rédiger un rapport alors que pour le second le temps que les observateurs puissent se rendre sur place sains et saufs, nous étions plein d'inquiétudes. Ils sont arrêtés à tout bout de champ et leurs cassettes et documents leur sont confisqués. Cela prouve bien évidemment, les différences manifestes dans les pratiques

administratives et judiciaires existantes dans le pays. Les partis et une bonne partie des media ne franchissant pas les frontières tracées par la politique de l'Etat, l'opinion publique ne connaît pas la situation. En fait, le régime d'exception (OHAL) ne veut pas dire un régime sans droit, mais seulement que certains droits sont temporairement limités. Cependant dans notre OHAL, il n'y a ni droit et ni justice'.

Les quotidiens nationaux ont totalement ignoré les événements de Betussebap, les observateurs des organisations de défense des droits de l'homme ont été, au cours de leur enquête, bousculés et brutalisés par les autorités sur place. Les villageois, peu loquaces du fait des pressions, ont par l'intermédiaire de leur maire déclaré qu'ils avaient quitté leur terre par leur propre volonté, les seuls dont Cafer Aslan et Rasim Acar, qui se sont risqués à parler ouvertement avec les observateurs se trouvent toujours en détention, accusés d'"incitation de la population à la colère". Après le témoignage de Rasim Acar, les avocats composant la délégation d'observateurs ayant peur pour sa vie l'avaient pourtant pris sous leur protection mais les gendarmes prétextant que ses papiers d'identité étaient susceptibles d'être des faux, ont réussi à l'arrêter et le placer en garde-à-vue.

Ses avocats ont d'ores et déjà dénoncé les tortures (chocs électriques) subies par leur client au cours de sa détention. Contrairement à Konya, les commandants en poste à Sirnak ne semblent nullement inquiétés par les autorités judiciaires turques. Pis encore, le colonel Levent Ersoz, en poste à Sirnak, directement mis en cause pour ses brutalités par Cafer Aslan et par la population de Sirnak, a été récompensé en devenant général (effectif le 30 août) et prendra le commandement de la gendarmerie de Diyarbakir." (Info-Türk August 2001)

Göc-Der's Migration Survey showed causes of displacement (January 2002)

- Göc-Der listed the actions of security forces, the village guard system, fear of death, evacuation, the ban on mountain pastures, food embargoes, and living conditions as the main reasons for displacement

"One of the most important factors in shaping the migration under investigation is found to be The Emergency State Rule and the activities of the security forces (83.7 %).

In the narratives told by the immigrants it is clearly observed that the events taking place between the security forces and the villagers after armed-conflicts is a significant factor giving rise to migration.

The findings in this research indicate that the five most important reasons for migration in their order of significance are the following:

Practices of Security Forces and Emergency State Rule Practices

Insistence on the Village-guard System

Fear of Death

Evacuation of Villages and Hamlets

Ban on Mountain Pastures

The results of our first level analysis point to the fact that the tension and the armed conflict based on the Kurdish problem which shaped the last 15 years of Turkey, the destruction caused by the armed-conflicts and the policies of the state imposed on the Kurdish citizens living in the Eastern and Southeastern regions gave rise to a forced mass-displacement.

At the second level analysis, the unified effect of the factors leading to migration has been calculated in the computer environment. The findings indicate that,

Practices of Security Forces and Emergency State Rule,

Insistence on Village-guard System,

Fear of Death,

Evacuation of Villages and Hamlets,
Ban on Mountain Pastures,
Food Embargo are the most significant factors giving rise to migration, and
Bad Straits,
Lack of Educational Opportunities and
Lack of Health services is the facilitating factor in the migration under investigation.”
(Göc-Der 2002, pp.48-49-I)

Summary of the main causes of internal displacement in Turkey (2002)

- Main causes relate to eviction, local violence, food embargoes, mines, village raids, human rights violations, village guards, guerrilla groups, and expelling by the authorities
- Turkish authorities maintain that internal displacement is part of a larger migratory phenomenon

“Furthermore, a majority of the people who should be included in this category of displacement (conflict-related Kurdish IDPs) are those affected by:

partial or total eviction and destruction of human settlements (towns, e.g. Lice, Diyarbakir and Cukurca, Sirnak, and villages and sub-villages) by security authorities, mainly the Jandarmy or paramilitary forces, including the village guards, in connection with 'internal security operations' or as punitive measures in retaliation to the guerilla attacks against security or paramilitary groups;
generalized local violence and constant threat to safety due to armed clashes between the two sides;
effects of the preventive or punitive practices of the Government on daily life such as food embargoes (which affected the entire region of Tunceli/Dersim between 1991 and 2000, road blocks, village raids, creating forbidden zones in areas of production (e.g. pastures), and the implantation of land mines around the habitats;
gross human rights violations connected with the above points, including disappearances, punitive detention, torture, sexual abuse, deprivation of health services;
enforcement of the village guard scheme which carries the threat of gross human rights violations and other punitive measures; and
attacks or threats by guerilla groups, mainly by the PKK, on people accused of joining the village guards scheme or for rejecting provisions of food and shelter to these groups. Many of these cases occurred in combination with each other.

However, this category includes also

the people or families expelled from their villages, sub-villages or towns (including big towns such as Diyarbakir), people individually expelled from their habitats by the orders of regional, provincial or district governors, or local security forces or the village guards through written or oral instructions. This groups includes pro-Kurdish political activists, local trade unionists, well-known professionals or other public people.

Moreover, considering the destructive effects of the conflict on the regional economy, including in particular, practices such as the destruction of forests, grazing areas, live stock, or the imposition of production quotas (as in Batman in 1997 and 1998), and the associated destruction of the regional economic networks or the general effects of the conflict on small-scale industries and commercial activities, we should also include in this category

a large number of the ostensibly economic migrants in the affected areas.

(B. Peker, in *Turkey and Refugees*, April 2002, p.35)

“The Turkish authorities on their part maintain the position that internal displacement as a result of conflict and fear is only a part of a larger migratory phenomenon occurring throughout Turkey which has resulted in the dramatic growth of urban populations in recent years. Moreover, during the visit numerous

interlocutors drew the Rapporteur's attention to the fact that the displacement of the population in south-eastern Turkey concerns not only Turkish citizens of Kurdish origin but also other ethnicities, in particular Turks and Arabs. For that reason, the Turkish authorities have expressed their conviction that the word 'Kurdish' should be taken away from the title of this report. However, despite the Rapporteur's repeated requests, no concrete statistics supporting this information have been provided. The findings of his visit have not confirmed the fact that other ethnicities have been concerned by the displacement.

In the Rapporteur's opinion undoubtedly, economic factors account for some of the migration, and even persons fleeing mainly because of the conflict often have a mixture of motives difficult to distinguish, including seeking of employment. However, there is no doubt that a major displacement and migration to towns concerns those caught in the crossfire of the conflict: on one hand the Turkish security forces have targeted villages suspected of supporting the Kurdish Workers' Party (PKK). On the other hand the PKK has assassinated inhabitants of the villages 'collaborating' with state authorities (i.e. belonging to the village guard system) or refusing to support the PKK. This vicious circle of violence forced many people to flee their homes." (COE, 22 March 2002)

Other causes of displacement

Development induced displacement (2001-2003)

- About 200,000 persons have so far been displaced as a result of land expropriation for dam projects in south-eastern Turkey
- A large dam is planned at Ilisu of the River Tigris and will necessitate the compulsory resettlement of more than an estimated 16,000 people
- There is concern that the Baku-Ceyhan pipeline might displace up to 30,000 people as well as prevent the return of IDPs already displaced from the southeast

GAP and other dam projects

"The construction of the Southeast Anatolian Project (GAP in Turkish), a multiplicitous network of vast dams and hydroelectric plants across the rivers of the Kurdish regions, is ostensibly to meet Turkey's rising domestic power needs. Analysts have charged, however, that GAP has another objective: to force and perpetuate the displacement of the Kurds from their regional heartlands and encourage their assimilation into mainstream Turkish society.

Prime evidence for this assertion comes from the leaked 1993 memo from then President Özal to then PM Demirel, which deals systematically with methods to solve 'the Kurdish Question', states that, 'Starting with the most troubled zones, villages and hamlets in the mountains of the region should be gradually evacuated... [and] resettled in the Western parts of the country according to a careful plan... Security forces should immediately move in and establish complete control in such areas.' The memo continues, explicitly, 'To prevent the locals' return to the region, the building of a large number of dams in appropriate places is an alternative'.

Dam projects that form part of GAP, such as the Ilisu, Yusufeli and Hakkari Dams and the several dams due to be built in the Munzur Valley National Park, if built will regularly displace tens of thousands of people and disrupt the lives of tens of thousands more, often with little or no compensation or even consultation of those affected. Again there are serious questions over the compatibility of projects such as these, in form, spirit and intention, with the Copenhagen criteria." (KHRP September 2003, p.93)

Table: Population displacement, Area of Land Expropriation by Type of Resettlement in GAP Area

DAM	Expro- priated Area (ha)	No of Districts, Villages, Sub-villages	Total Pop. Displaced	RESETTLEMENT			
				Population opting for Govt. Assisted Resettlement	% of Total	Population opting for Self Resettlement	% of Total
Ataturk Completed	43 400	1 district 34 villages 85 sub- villages	55 300	2 508	5	52 792	95
Batman Completed	2 410	17 villages	10 854	1 582	15	9 272	85
Birecik In progress	5030	1 district 44 villages	31971	6500	20	25 471	80
Cat Completed	1 430	7 village 3 sub- villages	4 000	1 965	49	2 035	51
Dicle In progress	1 240	1 district 19 villages	2 875	343	12	2 532	88
Karakaya Completed	29 800	105 villages	45 000	3 999	9	41 001	91
Karkamis in progress	1 165	1 district 12 villages	15 000	Under Construction	-	-	-
Keban Completed	62 000	174 villages	30 000	6 487	22	23 512	78
Kralkizi In progress	2 085	14 villages	2 732	21	23	2 711	77
Total	193 076	4 districts 382 villages 88 sub- villages	197 732	23 405	13	159 326	87

Source: DSI, GAP, 1999

(ECGD 22 December 2000, sect. 3.5)

"There are 9 large dams in the GAP area which necessitate the involuntary resettlement of rural and urban populations. Table [above] shows that 143,530 hectare of land has been expropriated, 382 villages, 88 sub-villages, 4 districts and a town are affected by dam projects. 87% of families have opted for self-resettlement and only 13 % have requested government assisted resettlement." (UK Government 22 December 2000, sect. 3.5)

"The Turkish Government has for many years been developing plans for hydro-electric power generation in South Eastern Anatolia (the 'GAP' project). As a result of an increased demand for electricity following greater urbanisation and industrial and commercial development, those plans are now being implemented. A large dam is planned at Ilisu of the River Tigris, 65kms upstream from the borders with Iraq and Syria." (House of Commons, Select Committee on International Development 4 April 2001, Annex A)

"A large number of villages will be affected necessitating the compulsory resettlement of more than an estimated 16,000 people and affecting a further 16,000 people." (ECGD 22 December 2000, sect. 1)

The Aslantas Dam, Ceyhan River Basin

"The Ceyhan River Basin is located in the eastern Mediterranean region of Turkey and drains into the Mediterranean Sea in the South. The development of the basin was conceived initially in the 1966 basin-planning document prepared by IECO International Engineering Co. Inc and the CAP was one of the projects identified at this time. Four other major dams on the main Ceyhan River: Menzelet, Kilavuzlu, Sir and Berke dams have also been constructed. The Menzelet and Sir dams interact directly with Aslantas and were constructed subsequently, and were completed in 1991, while the Kilavuzlu and Berke dams are

currently under construction [2000]. There are 12 more dams existing, planned or under construction on Ceyhan's tributaries.

The purpose of the project was to provide irrigation, flood control and electrical power and cater to pressing needs of agricultural producers, flood victims and to alleviate power shortages, which were becoming more and more frequent.

The Land Acquisition and resettlement component was implemented by DSI and aimed at financing land acquisitions for areas flooded by the lake and the construction of irrigation infrastructure on private property. It was exclusively funded by the Government and implemented under national laws of the day. Planning in Turkey is undertaken centrally and there is only restricted local participation in the planning process.

The villages flooded by Aslantas are relatively homogeneous ethnically and originate from nomadic or transient Turkish groups resettled from Thrace, Bulgaria and the Caucasus earlier this century. In this sense the villages do not have a long historical association with the area.

Expropriation and compensation were realised for 1 000 families (app. 5 000 persons) who were displaced. While 925 families preferred to receive direct financial compensation and move on their own, 75 of the displaced families asked for rural resettlement and rejected to take their compensation. After investigation by GDRS, 47 of them were accepted as resettlers, and although all of them asked for rural resettlement, 12 received urban resettlement. A total of an estimated 320 people in these families were resettled and there is no record of conflict between host and resettled communities. For some groups, resettlement only occurred in 1990, some 7 years after flooding. Consequently, 953 people received their compensation and moved on their own.

Thirty-six settlement units in 18 villages were totally flooded (houses and land). Landowners are required to declare land value for taxation purposes every 5 years and the 1971 declaration was used as a basis for compensation. Farmers have stated that they declared lower values to avoid taxation and the compensation paid was therefore around half of the true land value. The compensation scheme paid funds directly to displaced people. The total cost for land acquisition was US\$38 million for 5,781ha. Some of the consequences of resettlement/compensation for local groups included the sudden availability of large sums of cash in communities not used to handling such funds. Homesickness, loss of cultural roots and customs have been reported for elder generation rural people resettled in urban environments yet the second generation has access to education and urban benefits.

The SAR (1973) predicted that displaced people would find jobs on the project. Some 70 people from flooded villages were employed in construction. A total of approximately 13 000 farming families, both small and large landholders, benefited significantly from the irrigation and flood mitigation effects of the project. The agricultural and livestock production activities benefited positively from the project. There were limited benefits from fishing to landless and non-farm households in the project region. All households benefited from the electricity generated in the project. 1 000 households, who lost their lands by impoundment, were partly compensated for their economic losses but these were not considered adequate by many and they did not receive compensation for the social, cultural and psychological costs associated with relocation.

The main social costs are borne by the displaced households, due to forced social change and relocation including these families who had to wait many years to be resettled.” (WCD, November 2000)

The Baku-Ceyhan pipeline (BTC)

“In the Project Agreement Turkey has signed to participate in this massive oil project, called the Host Government Agreement (HGA), there are some extraordinary concessions. The HGA overrides all conflicting domestic law, both present and future, bar the constitution. This means that should a future Turkish state decide to pass more stringent environmental, human rights or social laws to regulate the

pipeline regions during the 40 to 60 years the project is scheduled to last, the construction consortium led by BP will be exempted from them. Except in extraordinary circumstances, only BP and its consortium can terminate the HGA.

[...]

There is very serious concern among legal observers that the HGA and other project documents will lead to breaches of Turkey's obligations under the European Convention of Human Rights, and that the agreements will seriously imperil the process of EU accession. Moreover, there is a strong likelihood that the pipeline, behind which there is enormous political pressure led by the US and Turkish governments as well as BP, will perpetuate serious human rights abuses in the Kurdish regions through which it runs. Notable among them are the pipeline's 'double displacement' effects, adding another serious barrier to displaced people's efforts to return to their home villages. The fact that the pipeline will be policed by the Gendarmerie, the paramilitaries implicated in some of the worst atrocities inflicted on Kurdish civilians, whose human rights record BP themselves have called 'not good', is also a cause of grave concern." (KHRP September 2003, pp.92-93)

"Amnesty International [...] called on the [UK] government to turn down requests from oil group BP to provide export credit guarantees for a controversial Caspian pipeline project. The campaign group claims human rights are being endangered by the £2.9bn scheme and accused Britain's largest company of encouraging Turkey to disregard European conventions.

BP reacted angrily to the claims, saying there was 'no way' it would sacrifice its reputation by applying lower ethical standards in Azerbaijan, Georgia and Turkey than it did elsewhere. The attacks came from Amnesty ahead of a new study into the Baku-Tbilisi-Ceyhan (BTC) pipeline from the Caspian sea oil fields, which has been under construction for a month. At the centre of the row is a host government agreement (HGA) negotiated between BP, the pipeline consortium leader, and the Turkish government.

Amnesty argues the agreement creates a disincentive for Turkey to protect human rights because the country has agreed to pay compensation to the consortium if pipeline construction or operation is disturbed. Payments have to be made - even when Turkey intervenes to enforce parts of its law that apply elsewhere in the country. '[The HGA] blatantly disregards the European convention on human rights, which requires states to intervene at an early stage when there is a danger that could threaten life, and substitutes the softer stipulation that Turkey may only intervene in the pipeline project when there is 'an imminent material threat' to safety or security.' Amnesty is asking the UK government to make no public funding available in the form of aid, loans or export credit guarantees unless the HGA is changed.

'There is a misunderstanding here. The HGA allows us to pay compensation to landowners where we use their land and then give it back again when we have built the pipeline. There is no law for us to do this in Turkey,' added the official, who denied any European conventions were being undermined.

Up to 30,000 people will have to give up their land, say campaigners who are worried about the environmental and human rights impact." (Guardian, 20 May 2003)

For more information see:

- [*The Baku-Ceyhan Campaign website \[Internet\]*](#)
- [*The Kurdish Human Rights Project website campaigns and provides regular updates on the dam and pipeline projects affecting Kurdish populations in Turkey \[Internet\]*](#)
- [*"Turkey's increased violence along a pipeline's route," OMCT, 26 March 2003 \[Internet\]*](#)

Natural disaster-related displacement (1999-2004)

- Turkey is situated across three tectonic plates which creates a high potential risk of earthquakes

- Government statistics indicate that between 1995 and 1999 over 800,000 people were displaced by earthquakes and floods

“Turkey is in a region that is politically vulnerable and prone to natural disasters [1]. It is at risk from a range of complex emergencies. Statistically, a large-scale disaster happens every seven to eight years. Earthquakes account for 97 per cent of deaths and injuries caused by natural disasters. In 1999, two earthquakes killed 19,000 people and caused massive destruction. Seismic activity frequently causes panic among the population. Floods occur regularly too.

Government statistics on damage caused by disasters (see table below) demonstrate how vulnerable the country is.

[...]

Turkey’s disaster toll 1995-1999

(Source: General directorate of disasters affairs of Turkish Government)

Year	Type of disaster	No. of people killed	No. of people Injured	No. of people Displaced	No. of people affected	Economic Damage USD
1995	Earthquake Floods	231	403	2,000	10,000	65 million
1996	Earthquake	0	6	9,000	17,000	30 million
1998	Earthquake Floods	155	1,647	128,000	1,500,000	500 million
1999	Earthquake	18,243	48,901	675,000	15,000,000	20 billion

[Footnote 1] Turkey is situated in the cross line of three tectonic plates – Eurasian, Arabic and African – which creates a potential risk of earthquakes.” (IFRC 1 January 2004)

For further information:

- *The IFRC provides assistance to victims of natural disasters and maintains regular and updated information on natural disasters in the country. See the [website of the IFRC](#) [Internet].*
- *The [UN Office for the Coordination of Humanitarian Affairs \(OCHA\)](#) also provides regular updates and situation reports on natural disaster related emergencies in the country [Internet].*

POPULATION PROFILE AND FIGURES

Global figures

National authorities claim about 350,000 were displaced whereas NGOs claim between 1 and 3 million (1999-2004)

- Government officials stated the number of people displaced as a result of "terrorism" in the 80s and 90s and the evacuation of some settlements by Turkish authorities is 352,576 (March 2004)
- US DOS reported 378,000 as the official government figure and 1 to 3 million IDPs as the NGO figure for the displacement of villagers forced to flee as a result of government evacuations and the conflict
- The number of displaced could be as high as three million, according to various NGOs
- The Council of Europe cited "independent credible" estimates at 1 million in its report yet underlined that the figures concerning displacement are subject to controversy
- Independent sources claim the official figure of 378,000 displaced persons includes only those displaced as a result of village and hamlets evacuations
- According to the U.S. Department of State, the most credible estimate of displaced persons is as high as 1 million
- The U.S. Committee for Refugees gives a range of 400,000 to 1 million, reflecting evacuations and spontaneous movement from and within the southeast

Official Figure: 353,576 (18 March 2004)

"The cause of the internal displacement in Turkey has been terrorism that afflicted the country for two decades in the Eighties and Nineties. In this period, a sizable number of Turkish citizens in the south east were compelled to leave their homes. Also some settlements were evacuated by the Turkish authorities to ensure the safety of the civilian population against terrorist activity.

The number of Turkish citizens affected from this displacement is 353,576. The Turkish authorities are ready to discuss the sources and the accuracy of this figure. The phenomenon of economic migration to major urban areas is a separate issue, seen in several regions of Turkey, and it has been going on since the end of the Second World War. These two movements of population need to be looked at separately, as they are caused by different factors" (Permanent Mission of Turkey to the UN GVA 18 March 2004)

Official figure: 378,000

NGO estimate 1 to 3 million (25 February 2004)

"During the height of the PKK conflict from 1984 to 1990, the Government forcibly displaced a large number of residents from villages in the southeast. Many others left the region on their own. The Government reported that 378,000 residents 'migrated' from the southeast during the conflict, with many others departing before the fighting. Various NGOs estimated that there were from 1 to 3 million IDPs." (US DOS 25 February 2004, Sect.2d)

Official figure: 378,000

NGO estimate 1 to 3 million (31 March 2003)

"Between 1984 and 1999, and particularly in the early 1990s, the Government forcibly displaced a large number of persons from villages in the southeast. The Government justified the practice as a means of protecting civilians or preventing PKK terrorists from obtaining logistical support from the inhabitants. The

Government reported that 378,000 persons had 'migrated' (it disputed the term 'evacuation') from 3,165 state of emergency region villages between 1994 and 1999; many left before that due to the fighting. Various NGOs estimate that from 1 to 3 million persons were displaced. The Interior Minister confirmed that in 25 provinces in the former state of emergency region, 4,455 villages and hamlets have been destroyed or deserted." (US DOS 31 March 2003, Sect.d)

Official figure: 336,000 to 380,000

NGO estimate as high as three million

US Department of State notes a 'credible estimate' is as high as one million (30 October 2003)

"Estimates of the numbers of displaced people vary widely. Some government officials deny that any people in Turkey are internally displaced. Some local nongovernmental organizations put the number of displaced persons as high as three million. In its human rights report for 2000, the U.S. Department of State said that 'credible estimates' of internally displaced people in Turkey range as high as one million. By year's end, the government appeared not to have updated its official figure for 'evacuated persons' of about 336,000 at the end of 1999.

"According to official figures, 380,000 people were displaced from southeast Turkey during the fifteen year conflict between government forces and the illegal armed Kurdish Workers' Party (PKK). Nongovernmental organizations estimate the number of displaced, mainly Kurdish villagers, at least a million and a half. Most displaced persons were driven from their homes by government gendarmes and by "village guards"—that is, their own neighbors, whom the government armed and paid to fight the PKK but did little to train or control. This was not an orderly and lawful resettlement program but an arbitrary and violent campaign marked by hundreds of "disappearances" and summary executions. Villagers' homes were torched, their crops destroyed and their livestock destroyed before their eyes." (HRW, 30 October 2002)

Official figure: 378,000

Independent credible estimates 400,000 to 1 million (22 March 2002)

"There is no official statistics on the total number of Turkish citizens of Kurdish origin living in Turkey. (The last population census in Turkey was carried out in 1997 but it did not include any information or indication (e.g. mother tongue) about the citizen's origin). Consequently, there are no official figures on the internal displacement of this group of population. According to the 1997 population census approximately 8 million people lived in the provinces under emergency rule and in their immediate neighbourhood. Around 7 million Turkish citizens of Kurdish origin live outside this area (including over 1 million in Istanbul). These two figures correspond to a widely accepted estimate of 15-16 million Turks of Kurdish origin constituting up to 26 % of the total population living in Turkey. Figures concerning the displacement are much more subject to controversy. Turkish authorities' official figure for 'evacuated persons' amounts to 378 000 originating from 3 165 villages at the end of 1999 (Report of the Parliamentary Migration Commission, Parliament of Turkey). Independent credible estimates [US Department of State Human Rights Report 2000] concerning the population displaced as a result of the conflict in south-eastern Turkey range from 400 000 to 1 million as of December 2000. The independent sources claim that the official figure of 378 000 displaced persons includes only those displaced as a result of village and hamlets evacuations. It does not include those who have felt compelled to flee, for example, because of the conflict with 'the village guards' even if the village itself had not been evacuated." (COE, 22 March 2002)

USCR figure: 400,000 to 1 million (2001)

The government's count of internal displacement includes only persons displaced as a result of village and hamlet evacuations; it does not include people who felt compelled to flee, for example, because of conflict with Village Guards (a Kurdish paramilitary group created by the government to oppose the Kurdish Worker's Party, PKK, in the southeast), even if the village itself was not evacuated. Therefore, the figure based solely on evacuations must be regarded as below the baseline for an estimate of the number of internally displaced persons in Turkey.

The U.S. Committee for Refugees (USCR) therefore prefers a range of 400,000 to 1 million as reflecting evacuations and spontaneous movement, as well as displacement from the southeast to the central and western parts of Turkey and rural to urban movement within the southeast itself." (USCR 2001, p. 263)

NGOs' report some cases of ongoing displacement in the south-east provinces (2003)

- There were reports of villagers being displaced from their villages
- In September 2003, it was reported that Turkish soldiers raided the village of Cigli and informed villagers not to return
- Villagers' food and livestock was confiscated
- In the Cemisgezdek District of Tunceli, soldiers told villagers to evacuate the highlands for 'military operations' although the villagers rely on food supplies from the highlands

"Göç-Der reported in a press release on 16th September 2003 that more villagers had recently been displaced from their villages. On 7th and 8th September 2003, Turkish soldiers raided a village called Cigli, in the Curkura District of Hakkari. The villagers were taken to a gendarme station and told not to return to their village. Food and livestock were confiscated, as the soldiers claimed they had been illegally 'smuggled' into the country.

Similarly, in the Cemisgezdek District of Tunceli, soldiers told villagers to evacuate the highlands for 'military operations' and return to their homes. This was done despite the fact that there was little food in the villages and the community relies on food supplies from the highlands for 7 months of the year.

It is evident therefore, that despite some reforms, very recent cases show that village evacuations are still taking place in the Southeast." (KHRP/Goç-Der/HRA September 2003, p.25)

Official figures indicate between 362,000-560,000 are forcibly displaced (1998-1999)

- In 1999, the Government reported that through 1999, the total number of those displaced was 362,915 persons from 3,236 villages and hamlets
- The Government claimed 26,481 IDPs had been resettled with government assistance in 176 villages and hamlets and 61,987 had applied to return by 1999
- A Member of Parliament reported 560,000 as an estimate of those forcibly evacuated (1999-2000)
- In June 1998, the Parliamentary Commission released figures, reporting that 401,328 people were displaced from 3,428 areas, of which 905 villages and 2,523 hamlets
- The 1998 Parliamentary Commission reported 517 villages and 1,614 hamlets evacuated in the State of Emergency region, displacing 251,366 persons and another 126,969 IDPs outside the OHAL region, evacuated from 303 villages and 2,345 hamlets
- According to the 1998 report, 22,993 of IDPs have returned to their places of origin, 6 percent of the total, leaving 378,335 still displaced
- The Commission's own parliamentary members however disputed the figures of the 1998 Parliamentary Commission report
- The USCR found the figures to be unreliable as the Commission's does not include people who fled from towns or cities in the southeast, or villagers compelled to flee, because of conflict with village guards, even if their village itself was not evacuated
- The 1998 US State Department cited 560,000 as "a credible estimate" of the number of people evacuated from their homes

- According to the Kurdish Institute in Paris, the number of persons displaced within south-east Turkey over the last 20 years amounts to 2.5-3 million

1999

"The exact number of persons forcibly displaced from villages in the southeast since 1984 is unknown. Human rights NGO's tend to attribute most rural-urban migration to evacuations, whereas some persons move to escape the violence or conflict-caused economic depression, or to pursue opportunities in western cities. Government statistics tend to minimize the number of persons who left against their will. Observers agree that 3,000 to 4,000 villages and hamlets have been depopulated. The Government reported that through 1999 the total number of those evacuated was 362,915 persons, from 3,236 villages and hamlets, of whom 26,481 have been resettled with government assistance in 176 villages and hamlets. Another 61,987 have applied to return. A figure given by a former Member of Parliament from the region--560,000--appears to be the most credible estimate of those forcibly evacuated. However, observers in the region estimate that the total number of displaced persons is approximately 800,000, and a few NGO's put the number as high as 2 million." (U.S. DOS February 2000, sect. 1g)

1998

"The most recent figure for internal displacement in Turkey comes from the report of the Parliamentary Commission, released in June 1998. All of the statistics used in the report originate with the State of Emergency Region (OHAL) governor's office, so these should be regarded as the official government count. It reports that 401,328 people were forced to migrate from 3,428 residential areas, of which 905 were villages and 2,523 hamlets. Of these, 517 villages and 1,614 hamlets were evacuated in the State of Emergency region, resulting in the displacement of 251,366 persons. Another 126,969 persons were displaced outside the OHAL region, having been evacuated from 303 villages and 2,345 hamlets. According to the report, 22,993 of these displaced persons have returned to their places of origin, 6 percent of the total, leaving 378,335 still displaced.

The Commission's own parliamentary colleagues dispute these figures, however. Deputy Orhan Yildirim, the MP from Tunceli, voiced his dissent to the Commission's findings (noted in the Commission report), saying, 'the number of evacuated villages given in the official statistics is wrong. For example, Balik Village is my village; it is entirely empty of people. It is listed as not evacuate.'

Even if the Commission's count of evacuated villages were accurate, by limiting that count to persons displaced as a result of village and hamlet evacuations, the Commission's figure does not include people [...] who fled from towns or cities in the southeast, or of villagers who felt compelled to flee, for example, because of conflict with village guards, even if their village itself was not evacuated. As such, the figure based solely on evacuations must be regarded as the minimum baseline for an estimate of the number of internally displaced persons in Turkey." (USCR 1999, p. 6)

"On 28 July 1997, the Chairman of this Committee, Mr Seyit Hasim Hasimi, held a press conference in Diyarbakir. He announced that forced evacuation of villages and hamlets by the Turkish armed forces in the region had resulted in large numbers of displaced people and potential refugees. He confirmed that 364 742 inhabitants of 3 185 villages and hamlets had been forced out since 1990 in the framework of the fight against terrorism. These figures were publicly confirmed later by Mr Bülent Ecevit, Deputy Prime Minister, who said that the villages had been emptied 'for security reasons'. The US State Department cited 560 000 as 'a credible estimate' of the number of people deprived of their homes as a result of the evacuations." (COE 3 June 1998, para. 17)

"According to Mr Nezan, President of the Kurdish Institute in Paris, the number of persons displaced within south-east Turkey over the last 20 years amounts to 2.5-3 million. The population of Diyarbakir, for example, rose from 380 000 in 1990 to 1 million in 1996. Concerning displacement throughout the rest of Turkey, the figure is approximately 8 million, of whom some 3 million are in Istanbul alone." (COE 3 June 1998, paras. 20-22)

PATTERNS OF DISPLACEMENT

General

Impact of conflict-induced displacement on Turkey's urbanisation (1998-2001)

- Migratory movements to urban areas have also been caused by the conflict-caused economic depression in south-eastern areas
- Many of the displaced have crowded into the southeastern provincial cities, such as Diyarbakir and Batman, more than doubling their populations
- It is estimated that as many as 3.5 million Kurds have left south-east Turkey since 1984 and have settled mainly in large cities in the west

"Internal displacement as a result of conflict and fear in part of a larger migratory phenomenon occurring throughout Turkey that has resulted in the dramatic growth of urban populations in recent years. Undoubtedly, economic factors account for some of the urbanization, and even persons fleeing for political reasons often have a mix of motives, including seeking employment, or even, reportedly, food.

Rural to urban movement has often been the first step in a migratory pattern that has taken large numbers of Kurds from the east to the west. Diyarbakir, the unofficial capital of Turkish Kurdistan, grew from 30,000 in the 1930s to 65,000 by 1956, to 140,000 by 1970, to 400,000 by 1990, and swelled to about 1.5 million by 1997. Most Turkish cities have developed impoverished, overcrowded, ramshackle slums on their outskirts, *gecekondular*, 'huts built in one night'. Many of the displaced Kurds in provincial cities and towns crowd into homes of relatives, sometimes with more than thirty people residing in dwellings intended for a single family.

Although the desire for economic betterment has motivated some to migrate, it is not clear that migrants have responded to the pull of opportunity in western cities as much as to the push of conflict-caused economic depression in the rural southeast. While some of the displacement has been spontaneous, the Turkish military systematically expelled Kurdish villagers in the country's southeast between 1993 and 1995. The Turkish army's campaign to evacuate villages suspected of supporting the PKK began in February 1993. Army and security forces have depopulated mountainous, rural areas, and pushed the village populations into urban centers, creating economic hardship for large numbers of displaced persons, most of whom had been herders or otherwise tied to the pastoral economy. Many of the displaced have crowded into the provincial cities, such as Diyarbakir, mentioned above, and Batman, more than doubling their populations." (USCR 1999, pp. 4-6)

"The ongoing conflict between the Turkish armed forces and the PKK guerrillas, and the poor economic situation in the southeast, have caused considerable migration away from the rural areas in the southeast. Many have remained in the southeast and moved to cities such as Diyarbakir, Siirt, Tunceli and Cizre, whose populations have doubled or trebled as a result of the migration. The large cities in the west have also been major recipients of this migration. It is estimated that as many as 3.5 million Kurds have left southeast Turkey since 1984. Istanbul, Izmir and Ankara have received the most migrants, with Istanbul accommodating almost 1.5 million new immigrants. Between one-half and almost two-thirds of the Kurdish population now live in peaceful assimilation in western Turkey and on the southern coast (3 million in the Istanbul conurbation, 2 - 3 million on the southern coast, 1 million on the Aegean coast, 1 million in central Anatolia and the remaining 6 million in east and southeast Turkey)." (UK Home Office April 2001, para. 7.27)

"Three patterns of migration can be identified:

The majority of internally displaced people from the rural areas have moved into the nearest urban centres. Provincial capitals such as Batman, Diyarbakir, Hakkari, Sanliurfa and Van have been particularly affected; Those internally displaced people with greater economic resources and the right contacts have moved further away to cities such as Adana, Gaziantep, Kahramanmaras and Mersin, outside the emergency law provinces; and

Many members of the middle class in the provincial cities have moved to western cities in Turkey such as Ankara, Antalya, Bursa, Istanbul and Ismir.

[...]

The short-term economic and humanitarian consequences of this massive migration have been disastrous. The already depressed regional economy has deteriorated even further. The cities have become overwhelmed with people swelling the ranks of the unemployed and stretching municipal services. Starvation is reported among the poorest of the internally displaced living in makeshift housing in the cities of eastern and southeastern Turkey. Villagers have been forced to slaughter their herds to finance their move into urban centres. The tourist industry has virtually disappeared from this locality. Furthermore, there has also been a flight of capital from the region as the relatively well-off have closed their businesses and small factories before moving to the west of Turkey. Inevitably, these developments have aggravated the employment situation and resulted in further pressure for groups to migrate out of eastern and southeastern cities." (Kirisçi June 1998, pp. 198-199)

PHYSICAL SECURITY & FREEDOM OF MOVEMENT

Physical security

Turkish human rights organisation documents an increase in human rights violations in south-east and east Anatolia (2003-2004)

- According to the IHD's 2003 human rights report covering south-eastern and eastern Anatolia, over 6,742 human rights violations were reported in 2003
- The report documented the death of over 100 persons in armed clashes and over 30 wounded, 80 persons victim to unsolved murders
- The report also indicates that 487 persons were victims of torture carried out by gendarmes, security forces and village guards
- The threat posed by landmines is underlined in the IHD's report, which cites landmines as the cause of death of 19 people and 37 injuries

“The Human Rights Association (IHD) has claimed that human rights violations increased in southeastern and eastern Anatolia in 2003.

The IHD's Diyarbakir branch on Monday released the ‘Human Rights Report 2003’ covering southeastern and eastern Anatolia. According to the report, 6,472 human rights violations were reported in Turkey's East and Southeast in 2003. The report disclosed that 104 people lost their lives in armed clashes, while 31 were wounded. The report also claimed that 80 people were victims of unsolved murders, while 22 were wounded in attacks by unknown parties.

The report noted that 2,797 people were taken into custody in 2003 and that 489 of them were victims of torture carried out by gendarmes, security forces and village guards.

‘A total of 159 people were investigated and punished because of their thoughts. A nongovernmental organization called the Elazig Basic Rights and Freedoms Association was shut down, and 18 newspapers and books were banned,’ said the report.

The report also underlined the threat posed by land mines in the region, saying that 19 people had been killed and 37 injured by land mines.

IHD's Diyarbakir branch chairman Selahattin Demirtas highlighted the reasons for the increase in the number of human rights violations in the area and said: ‘The administrative and military bureaucracy is consciously insisting on not implementing EU harmonization laws; however, our citizens have a similar consciousness in insisting on their rights. And thanks to this awareness of the need to protect their rights, these people have applied to our association much more frequently than in the past when their rights were violated.’

Complaining about the attitudes of authorities towards human rights associations, Demirtas also alleged, ‘Most violations in the region stem from the Kurdish issue.’” (Turkish Daily News 14 January 2004)

For more information, see the [Human Rights Association's \(IHD\) website \[Internet\]](#)

Continuing reports of human rights violations by law enforcement and security forces, particularly in the south-east (2003-2004)

- The Government continued to organize, arm, and pay a civil defence force mostly in the southeast region, known as the “village guards” of about 60,000
- The government force, known as the village guards, was reputed to be the least disciplined of the security forces and continued to be accused repeatedly of corruption and human rights abuses
- In addition to the village guards, Jandarma and police ‘special teams’ were viewed as those most responsible for abuses in 2003, particularly in the south east
- The Human Rights Foundation estimated over 40 killings by security forces during the year
- While courts investigated most of the unlawful killings, the number of arrests and prosecutions remained low in comparison with the incidents; and convictions remained rare
- The case of 10 village guards arrested in connection with the September 2002 killing of 3 IDPs returning to their homes in Ugrak village with official permission continued
- As of October, landmine explosions in the southeast killed two civilians
- The Government, as well as the PKK/KADEK/KHK continued to commit human rights abuses against non-combatants in the southeast

“There has been a notable failure to address the legacy of human rights violations from the past - including torture, ‘disappearances’, extrajudicial executions, unfair trials, destruction of property and forcible evacuation from villages in the southeast of the country - as the number of cases against Turkey in the European Court of Human Rights bears out. Focus on Turkey entering a new era in the protection of human rights should not mean that this legacy remains unaddressed and forgotten by the Turkish authorities. The introduction of a draft bill in January 2004 intended to offer the possibility of compensation for those who lost property and livelihoods as a result of the forcible emptying of villages during the conflict in southeast and eastern provinces of Turkey in the late 1980s and 1990s is one step, but the authorities should not ignore their responsibility to bring the perpetrators of such violations to justice.

Laws recently adopted have aimed to combat some aspects of impunity by removing some of the obstacles to the investigation of claims of torture and ill-treatment, by requiring that trials of those charged with such crimes are given priority and that hearings take place at no more than 30-day intervals, and by stipulating that prison sentences for such crimes cannot be converted to fines, suspended or postponed.

Amnesty International notes one recent decision to expel a senior police official from the police force on the grounds that he had wilfully ignored the crimes of torture and ill-treatment committed by officers in units under his command. The dismissal from the police force in September 2003 of Adil Serdar Saçan, former Head of the Organized Crime Branch of Istanbul Police Headquarters, represents one of the few instances of a senior official being disciplined in this way in connection with the crimes of torture and ill-treatment.

At the present time, however, the ratio of reports of torture and ill-treatment to investigation and prosecution of alleged perpetrators remains extremely low. While this state of affairs continues, it is unlikely that law enforcement officials will really internalize the sense that brutality against detainees is unacceptable.” (AI 12 February 2004)

“[There were credible reports that security forces committed a number of unlawful killings. Police, Jandarma, and soldiers killed a number of people, particularly in the southeast, for allegedly failing to obey stop warnings. The Human Rights Foundation (HRF) estimated that there were 43 killings by security forces during the year, including shootings by village guards and border patrols. In July, for example, soldiers in Mardin shot and killed Kazim Ozgan, allegedly for failing to heed a stop warning. HRF estimated there were 33 killings by security forces in 2002.

The courts investigated most alleged unlawful killings by security forces; however, the number of arrests and prosecutions in such cases remained low compared with the number of incidents, and convictions remained rare [...].

According to the Interior Ministry, three persons died in police custody during the year; two died of heart attacks and the other committed suicide.

According to the HRF and press reports, 6 ongoing trials in cases of past alleged killings by security officials ended during the year, resulting in 36 acquittals and 13 convictions.

[...]

A Diyarbakir court continued to try the case of 10 village guards arrested in connection with the September 2002 killing of 3 internally displaced persons (IDPs) returning to their homes in Ugrak village with official permission.

During the year, the European Court of Human Rights (ECHR) ruled against the country in one case involving the unlawful deprivation of life.

As of October, landmine explosions in the southeast killed two civilians.

[...]

The Government, as well as the PKK/KADEK/KHK, continued to commit human rights abuses against noncombatants in the southeast. According to the military, 12 civilians, 19 members of the security forces, and 71 terrorists died during the year as a result of armed clashes.”(US DOS 25 February 2004, Sect. 1a)

“Due to the conflict with the PKK/KADEK/KHK, the Government continued to organize, arm, and pay a civil defense force of about 60,000, mostly in the southeast region. This force, known as the village guards, was reputed to be the least disciplined of the security forces and continued to be accused repeatedly of drug trafficking, rape, corruption, theft, and human rights abuses. Inadequate oversight and compensation contributed to this problem, and in some cases Jandarma allegedly protected village guards from prosecution. In addition to the village guards, Jandarma and police ‘special teams’ were viewed as those most responsible for abuses. DEHAP officials claimed that security forces in July publicly displayed the bodies of two slain PKK/KADEK militants in the town of Baskale in Van Province. However, the incidence of credible allegations of serious abuses by security forces in operations against the PKK/KADEK/KHK was low.” (US DOS 25 February 2004, Sect.1c)

“The Turkish National Police (TNP), under Interior Ministry control, is responsible for security in large urban areas. The Jandarma, paramilitary forces under joint Interior Ministry and military control, are responsible for policing rural areas. The Jandarma are also responsible for specific border sectors where smuggling was common, although the military has overall responsibility for border control. There were allegations of police corruption.

The rarity of convictions and the light sentences imposed on police and other security officials for killings and torture continued to foster a climate of impunity. During the year, authorities opened investigations of 39 Jandarma personnel accused of torture. The investigations continued at year's end. Although the courts investigated most alleged unlawful killings by security forces, convictions and punishments remained rare. Punishment, when handed down, generally was minimal; monetary fines did not keep pace with the high rate of inflation, and sentences were sometimes suspended.” (US DOS 25 February 2004, Sect. 1d)

See also:

- *The section on “Police Abuses” in “[Overview of Human Rights Issues in Turkey](#)”, Human Rights Watch 26 January 2004 [Internet]*

- [*“Turkey Still Represses Kurds, Despite EU-Oriented Reforms: Rights Group”*, Kurdistan Observer, 30 July 2003 \[Internet\]](#)
- [*“From Paper to Practice: Making Change Real: Memorandum to the Turkish Prime Minister on the occasion of the visit to Turkey of a delegation led by Irene Khan, Amnesty International’s Secretary General, February 2004”*, 12 February 2004 \[Internet\]](#)
- [*“Turkey: Human Rights in the Kurdish Southeast: Alarming Situation despite extensive reforms”* FIDH International Investigative Mission, July 2003 \[Internet\]](#)
- [*“Concerns in Europe and Central Asia: January to June 2003: Turkey”*, AI, 1 October 2003 \[Internet\]](#)
- [*“IDPs fear returning to their villages due to the ongoing threat from the Village Guards \(2003-2004\)”* \[Internal link\]](#)

Wide-spread reports of torture particularly in the southeast continue to be documented despite recent improvements (2003-2004)

- Human rights advocates claimed hundreds of detainees were tortured in 2003 in the southeast, but only 5-20 % filed reports because they feared retaliation or believed complaining was futile
- Investigation, prosecution, and punishment of members of the security forces for torture or other mistreatment was rare, and accused officers remained on duty pending a decision

“The Constitution prohibits such practices; however, some members of the security forces continued to torture, beat, and otherwise abuse persons regularly. Leftists and Kurdish rights activists were more likely than others to suffer torture. Despite the Government's cooperation with unscheduled foreign inspection teams, public pledges by successive governments to end the practice, and initiatives to address the problem, widespread reports of torture continued, particularly in the southeast.

HRF estimated there were approximately 920 credible applications by torture victims at its 5 national treatment centers during the year, compared with 965 in 2002. These figures did not necessarily reflect trends in the use of torture. The reports included complaints stemming from previous years' incidents. Human rights advocates claimed that hundreds of detainees were tortured during the year in the southeast, where the problem was particularly serious, but that only 5 to 20 percent reported torture because they feared retaliation or believed that complaining was futile.

[...]

Human rights attorneys and physicians who treated torture victims said torture generally occurred during police or Jandarma detention before detainees appeared in court. Because the arresting officer was responsible for interrogating a suspect, officers sometimes resorted to torture to obtain a confession that would justify the arrest. In one example, the European Roma Rights Center reported that, in February, police in Edirne beat and tortured with electric shocks a 14-year-old Romani boy suspected of stealing a wallet [...].

The investigation, prosecution, and punishment of members of the security forces for torture or other mistreatment was rare, and accused officers usually remained on duty pending a decision, which could take years [...].” (US DOS 25 February 2004, Sect.1c)

See also:

- [*“Turkey: Human Rights in the Kurdish Southeast: Alarming Situation despite extensive reforms”* FIDH International Investigative Mission, July 2003 \[Internet\]](#)
- [*“Turkey: Torture, still a routine practice”* FIDH International Investigative Mission, May 2003 \[Internet\]](#)

- *“Torture and Inhuman or Degrading Treatment or Punishment in Selected OSCE Participating States, Report by the International Helsinki Federation for Human Rights (IHF) to the Special OSCE Meeting on the Prevention of Torture”, Vienna IHF, 6-7 November 2003, pp. 35-38 [Internet]*
- *“Torture in Turkey: The Ongoing Practice of Torture and Ill-treatment”, 16 March 2004, KHRP [Internet]*
- *See also the monthly reports of the Human Rights Foundation of Turkey [Internet]*

Landmines in the south-east provinces pose threat to physical security (2003)

- Landmines laid by the government along the borders, and by both sides in the conflict between the security forces and the PKK, killed eleven people, including four children in 2003
- In 2001 Turkey declared that it would join the Ottawa Convention banning antipersonnel mines
- Turkey took important steps toward accession but had not completed procedures by late October 2002

Landmines

“Landmines laid by the government along the borders, and by both sides in the conflict between the security forces and the PKK, killed eleven people, including four children. Following Turkey's 2001 declaration that it would join the Ottawa Convention banning antipersonnel mines, it took important steps toward accession but had not completed procedures by late October [2002].”(HRW, 14 January 2003)

“In view of the human sufferings and casualties caused by anti-personnel land mines, the international community has long been endeavoring to take effective measures in order to prevent their use. The resolutions of the United Nations General Assembly calling on Member States to implement a moratorium on the export of anti-personnel land mines constituted an important part of these efforts since 1993. In light of these resolutions, Turkey unilaterally declared on 17 January 1996 a comprehensive moratorium on all anti-personnel land mine exports and transfers for a renewable term of three years.

Moratoriums on the export of anti-personnel land mines were superseded on 1 March 1999 by the entry into force of the Ottawa Convention, which provides for the total prohibition of the use, stockpiling, production and transfer of the said mines as well as their destruction. The security situation around Turkey precluded her from signing the Ottawa Convention at the time of its conclusion. Nevertheless, as an expression of her commitment to the humanitarian objectives of the Convention, Turkey extended her national moratorium on the export and transfer of anti-personnel land mines on 17 January 1999 for another three years. Turkey also concluded agreements with Bulgaria in March 1999 and with Georgia in January 2001, with a view to establishing regimes for keeping the common borders free from these mines.

After careful consideration, Turkey has now decided to accede to the Ottawa Convention. Moreover, Turkey and Greece have agreed to concurrently start the procedures that will make both countries parties to the Ottawa Convention. Turkey has come to the stage of submitting the Convention to the Turkish Grand National Assembly for finalization of the accession procedures.

In the meantime, the duration of Turkey's national moratorium on the export and transfer of anti-personnel land mines expired in January 2002. Turkey has decided to extend once again her moratorium on the export and transfer of anti-personnel land mines, this time indefinitely, as an expression of her sincere commitment to becoming party to the Ottawa Convention.” (Turkish MFA, 15 March 2002)

See also:

- *“Landmines: an obstacle to the return of displaced people (2002-2003)” [Internal link]*
- *“Allegations of new landmine fields along border with northern Iraq (2003)” [Internal link]*

Majority of enforced disappearances affect ethnic Kurds in south-east Turkey (2001-2003)

- The government continued to investigate some reported cases of disappearances, however most cases had not been resolved
- The UN Special Rapporteur for Missing and Disappeared Persons expressed her view that the security forces were responsible for some cases of disappearances (2001)
- Most cases concern persons of Kurdish ethnic origin and occurred in the provinces of Diyarbakir and Siirt in south-east Anatolia
- Most of the missing persons have allegedly been arrested and mistreated by the police on charges of belonging to the PKK
- Members of the security forces who are allegedly responsible for most cases of enforced disappearances have rarely been prosecuted for these acts
- Abductions by PKK terrorists of local villagers and state officials has virtually ended since the capture of the PKK leader Ocalan (1999)

“[T]he government continued to make efforts to investigate and explain some reported cases of disappearance. [...] However, many cases of disappearances in Turkey are not resolved. The majority of these cases reportedly occurred in south-east Turkey, in areas where the State of Emergency was in force. [...]

In February 2001 the U.N. Special Rapporteur for Missing and Disappeared Persons, Asma Jhangir, visited Turkey and met with government officials and non-governmental contacts. She expressed her view that the security forces appeared to be responsible for the disappearances of two HADEP officials [...], but she did not have sufficient information to comment on other alleged cases. She stated publicly that conditions regarding disappearances had improved greatly, but that security force impunity continued. [...]

Although members of the security forces are said to be responsible for most cases of enforced disappearances, they are rarely brought to trial or prosecuted for these acts. Although arrests of police and other law enforcement personnel increased in cases of extrajudicial killings, the number of arrests remained low, and punishment for those persons convicted remained insufficient. The PKK's practice of kidnapping young men or threatening their families as part of its recruiting effort, and of abductions by PKK terrorists of local villagers and state officials, has virtually ended, due to reduced PKK capabilities in the south-east and calls by its captured leader Öcalan for the PKK to withdraw from its former operating areas in the country.[...]" (UK Home Office October 2003, paras.6.21-6.24)

"In January 1998, the Commission on Human Rights reported to the UN Working Group on Enforced or Involuntary Disappearances that 153 cases of disappearance had been transmitted to the Turkish Government since 1990. The majority of these occurred in the southeast, in areas where a state of emergency is in force. In February 1999 Amnesty International reported that of these 153 cases, 83 remained unresolved.

The United Nations Working Group on Enforced or Involuntary Disappearances (UNWGEID) visited Turkey in September 1998, and reported their findings at the end of December 1998. Since its creation, 166 cases of enforced disappearance have been reported to the UNWGEID, of which 79 have been clarified, most of them by the Turkish government. The highest number of cases occurred in 1994 (72 cases). The numbers dropped to 17 in 1995, to 12 in 1996 and to 9 in 1997. During 1998, 13 cases were reported. The victims included members of political opposition parties, journalists working for newspapers opposed to the government, trade unionists or villagers suspected of supporting subversive organizations. The UNWGEID

also received allegations of disappearances imputed to the PKK and other armed groups. However, these cases do not fall within the mandate of the UNWGEID.

Most of the disappearances concerned persons of Kurdish ethnic origin and occurred in the provinces of Diyarbakir and Siirt in south-east Anatolia. There were some disappearances in Antalya, Izmir and Istanbul. Most of the cases followed the same pattern: the missing persons had allegedly been arrested at their homes on charges of belonging to the PKK and taken to the police station, but their detention was later denied by the authorities, in most cases police officers or state prosecutors. In many cases, torture or ill-treatment at the hands of the security forces was reported or feared. Some of the disappearances occurred during raids conducted by gendarmes accompanied, at times, by village guards.

It has been reported by some Turkish human rights groups that some Turkish law enforcement officials do not register suspects when they are initially taken into detention, the allegation being that if the suspect should die during questioning then there will be no record of them having been detained. There is also the problem concerning the effective incommunicado detention available to the authorities in relation to suspects held for crimes covered by the State Security Courts.

The Turkish government has sought to remedy these problems by introducing new detention procedures in August 1998. Suspects now have the ability to notify his family of his detention, even in cases covered by the State Security Courts, provided there is no harm to the outcome of the investigation. Full detention registers are to be kept and suspects are to be medically examined before they are taken into detention as well as after. Turkish NGOs have complained that the provisions are frequently ignored.

The UNWGEID was of the opinion that, comparatively speaking and taking into account the number of outstanding cases of disappeared persons, as well as the decrease of allegations in the past few years, mainly since 1994, enforced disappearances in Turkey should not be evaluated as a massive or systematic practice of governmental agencies. Such an assessment does not exclude the existence of such a practice. " (UK Home Office April 2001, paras. 5.16-5.23)

"The PKK's practice of kidnapping young men or threatening their families as part of its recruiting effort and abductions by PKK terrorists of local villagers and state officials has virtually ended, due to reduced PKK capabilities in the southeast and calls by its captured leader Ocalan for the PKK to withdraw from its former operating areas in the country." (U.S. DOS February 2001, sect. 1b)

See also:

- *"Report on the visit to Turkey by two members of the Working Group on Enforced or Involuntary Disappearances (20-26 September 1998)," UN Working Group on Enforced or Involuntary Disappearances, 28 December 1998 [Internet]*
- *"Human Rights in the Kurdish Southeast: Alarming Situation despite extensive legal reforms", FIDH International Investigative Report, July 2003, pp. 9-11 on disappearances and pp. 12-13 on extra judicial killings [Internet]*
- *For the latest reports on cases of disappearances, consult the monthly human rights reports of the Human Rights Foundation of Turkey [Internet]*

HRW concerns related to the war in Iraq: avoiding past patterns of violation (2003)

- Between 1980 and 2000 state forces committed grave and wide-spread human rights violations, including displacement, systematic torture and extrajudicial killings
- Turkish police, gendarmes and soldiers often failed to distinguish between rural civilian populations and armed insurgents

- The pattern of violations that occurred have been corroborated by judgments of the European Court of Human Rights, that found Turkish security forces responsible for torturing, killing, and 'disappearing' Kurdish villagers and burning them out of their homes
- In light of the past abuse, HRW appealed for no security force units with an established record of committing serious human violations to be deployed in Northern Iraq
- Human Rights Watch also expressed alarm to hear reports that in early 2003 the Turkish army began to train several hundred village guards in the border area under the name of 'Lightning Group' (Simsekler Grubu) for service in Northern Iraq

“During a two-decade campaign against separatism inside Turkey’s borders, state forces committed grave and widespread human rights violations. They detained thousands of citizens for interrogation under torture. Between 1980 and 2000, more than 400 prisoners died, apparently as a result of torture, in the hands of Turkish police or gendarmes (i.e. soldiers who carry out police duties in the countryside complementary to the police within city and town boundaries). Security forces emptied large areas of the countryside in the southeast by bombing and burning unarmed peasant settlements. Hundreds of thousands are still displaced. In the early 1990s, the Turkish security forces are believed to have sponsored networks of killers to eliminate hundreds of suspected enemies of the state by gunning them down in the street or making them 'disappear.'

[...]

In a thirteen- year- long conflict with the Kurdish Workers’ Party (PKK), Turkish security forces established a reputation for systematic torture and extrajudicial killing. When Turkish police, gendarmes, or soldiers had difficulty in distinguishing between rural civilian populations and armed insurgents, they drove the peasantry off their land and burned down thousands of settlements to create free-fire zones in the countryside. Soldiers torched villagers’ homes, destroyed their crops and orchards, and machine-gunned their livestock. No official record was kept of these operations or the destruction wrought in the course of them, and no compensation was paid. Even by official figures, widely considered to be a serious underestimate, 380,000 people lost their homes. Most of the displaced are now living in poverty in the metropolitan areas of the country. Government return programs are a sham, without sufficient funding or political will to regenerate the fragile peasant economy. This pattern of violations has been corroborated by judgments of the European Court of Human Rights, which found Turkish security forces responsible for torturing, killing, and 'disappearing' Kurdish villagers and burning them out of their homes. (See for example, *Akdivar and others v Turkey*, September 16, 1996; *Mentes v Turkey*, November 28, 1997; *Selçuk v Turkey*, April 24, 1998; *Asker v Turkey*, April 24, 1998; *Bilgin v Turkey*, July 17, 2001; *Dulas v Turkey*, January 30, 2001; *Orhan v Turkey* June 18, 2002 *Akdeniz and others v Turkey*, May 31, 2001; *Kurt v Turkey*, May 25, 1998; *Çakici v Turkey*, July 8, 1999; *Ertak v Turkey*, May 9, 2000; *Timurtas v Turkey*, June 13, 2000.)

[...]

In light of the well-documented patterns of past abuse, no security force units with an established record of committing serious human violations should be deployed in Northern Iraq. The Bolu Commando Brigade, for example, was reportedly responsible for numerous violations of the laws of war, including village destruction, indiscriminate fire, and 'disappearances.' Relatives of victims of several extrajudicial executions and 'disappearances' in Diyarbakir province in 1993 named the Bolu Commando Brigade as the perpetrating unit. The European Court of Human Rights found Turkey guilty of violations of the right to life in two clusters of 'disappearances' reportedly involving Bolu commandos. One case was the 'disappearance' of eleven Kurdish inhabitants of the village of Alaca in Diyarbakir province in 1993 (*Akdeniz and others v Turkey*). The second was the 'disappearance' of three men from the village of Caglayan in 1993. Relatives said that soldiers from the Bolu Commando Brigade took the men away (*Orhan v Turkey*). None of the perpetrators of these incidents have been brought to justice.

[...]

The Turkish military should under no circumstances send village guards for armed service in Northern Iraq. Village guards are mainly Kurdish paramilitaries armed and paid by the Turkish government to fight the PKK. There are still about 90,000 village guards in southeastern Turkey. A 1995 report of the Turkish Parliament’s Commission on Unsolved Political Killings confirmed that village guards were involved in a

wide range of lawless activities, including killing and extortion, and called for the corps to be abolished. Almost every intergovernmental human rights mechanism that has since reported on southeastern Turkey has echoed that plea, including most recently the U.N. Special Rapporteur on extrajudicial, summary or arbitrary executions who recommended in her December 2001 report to the U.N. Human Rights Commission: 'The village guard system, to which a large number of extrajudicial killings have been attributed, should be disarmed and disbanded without delay.' Village guard abuses continue in southeastern Turkey. Even in the relative calm and stability of the past eight months, it has been reported that village guards have deliberately killed five displaced villagers attempting to return to their homes. In view of the evidence linking village guards with drug smuggling, abduction, killings, and 'disappearance,' Human Rights Watch was surprised and alarmed to hear reports that in early 2003 the Turkish army began to train several hundred village guards in the border area under the name of 'Lightning Group' (*Simsekler Grubu*) for service in Northern Iraq. Village guards who have undergone this training have been told that they may be required to work in the camps along the border that have been established to prevent a refugee influx into Turkey.

[...]

During the course of the conflict in mainly rural southeastern Turkey, security forces resorted to what amounted to a scorched earth strategy – forcibly evacuating and burning any settlements that were not prepared to put up a corps of village guards. Where there are pressing reasons of security, governments do have the right to move populations. However, what happened in southeastern Turkey was neither an orderly nor lawful resettlement program but an arbitrary and violent campaign marked by hundreds of 'disappearances' and summary executions. The U.N Guiding Principles on Internal Displacement prohibit the use of displacement in armed conflict unless the security of the civilians involved or imperative military reasons so demand, echoing imperative requirements of the Fourth Geneva Convention that are increasingly applicable to internal armed conflicts, such as through the Rome Statute of the International Criminal Court. In such cases, the authorities must conduct the process in a lawful and ordered manner, providing alternative accommodation that meets the population's nutritional, health, and hygiene needs. The U.N. Guiding Principles impose upon states a particular obligation to protect from displacement indigenous peoples, minorities, peasants, pastoralists, and other groups with a special dependency on and attachment to their lands. The Guiding Principles also specify that displacement should not be carried out in a manner that violates the rights to life, dignity, liberty, and security of those affected [...]" (HRW, March 2003)

Freedom of movement

Restricted freedom of movement in parts of the south-eastern provinces (2003-2004)

- Although the Government lifted the State of Emergency (OHAL) in the southeast in 2002, it has continued to retain a heavy security presence in the region
- The government maintained that there were 4,500 to 5,000 armed PKK/KADEK/KHK militants at the border in northern Iraq and another 1,000 in the southeast of the country
- The International Federation for Human Rights, following a mission to the country in May 2003, reported numerous checkpoints in the South eastern provinces and restricted circulation

"The co-rapporteurs were relieved to learn that the state of emergency had finally been lifted in Hakkari and Tunceli provinces on 30 July 2002 and in the last two, Diyarbakir and Sirnak, on 30 November 2002. However there were still gendarmerie road blocks and check points, as the co-rapporteurs saw when they travelled from Diyarbakir to Bingöl in May 2003." (COE PA Monitoring Committee "Report of the Co-Rapporteurs" March 2004, para.217)

“Although the Government lifted the state of emergency in the southeast in 2002, it maintained a heavy security presence in the region, including numerous roadway checkpoints. The Government estimated there were 4,500 to 5,000 armed PKK/KADEK/KHK militants across the border in northern Iraq, and another 1,000 in the southeast of the country.” (US DOS 25 February 2004, Sect.2d)

“Despite the lifting of OHAL (State of Emergency Rule), numerous checkpoints are still in place. They make circulation in the region considerably difficult, and sometimes hazardous with apparent discretionary power left to the security forces. FIDH’s delegation itself faced numerous checkpoints during the mission in May, and in particular on the road from Diyarbakir to Bingöl and Sirnak.” (FIDH July 2003, p.15)

A fact-finding mission by the Kurdish Human Rights Project, together with the Bar Human Rights Committee of England and Wales (BHRC) and Human Rights Association (IHD) Diyarbakir branch in August 2002 and June 2003 found a general failure to secure the safe return of displaced villagers; an effective police state dominating all aspects of daily life; and an increase in human rights violations. See "In the Wake of Lifting of State of Emergency Rule-Report of a Fact-Finding Mission to Southeast Turkey" KHRP [Internet]

Other concerns

Access to justice: Fear of retaliation prevents the displaced from reporting abuses (1999-2003)

- International NGOs report that Turkey has actively intimidated internally displaced people to prevent them from testifying about their situation
- The European Court of Human Rights has established in several cases that displaced persons had been discouraged by Turkish authorities to exercise their petition right
- 1,125 cases were brought to the ECtHR in 2002, including the right to fair trial and destruction and loss of property

“Most displaced villagers are reluctant to seek judicial remedies, since they believe that there is no chance of a result in their favor. They find it extremely difficult to find a foothold for legal action, since the whole process of displacement has been kept off the record. Few villagers have received any documentary evidence to show that they are unable to return to their property. It is a curious paradox that for years the displaced farmers, most of whom are only semi-literate, have been diligently petitioning government and judicial authorities in writing, while the state bureaucracy has preferred to do business by word of mouth. Local governors generally give or withhold permission to return verbally, and thereby avoid committing administrative acts that might subsequently be challenged in court.

Moreover, villagers fear that legal action may simply aggravate the security forces’ disfavor and further distance their main goal of reoccupying their homes. The persecution and violence experienced by the few who sought a remedy through the law justifies such trepidation. Armed hostilities are over in the southeast, but those who were internally displaced are still infected with profound fear. Most informants would only speak to Human Rights Watch on condition that their identity would be withheld.” (HRW, 30 October 2002)

"The USCR researcher found most Kurds he encountered in the southeast to be fearful of being discovered speaking to him about their situation. Finding internally displaced persons willing to talk was not easy. Often, assessing whether or not they were speaking forthrightly was even more difficult. In a few instances, where USCR was able to visit the displaced in private quarters where they felt secure, they sharply criticized the government, blaming it (soldiers and police) for their displacement, and expressed discontent

with their current situation. More often, it was not possible to establish such interview conditions. Under circumstances where people were interviewed in more public surroundings without adequate confidentiality, they praised the government, condemned the PKK, and expressed satisfaction with their situation. This is not to say that their testimony was untrue. Given the radically different testimonies, however, caution is needed in assessing any claims.

Turkey has actively intimidated internally displaced people to prevent them from testifying about the causes and consequences of their displacement. In particular, the European Court of Human Rights has determined that the Turkish government has sought to prevent displaced persons from testifying before the European Commission of Human Rights (ECHR) regarding allegations that Turkey violated the European Convention for the Protection of Human Rights and Fundamental Freedoms. On September 16, 1996, in the case *Akdivar et al. v. Turkey* (Council of Europe-European Court of Human Rights document 99/1995/605/693), the Court ruled that the Turkish authorities exerted 'illicit and unacceptable pressure' on the applicants to withdraw their petitions. The applicants were villagers who alleged that Turkish security forces evacuated and destroyed their village following a PKK attack.

Human Rights Watch has encountered similar difficulties. HRW has documented the problem of convincing internally displaced persons whose rights have been abused to report such abuses. In bringing complaints of human rights violations before the ECHR, HRW cites the Commission as saying that applicants' fears of retaliation for reporting abuses cannot be discounted. HRW quotes Mahmut Sakar, chairman of the Human Rights Association of Diyarbakır about a complaint brought to the ECHR on the burning of the village of Lice and the expulsion of its inhabitants:

We apply to the Commission, which sends the application to the government. For ex-ample, we file an application on the burning of the village of Lice, they send the application to the Gendarme, who then call the villagers. They ask them, "Did you do this?" and they reply, "No, we love the state." We claim that the Gendarme has burned a village, and it is the Gendarme that is asked to assist in the investigation. In my opinion, 90 percent of the applicants from this region have been threatened. I know most of the cases from around here. Most realize the best way to survive is to shut up.

During USCR's site visit, another lawyer spoke to this issue. 'My own village was burned, it is now empty,' he said. 'I tried to get the people from my village to apply to the European Commission. They refused out of fear and because of threats.' Closely related to the sense of fear, are other forms of psychological trauma associated with loss and failure. Passing an elderly man in traditional dress sitting alone on a sidewalk stool in Van, a local resident traveling with the USCR researcher commented, 'That man, in normal times, would be in his home, surrounded by family, supported by his children and grandchildren.' The loss of dignity takes an enormous toll. The man who ran a local humanitarian organization devoted to assisting displaced persons (until the authorities closed it down) spoke bitterly about this:

After forced migration, people feel alone, left out. A person who was a leader in his own village now sells tomatoes in the street. He sends his daughter or wife to an-other house as a servant. He has no more pride. All he does is try to make ends meet. People look for food in the garbage. They live in barns and tents. The authorities have achieved their aim to strip away their personalities and their pride. They are trying to create a nation of bowed heads, like sheep.

The fear does not end after fleeing one's village or town. Most displaced persons interviewed by USCR had fled multiple times, usually citing a pervasive sense of insecurity as the reason for moving on." (USCR 1999, p. 10)

See also: ["Domestic law applying to compensation for property loss: no effective remedies \(2001\)"](#)
[Internal link]

See also following judgements of the European Court of Human Rights regarding violations of the individual right of petition:

- *Akdivar et al. v. Turkey (Application no. 21983/93), 16 September 1996 [Internet]*
- *Dula v. Turkey (Application no. 25801/95), 30 January 2001 [Internet]*

“The Government recognized the jurisdiction of the ECHR. Between October 2001 and July [2002], applications regarding Turkey were made to the ECHR. The majority of these--1,125 cases--involved the right to a fair trial; 304 concerned the right to liberty and security; 246 concerned the prohibition of torture; 104 concerned freedom of assembly and association; and 95 concerned freedom of expression. According to the European Commission, the Government's failure to execute ECHR judgments remained a serious problem. The Commission reported in October that there were 90 outstanding cases in which the Government failed to fully make payments ordered by the ECHR and 18 cases relating to freedom of expression in which the Government failed to erase the consequences of criminal convictions overruled by the ECHR. In July the Council of Europe adopted an interim resolution regarding Turkey's lack of compliance with approximately 40 ECHR judgements on violations by Turkish security forces issued since 1996.

During the year [2002], the ECHR ruled against the Government in 54 cases—including 22 cases involving the right to a fair trial and 21 involving dispossession of property (from villages in the southeast)--and in favor of the Government in 2 cases. The Government accepted a friendly settlement in 43 cases, and the ECHR dismissed one case.

In August [2002] Parliament passed an amendment under which rulings of the ECHR could be grounds for a re-trial in a Turkish court. Previously, those who won their cases at the ECHR were only entitled to financial compensation. Re-trial applications must be approved by the General Legal Council of the Court of Appeals. The measure was not retroactive; it applied only to cases to be brought to the ECHR starting in 2003. At year's end [2002], Parliament was reviewing a bill that would allow the measure to be applied to most past cases.” (U.S. DOS, 31 March 2003)

SUBSISTENCE NEEDS

General

Situation for IDPs is “still critical”: displaced women and children are particularly vulnerable (2003)

- Large numbers of displaced persons live in extremely poor conditions on the periphery of cities and in larger villages
- IDPs face severe social and economic problems and unemployment rates amongst the IDP population is high
- Displaced women and children face difficulties in accessing educational and health facilities and psychosocial care
- Displaced children are particularly exposed to physical, sexual and drug abuse, as well as police brutality

“The majority of the displaced are still living in poverty and hardship in urban areas throughout the country” (HRW 26 January 2004)

“The situation of internally displaced persons is still critical. A large number of those displaced live in extremely poor conditions on the periphery of cities and larger villages. Social and economic problems remain acute and unemployment rates are very high. Other concerns include the improvement of housing conditions, greater access to educational and health facilities and psychosocial care for women and children. Children are particularly exposed to physical, sexual and drug abuse as well as to police brutality. It is estimated that there are 10000 ‘street children’ in the Diyarbakır area.” (European Commission 5 November 2003, p.40)

See also, “Section IV The Current Situation of the victims: destitution, poverty and precarious living conditions” and Annex II of “House Demolitions and Forced Evictions Perpetrated by the Turkish Security Forces: A Form of Cruel, Inhuman or Degrading Treatment or Punishment Against the Kurdish Population, Notes presented to the Committee against Torture (CAT)”, HRA and OMCT, May 2003 [Internet]

Chronic lack of socio-economic facilities infrastructure in the south-east provinces (2003-2004)

- The east and south east regions of Turkey suffer from a chronic lack of social facilities and infrastructure
- In Diyarbakir there is a severe lack of educational facilities and insufficient medical facilities and staff
- The green card, which assures free medical health care to the least well off, in practice has failed to guarantee access to health care
- There is a severe shortage of housing and finance for new building and a lack of social assistance programmes

- The COE co-rapporteurs identify the reduction of enormous disparities in development between the country's regions as an absolute priority

“The conflict with the PKK between 1984 and 1999 led to the forced displacement of either some 350 000 or one and a half million persons in south-east Turkey, depending on whether one takes government or NGO figures. Half the 10-12 million Kurds now live outside south-eastern Turkey. The majority have settled in the shanty towns of the country's large cities or in Diyarbakir, whose population has more than doubled, with nothing like the equivalent expansion in health, education and housing services or social assistance.” (COE PA Monitoring Committee March 2004, p.44)

“Despite the Parliamentary Assembly's recommendation in 2001, there has been no declaration of an economic state of emergency for the south-eastern provinces, mainly on account of the serious general economic crisis that struck Turkey in November 2000 and then February 2001. The development projects for the region, above all the construction of large dams by the GAP, have not been sufficiently backed up by socio-economic development measures. The co-rapporteurs were told that, with the exception of the Gaziantep and, to a lesser extent, Bitlis regions, the east and south-east still suffered from a chronic lack of social facilities and infrastructure.

In Diyarbakir, where there are 5 000 classes, another 3 000 are needed to educate all the children in satisfactory conditions. Two new care centres have recently been opened but there are insufficient hospital places and doctors. In December 2003 for example about 100 000 children, mainly in south-eastern Turkey, were affected by a serious influenza epidemic, and Diyarbakir hospital had enormous difficulty coping with 2000 requests for admission every day. Despite the existence of a green card theoretically offering free medical care to the least well off, there is no real guaranteed access to care and the 1963 Medical Services Act, no. 224, is not applied.

Finally there is a severe shortage of housing and finance for new building. In Lice, for example, which was completely destroyed by an earthquake in 1975, most of the buildings are still prefabricated. The same could happen in Bingöl following the May 2003 earthquake. Nor are there any social assistance programmes and in Diyarbakir there is a serious problem with street children, which is still not being dealt with satisfactorily.

The co-rapporteurs consider that one of Turkey's absolute priorities must be to reduce the enormous disparities in development between the country's regions. The east and south-east are not the only regions concerned but a redistribution of resources ought to be an objective in itself and would benefit the whole of Turkish society.” (COE Parliamentary Assembly Monitoring Committee March 2004, p.p.45-46)

See the full text by the co-rapporteurs, “[Turkey: Explanatory Memorandum by the co-rapporteurs](#)”, Parliamentary Assembly Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe (Monitoring Committee), Mrs Delvaux-Stehres and Mr. Vand den Brande, March 2004 [Internet]

Basic problems of displaced after migration

“The basic problems encountered by the migrants in the post-migration period can be classified as the following:

Employment-income-economic problems,

Educational-nutrition-health problems,

Adaptation problems and the problems that are based on linguistic-cultural differences,

Fear-psychological uneasiness because of the very nature of the migration and the constant activation of such feelings due to being treated/regarded as potential criminals,

Problems of loneliness that requires immediate attention.”

(Göç-Der 2002, pp.61-62-II)

HRW: Conditions for the displaced villagers

“During our research, I talked to many displaced villagers in Turkey's major cities where they had sought refuge. And all described frankly miserable lives and expressed a bitter sense of the injustice inflicted on them. If you go to Turkey, you won't see big refugee camps, because the displaced have made themselves invisible by crowding in with relatives and neighbors and finding work where they can. But they are farmers, not urban entrepreneurs. They are living in great poverty, in conditions prone to disease and social exclusion, and the overwhelming majority are longing to go home. For some, this is impossible, because the local governor has forbidden their village to be reoccupied. Others are turned back by the gendarmerie. And even if both the local governor and gendarmes allow return, the displaced often face obstruction by village guards, who have occupied the land in their absence.” (CSCE, 10 June 2003)

Health

IDPs face health and psychological problems (2002-2003)

- IDPs face unhealthy conditions in new settlement areas, increasing their risk of contracting diseases such as tuberculosis and malaria or mental illnesses
- The level of women's access to health services is very low
- Reasons for limited access include economic problems, lack of health and social insurance and cultural differences
- Lack of adequate infrastructure and shortage of medical personnel, in particular Kurdish-speaking personnel also make it difficult to combat the health problems linked with poverty
- The displaced have also been denied green-cards which would entitle them to get free health consultation and hospital accommodation

Statistical survey carried out by Göç-der on 2,139 families (17,845 people) indicates health problems after forced displacement

Health Problems After Forced Migration	No of Families	%
Yes	1,762	82.4
No	377	17.6
Total	2,139	100.0

(HRA/OMCT May 2003, Annex II)

Statistical survey carried out by Göç-der on 2,139 families (17,845 people) indicates psychological problems due to forced displacement

Psychological Damages	Number of Families	%
Yes	1,208	79.9
No	431	20.1
Total	2,139	100.0

(HRA/OMCT May 2003, Annex II)

“The analysis reveals that the unhealthy conditions in the new settlement areas lead to the spread of many different diseases within the migrant population. Existence of diseases such as tuberculosis and malaria, which are in a continuous trend of decrease both in Turkey in general and in the world, and the spread of

mental diseases should be taken into close consideration and serious and permanent measures have be taken to prevent them, since these contagious and mental diseases not only affect the migrants but also threaten the health conditions in the social environment and wider society.

The data presented about the pregnancy and parturition periods of women together with the data on whether they apply to a doctor for gynecological diseases or not uncover the fact that the level of women's access to health services is very low." (Göc-Der 2002, p.68-II)

"The low rate of migrants' access to health services can largely be accounted for by economic problems, lack of health and other social insurance, the difficulties encountered due to linguistic and cultural differences and faith in traditional and religious values. On the other hand, there exist several factors that have particular effects on the increase in health problems, such as infra-structural insufficiencies, non-hygienic conditions of the new living areas, nutrition problems, the pressure the migrants have been subjected to both during and after the migration, fear, psychological uneasiness and anxiety stemming from living in a alien environment." (Göc-Der 2002, p.79-II)

"Inadequate health care is a big problem for the displaced persons. The region is far behind the rest of the country in several important indicators of health care. Lack of adequate infrastructure, and shortage of doctors and nurses (in particular those speaking Kurdish) make it extremely difficult to efficiently combat health problems resulting from poor living conditions. Moreover, prescribed medicines are usually unaffordable for the displaced. A number of communicable diseases such as typhoid, para-typhoid, trachoma, brucellosis and amoebic dysentery are endemic throughout the region." (COE, 22 March 2002)

"The very poor can apply for a 'green card' that enables them to get free consultation and hospital accommodation, although it does not cover the cost of medication. According to the Emergency Region governor, 26 percent of the population in the region qualifies for a green card. However, displaced people have difficulty in getting their green cards. Since only indigent people can receive a green card, villagers who own substantial property may not qualify in spite of the fact that they are denied access to that property, which could otherwise provide them with income to finance their own health care. If they do qualify, the security forces can still obstruct their application, because a series of officials, including the local security force chief, must sign the application. This necessitates an anxious journey back to their village in order to obtain a signature from the nearest gendarmerie commander. A villager told Human Rights Watch that a gendarmerie commander had written on his green card application form: 'PKK member but not on the wanted list.' Another was unable to obtain a green card after soldiers tore up his application file and ejected him from the gendarmerie station. Older villagers spoke of deep depression, a sense of alienation due to their changed circumstances, and listlessness arising from long periods of unemployment. The violence of their original uprooting frequently aggravated these symptoms. A 1998 medical study carried out on a group of internally displaced found that 66 percent were suffering from post-traumatic stress disorder, with 29.3 percent showing profound depression." (HRW, 30 October 2002)

See also:

- *"The Wall of Denial: Internal Displacement in Turkey," US Committee for Refugees (USCR), 1999, p.21 [\[Internet\]](#)*
- *"Humanitarian Situation of the Kurdish Refugees and Displaced Persons in South-East Turkey and North Iraq," Doc 8131, Council of Europe (COE), Parliamentary Assembly, Committee on Migration, Refugees and Demography, 3 June 1998, [\[Internet\]](#)*

Shelter

Displaced live in precarious and crowded housing conditions (2002-2003)

- Post displacement housing conditions for displaced Kurds includes squatting in settlements, homelessness and several families living together due to economic problems
- A Council of Europe Report indicates that the government has failed generally to provide emergency assistance to those displaced in the South-east, including provision of shelter
- Having had to flee the rural areas, many IDPs flooded into the provincial cities, crowding into homes of relatives, resulting in single family dwellings housing up to thirty people
- The majority of the displaced rural population of Kurdish origin live in urban centres in extreme poverty, with inadequate heating, sanitation and general infrastructure

“Post displacement housing conditions indicate that the life style of the victims is often transformed from, one based on detached private housing to one based on squatter settlements or homelessness. In general, squatter settlements lack basic infrastructure and basic household equipment. Moreover, after the forced displacement, most of the families have begun to live together in the same house because of economic problems.” (HRA/OMCT May 2003, Sect. IV)

Testimonies by internally displaced people documented by HRA/OMCT:

“I am unemployed. I don't know how to survive with my 6 children and wife. We are not used to concrete streets. This is not the place to live for us. If I can find a job and earn money for bus tickets and if the conditions in the village are improved we will return to our village’ Extract from the testimony of Mehmet Hadi Karakaya

‘In 1996 we also moved to Istanbul. We lived in a humid basement floor for a long time. Now, we live in an apartment in Kocamustafapasa. We even don't have enough bread to eat. Now my two sons work as porter but since we cannot survive with that money, my two daughters, who are only 11 and 15 years old started to work in a textile shop. In case one child gets ill, we do not have enough money to pay for his/her medical care, because we don't have a social coverage or health insurance.’ Extract from the testimony of Neriman Cicek” (HRA/OMCT May 2003, Sect. IV)

Statistical survey carried out by Göç-der on 2,139 families (17,845 people), shows number of IDP families who have faced housing problems after forced displacement

Shelter Problem After Forced Migration	No of Families	%
Yes	1,162	54.3
No	977	45.7
Total	2,139	100.0

(HRA/OMCT May 2003, Annex II)

“It has to be made clear that generally, the Turkish Government has failed to provide emergency assistance to people forcibly displaced in the south-east, including persons displaced directly as a result of the actions of Turkish military and security forces. These people have not been provided with any shelter or food in the immediate aftermath of the displacement. The Government has not arranged for any temporary accommodation in tents or collective facilities and the displaced persons could count only on their relatives or scarce assistance from humanitarian organisations. As a result, the majority of the displaced persons have flooded the provincial cities (mainly Diyarbakir, Batman, Sirta, Hakkari) crowding into homes of

relatives, sometimes with more than thirty people residing in dwellings intended for a single family and setting up shanty towns in the outskirts.

The absence of affordable housing for people who have been rendered homeless by the conflict and for different reasons cannot return is still a critical problem. Although the Government has constructed some housing in the towns, the numbers are far from sufficient. At the end of 1997, the OHAL governor stated that 5 524 houses had been built to accommodate displaced persons, including 693 in Diyarbakir, 932 in Hakkari, 2 767 in Sirnak, 175 in Tunceli, 152 in Van.

The majority of the displaced rural population of Kurdish origin live in urban centres in dramatic conditions and extreme poverty, creating specific integration problems for local communities. Overcrowded places have usually inadequate heating, no sanitation and inadequate infrastructure. Malnutrition, insufficient and dirty drinking water, improper disposal of sewage and garbage are common problems.

On average, all regional cities in the south-east have doubled or tripled in size in the past decade without a commensurate increase in services such as schools or hospitals. Diyarbakir, the main city of the region, grew from 400 000 in 1990 to about 1,5 million in 1997. Many people from the area have left for the west parts of the country. Istanbul hosts a big number of Kurdish Turks (estimates vary from 1 to 3 millions).” (COE, 22 March 2002)

Kinds of residences before and after migration (January 2002) based on a survey by Göc-Der amongst 17,845 displaced Kurds

Table 91: The Kinds of Residences Before Migration

The Kinds of Residences Before Migration	N	%
Slum	45	2.1
Shed	27	1.3
Detached Village House	1682	78.6
Rented Apartment Flat	19	0.9
Appartment Flat Owned by Himself/Herself	117	5.5
Detached House	228	10.7
Other	21	1.0
Total	2139	100.0

[...]

Table 93: The Kinds of Residences After Migration

The Kinds of Residences After Migration	N	%
Rented Slum	621	29.0
Slum Owned by Himself/Herself	610	28.5
Shed	93	4.3
Tent	30	1.4
Rented Appartment Flat	386	18.0
Owner Appartment Flat	232	10.8
Basement Floor	30	1.4
Other	137	6.4
Total	2139	100.0

(Göc-Der 2002, pp.72-74-I)

Housing initiatives favour former village guards (October 2002)

“In some cities, the authorities provided some housing for displaced villagers, but these initiatives are mainly intended for former village guards. In Van, for example, provision was made for a group of eight hundred villagers, mainly former village guards and their families, who were told to leave by the authorities because their settlements, near the Iraq border, could not be protected from PKK attacks. The 285-unit Yalým Erez Lodgings outside Van were a major central government investment and generally appreciated by residents. As a rather ad hoc and temporary arrangement, however, it suffered a number of shortcomings. Funding ran out before the sewage disposal system was completed and news reports, confirmed by the residents interviewed by Human Rights Watch, said that at least four children had drowned in cesspools flooded during the winter months.

Most of the inhabitants of the Yalým Erez Lodgings are livestock keepers by profession, unskilled in other trades, and therefore find difficulty in supporting themselves in an overcrowded city with a high rate of unemployment. Provision of this kind is rare, and even in Van, Human Rights Watch met other former village guards from the same area who had left under the same circumstances but had been unable to find accommodation in the Yalým Erez Lodgings or elsewhere, and were living in agricultural buildings with no sanitation and served by a single tap. Villagers interviewed at the Yalým Erez Lodgings said that they would prefer to return to their original homes. They were angry at the loss of friends and relatives killed in PKK attacks, but also resentful at the lack of care and concern for them shown by the state. One man told Human Rights Watch, 'We were village guards but like all villagers we were stuck between the two sides. We lost thirty-two villagers, killed in clashes. In one night alone we lost twelve people. But the day we came to Van in 1995 they stopped our village guard pay.'” (HRW, 30 October 2002)

Displaced returning to villages face shelter needs (August 2002)

- One returning family consisting of 63 persons lived together in one house
- Displaced returning to Bitlis temporarily live in schools and tents, staying there till their houses are reconstructed

“Suleyman Uygur, who has two wives, 18 children and 32 grandchildren, is now living in the same house with his 63 family members after returning to his village.

According to the Anatolia News Agency, the Uygur family, forced to emigrate from the village of Cevizlidere in 1994 because of terrorism in the area, returned to the village and must now live in the only house that was not destroyed. The house is a 90 square meter duplex with five rooms.

'Following the end of the terrorist activities, we returned to our village. We haven't visited for seven years. That's why the houses were destroyed over time, but we have to live there. We consume 750 kilograms of flour, 90 kilograms of oil, 250 kilograms of sugar and 60 kilograms of boiled and pounded wheat each month. We bake 150 loaves of bread everyday. All our money goes on food, so we cannot build a house,' Uygur said.” (Turkish Daily News 1 August 2002, "63 people share a house")

Displaced returning to Bitlis temporarily stay in schools and tents:

“After many years, Bitlis residents have returned to their village and are temporarily living in schools and tents. The villagers said that encountered many difficulties while living in Istanbul, and could not cope up with the urban conditions, so they decided to return to their homeland. They said that their first aim is to reconstruct their wrecked houses and solve the electricity and water problems. They also want the support of the state inorder for this to materialize.

Bitlis Governor Ugur Boran stated that work for the 'Return to the Village Project' is continuing rapidly and pointed out that the villagers want to stay in tents. Boran said that they have provided tents to the villagers through assistance of the Civilian Defense and therefore prevented the villagers from going to city center and spend money on transportation. The governor said the villagers will temporarily live in these conditions until winter and 'we will endeavor to provide all their needs until then.'" (Turkish Daily News 11 July 2002)

Displacement and a life in tents: patterns and problems (January 2002)

- Some displaced live permanently in tents, following job opportunities and settling close to family
- Basic provisions such as electricity and water are lacking and many IDPs face social exclusion

"In this part of the study, the findings on tent life are discussed. This type of living arrangement is mostly witnessed in Izmir-Manisa-Balikesir, where is characterized by agricultural production. Here, tent life takes a settled character rather than a temporary one. The migrants do live in tents in all the months of the year. The following analysis can only shed light on a small part of this sort of life, however tent-life is a phenomenon that begs for detailed research.

The findings on the topic can be stated as follows:

Tents are usually pitched close to rivers and fields. The landowner or employer determines the place where tents are pitched; while the most significant factor underlying the newcomers' decision to choose their new settlement area is the existence of kin, relatives and acquaintances in the such places. These people are generally employed in seasonal or periodical jobs in agricultural economy. At the end of the season, the migrants move to new places to find new jobs. This mobile population is generally regarded as a threat that requires controlling practices.

It is known that basic needs such as electricity and water are not met in tents. In addition, these people living in tents are subjected to various bad effects of natural calamities due to flood-wind-rain. Moreover, the village headmen, the mayor or the official heads of district and sometimes the native inhabitants of the new settlement areas may have prejudices against these people and not allow them to participate in the public life in the new living environment. It is sometimes observed that the native inhabitants of the new settlement areas have different kinds of activities to prevent the newcomers to live a sedentary life." (Göç-Der 2002, p.50-II)

Shelter needs of the displaced have not been addressed adequately (1998-2002)

- Evicted villagers were rarely provided with emergency shelters by authorities
- The displaced have often concentrated in slums in outskirts without adequate infrastructure and services
- Construction plans rarely benefit the displaced population
- Extended kinship relations of Kurds in south-eastern Turkey have allowed the displaced to find a shelter with extended family members

"Along with unemployment, the absence of affordable housing is a critical problem. A Kurdish lawyer commented, 'There is no public housing in Turkey; there are no housing rights here. The migrants are forbidden to live in the slums, but if someone has no money, he has no choice. They cannot build houses on state property.'

Housing and shelter needs should be examined in two phases: First, as the urgent need for shelter in the immediate aftermath of displacement, including accommodation in tents or collective facilities; second, the longer-term needs for decent housing for people rendered homeless by the conflict who cannot return in the

foreseeable future. Because the violence in populated areas decreased significantly in 1998 and 1999, the need for emergency, temporary housing has declined as well, compared to several years ago. In its study of displacement in 1994 in Tunceli and western Bingöl, the Netherlands Kurdistan Society observed:

According to Minister [of Interior Nahit] Mentefle's statement in parliament, the government had in 1993 supplied 500 families with substitute housing. He was probably referring to the pre-fabricated emergency dwellings that are commonly sent to the region following earthquakes (which occur frequently in eastern Turkey). We are not aware of any group of evicted villagers before the autumn of 1994 being given such dwellings, nor other forms of compensation. Virtually all evacuees of whom we are aware had to find a new place to stay by themselves. (In this respect, the village evacuations in Tunceli were exceptional, for here the government did provide some of the evacuees with shelter and even compensation...).... Some families were reported living in tents around the town of Ovacık, others were lodged in a few public buildings. The government erected emergency dwellings for some of the homeless near Ovacık, but it was doubted whether these simple structures would be able to withstand the severe winter.⁷⁰

Emergency shelter per se—or even more permanent dwellings—is only part of the problem. Since the displaced congregate in the *gecekondular* ['huts built in one night', in slums in the outskirts of cities], which, by their very nature, the government seems to consider a blight unworthy of efforts to improve them, a host of infrastructural needs go unmet. In the quarter of Mersin where the displaced live, USCR heard complaints of uncollected garbage, potholes, and mosquito infestations. In April 1996, the Habitat International Coalition (HIC) sent a fact-finding mission to Turkey to assess housing conditions for the displaced. The report found:

The urban areas to which the displaced Kurds have fled are completely neglected by the Turkish authorities. In both Diyarbakır and Istanbul, HIC found neighborhoods without access to potable water, adequate sanitation facilities, and electrical connections.

The 1997 Turkish Parliamentary Commission report includes a letter from the OHAL governor, dated November 11, 1997, stating that 5,524 houses were built to accommodate displaced persons, including 693 in central Diyarbakır, 932 in Hakkari, 2,767 in Sirnak, 175 in Tunceli, 152 in Van, 258 in Bingöl, 62 in Bitlis, 465 in Mardin, and 465 in Mufl. Although the government has constructed some housing, displaced persons and others told USCR that occupancy is part of the reward system tied to the village guard structure. A man in Diyarbakır told USCR that in his city 'the government built 500 cottage houses for migrants, but they gave them all to village guards. Some flats were built that were supposed to be for poor people, but now professionals who can afford the rents are living in them. Rents are astronomical.'

USCR observed a construction boom in areas on the periphery of the conflict zone, particularly in Sanliurfa, on the outskirts of Mersin, and in Mersin itself. USCR noted scores of apartment buildings in various stages of construction. Although the city is overcrowded and has a teeming slum of Kurdish migrants, it is unclear whether the construction boom will benefit the displaced population. Mersin, located on the Mediterranean coast, is establishing itself as a tourist center, attracting busloads of Syrians." (USCR 1999, pp. 19-20)

"[T]he forced migration connected with the conflict in southeastern Turkey has been chaotic and unorganized. Only the extended kinship relations of Kurds in southeastern Turkey have prevented a larger crisis, allowing the displaced to find a shelter with extended family members. Individuals who flee or are forced out of their villages in southeastern Turkey haphazardly sought refuge in already overburdened provincial towns and cities within the region or in Turkey's teeming western urban centres." (HRW June 1996, Summary)

"When gendarmes destroyed their homes and drove them from their lands, villagers sold off whatever livestock they had managed to save from the fires and shooting and went in search of shelter. Some camped by highways near enough to their villages to tend their crops. Others went to the nearest town or city and put up makeshift dwellings of tarpaulins and packing cases on vacant ground. Villagers crowded in with

relatives or into rented accommodation, agricultural buildings, or construction sites with neighbors from the same village.

If displaced villagers had remained clearly visible in tent settlements, the authorities might have felt under more pressure to remedy their plight. But the displaced are resourceful and have turned to extended family and community structures to pool resources and find work and housing. According to a 2002 survey carried out by the Migrants' Association for Social Cooperation and Culture (Göç-Der), a Turkish nongovernmental organization, more than half of the displaced villagers had found accommodation in *gecekondu*, or shantytown dwellings but, ten years after the worst of the displacements, some 5.7 percent of respondents were still living in tents or sheds.

Language problems exacerbated the difficulty of finding accommodation and integrating in the cities of the west. Göç-Der's study among the displaced found that 17.6 percent of the sample reported that their poor command of Turkish had created problems in finding housing. Only 11.4 percent of adult males spoke Turkish as their mother tongue, and 60.9 percent of displaced women spoke no Turkish at all." (HRW, 30 October 2002) (See also Göç-Der survey)

For more on the conditions in the slums, see also "The Southeast in the slums: Izmir's slums no different from Ethiopia", Turkish Daily News, 24 January 2001 [Internet] and "The Southeast in the slums: Uninvited guests at chicken farm", Turkish Daily News, 25 January 2001 [Internet]

Vulnerable groups

Displaced women from the south-eastern provinces are especially vulnerable (1998-2004)

- Violence against women is wide-spread
- Honour killings are most common in conservative Kurdish families in the southeast or among migrants from the southeast living in large cities
- Human rights organisations reported a high rate of suicides among young girls, particularly in the southeast and east
- Language problems make access to social services for Kurdish women more difficult
- High levels of unemployment, poverty, and inadequate shelter seriously affect women's health
- Research done among displaced women revealed symptoms such as headaches, sleeping disorders and extreme timidity
- The Batman Bar Association identified asserted forced displacement as one of the main reasons for the increasing suicide rates among women in southeastern Turkey
- Displaced men have more opportunity to socialize with other people and have more freedom while women live in isolation in their new residence

"Violence against women remained a problem, and spousal abuse was serious and widespread. The law prohibits spousal abuse; however, complaints of beatings, threats, economic pressure, and sexual violence continued.

[...]

'Honor killings'--the killing by immediate family members of women suspected of being unchaste--continued in rural areas and among new immigrants to cities; according to media reports, there could be dozens of such killings every year. They were most common in conservative, Kurdish families in the southeast or among migrants from the southeast living in large cities. In July, Parliament revoked a law

under which perpetrators of honor killings received reduced sentences. However, Parliament left intact another law allowing for reduced sentences for crimes committed 'in the heat of anger' or under 'unjust provocation.' Women's rights advocates said perpetrators of honor killings continued to benefit from sentence reductions under this law. Because of sentence reductions for juvenile offenders, observers noted that young male relatives often were designated to perform the killing.

[...]

Human rights organizations continued to report a high rate of suicides among young girls, particularly in the southeast and east. Observers said forced marriages and economic problems contributed to the suicides. A 2001 study in Batman Province concluded that an early marriage could be a catalyst to suicide for young girls with physical and psychological problems." (US DOS 25 February 2004, Sect.5)

See also "Turkey's Shame: Sexual Violence Without Redress, The Plight of Kurdish Women", KHRP, 19 January 2004 [Internet]

"There are tens of thousands of women in the region who do not know Turkish and only speak Kurdish. This leads to indescribable difficulties. Health and particularly that of women is beset by many problems. Language difficulties make it difficult for women to even go to the doctor. They have nightmares of being unable to tell their problems, of being misunderstood, of being chided and insulted. %64 percent of rural women and %50 percent of those living in urban areas have health problems. Infrastructural services such as roads, potable water, electricity and communication have great significance for mothers' health. The lack of water from wells and of potable water is also a great obstacle to the creation of a healthy environment.

Because of adverse conditions such as crowded living conditions, malnutrition, lack of heating installments, insufficient water, inadequate treatment of waste water, unemployment and poverty, diseases which would normally be easily treated turn today into contagious cases. The first people to be impacted are women whose bodies have been emaciated because of giving birth to too many children. [...]

The health facilities, personnel and instruments in the region are inadequate. Add to this ignorance, and health emerges as a major problem.

Proportional distribution of contagious diseases (%)

Typhoid-paratyphoid 33.8

Dysentery 1.4

Jaundice 6.4

Lung tuberculosis 9.8

Malaria 26.3

Psychological problems created by migration

It is common to see psychological problems following migration. The most salient characteristic of the migrations is that they take place because of security reasons and are forced. 'There are a number of findings to suggest that forced migrations are a cause of trauma and lead to post traumatic stress disorders.' [...]

Research revealed symptoms such as headaches, sleeping disorders and extreme timidity. The frequent recollection of the traumatic event, its reenactment in daily life or in dreams, the shunning of people and emotions recalling the traumatic experience and alienation. Others are a decrease in emotional capability, unwillingness to respond to questions, extreme nervousness and producing abrupt responses. Some people get addicted to alcohol or drugs. As a result, there is no longer a need to ask why girls commit suicide or migrant children inhale paint thinner or glue. The need to cure posttraumatic stress disorders is obviously acute." (Turkish Daily News 5 April 2001)

High level of suicide rate among women in southeastern Turkey

"The finding of a research carried out by Batman Bar Association in March, asserted forced displacement [as] one of the main reasons for the suicide acts that have been intensified in the region for a while. In the research it was found out that, most of the people who committed suicide were those who have been forced to migrate to Batman since 1985." (Human Rights Foundation of Turkey March 2001, sect. 2)

"Immigration: Motive behind women suicide in Southeast

The Batman Bar Association report says there is a connection between the suicide attempts and the feelings of isolation, despair, hopelessness and alienation

According to a report prepared by the Batman Bar Association, the motive behind the increasing suicide attempts among women is immigration and its repercussions, the Anatolia news agency reported on Monday.

The Batman Bar Association has conducted a survey in an effort to find the reasons for suicides by women in the Southeast region.

'The reasons behind the increasing suicides that were covered by the local and national press remain unknown. In the last two years, 42 of the 135 suicide attempts ended with death. Ninety-eight of those who attempted to commit suicide were female. It is observed that a large majority of those women had immigrated to cities from villages,' the report stated.

The report said there is a connection between the suicide attempts and the feelings of isolation, despair, hopelessness and alienation. Those who immigrated to the big cities feel that they do not belong to their new habitats. Reports said that Southeastern women who immigrated to bigger cities believe that in their small villages they had their own identity and their own way of living.

The report also noted that male immigrants have more opportunity to socialize with other people and have more freedom while women live in isolation in their new residence.

'There are no social activities for young girls who immigrated from the Southeast to big cities. For them, life is limited within the walls of their houses and they feel the pressure of strict traditions that limit their lives,' the report stated. "(Turkish Daily News 13 March 2001)

Displaced children have limited access to housing, health services and education (2001-2004)

- Displaced children have suffered greatly due to the violence in the south-east
- Data from the Human Rights Association of Turkey indicates that 43.4% of displaced children have cut formal relations with schools and are forced to work in inadequate conditions
- The UN Committee on the Rights of the Child recommended in 2001 that Turkey assess the situation of displaced children in more detail
- In particular, the Committee called for the collection of data and statistics on displaced children

"There were reports of abuse of children. Children have suffered greatly from the cycle of violence in the southeast. In the past, the migration--forced or voluntary--of many families, past terrorism against teachers, and school closings uprooted children and moved them to cities that were hard pressed to find the resources to provide basic, mandatory services such as schooling." (US DOS 25 February 2004)

"According to HRA data, 43.4 % of the displaced children have cut their formal relations with the schools and had to work under very bad conditions. For instance, a lot of children, as their parents cannot afford to

send them to school (paying school books and clothes), end up in working in textile shops, in the construction sector, as shoe shiners or as street sellers.” (HRA/OMCT May 2003, Sect.IV)

"The Committee expresses its concern at the higher number of internally displaced children in Turkey, who were forced to leave their homes towns in the 1990s owing to the high level of violence in the south-east region. The Committee is also concerned about their limited access to housing, health services and education.

In line with the Guiding Principles on Internal Displacement (E/CN.4/1998/53/Add.2), the Committee recommends that the State Party ensure that internally displaced children and their families have access to appropriate health and education services and adequate housing. Further, it invites the State party to collect data and statistics in order to know how many children are displaced and what their needs are with a view to developing adequate policies and programmes." (Committee on the Rights of the Child 8 June 2001, paras. 59-60)

See also, "[Rights of the Child in Turkey](#)", a report by the World Organisation Against Torture issued 1 June, 2001 [Internet]

ACCESS TO EDUCATION

General

Migration Survey showed causes of school absence of displaced Kurdish children (January 2002)

- Reasons of school absence are mainly poverty, work, absence of school, gender, cultural differences, family pressure, and costs

“When the unified effects of such variables are analyzed, the reason of not attending the school after migration can be counted as the following:

75.4 %; Poverty

6.7 %; Children’s Working

5.4 %; Absence of Any School in the Neighboring Area

3.6 %; Being Female

1.2 %; Linguistic and Cultural Problems

3.1 %; Pressures on Family After Migration

1.2 %; Being Unable to Afford the Educational Expenses

(Göc-Der 2002, p.14-15-III)

When unified effects of these problems are analyzed, the basic problems for the families and children can be ordered as the following:

Being unable to speak mother tongue is a problem for 36.5 % of the children

Not knowing Turkish is a problem for 30 % of them

Both working and attending school at the same time is a problem for 9.2 % of the children

Being abused because of ethnic origins is a problem for 6.4 % of them

The absence of any school in the neighboring area is a problem for 5.6 % of them

Being unable to afford educational expenses is a problem for 2.5 % of the families”

(Göc-Der 2002, pp.22-23-III)

Displaced families cannot afford to send their children to school (2001-2002)

- Families cannot afford minimal education costs
- Children are sent out on the streets

“Children are frequently not sent to school because the family cannot afford the fairly minimal cost of books and school clothing or the loss of income that children bring in to the family by working on the streets or as “apprentices” in workshops and textile sweatshops. The Migration and Humanitarian Assistance Foundation (GIYAV), a nongovernmental organization, offers support to internally displaced people in the large coastal city of Mersin. It runs a mother and child group, evening activities for young people, and meets the educational costs of thirty children.” (HRW, 30 October 2002)

"One of the doctors in Diyarbakır commented on the effect of forced migration on disrupting education, saying, 'Education is gradually getting lost. People who leave their villages can't make the least use of the education they had. Not being able to adjust in their new residences, migrants discontinue their education and fall into ignorance.'

Many of the problems displaced children face are common to the poor in Turkey generally. Although Turkey provides for free public education, students must buy their own books, notebooks, and pay other school fees. Many displaced (and non-displaced) Kurdish children cannot afford these basic educational tools, and do not go to school.

During USCR's visit to Van, the researcher visited a local tourist attraction (although tourists rarely make it to Van, the closest Turkish town to the Iranian border). A couple of primary-school-age Kurdish boys provided their services as 'guides'— which meant a singing accompaniment as the researcher climbed the Van fortress. Although the boys were beggars and had a vested interest in telling a sad tale, their story focused specifically on the opening of school several weeks hence, and their fear that they could not attend without the proper school supplies. It was a problem confirmed by others.

An official in Silopi told USCR, 'Our schools are overcrowded. Lots of people can't afford to send their children to school. Because of economic problems, they can't buy paper, books, and uniforms.' Many of the poor see education as a luxury they cannot afford. 'Poverty causes families to send their children out on the street; street vending becomes their vocation,' wrote Dr. Necdet pekyüz in a 1996 article on internal migration in southeastern Turkey." (USCR 1999, p. 22)

Shortage of educational infrastructure in south-eastern Turkey (2000)

- Many local schools have been closed in the state of emergency region
- Population influx from rural areas has caused severe overcrowding in urban schools and chronic teacher shortages

"In contrast to the national average of 45 children per classroom, there are typically 60 to 90 children per classroom in eastern and southeastern provinces and as many as 80 to 100 in Diyarbakir (most schools in the southeast employ a shift schedule for classes to accommodate the large numbers). According to the Government, in the southeast there was a noticeable improvement in the number of students able to attend classes, partly due to improved availability of teachers and schools, and partly due to the requirement for an 8-year education. During the 1999 to 2000 school year, there were 270,000 students in secondary education in the southeast, compared to 240,000 the year before. In the state of emergency region, 450 schools are closed, although none were closed during the year. Although the Government has built boarding schools in the region's larger towns, these new schools have not met the demand. Although schools remained open in most urban centers in the southeast, rapid migration led to severe overcrowding of city schools and chronic teacher shortages. Despite a longstanding tradition of boarding schools in the rural areas of the country, some Kurdish leaders have expressed concern that the Government constructed boarding schools, rather than rebuild local schools, in order to accelerate the process of Kurdish assimilation. According to press reports, soldiers in one command of the state of emergency region repaired 167 village schools in preparation for the 2000 to 2001 academic year and during the past year spent about \$700,000 (300 million TL) on health, education, and infrastructure projects in the region." (U.S. DOS February 2001, sect. 1g)

See also "Price of getting an education", Turkish Daily News, 1 February 2001 [[Internet](#)]

ISSUES OF SELF-RELIANCE AND PUBLIC PARTICIPATION

Self-reliance

Displaced people find themselves in situations of unemployment or working in the informal sector (2003)

- Statistical data indicates that the majority of household heads have found themselves unemployed or performing jobs in the informal sector, such as street-sellers
- Unemployment is often aggravated by lack of social insurance, restricted access to health services, cultural problems due to cultural/linguistic conflict
- Prior to their forcible displacement, around 87% of household heads based their survival on agriculture
- The government has provided very limited services

“[F]ollowing the destruction of their houses and forced evictions, the victims had often no other solution than to leave and resettle somewhere else, notably in urban centres where they are living in destitution, precarious conditions and extreme poverty, a situation that particularly affects women, children and the elderly.

Overall, most of the victims are confronted, in their resettlement place, to high levels of unemployment, lack of income to provide for themselves and their families, poor housing conditions, restricted access to health services, restricted access to education for the children, increased health and nutrition problems, epidemic diseases, as well as to cultural problems caused by cultural and linguistic conflict. The inadequate rate of social security coverage among the victims reinforces this situation, as the most important problem encountered is decreasing levels of income due to unemployment without social insurance. Such a situation has led to a serious state of hopelessness among the victims and makes it difficult for them to become integrated with and participate in the public sphere in urban social settings. In general, the authorities' answer to this situation has been unsatisfactory and often limited to the provision of services, such as housing, to former village guards.

The statistical data released by the Immigrants Association for Social Cooperation and Culture highlights that following the forced displacement, the majority of household heads either found themselves unemployed or performing jobs in the informal sector such as street-sellers. These figures sharply contrast with the fact that the 87.1 % of the household heads based their survival on agriculture before forcible displacement.”(HRA/OMCT May 2003, Sect. IV)

Statistical survey carried out by Göç-der on 2,139 families (17,845 people) indicates employment of household heads after forced Displacement

Employment of Household Head After Forced Displacement	No of Families	%
Land owner farmer	2	0.1
Wealthy farmer	2	0.1
Wealthy peasant	1	0
Middle-size peasant	2	0.1
Petite peasant	8	0.4
Poor peasant	31	1.4

Agricultural labourer	64	3.0
Rentier	25	1.2
Unemployed	623	29.1
Retired	35	1.6
Skilled wage-earner	1	0.0
Civil servant	16	0.7
Unskilled servant	203	9.5
Blue collar worker	10	0.5
Artisan	62	2.9
Petite employer	14	0.7
Average-grand employer	3	0.1
Peddler, seller-workman	451	21.1
Others	553	25.9
No response	33	1.5
Total	2,139	100.0

(HRA/OMCT May 2003, Annex II)

Statistical survey carried out by Göç-der on 2,139 families (17,845 people) indicates loss of employment due to Forced Displacement

Loss of Job	Number of Families	%
Yes	1,514	66.1
No	725	33.9
Total	2,139	100.0

(HRA/OMCT May 2003, Annex II)

Statistical survey carried out by Göç-der on 2,139 families (17,845 people) indicates employment of household head before forced displacement

Employment of Household Head Before Forced Migration	No of Families	%
Land owner farmer	12	0.6
Wealthy farmer	87	4.1
Wealthy peasant	149	7.0
Middle-size peasant	619	28.9
Petite peasant	301	14.1
Poor peasant	316	14.8
Agricultural labourer	377	17.6
Rentier	10	-
Unemployed	31	1.4
Retired	9	0.4
Skilled wage-earner	3	0.1
Civil servant	13	0.6
Unskilled servant	20	0.9
Blue collar worker	3	0.1
Artisan	41	1.9
Petite employer	15	0.7
Average-grand employer	4	0.2
Peddler, seller-workman	37	1.7
Others	91	4.3
No response	10	0.5

Total	2,139	100.0
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(HRA/OMCT May 2003, Annex II)

NGO Migration Survey highlights difficult socio-economic conditions (January 2002)

- Displaced earn significantly less than other Turks and often have temporal employment without social insurance or are unemployed
- These problems make integration and participation in society difficult
- After displacement, the household has often been transformed in a unit of consumption rather than production
- Difficulties in social adaptation are linked to unemployment, shelter problems, children's educational problems, health problems, environmental pollution, cultural differences, and feelings of exclusion

“52.7 % of the respondents earn less than 100 million TL, 29.5 % of them earn between 101-200 million TL, 4.6 % of them earn between 201-300 million TL per month. 13.3 % of the respondents do not have a regular income. Considering the general income standards in Turkey, the data reveals that the forcibly displaced Kurdish population has to survive under very difficult conditions. (Göç-Der 2002, p.34-I)

[...]

After migration the most important problem encountered is decreasing levels of income due to temporal employment without social insurance and unemployment. This leads to a serious state of hopelessness among the migrants that makes it difficult for them to become integrated with and participate in the public sphere in urban social settings. (Göç-Der 2002, p.39-I)

[...]

One of the most significant conclusions arrived in this research indicates that the experience of migration has resulted in the decrease of production within the household. In the period following the migration many members in the household ceased to participate in income generating public activities. In other words, the household has been transformed from a unit of production to a unit of consumption. The figures pertaining to employment within the households (18.1 % employed, 82.9 % unemployed) reveal the economic difficulties faced by them after migration. Any type of social security covers only 4.9 % of the people living within these households. Most of the employed work in unsecured, temporary and irregular jobs. (Göç-Der 2002, p.2-IV)

[...]

The data reveals that the number of people who received help in finding a job is proportionally very small. According to the data provided by the State Statistics Institute Survey in 2000 on laborpower, the already poor employment opportunities became poorer after the forced mass-displacement. Furthermore, migrants' lack of occupational-technical skills and knowledge, their low education levels, linguistic and cultural problems make it more difficult for the migrants to find a job. These migrants are generally employed in seasonal-periodical jobs with low salaries and without job security. In this sense, there emerged a great loss of labor-power after migration, which also means exploitation of cheap labor. (Göç-Der 2002, p.34-III)

[...]

The basic reasons underlying the migrants' being unable to adapt to their new social environment can be counted as follows:

Bad straits, unemployment, shelter problems

Children's educational problems, increase in health problems after migration, environmental pollution, life security problems, problems based on linguistic and cultural differences

The monotonousness of life in the new living environment

The feelings that they are excluded and that they are despised.” (Göc-Der 2002, p.5-IV)

Displaced persons in south-east Anatolia face adverse economic conditions (2001)

- Over 60% of the Kurdish population in the south-east region live below the poverty line compared to approximately 30 % in other regions
- Most of the displaced persons have difficulty adapting in an urban environment in a depressed economical context
- No welfare system appears to operate on behalf of destitute internally displaced persons and other vulnerable, unemployed people
- Systematic destruction of the infrastructure, economic resources, livestock, crops, houses, tractors have made return and resettlement hardly sustainable

"Turkey ranks high among countries with a severe problem of regional inequality. As such, it is burdened with the economic and political dimensions of this reality which is an important part of the Eastern-Southeastern problems. Passing years have only widened the gap. The difference between Kocaeli in the west, the city which has the highest Gross National Product (GNP) per capita in Turkey, and Mus, which has the lowest, is 1 to 11.

The most well-off cities of the east and southeast are Elazig, Malatya and Diyarbakir. However, even these cities fall short of the national average per capita income. The poorest cities of Turkey and the region are Mus, Agri, Bitlis and Bingol. In these cities, the GNP per capita is below that of many countries in Africa.

The income gap

As we already saw, the per capita income of the poorest city in the region is only one-eleventh of that of an industrial center in the west. The region as a whole ranks last in economic growth and development. It also gets the smallest share from the national disposable income, and has considerable pools of poverty. Using the State Statistical Institute (SIS) figures, we get the following picture:

In the region where subsistence agriculture is still prevalent, land inequality is at monstrous proportions, the climate is harsh, and where for the past 15 years an off-and-on civil war has been fought, is home to 1.947 million families or 14.5 percent of all families in the nation. On the other hand, the region uses only 10.2 percent of the national income. In the region, the average income per family is \$3,851, 30 percent below the national average.

The region's per family income is 43 percent below the Marmara and Aegean regions where the figure is \$6,834, and 66 percent behind Istanbul where it is \$11,637.

The richest province in the area is Erzurum, where the average income per family is \$6,067. This figure is 10 percent above the national average. Another important center in the area is Malatya where average income is \$4,600. The average income per family in Diyarbakir is \$3,567. It is interesting that Gaziantep, usually considered the most economically developed city in the region ranks below Diyarbakir at \$3,400." (Turkish Daily News 15 July 2001)

"To state it briefly, 38 percent of peasant families in the region are landless. This ratio goes up to 48 percent in Sanliurfa where there is the highest concentration of land ownership, and to 45 percent in Diyarbakir. While 5 percent of families own 65 percent of the land, a vast majority of 70 percent own only 10 percent. Despite having been targeted by successive governments for land reform programs that were invariably undermined by local powerholders, there are still entire villages owned by individuals or families." (Turkish Daily News 15 July 2001)

"Most of the displaced persons USCR encountered had been engaged in husbandry and small-plot agriculture before their displacement, but are now living in urban settings. USCR visited slum areas in several cities that were comprised almost entirely of Kurdish migrants. Although some migrants have adapted and found work in construction, transportation, or other urban pursuits, many others, particularly among those who were adults when they were displaced, have not been able to adapt. The conflict has disrupted the region's economy. Agriculture and husbandry served the region's cities, and city dwellers commented on high prices and shortages of meat and other staples that once were plentiful.

One man told USCR, 'Old people are especially poor. No charities help them. There are no private organizations that work on their behalf. We have no money to eat meat. We never eat meat.' Meat is central to the diet in this region, but the husbandry sector has been decimated.

No welfare system appears to operate on behalf of destitute internally displaced persons and other vulnerable, unemployed people." (USCR 1999, pp. 18-19)

"Another serious problem results from the disastrous economic and social situation of the whole region. Systematic destruction of the infrastructure, economic resources, livestock, crops, houses, tractors etc. have made large areas of the region uninhabitable. The region has always suffered from a lower level of economic and social development than other parts of Turkey; the conflict has much increased this gap. The rate of illiteracy is 35 % in the Kurdish regions, whereas at the national level it is 19,3%; over 60% of the Kurdish population in the south-east region live below the poverty line compared to approximately 30 % in other regions, and the mortality rate is 50% higher than in other parts of the country. Before mass return could be foreseen, measures to revive the local economy would have to be undertaken." (COE 3 June 1998, para. 37)

See also: Turkish Daily News, "Economy goes from bad to worse in Turkey's southeast", Turkish Daily News, 7 April 2001 [Internet]

Displaced Kurds face social and economic exclusion in western cities (2000)

- Displaced Kurds are dependent on other Kurds for lodging and employment
- Only a small proportion of the displaced Kurds have acquired an income above or on a level with subsistence
- Kurds displaced from the countryside lack the skills for urban life and are among the worst-off economically in Turkey
- Displaced persons often try to make a living as street vendors but risk eviction by authorities
- Kurds are reluctant to register in their new places of residence and thus not access the few social services available

"Social and Economic exclusion Displaced Kurds also believe they face economic and social discrimination. They are identifiable by their speech and by their demeanour. We repeatedly heard that displaced families were turned down by Turkish landlords or employers, and were dependent on Kurds for lodging or employment. We met approximately 20 displaced villagers. Most of these displaced villagers expressed either extreme difficulty in finding work, or in several cases they reported discrimination whereby employers/landlords preferred to employ or rent to Turks rather than Kurds. The upshot was that several reported that they were street vendors (of whom there is already a serious glut) or that they sifted through rubbish to find something recyclable. Or that they finally were only able to rent a dwelling (all too frequently simply a shanty) through someone also 'from the East'. We saw examples of wood and plastic shanty dwellings. Research reportedly carried out by IHD Istanbul in 1994 or 1995 indicated that barely 5

per cent of those displaced by war acquire an income above or on a level with subsistence. We greatly doubt that the situation for the displaced has improved since then.

In August 1999 Turkey was devastated by a major earthquake, the epicentre of which was not far from Izmir. This is what a Turkish (*not* Kurdish) UN staff worker reported shortly afterwards:

'There was great discrimination in the earthquake area. The poor and Kurdish people were put in the worst parts of the earthquake camp in the most muddy areas. Consequently many chose to camp in the earthquake ruins. UNICEF was helping in the worst areas, where the people were the very poor or they were Kurds, until 27 th August. On that day the local government banned UNICEF from going there [the areas where the very poor and the Kurds were]. They were only allowed to provide relief services with a police escort. So certain staff went there secretly. There were many elderly and children who did not speak Turkish, only Kurdish. The police would behave in a very hostile manner to them.'

It goes without saying that those forcibly displaced from the countryside are among the worst-off economically in Turkey. They are often reduced to penury, particularly since they lack the skills for urban life. An IHD delegate from Iskenderun informed us that many displaced persons had been driven out of the city by a prohibition on unlicensed street vendors some four or five years ago. They simply could not survive, so they moved to Adana, Mersin and similar places. The 20,000 or so displaced persons still in Iskenderun remain closely watched by the security forces. 'They cannot say they are Kurdish, they do not dare say who they are, or that their villages are burnt.'

Turkey is reportedly among the top five countries with the greatest disparity in income distribution. Displaced Kurds, one must take it, are among the more needy for state assistance. It is possible to register for certain benefits, for example free medical care, if one is unemployed. In order to avail oneself of these benefits one must be in possession of a 'Green Card'. This, naturally, is only obtainable if one is registered with the *muhtar*. The last port of call while collecting the requisite official approval is the police station. It is therefore unsurprising that a substantial number of displaced Kurds consider the Green Card inaccessible because they fear that instead of acquiring a Green Card they will instead be candidates for police mistreatment. We repeatedly met families needing one but unwilling to pay this price.

Those in greatest need of State assistance are often those for whom least provision is made. Gaziosmanpasa [Istanbul neighbourhood] has no hospital of its own. Because of the lack of State health services private clinics operate in the area. In the words of one health professional:

'Public health is very poor so there is a huge incidence of infection as a result of overcrowding. Three years ago there was no TB. Today it is quite common. The police tried to close us (a clinic) in 1995. We resisted the pressure and they left us alone.' " (Atreya, N.; McDowall, D.; Ozbolat, P. February 2001, pp. 24-25)

For information on the social-economic condition of the displaced in Turkish western cities, see also "Discrimination an obstacle to finding work", Turkish Daily News, 26 January 2001 [[Internet](#)]

Displaced women in south-eastern Turkey can hardly cope with their new situation (2001)

- Displacement has aggravated the effects of low status of women in Kurdish society

"A scientific research project carried out by the Coordination Bureau for Rural Development of the Turkish Development Foundation and financed by the Bureau of Development for the GAP Region has documented the catastrophic social situation of the women living in this part of southeastern Turkey.

The Southeast Anatolia Project (GAP) - the largest development project in Turkish history - aims to build twenty-four dams and seventeen hydroelectric power stations along the Tigris and Euphrates Rivers in order to further the economic development of the region through irrigation and energy production for industry.

The population of the affected provinces - Diyarbakir, Adiyaman, Gaziantep, Mardin and Sanliurfa - is primarily Kurdish. The research project surveyed a total of 3,871 women living in 81 villages in this region and representing 900 households.

According to the survey, the average age at which girls were married off was 17 years. Of the women questioned, 36.9% were under the age of 15 when they married. 44.7% of the women had married a man from their own tribe and 52.4% had married a relative. The overwhelming majority of these marriages are arranged by the girl's parents and other relatives.

The women's educational level was very low. 76.4% of the women were illiterate. Of the remaining 23.6%, 6.3% could only read and write, 16.6% had finished primary school and only 1% had attended secondary schools. The GAP project, begun in the late Seventies, has been consistently criticized for its failure to benefit the local population. The infrastructure has not been improved and any economic benefits have flowed into the pockets not of the local farmers but the large landowners, construction companies and Turkish and foreign investors. (Cumhuriyet, 2.8.00; IMK)" (InfoTurk August 2000)

"The rapid rural migration during the last decade, the increasing population density and the apparent permanence of the migrants... People have stepped into a new environment and culture, not to say another life, as a result of migration. Compulsory migration had a negative impact on women. Some of the consequences are follows.

- They were stripped away from agriculture, and their activities were limited to their homes.
- They have problems associated with level of literacy and language.
- Adverse migration conditions exacerbated health problems.
- They were distanced from the traditional environment and relatives and were alienated from the social environment.
- Collective living arrangements increased with migration.
- Women lost their expectations after being stripped from their homes and with the future being shrouded in ambiguity.
- Expectations are backward-oriented (like returning to the village)
- They are torn between the conservation of old values and their transformation.

Under these unusual, cruel and isolated conditions, women experience fear, suspicion, depression and tension. Urban women have now understood that the troubles of migrant women can only be solved in concert, and their struggles have converged. The longing of the women of the Southeast is to build a new life over the losses, to again plant pistachio trees in evacuated villages, to see that animal flocks grazing in pastures, to understand and experience the change process that started with the Southeast Anatolian Project (GAP)." (Turkish Daily News 5 April 2001)

Poverty and juvenile delinquency: displaced children in south-eastern cities (2001)

- Increasing number of street children in cities in south-eastern Turkey as a result of displacement and migration
- Children are also expected to work to contribute to their family incomes
- Displaced children are disproportionately represented among criminal cases involving minors

"In another research carried out by Tigris University Department of Psychology, it was found out that migration from the rural areas to the urban settlements increased the number of children making their lives on the streets. In the research carried out with the aim of determining the socio-cultural and economic conditions of the 'street children' in Diyarbakir and 'children on the streets' in the city, the number of these two categories of children are found as approximately 6 thousands, 98% of whom are internally displaced children, and 16% of whom have been detained at least once on several occasions. The research further found out that 35% of the 'children on the streets' do not have identity cards, and 93% of them have above 5 siblings. The followings were stated in the research report:

"The physical developments of these children are behind that of their peers. Likewise, their areas of interest and the way they respond to the events are considerably different than those of their peers. They have to work in order to contribute to their family incomes. This on the one hand prevents them from acting like other children and the demising attitudes displayed by their environments compel them to see themselves as adults. Since that they encounter many difficulties in their daily lives, they have many psychosocial problems. In order to get rid of these problems, the socioeconomic and cultural conditions of the families should be investigated in detail, their needs should be determined, the parents should be provided with jobs with enough wages and after all they should not be allowed to send their children for work on the streets." (Human Rights Foundation of Turkey March 2001, sect. 2)

"Displaced children resorting to crime

Research by Diyarbakir branch of Contemporary Lawyers Association shows that displaced children are more inclined to commit crime

The migration from villages to towns has reportedly increased the inclination to commit crimes, especially among children. Experts state that the highest increase has been in petty theft and point out that the items most stolen are soft drinks and chocolate. One lawyer from the Diyarbakir branch of the Contemporary Lawyers Association (CHD) Mahsum Bati has prepared a report called 'Migration and the Children Criminals it Creates' in which he notes striking findings concerning displaced families.

Petty theft in the first place

Bati drew up his report using 606 case files seen at the Diyarbakir courts in the first six months of this year into criminals aged under 18. Pointing out that the most common charge was petty theft, Bati stated that all the 246 children referred to the courts on this charge came from displaced families.

They cannot fit in

Stating they had determined that 98.3 percent of the children have problems adapting their new environment and that 79.9 percent are undernourished, Bati said: 'Unable to stand going hungry, they resort to stealing things. They go after Coke, chocolate and gum more than anything else. Some 91.6 percent of their families cannot find lasting employment.' He went on to say that 40.7 percent of the children did not go to school." (Turkish Daily News 7 August 2001)

Public Participation

Political representation of ethnic minorities is limited (2004)

- In March, the Constitutional Court announced its decision to close HADEP on charges of supporting the PKK/KADEK and committing separatist acts

- Police raided dozens of DEHAP offices, particularly in the southeast, and detained hundreds of DEHAP officials and members during 2003
- The electoral system makes it difficult for minorities to be represented in Parliament
- Parties are required to have 10 percent of the nationwide vote to enter Parliament
- HADEP filed a complaint that the 10 percent threshold prevented 34 of its candidates from entering Parliament in 1999, despite having won elections in their districts
- There were no legal restrictions on political activities by minorities

“The Constitution provides citizens with the right to change their government peacefully, and citizens generally exercised this right in practice through periodic free and fair elections held on the basis of universal suffrage; however, the Government restricted the activities of some political parties and leaders.

[...]

The Government neither coerced nor prohibited membership in any political organization; however, the Court of Appeals Chief Prosecutor could bring cases seeking the closure of political parties before the Constitutional Court, which could close them for unconstitutional activities. In January, Parliament adopted legislation requiring a three-fifths majority of the 11-member Constitutional Court, rather than a simple majority, to close a party. The legislation also stipulates that parties could be closed only for reasons stated in the Constitution; previously, closures could also be based on the more broadly worded reasons cited in the Political Parties Law. The law allows the Constitutional Court to deprive a party of state funds as an alternative to ordering closure.

In March, the Constitutional Court announced its decision to close HADEP on charges of supporting the PKK/KADEK and committing separatist acts [...]. The Court also prohibited 46 HADEP leaders from participating in political activity for 5 years. On the same day, the Supreme Court of Appeals Chief Prosecutor filed a case seeking the closure of the Democratic People's Party (DEHAP), a HADEP sister party, on similar charges. The Government also closed two of HADEP's predecessor parties in previous years. The case against DEHAP continued at year's end.

Leyla Zana, Hatip Dicle, Orhan Dogan and Selim Sadak—former members of Parliament from the pro-Kurdish independence Democracy Party--were granted a retrial in February under legal reforms allowing for a retrial for convicts who win their appeals to the ECHR. They remained in prison during the trial, which continued at year's end. Attorneys for the defendants and the Geneva-based International Commission of Jurists accused the court trying the case of pro-prosecution bias. In addition, the Council of Europe in October informed the Government of its concern that the conduct of the trial was not consistent with the fair trial provisions of the European Convention on Human Rights.

During the year, police raided dozens of DEHAP offices, particularly in the southeast, and detained hundreds of DEHAP officials and members. DEHAP members were regularly harassed by Jandarma and security officials, including verbal threats, arbitrary arrests at rallies, and detention at checkpoints. Security forces also regularly harassed villagers they believed were sympathetic to DEHAP. Although most detainees were released within a short period, many faced trials, usually for ‘supporting an illegal organization,’ ‘inciting separatism,’ or for violations of the Law on Meetings and Demonstrations. In March, police in Tarsus arrested local DEHAP chairman Alaattin Bilgic on charges relating to a speech he had made. He was charged with a crime, and the case against him continued at year's end. In August, police raided DEHAP offices in Bingol on allegations of ‘keeping illegal publications.’ Following the raid, prosecutors opened charges against five DEHAP members; a court convicted and fined them in December. According to DEHAP, between September and November, police detained more than 1,000 participants in a DEHAP campaign calling for an amnesty for PKK/KADEK members. Authorities released most of the detainees, but opened charges against more than 100.

Parties are required to have 10 percent of the nationwide vote to enter Parliament. During the year, politicians from several parties debated whether to lower the threshold. At year's end, the ECHR had not

ruled on a September 2002 complaint filed by HADEP that the 10 percent threshold prevented 34 of its candidates from entering Parliament in 1999, despite having won elections in their districts.

[...]

There were no legal restrictions on political activities by minorities. Some minority groups were active in political affairs. Many members of Parliament and senior government officials were Kurds. “ (US DOS 25 February 2004, Sect. 3)

DOCUMENTATION NEEDS AND CITIZENSHIP

Citizenship

Applications for restoring citizenship rights are mostly done through administrative organs, least through security forces (January 2002)

“Given the findings above, we can conclude that applications to institutions for restoring citizenship rights are made in the following order of frequency:

Administrative Organs (Governor, Official Head of District, Ministry of Interior)

NGOs

Political Parties

Judicial Organs

Security Forces or Military Stations”

(Göç-Der 2002, p.55-I)

Documentation needs

Citizens of Kurdish origin were unable to register newborn babies with Kurdish names, despite amended legislation (2003-2004)

- Numerous citizens reported being prevented from registering their newborn children with Kurdish names, and in some cases, charges were filed against the parents
- In July Parliament amended an article to the Census Law that had been used to prevent the use of Kurdish names
- The amended article removed the restriction which had prevented the use of names contrary to national culture, customs and traditions
- The new article places a prohibition on names contrary to “moral norms” or names that “offend the public”
- While the revised wording was intended to ease restrictions, human rights advocates claimed local authorities failed to adjust their practices

“There were numerous reports of citizens of Kurdish origin being prevented from registering their newborn children with Kurdish names. In some cases, charges were filed against the parents. In August, authorities in Mersin reportedly refused to allow Ali Aksan to register his children with the names ‘Mihriyan,’ ‘Zozan,’ and ‘Berivan.’ In September, authorities in Istanbul reportedly prevented Sevkett Gasgar from naming his son ‘Deral.’

In July, Parliament amended an article of the Census Law that had been used to prevent the use of Kurdish names. The amendment removed language that had prohibited the use of names contrary to the ‘national culture’ or ‘customs and traditions,’ instead prohibiting names contrary to ‘moral norms’ or names that ‘offend the public.’ The revised wording was intended to ease the restrictions; however, human rights advocates claimed local authorities failed to adjust their practices. In September, the Interior Ministry issued a circular notifying local officials of the new regulations. However, the circular prohibited the use of

letters used in Kurdish but not found in Turkish. In December, the Diyarbakir Province Jandarma commander asked the Diyarbakir chief prosecutor's office to provide a list of persons who had applied to change their names under the amended law. The prosecutor's office reportedly complied. The Diyarbakir Bar Association protested the request." (US DOS 25 February 2004, Sect.5)

High proportion of Kurds who moved to cities remain unregistered (2000)

- The procedure to obtain ID cards exposes the displaced to security forces
- Remaining unregistered means having no access to health or education services

"Registration of residence All Turkish citizens are required by law to register with the neighbourhood *muhtar* or headman immediately on arrival in a new neighbourhood. We were struck by the number of informants in Istanbul, Adana and Gaziantep who told us either that they were unregistered, or that they had registered in one location but actually lived incognito elsewhere [...]. In other words they sought to be invisible.

It is an offence not to carry one's ID card, rendering one liable to three days' detention. If it is lost, another one must be obtained immediately from the ID office. A chit from the *muhtar* is necessary for this. According to a *muhtar* (see paragraph below), the ID office has a list of 'wanted' persons, supplied by the police. If a name comes up as 'wanted' the police are informed. Notification is also passed to the police or gendarmes at the place of birth. It is not only the officially 'wanted' category that is liable to detention. Many others are detained on suspicion. *Not* being on the 'wanted' list in no way implies one is safe.

Gaziosmanpasa is a well-known area of Istanbul with an Alevi and Kurdish concentration. We met Nevzet Altun, the *muhtar* [...]. He informed us that the registered population is approximately 80,000, but he reckoned the real population was in the order of 100,000, with 20 per cent of the population unregistered. He reckoned that the Alevi proportion of the population is between 40 and 50 per cent, while the Kurdish population is between 30-40 per cent. Presumably there is a large overlap between the two categories. Bearing in mind that it is those who *fear* the police who choose to remain unregistered and that these are most likely to be those displaced by the exigencies of war and have already seen plenty of police excesses, the unregistered population is like to be overwhelmingly Kurdish, with a minority of leftists, probably Alevi Turks also. One may conjecture therefore that the proportion of *Kurds* who are unregistered is well in excess of the *muhtar's* 20 per cent overall estimate, and may even exceed 40 per cent. It is not the role of the *muhtar* to submit registration rolls to the police. Rather, the police scrutinise these rolls whether the *muhtar* desires it or not. We received anecdotal confirmation of this in the offices of Goç-Der (The Migrants' Social and Solidarity Association). One staff member said of her arrival in Istanbul as a displaced person 'When I came to Istanbul I registered with the *muhtar* and gave my address. Then the police came and told me to sign every month at the police station.' Another said, 'I am here [Istanbul] eight years. I am still not registered with the *muhtar*. I cannot register as they will get my address and torture me. My family are military service evaders in Germany.'

People do not take the decision to remain unregistered lightly. Failure to register is not simply a means of remaining 'off the record', excluded from the population census, nor merely a matter simply of remaining excluded from the electoral roll. Remaining unregistered means having no access to health or education services. That price may not seem high for a bachelor in rude health. We repeatedly met families where children were not in school because the parents felt unable to take the risk of registration. If there was a health problem they had to find the money to go to a private clinic. The loss of education for one's children is a very high price indeed to pay, and it is not logical to think that displaced people would take this course of action unless they had real grounds for fear." (Atreya, N.; McDowall, D.; Ozbolat, P. February 2001, pp. 16-17)

ISSUES OF FAMILY UNITY, IDENTITY AND CULTURE

General

Kurds are not recognised as an ethnic minority (2003-2004)

- The Turkish Constitution provides a single nationality designation for all Turks and does not recognise ethnic groups as national, ethnic or racial minorities
- Kurds migrating westward, including those displaced by the conflict in the southeast brought with them their culture and identity but often little education and few skills
- Turkey signed the Additional Protocol No. 12 to the European Convention of Human Rights on prohibition of discrimination by public authorities but has not yet ratified the Protocol

“The Constitution provides a single nationality designation for all Turks and thus does not recognize ethnic groups as national, racial, or ethnic minorities. Citizens of Kurdish origin constituted a large ethnic and linguistic group. Millions of the country's citizens identified themselves as Kurds and spoke Kurdish. Kurds who publicly or politically asserted their Kurdish identity or publicly espoused using Kurdish in the public domain risked public censure, harassment, or prosecution. However, Kurds who were long-term residents in industrialized cities in the west were in many cases assimilated into the political, economic, and social life of the nation, and much intermarriage has occurred over many generations. Kurds migrating westward (including those displaced by the conflict in the southeast) brought with them their culture and village identity, but often little education and few skills.” (US DOS 25 February 2004, Sect. 5)

“As regards the fight against discrimination, the Additional Protocol No. 12 to the ECHR on the general prohibition of discrimination by public authorities, signed in 2001, has not been ratified. Turkey still has no comprehensive strategy or legislative and administrative provisions against discrimination. It also lacks statistical data, which would show the nature and extent of any discrimination on the basis of all prohibited grounds, such as ethnic origin, religion or language. Turkey still needs to transpose and implement the EU anti-discrimination acquis based on Article 13 of the EC Treaty.” (EC 5 November 2003, p.25)

Separate identity creates integration problems for displaced Kurds (January 2002)

- After displacement, the formation of ethnic groupings is encouraged by several factors which increases ethnic tensions
- Social exclusion has created a new multi-structural urban space

“The forcibly displaced Kurdish citizens of Turkish Republic are perceived and treated as 'potential criminals' in certain times and places by public and local administrators, security forces and the police. In their new environment, there exist several reasons that encourage the formation of ethnic groupings and increase ethnic tensions. Among these reasons are the negative effects of the armed conflicts and ethnic tension on the psychology of urban masses, nationalistic prejudice that dates back to the foundation of the Turkish Republic, the problems in establishing relationships between these people and other settled groups of the urban space. It is known that even the Kurdish citizens who had migrated to such places voluntarily long before the emergence of armed conflicts in the region and integrated with the urban social life have fears to get into contact with these forcibly displaced migrants. Obviously, they do not want to become the target of national prejudices.” (Göç-Der 2002, p.26-III)

“Being unable to integrate with the settled groups of the cities or public and local administrators’s failure in estimating the extent of such a mass-displacement and its consequences, not employing any settlement policy for the large migrant population are important factors leading the migrants use their own possibilities and kinship relations in settling in their new living environments. This resulted in considerable destruction in the urban structure and brought about a 'multi-structural' urban space. In many places, except for agricultural activities, migrants tend to maintain their former ways of life and this divided the urban space into different parts by 'unseen borders'. The migrant population concentrated in certain regions of the cities; the settled population could not absorb the huge migrant population. Thus, rather than an integration with the settled population, new divisions and segregation emerged within the urban space.” (Göc-Der 2002, pp.32-33-III)

See also, "Turkey: Treatment by Turkish authorities of Kurds who assert their Kurdish identity..." Immigration and Refugee Board, Canada, May 2003 [Internet]

Culture

Legislative reform grants some cultural rights to minorities (2003-2004)

- In August 2002, the Turkish parliament adopted a package of democratic reforms
- The Sixth reform package lifted the ban on radio and television broadcasting in Kurdish and removed the ban on “politically” offensive names (Kurdish)
- However, in 2003, a circular was issued by the government restricting the use of Kurdish names but placing a ban on the use of certain letters commonly used in Kurdish
- The Fourth reform package lifted a ban on the use by associations of foreign languages in non-official correspondence
- The seventh reform package eased restrictions on the location of teaching establishments
- Turkey ratified the UN Covenant on Economic, Social and Cultural Rights, yet issued a reservation to Article 13 paragraph 3 and paragraph 4 concerning the right to education

“With regard to **cultural rights**, the sixth reform package introduced a number of changes. As previously indicated [...] it provided for radio and television broadcasting in languages and dialects traditionally used by Turkish citizens in private stations, as well as by the public broadcaster. The Civil Registry Law was amended to permit parents to name their children as they desire, provided that such names are considered to comply with ‘moral values’ and do not offend the public. The reference to ‘politically’ offensive names, has been removed from the law. However, a circular was issued in September 2003 restricting the scope of this amendment by banning the use of names including the letters q, w and x, commonly used in Kurdish.

The fourth reform package amended Article 6 of the Law on Associations by giving associations the possibility of using foreign languages in their non-official correspondence [...].

The use of languages and dialects other than Turkish in the areas of film, the arts, festivals, cultural events and radio broadcasts is nevertheless still subject to legal restrictions and judicial prosecution. However, there has been a degree of relaxation: judicial procedures and administrative sanctions against petitioners for optional Kurdish language courses at university level have been dropped; various cultural festivals with the participation of Kurdish music groups have taken place and a wide range of religious books and cassettes in Kurdish have been provided by publishing companies.

No progress was made on the implementation of the August 2002 reform package on the learning of the different languages and dialects traditionally used by Turkish citizens in their daily lives. A number of applications to establish such language courses have been rejected by the authorities on the grounds that the curricula focus on culture and history and not on language teaching. Moreover, there are certain stringent regulatory requirements, which in practice prevent the classes from being established. These relate, in particular, to the nationality and the qualifications required from the teachers, as well as to the level of education required from the students.

The seventh reform package eased restrictions on the location of teaching establishments. It also amended the legislation on teaching of foreign languages and learning of different languages and dialects by prescribing that the Council of Ministers alone will regulate and decide which languages are to be taught (without having to get the approval of the National Security Council). A regulation is to be issued in order to implement the amended law.

When ratifying the UN Covenant on Economic, Social and Cultural Rights, Turkey issued a reservation to Article 13 paragraph 3 and paragraph 4 concerning the right to education. As a result, the scope of parents' right to choose schools for their children (other than those established by the public authorities) and to ensure the religious and moral education of their children (in conformity with their own convictions) has been limited." (EC 5 November 2003, pp. 37-38)

See also "Statement by the Kurdish Human Rights Project to the UN Working Group on Minorities," Tenth Session, 1-5 March 2004 [Internet]

Despite legislative reforms, there is insufficient implementation of 2002 reforms (2000-2003)

- August 2002 legislation lifted restrictions on minority language courses and broadcasting, but lack effective implementation
- In July 2003, Parliament adopted reforms designed to remove obstacles to the implementation of the 2002 legislation
- However, most of the adopted reforms removing restrictions on Kurdish language courses and broadcasting in the Kurdish language had not been implemented by the end of 2003
- Local authorities in Sanliurfa, Batman, and Van provinces withheld permission to open Kurdish language courses
- Sweden sends 100,000 Kurdish books to revive Kurdish language
- A law that prohibited speech and printing in languages not officially recognized was abolished in 1991
- Kurdish New Year has been adopted as a Turkish national holiday yet local authorities prevented celebrations in numerous towns and arrested significant numbers of people participating in the celebrations

"The law makes it illegal for broadcasters to threaten the country's unity or national security. In principle, the law allows broadcasts in the traditional languages of the country, other than Turkish, including Kurdish. However, implementing regulations set strict time limits on such broadcasts: 45 minutes per day, 4 hours per week on radio and 30 minutes per day, 2 hours per week on television. The regulations also require that non-Turkish radio programs be followed by the same program in Turkish and that non-Turkish television programs have Turkish subtitles. Early in the year, regulations limited broadcasts in traditional non-Turkish languages to the government-owned TRT; however, TRT did not produce any such broadcasts and filed a legal challenge to the regulation directing it to do so. In July, Parliament adopted legislation allowing

private media outlets to broadcast in traditional non-Turkish languages. However, the Government had not approved implementing regulations for such private broadcasts by year's end.

In July, Parliament passed legislation to facilitate the establishment of language courses teaching traditional non-Turkish languages. However, by year's end, local authorities had not given permission for any such courses to open [...].

Kurdish-language audio cassettes and publications were available commercially, although the periodic prohibition of particular audio cassettes or singers continued, particularly in the southeast.

SSC prosecutors ordered the confiscation of numerous issues of leftist, Kurdish nationalist, and pro-PKK periodicals and prohibited several books on a range of topics. Police frequently raided the offices of publications. At year's end, the trial continued in the case of activists who were charged with supporting illegal organizations and separatism after publishing a new 'Freedom of Thought' booklet in 2001.

The Government showed some signs of greater tolerance for the use of the Kurdish language. Unlike in past years, police in most instances did not interfere during the year when HRA put up banners with the motto 'Peace at Home, Peace in the World' in both Turkish and Kurdish, although, in December, authorities in Van province did seize the banners. Also for the first time, police did not detain HRA members making statements in Kurdish on World Peace Day in September. In October, Kurdish singer Ciwan Haco spoke and sang in Kurdish during an appearance on a popular Istanbul-based television program." (US DOS 25 February 2004, Sect.2a)

Kurdish New Year celebrations (Newroz)

"During the March 21 Kurdish Nevruz ('New Year') celebrations, there were significantly fewer clashes than in past years, according to the HRF. However, local authorities prohibited celebrations in a number of towns, and police arrested scores of persons participating in the celebrations. Authorities in some municipalities prohibited the use of the traditional Kurdish spelling 'Newroz.'" (US DOS 25 February 2004, Sect.2b)

"Minority languages, particularly Kurdish, were a controversial issue. From December 2001 onward, police detained more than a thousand school and university students for submitting petitions calling for optional courses in Kurdish. Prosecutors indicted hundreds of the students on charges of supporting an armed gang, claiming the students' campaign for Kurdish language courses was run by a new illegal movement called Kurdistan Freedom and Democracy (KADEK), formed in April [2002] out of the dissolved Kurdish Workers' Party (PKK). In April, Diyarbakır State Security Court handed down a suspended sentence of forty-five months of imprisonment to minibus driver Sulhattin Önen for repeatedly playing a cassette tape of a song in Kurdish. The court was unswayed by the fact that the tape was legally authorized for publication. The August [2002] legislation lifted restrictions on minority language courses and broadcasting, including in Kurdish. The change seemed to represent a new respect for linguistic diversity, but the reforms were hedged with qualifications that could block effective implementation. Kurdish still could not be taught in universities, or broadcast by independent radio or television stations." (HRW, 14 January 2003)

"Sweden has decided to send 100,000 Kurdish books for the Kurdish children and youth in north Kurdistan, in order to support and revive the Kurdish language, reported the Kurdish news website Kerkuk-kurdistan.com today. This is a controversial cultural support by Sweden and the Turkish reaction will be interesting. This new development by a European state may be seen by Turkey as an infringement in her 'internal affairs.' Despite Turkish reforms the oppression of Kurdish language and culture still continues. Human rights organizations have argued that recent reforms are nothing but cosmetic changes and that reforms stay on paper." (Kurdish Media, 3 June 2003)

"According to the Turkish Foreign Ministry website, 'The status of minorities in Turkey has been internationally certified by the 1923 Treaty of Lausanne, according to which there are only non-Muslim

minorities in Turkey. It is wrong, according to this definition, to refer to our citizens of Kurdish descent as a 'Kurdish minority'. Besides, Turkey is a unitary State and 'Turkish citizenship' is an all embracing juridical concept encompassing all our citizens, granting them equal rights and obligations...'

It is clear, however, that the EU's Copenhagen criterion of 'respect for and protection of minorities' should be applied not only to the Jewish, Greek and Armenian minorities defined by the Treaty of Lausanne, but also to the Assyrians, Kurds, Laz, Roma and many other minorities in Turkey.

The 1990s saw a considerable liberalization in the area of language policy in Turkey. A law that prohibited speech and printing in languages not officially recognized was abolished in 1991. In 2000, several newspapers and magazines were published in minority languages - although those produced in Kurdish were frequently subject to confiscation or police raids for suspected 'separatism.'

In a test case in March [2000] concerning a child that had been given a Kurdish name, the Supreme Court ruled that children could legally be given names of non-Turkish origin.

Broadcasting and education, however, remained under dispute in 2000. The 1994 Law on the Television and Radio Organisations and their Broadcasts mandated the exclusive use of the Turkish language except in certain circumstances. On the basis of this law, licenses were not issued for television or radio channels to broadcast in Kurdish. Interestingly, the only media outlet to broadcast in the Kurdish language was the Dicle Sesi (Voice of the Tigris) radio channel, run by the armed forces, virtually acknowledging that many who lived in the southeast were unable to understand Turkish.

Turkish remained the official - though not exclusive - language of instruction, according to Article 42.9 of the Constitution. On the basis of the 1983 Foreign Language Education and Teaching Law, the National Security Council decided which foreign languages may be taught in Turkey. While languages spoken outside of Turkey (e.g. English, Russian, Chinese, etc.) could be taught, Laz, Kurdish and Roma could not." (IHF 2001, p. 304)

See also:

- *"Section 2(a) Respect for Civil Liberties, including: Freedom of Speech and Press" in **"Turkey: Country Reports on Human Rights Practices,"** US Department of State, Bureau of Democracy, Human Rights and Labor, 25 February 2004 [Internet]*
- *The Section on "Minority Rights" in Amnesty International's **"Annual Report (2003)"**, 1 January 2003 [Internet]*

PROPERTY ISSUES

General

Systematic destruction of properties and possessions continued through 2001 (1994-2001)

- In most cases, evacuations of villages were followed by destruction of houses, crops and livestock by the security forces
- House demolitions and forced evictions have been reported as late as 2001 in the Sirnak province in south-eastern Turkey
- A report prepared by the Parliamentary Commission on Migration (1997) indicated that 3,423 rural residential units had been evacuated
- The Human Rights Association, a Turkish NGO, monitoring the situation has documented over 4000 evacuations
- Settlements of Turkish citizens of Kurdish origin were primarily targeted, ranking from individual dwellings to small villages
- In addition to destruction of houses, basic infrastructural facilities such as roads, irrigation networks, and electricity were destroyed
- The European Human Rights Court in Strasbourg released several judgements against Turkey regarding village destruction

“While the policy of house demolitions and forced evictions stopped in 1999, villages forced evictions were reported, in 2001, in the Sirnak province, South Eastern part of Turkey. The resurgence of new forced evictions following 1999, along with harassment and implementation of measures such as food embargoes, restriction on freedom of movement to go in and out of villages is of particular concern to HRA and OMCT.

A population of 600-700 villagers living in the villages of Asat (15 households) and Ortakli (30 households), located in the Sirnak province, have been evicted by the Turkish Security Forces on 20 July 2001. An investigation carried out by HRA in August 2001 highlighted that the forced eviction of the Asat and Ortaki villages could be related to a mine explosion that caused deaths and wounds of some soldiers during a military operation in July 2001. Interviews with villagers of Asat and Ortakli underlined that they had no relation with the mine explosion and that the whole area has been mined for some time, with mines being located at 25 or 40 kilometres from their villages.

The mission conducted by HRA in August 2001 reported that the 600-700 evicted villagers, whose majority are women, children and elderly people, were living nearby the Beytüssebap municipality borders in about 80 tents in destitute conditions characterised by poverty, deprivation, uncertainty and fear. HRA reported that the victims did not receive any health care service and that they were subjected to serious health problems. Testimonies from the victims recorded that about 600 animals, beehives, orchards and garden were destroyed due to a lack of maintenance following their forced eviction, cutting the villagers' production veins.” (HRA/OMCT May 2003, Sect.VI)

“The practice of house demolitions and forced evictions, resulting in massive forced displacement and destruction of villages, gained momentum during the 1990s and lasted until the end of 1999. They occurred

on a large scale and were mostly carried out by the Turkish Security Forces and administrative authorities against the rural Kurdish population living in the South Eastern and Eastern region of Turkey.

According to the 1997 report prepared by the Parliamentary Commission on Migration, 3428 rural residential unites were evacuated. The Human Rights Association (HRA), which continued to monitor the situation until today, received many other applications by victims following 1997, allowing saying that around 4000 places of settlement were evacuated.

According to the annual balance sheets published by the Human Rights Association (HRA) (years 1994 to 1999), 1500 villages have been burned down and evacuated in 1994, 243 in 1995, 68 in 1996, 23 in 1997, 30 in 1998 and 30 in 1999. The statistical data released by the Immigrant's Association for Social Cooperation and Culture highlights that on a period running from 1970 to 2000, the bulk of forced displacement took place between 1990 and 1995 (71,6%), with the highest number of forcible displaced families (258) recorded for the year 1994. The same statistical data show that 98.8% of the locations where forcible displaced families come from have been located in the Eastern and South Eastern regions of Turkey. Overall, these figures clearly indicate that the demolition of houses and forced evictions are directly related to a massive forcible displacement of the Kurdish people out of their homelands.

During the period running from 1989 to 1999, besides the demolitions of houses, forced evictions and burning of villages, the use of highlands were banned and thousands acres of forestry were set on fire. Basic infrastructural facilities such as roads, irrigation networks, and electricity were destroyed in the evacuated villages. Gardens were destroyed, trees were cut down and most of the arable fields are no longer in use. The ban on the use of highlands caused the destruction of animal husbandry. Fields and possessions in the evacuated villages were seized by the village guards, or were destroyed.

People whose houses and villages were destroyed had to migrate to city centres in the region or to metropolitan areas in the West on their own without any support from the authorities.

Besides the loss of all their belongings, property and pecuniary resources, these people were often deprived of basic welfare facilities like shelter, job, health, and education in their new place of settlement, living under the level of poverty. Because of their identities, they were subject to many attacks and pressures in their new living surroundings.” (HRA/OMCT May 2003, Sect.II)

"According to the Turkish Parliament's Commission on Migration, 401,328 villagers have been displaced since 1984. Many other observers claim a much higher figure. The population of Diyarbakir, the regional capital, increased by 600,000 during the 1990s. In most cases, these villagers were not evacuated in an orderly fashion, resettled, or compensated. Rather, they were driven from their homes by security forces who left burned houses and destroyed crops and livestock in their wake. A large number of petitions have been filed with the European Court of Human Rights in respect of village destruction, and three important judgment have already been reached against Turkey. [1]

The findings of the European Commission on Human Rights in the *Mentes* case eloquently describe the officially sanctioned lawlessness that broke out all over southeast Turkey in the 1990s: 'The Commission considered that the burning of the first three applicants' homes constituted an act of violence and deliberate destruction in utter disregard of the safety and welfare of the applicants and their children who were left without shelter and assistance and in circumstances which caused them anguish and suffering. It noted in particular the traumatic circumstances in which the applicants were prevented from saving their personal belongings and the dire personal situation in which they subsequently found themselves, being deprived of their own homes in their village and the livelihood which they had been able to derive from their gardens and fields.' [2]"

[Endnote 1: European Court of Human Rights, *Mentes and others*, November 28, 199[7]; Akdivar and others, December 18, 1996; Selçuk and Asker, April 24, 1998.]

[Endnote 2: European Court of Human Rights, *Mentes and others*, November 28, 1996, paragraph 76.] (HRW September 2000, "Contributing to Stability in the Southeast")

"During the military actions (1984-1999), the Turkish army is said to have evacuated and destroyed thousands [1] of settlements of Turkish citizens of Kurdish origin, ranking from individual dwellings to small villages, to prevent the PKK militants from finding refuge [2]. Rather than restoring these settlements, most of which were situated in remote and isolated areas, the Turkish authorities prefer to rebuild new villages in safer and more accessible places. In the area of Sirnak, six villages have thus been resettled whilst resettlement of five others was planned for the year 2000. The 2000-2001 Plan foresees also the construction of 4 boarding schools and 19 primary schools."

[Endnote 1: On 28 July 1997, the Chairman of the TGNA Committee on Migration confirmed that 364 742 inhabitants of 3185 villages and hamlets had been forced out since 1990 in the framework of the fights against terrorism (Doc 8131, §17)]

[Endnote 2: In a number of judgements, the European Court has ruled that some practices of the security forces in south-east Turkey, including the burning of houses, constituted violations of the European Convention on Human Rights.] (COE 13 June 2001, para. 144)

Restitution

Government drafts legislation on compensation for harm caused by the security forces during anti-terrorism operations (2003-2004)

- In spring 2000 the Government submitted to the Cabinet a Bill on compensation for harm caused by the security forces during anti-terrorism operations
- The Bill provides for the possibility of compensation without bringing judicial proceedings
- Compensation would be awarded on the basis of assessments by multilateral commissions, government civil servants and members of chambers of commerce and industry
- Compensation will be awarded for pecuniary loss, bodily harm or death resulting from anti-terrorism operations
- The Bill has not yet been passed by Parliament (as of December 2003)
- The Council of Europe is studying the question of compensating victims of terrorism as part of an initiative at European level

Report by Commissioner for Human Rights, Council of Europe, following his visit to Turkey June 2003

"I should also like to emphasise the importance I attach to the declared commitment of the Turkish authorities to compensating the population for harm suffered during anti-terrorism operations. I fully understood the need for this during my conversations with representatives of civil society as well as with the representatives of the local authorities in Diyarbakir since it is local authorities that carry the heavy burden of caring for those who have had to leave their villages or lost their property during the state of emergency. I should like to encourage the authorities to redouble their efforts to enable displaced populations to return to their homes and to speed up the compensation process.

Moreover, we were informed that in spring 2000 the Government had submitted to the Cabinet a Bill on compensation for harm caused by the security forces during anti-terrorism operations which provides for the possibility of compensation without bringing judicial proceedings. Compensation would be awarded on the basis of assessments made by multilateral commissions with the participation of government civil servants and members of chambers of commerce and industry. The Bill provides that compensation will be

awarded from a fund derived from various taxes. Compensation will be awarded for pecuniary loss, bodily harm or death resulting from anti-terrorism operations.

This Bill has not yet been passed by Parliament but Mr Gül said in his address to the Parliamentary Assembly of the Council of Europe on 27 January 2003 that the Government was putting the final touches to it.

I consider it equally essential for the Government to care for the victims of terrorist acts and their families, including by paying them compensation where necessary. The Council of Europe is studying the question of compensating victims of terrorism as part of an initiative at European level and I hope that this work will be completed as soon as possible for the benefit of everyone.” (COE Office of the Commissioner for Human Rights 19 December 2003, pp.31-32)

See also “[Government drafts legislation that would provide compensation for displaced Kurds \(2004\)](#)” [Internal link]

NGO’s criticise draft compensation law (2004)

- In January 2004, the Justice Ministry forwarded the draft compensation law on damages as a result of terror or the fight against terrorism to the Prime Minister
- It is foreseen that a commission will be established to oversee its implementation
- The Dizarbakir Bar Association points out that the draft would only cover events in the past 10 years and that villages destroyed between 1989 and 1994 would remain outside the regulation
- Lawyer Mahmut Vefa also criticised the bill on the grounds that the Commission is planned to be composed only of officials, thereby excluding representatives of the victims and relevant NGOs
- “Damages” in the bill are also limited to material damages and do not take into account trauma and rehabilitation
- GÖÇ-DER chairwoman Sefika Gürbüz demanded that the draft should at least cover the last 15 years
- Ms. Gürbüz added that the victims had been put under pressure to sign declarations that the PKK or bad weather conditions were responsible for the destruction of their houses
- GÖÇ-DER has prepared an alternative bill which the organisation plans to try to present to the Ministry

“In January the Justice Ministry forwarded the draft law on Compensation of Damages as a Result of Terror or the Fight against Terrorism to the Prime Ministry. The draft provides for compensation of damages of individuals and institutions stemming from actiony described in Articles 1, 3 and 4 of the Law to Fight Terrorism and the fight against terrorism. The draft foresees the establishment of a commission to determine the amount of damages.

Lawyer Mahmut Vefa, board member of Diyarbakir Bar Association, pointed out that the draft would only cover events over the past 10 years and in particular the villages that were destroyed between 1989 and 1994 remained outside the regulation. Mahmut Vefa also criticized that only officials would be in the commissions and no representatives of the victims and NGOs were included. The damages would only be restricted to material damages and not account for traumas and rehabilitation.

GÖÇ-DER chariwoman Sefika Gürbüz also demanded that the draft should at least cover the last 15 years. Under the current form mainly village guards and soldiers would benefit from the law. She added that the destruction of villages had never been admitted and the victims had been put under pressure to sign declarations that the PKK or bad weather conditions were responsible for the destruction of their houses.

Mrs. Gürbüz reminded of a large number of cases at the ECHR and stated that her association had prepared an alternative draft that they would present to the Ministry, if she got an appointment.” (HRF January 2004)

IDPs continue to make applications to the European Court of Human Rights (2003-2004)

- Turkey ranks first amongst countries with the highest numbers of applications to the Court with 18 per cent of applications pending before the Strasbourg Court
- A Turkish judge to the Court noted that the problematic cases for Turkey today are allegations of torture and citizens' claims of not being able to return to their villages.
- The judge also noted that if no solution is found to the return issue, thousands of applications can be made against Turkey which would be in a position to pay huge amount of compensation
- The ECtHR has delivered 92 judgements concerning Turkey since October 2002 (October 2003)
- Since October 2002, the Court has found that Turkey violated the ECHR on 43 occasions and found that Turkey had not been in violation of the Convention in only 1 case
- Between October 2002 and October 2003, 2614 new applications were regarding Turkey were made to the Strasbourg Court
- Progress had been achieved in respect to the execution of 48 judgements relating to abuses committed by the security forces
- However, the European Commission did not find that all necessary measures had been taken with regard to judgments relating to abuses committed by the security forces

“Turkish judge of European Court of Human Rights (ECHR) Riza Turmen said on Monday that there were totally 38,500 cases pending before ECHR as of the end of 2003 and 18 percent of them (7,050) were applications made against Turkey.

[...]

Turmen stated that the character of the cases started to change, adding ‘the cases started to have a political character, but the Court is not ready for it. The only political case brought to the Court to date was the Loizidou case and the applications of the Greek Cypriots in south of Cyprus. The Court was not successful in that case because the aim of its foundation and its structure are not suitable for political cases. ECHR can't see properly the political results to which it could lead. So a big problem will come out soon.’

Noting that the Court also wanted to broaden its authorities, Turmen showed the decision of the Court about retrial of persons who were tried and convicted by military judges in State Security Courts in Turkey as an example.

Stressing that the most important problem of the Court was the number of applications pending before it, Turmen said that the cases could not be concluded before three years due to that reason.

Turkey was ranked the first among countries against which the highest number of applications were made, Turmen said, adding that Russia followed Turkey with 14 percent and Poland followed Russia with 13 percent.

Turmen remarked that after the capture of head terrorist Abdullah Ocalan, very few human rights applications were made from southeast Turkey, adding ‘there is no decrease in the number of applications against Turkey, but there is a big change in respect of character of cases. The cases are more about technical issues like one's making defense before court, police custody and property rights. The problematic cases for Turkey today are allegations of torture and citizens' claims of not being able to return to their villages. If no solution is found to the latter, thousands of applications can be made against Turkey which

can be in a position to pay huge amount of compensation.' Turmen said that cases related to freedom of expression also caused trouble for Turkey.” (Turkish Press 24 February 2004)

“Since October 2002 the European Court of Human Rights (ECtHR) has delivered 92 judgements concerning Turkey. On 43 occasions the Court found that Turkey had violated the ECHR (in only one case was Turkey judged not to have been in violation of the Convention) and 47 friendly settlements were concluded – many of which contained undertakings to take individual and general measures, over and above the payment of a sum of money. During this period 2614 new applications regarding Turkey were made to the ECtHR.

Turkey still faces problems in relation to the execution of judgements of the ECtHR.

Turkey has not yet taken all the necessary measures – prescribed by the Court in 1999 – to redress a number of violations of the right to freedom of expression, namely the striking out of the criminal convictions unjustifiably imposed and the restoration of civil rights. Neither has Turkey fully rectified the problems caused by a number of erroneous payments of just satisfaction in the period 2000-2002.

[...]

On the other hand, the Committee recognised that further progress had been achieved in respect to the execution of 48 judgements[1] relating to abuses committed by the security forces, 34 judgements[2] concerning interference with the right to freedom of expression. Nevertheless, the Committee did not find that all necessary measures had been taken and decided that it would continue to play its monitoring role until Turkey provides concrete evidence of full execution.” (EC 5 November 2003, p.24)

[Footnote 1] See Int Res DH (2002) 98

[Footnote 2] See Int Res DH (2001) 106

ECtHR judgements put displacement and property evacuations on the national and international agenda (1996-2002)

- Decree with the Force of Law No. 430 exempts the State of Emergency Governors from acts taken in the emergency region which legally has prevented effective domestic legal remedy
- A small number of ECHR judgements in house destruction cases have since 1996 drawn national and international attention to the issue of forced displacement
- The Committee of Ministers has noted that impunity and the lack of effective remedies are continuing problems

“Principle 7(3)(f) of the U.N. Guiding Principles states that the right of displaced persons 'to an effective remedy, including the review of such decisions by appropriate judicial authorities, shall be respected.' Villagers burned out of their homes should be able to seek a remedy under Turkish domestic law. Article 125 of the Constitution provides that 'All acts or decisions of the Administration are subject to judicial review.... The Administration shall be liable for damage caused by its own acts and measures.' However, Decree with the Force of Law No. 430 exempts the administration of the state of emergency governor from legal action concerning acts in the state of emergency region (and provinces neighboring the state of emergency region) where almost all displacements occurred. An exception is made for acts of destruction 'without justification' but given the reluctance of the judiciary to investigate abuses committed by the security forces, identified by the European Court of Human Rights, it would be easy for the state to use this defense, simultaneously branding villagers as 'terrorists' and leaving them in a worse position than if they had not gone to court in the first place. In addition, under the Law on the Prosecution of Civil Servants and other Administrative Officials, no prosecution can be opened against an officer of the state unless it has been authorized by the office of the local governor (who is also the security forces' chief within the province).

A further difficulty in opening litigation is that, as indicated above, officials avoid committing administrative acts to paper that might later form the basis of a court action. None of the villagers Human Rights Watch interviewed had received written documents stating that they could not return to their homes, and the few who had been told that they could return for short periods in order to cultivate their fields had received only verbal permission from the governor and gendarmes.

[...]

As for creating the basis for a legal action relating to property rights and establishing the fact that the authorities are not permitting people access to their property, this is simple: it can be done by sending a registered letter.

[...]

A small number of displaced peasants have successfully sought international justice as a remedy, through the European Court of Human Rights (ECHR). This has not yet opened their path homeward, but there is no question that the series of shock decisions in the ECHR were key factors in forcing the military to halt its program of destruction. In its 1996 ruling in *Akdivar and Others v Turkey*, the ECHR corroborated the open secret and confirmed that Turkish security forces were indeed guilty of house destruction. From that moment on, gendarmes knew that bullying indigent villagers might not be costfree.

The European Court is considering how to cope with its growing burden of work. The rapporteur of the Council of Europe Parliamentary Assembly's Committee on Legal Affairs and Human Rights, Erik Jurgens, has said that responsibility for the increasing burden must be attributed in part to 'the Committee of Ministers, which does not exert enough pressure when supervising the execution of judgments.' An evaluation group established by the Committee of Ministers indicated that a substantial factor in creating the overload is the burden of 'clone' or 'repetitive' cases, like the series of house destruction actions from Turkey.

Clearly, ensuring execution of judgments in such cases might cut down the volume of clone violations and so, clone cases. In view of the considerable flow of information from southeast Turkey, it is regrettable that the Committee of Ministers did not identify the systematic pattern of village destruction at an earlier stage and bring pressure on the Turkish government to desist. Meanwhile, applications at the ECHR continue to pile up.

[...]

The ECHR judgments in the cases of house destruction in Turkey were effective in putting the forced displacement of Kurdish villagers on the national and international agenda. But these cases represent just a small sample of a much wider pattern, and unfortunately, the follow-up mechanisms to halt the continuing violation and tackle that wider pattern are slow and cumbersome. In addressing Turkey concerning the cases of house destruction, the Committee of Ministers asked what steps have been taken to avoid repetition of this serious violation. The Committee's resolution and the Turkish government's response only recapitulate the confrontation that took place in the ECHR: Turkey presented an outline of the remedies open to victims of house destruction, while the Committee of Ministers noted that impunity and the lack of effective remedies were continuing problems and encouraged the Turkish authorities 'to continue their efforts in order to ensure rapid reparation for the victims of violations of the Convention committed by the security forces.' (HRW, 30 October 2002)

Domestic law applying to compensation for property loss: no effective remedies (2001)

- The Turkish Constitution and other domestic legal provisions require compensation for government actions causing loss of property or injury
- No proceedings can be brought against governors within the state of emergency area
- There is no example of compensation or prosecutions in cases of property destruction carried out by security forces, according to the European Court of Human Rights

- As a result of the situation of civil strife in southeastern Turkey, effective and accessible domestic remedies do not exist for complaints

"Turkish domestic law provides that citizens must be compensated for government actions that cause them loss of property or injury. In proceedings before the European Commission of Human Rights regarding a case of alleged forced evacuation and burning of a village by government security forces, the Turkish government submitted as relevant law Article 125 of the Turkish Constitution, which states, 'The administration shall be liable for damage caused by its own acts and measures.' This is not restricted by any state of emergency or war, and does not necessarily require proof of a fault on the part of the administration. Article 1 of Law 2953 of October 25, 1983, states, moreover, that, 'actions for compensation in relation to the exercise of the powers conferred by this law are to be brought against the Administration before the administrative courts.'"

"If these laws were enacted effectively, the number of petitions to the European Commission of Human Rights would be greatly reduced." (HRW June 1996, Turkey's legal obligations)

"Provisions on emergency measures

1. Extensive powers have been granted to the Regional Governor of the State of Emergency by decrees enacted under Law no. 2935 on the State of Emergency (25 October 1983), especially Decree no. 285, as amended by Decrees nos. 424 and 425, and Decree no. 430.

2. Decree no. 285 modifies the application of Law no. 3713, the Anti-Terror Law (1981), in those areas which are subject to the state of emergency, with the effect that the decision to prosecute members of the security forces is removed from the public prosecutor and conferred on local administrative councils. These councils are made up of civil servants and are under the authority of the provincial governors who also head the security forces.

3. Article 8 of Decree no. 430 of 16 December 1990 provides as follows:

'No criminal, financial or legal responsibility may be claimed against the State of Emergency Regional Governor or a Provincial Governor within a state of emergency region in respect of their decisions or acts connected with the exercise of the powers entrusted to them by this decree, and no application shall be made to any judicial authority to this end. This is without prejudice to the rights of individuals to claim indemnity from the State for damage suffered by them without justification.'

According to the applicant, this Article grants impunity to the Governors and reinforces the powers of the Regional Governor to order the permanent or temporary evacuation of villages, to impose residence restrictions and to enforce the transfer of people to other areas. Damage caused in the context of the fight against terrorism would be 'with justification' and therefore immune from suit." (ECHR 30 January 2001, paras. 37-39)

"Regard must therefore be had in this case to the situation which existed in south-east Turkey at the time of the events complained by the applicant, which was characterised by violent confrontations between the security forces and members of the PKK (see the *Mentes and Others v. Turkey* judgement of 28 November 1997, Reports 1997-VIII, p. 2707, §58). In such a situation, as the Court has recognised in previous cases, there may be obstacles to the proper functioning of the system of the administration of justice." (see the *Akdivar and Others v. Turkey* judgement, cited above, pp. 1211, §70)

"The Court recalls that, despite the extent of the problem of village destruction, there appeared in these previous cases to be no example of compensation being awarded in respect of allegations that property had purposely been destroyed by members of the security forces or for prosecutions having been brought against them in respect of such allegations. Furthermore, there had consistently been a general reluctance on the part of the authorities to admit that this type of practice by members of the security forces had

occurred. The Government had provided no information since that would lead the Court to reach any different conclusion." (see the *Selçuk and Asker v. Turkey* judgment, cited above, p. 908, §68).

"Accordingly, the Court finds that it has not been demonstrated by the Government with sufficient certainty that effective and accessible domestic remedies existed for complaints such as the applicant's. Having regard to the circumstances in which her house and property, along with others in her village, were destroyed, the Court considers it understandable if the applicant considered it pointless to attempt to secure satisfaction through national legal channels. The insecurity and vulnerability of the applicant following the destruction of her home is also of some relevance in this context." (see the *Selçuk and Asker* judgment, cited above, p. 908, §§ 70-71).

"The Court concludes that there existed special circumstances which dispensed the applicant from the obligation to exhaust domestic remedies." (ECHR 30 January 2001, paras. 45-48)

"As regards the application of Article 26 to the facts of the present case, the Court notes at the outset that the situation existing in South-East Turkey at the time of the applicants' complaints was - and continues to be - characterised by significant civil strife due to the campaign of terrorist violence waged by the PKK and the counter-insurgency measures taken by the Government in response to it. In such a situation it must be recognised that there may be obstacles to the proper functioning of the system of administration of justice. In particular, the difficulties in securing probative evidence for the purposes of domestic legal proceedings, inherent in such a trouble situation, may make the pursuit of judicial remedies futile and the administrative inquiries on which such remedies depend may be prevented from taking place." (ECHR 16 September 1996, para. 70)

PATTERNS OF RETURN AND RESETTLEMENT

General

Returning refugees join ranks of the internally displaced (2002)

“Although the government has not extended an amnesty to the Kurdish refugees who fled in 1994, it has said that it would not prosecute them for illegal departure from Turkey. Some Kurds have been arrested upon return, mostly charged with membership in (or support of) an illegal organization.

Upon arrival, the Turkish authorities bring the returnees to the 'Haji' camp in Silopi where they are registered and undergo security clearances. Nearly 90 percent of the returnees originate in the war-torn southeastern provinces of Sirnak and Hakkari, where many former villages are destroyed or still sealed off for security reasons. If unable to return to their places of origin, the returnees join the ranks of the internally displaced, usually living with relatives. Because of the war devastation and economic stagnation in the southeast, few returnees were able to find work upon return.” (USCR, 2002)

Return

Government statistics on return: 94,000 IDPs have been able to return as of December 2003

- December 2003: Official authorities claimed that 94,029 IDPs returned to the region, representing over 25% of IDPs
- January 2003: Official authorities claimed that 82,000 returnees
- June 2002: Official authorities claimed 58,513 returnees
- April 2002: Official authorities claimed 37,000 returnees
- December 2001: Official authorities claimed 35,513 returnees
- 1999-2001: Official authorities claimed 18,600 returnees

Official figure for December 2003: 94,029 returnees

“Within the framework of ‘Back to Village and Rehabilitation Project’, 94,029 people have returned to their villages by the end of December 2003. This number represents more than 25% of the total number of displaced persons. The experience in Turkey and in other countries on displacements indicate that the number of people returning to their former rural dwellings is around 25%-30% of the total displaced” (Permanent Mission of Turkey to the UN 18 March 2004)

“Only a fraction of the total number of evacuees has returned. The Government claimed that 94,000 persons returned to the region from June 2000 to October. More than 400 villages and hamlets have reportedly been reopened with government assistance. These figures could not be independently verified.” (U.S. DOS 25 February 2004, Sect. 2d)

Official figures for June 2000 to January 2003: Approximately 82,000 returnees

“Due to the complex and multi-dimensional nature of the process, close coordination and cooperation among various Ministries and public institutions as well as allocation of necessary financial resources is essential. The progress achieved so far has been positive and encouraging. In this regard, tens of thousands of people have returned to hundreds of villages and other rural settlements and necessary assistance has been provided to these people. The number of returnees from June 2000 to January 2003 is around 82 thousand.” (Permanent Mission of Turkey to the UN letter to OHCHR 7 November 2003)

See also, "Emptied villages renew life", Zaman Online, 1 December 2003 [Internet]

Official figures for June 2002: 58,513 returnees

“Abdülkadir Aksu, the Interior Minister, announced that a total of 58.513 people had benefited from the Return to Village Project since June 2002. Aksu stated that in 11 provinces under a state of emergency TL 8.8 trillion has been spent so far for returnees.

Diyarbakir governor Cemil Serhadli, stated on 18 December that in 12 villages of Dicle and Kulp districts villagers have not been granted permissions for a return to their villages due to security reasons at present but would be granted in spring. Serhadli added that 48 villages and 58 hamlets had been opened for resettlement within the scope of Return to Villages Project and the total number of returnees within Diyarbakir was 8.568.

Semsettin Abi, who was forced to migrate from Akarsu village of Beytüssebap district (Sirnak) in 1994, reported that in response to his application to return to his village Van Governorate had offered him temporary houses in which there is no empty place.” (HRW, 30 October 2002)

Official figures for April 2002: 37,000 returnees

“Some 37,000 people have returned to their villages in the Emergency Rule Region in the last 20 months as part of the "Back to Villages and Rehabilitation Project," carried out by the Interior Ministry.

The project gained pace after peace was restored in the region when the fighting between the outlawed Kurdistan Workers' Party (PKK) and Turkish security forces stopped, and a total of 6,300 families returned to 460 villages and hamlets to take advantage of the financial assistance, having found it economically inviable to live in the cities because of the economic crisis.

The Interior Ministry provided a total of TL 4.5 trillion financial assistance to these families returning to their villages last year, while allocating a total of TL 5.6 trillion in funds for these families from its budget in 2002. As spring has arrived, more people are expected to return the villages from where they left in fear of terrorism in the past.

As houses and barns are being reconstructed, the farmers have started preparing for farming. Some 25 families, who left Mardin's Meseli Village 10 years ago, returned to their village and started to reconstruct their houses with the cement, iron and other materials given by the district governor's office.

[...]

The governor of Mardin's Mazidagi district, Mehmet Ozmen, said they were providing equipment assistance to the families returning to their villages and added that they were also continuing infrastructure works.” (Turkish Daily News 4 April 2002)

Official figures for June 2000 to December 2001: 35,513 returnees

"According to the Interior Ministry, between June 2000 and December, 35,513 persons had returned to 470 villages or pastures; over 6,000 homes had been constructed and the state had given over \$3 million (4 trillion TL) in construction materials or other supplies. In August the governor of the state of emergency region estimated that since 1999, 18,600 persons had returned to their villages in that region with government assistance, with a total of 5,853 houses constructed for the 'citizens who were forced to abandon their villages due to terrorism.' In August the Tunceli provincial governor announced that he had given permanent settlement permission to 30 villages during the year and temporary settlement permission

to 50 others. The governor stated that these villages would be resettled by families who migrated to big cities, noting that a total of 151 villages in the province had been abandoned or evacuated. The province provides some public services and financial aid to the returnees. In Diyarbakir 80 families applied to return to a village which was evacuated in 1992; they received financial aid and services from the Government, according to media reports. The Bitlis governor announced that 220 families (952 persons) had returned to 31 villages in 2000, and 35 more villages are scheduled to be reopened. Hakkari provincial authorities have distributed sheep to returning villagers, noting a return to normal economic production after a 2-year period of peace." (U.S. DOS 4 March 2002)

Official figures have been questioned and efforts to develop independent statistics have been blocked (2002)

- National and international NGOs have found statistics on return useless in assessing the progress of return because they are inconsistent and conflicting and do not include a list of villages of return
- Efforts to verify government statistics have been confounded
- In the absence of reliable statistics, it is impossible to make an accurate estimate of the number of genuine returns
- Even if the government's most optimistic figures are correct, only 10 to 20 per cent of the displaced population has returned
- Nongovernmental organizations in contact with IDPs believe that all the government's figures are exaggerated and that relatively few villagers have been able to return permanently

"A cursory reading of government officials' figures on return suggests that villagers are heading home in large numbers, but as more and more upbeat statistics have emerged, the figures have begun to contradict one another. An undated letter sent by the Southeast Anatolia Project (GAP) to the Göç-Der received in May 2001 reported that 220 settlements were being resettled by 26,433 returnees. But Emergency Region Governor Gökhan Aydıner, speaking at a ceremony at Saklat village, Diyarbakır province, on August 7, 2001, said that only 18,600 villagers had returned. The Interior Ministry stated in November 2001 that 30,224 villagers had returned in the previous seventeen months. Government sources informed the U.S. State Department that 26,481 people had returned by the end of 1999, and 35,513 between June 2000 and December 2001, a total of at least 61,994. On April 3, 2002, Emergency Region Governor Aydıner said that villagers had returned to 406 villages and 164 mezra between June 2000 and December 2001. On March 12, 2002, the Interior Ministry said that inhabitants had returned to 294 villages and 159 mezra in that period. The statistics are useless for the purpose of assessing the progress of return, not only because they are inconsistent, but also because they never list the settlements to which villagers have been able to return. Detailed lists would enable observers to compare government claims with the reality on the ground, and would reveal whether villagers are correct in claiming that most of the returns have been to communities that enrolled in the village guard system. A clear example of how partial information can be confusing or misleading is a letter written by the governor of Bingöl to Göç-Der headquarters, dated May 27, 2001, stating that U.S. \$570,000 had been spent on return in that province alone. The expenditure seems to have been mainly on reconstruction of roads, and few villagers have returned in Bingöl province. In a letter of October 25, 2001, Human Rights Watch asked the Turkish government for a detailed breakdown of statistics on return [...], but did not receive a reply.

Efforts to develop independent statistics have been confounded. The central government blocked an attempt by Diyarbakır municipality to collect reliable data about the number, conditions, and aspirations of the displaced. The State Statistical Institute approved the methods used by the municipality in its five-page questionnaire designed for distribution to displaced persons, but the Interior Ministry banned the study because it included questions concerning the reasons for migration and included 'pressure by security forces' as one of the optional responses. In the absence of reliable statistics that are open to analysis, it is

impossible to make an accurate estimate of the number of genuine returns. Even if the government's most optimistic figures are correct, only 10 to 20 percent of the displaced population has returned. Nongovernmental organizations in close contact with displaced persons such as Göç-Der and the Human Rights Association (HRA) believe that all the government's conflicting figures are exaggerated and that in fact relatively few villagers have been able to return permanently." (HRW, 30 October 2002)

Officials estimate 10,000-30,000 returns in 2000

- Rate of returns and return requests has reportedly increased since mid 2000
- Most return applications have been rejected by authorities for security reasons
- The State of Emergency governor claimed that 10,000 people had returned to their villages between June and August 2000
- The Jandarma declared that over 28,000 IDPs had returned to the State of emergency region during the year
- USCR estimates that less than 50,000 persons returned during 2000

"After the middle of the year, there appeared to be an upsurge in the rate of returns and return requests. About 10,000 persons returned to their villages between June and August, according to the state of emergency governor. In July he declared that 65,000 of the 131,000 return requests filed with his office were 'appropriate'. According to the Jandarma, over 28,000 persons returned to the OHAL [State of emergency] region and adjacent provinces during the year. They state that there are an additional 238,900 applications for returns to 621 villages and 461 smaller hamlets, but only about a third of these claims are appropriate (mainly for security reasons) at this time. a July HADEP 'migrant commission' report claimed HADEP had over 23,000 additional requests for returns, each petition representing a family. However, some persons included on return petitions may not have been aware that a request had been made for them. Furthermore, many evacuees have neither the will nor the economic means to return." (U.S. DOS February 2001, sect. 1g)

"Although violence ebbed in 2000, returns of displaced people during the year appeared to be modest and sporadic, although returns did appear to increase toward year's end. By mid-year, more than 50,000 families, representing an estimated 400,000 people, had applied for permission to return to their places of origin, but nearly two-thirds were ruled 'inappropriate' applications, apparently because of continuing security concerns. By year's end, fewer than 50,000 were believed to have returned to their places of origin." (USCR 2001, p. 263)

Government official reports over 46,000 have returned to the 392 villages the south-eastern provinces (August 2003)

- Diyarbakir Governor told the Anatolia news agency that over 46,000 IDPs had been able to return to their villages in Diyarbakir, Mardin, Sirnak, Batman and Siirt
- The governor claimed that there were no obstacles to return, denying claims to the contrary
- The governor claims a total of 12,666 people have returned to their villages in Diyarbakir to date, emphasizing that the state provided TL 1.5 trillion in assistance to help them rebuild their houses

"Daily life has started to revive in 392 villages in the Southeastern Anatolia region thanks to the Village Return Project. Over 46,000 people, who had escaped from the Kurdistan Workers' Party (PKK) terrorist activities, are reported to have returned to their villages in Diyarbakir, Mardin, Sirnak, Batman and Siirt.

Diyarbakir Governor Nusret Miroglu told the Anatolia news agency that there was no problem regarding the return to the villages, denying contrary claims.

[...]

Turkey launched a village return program, after PKK leader Abdullah Ocalan was captured in 1999, for the resettlement of the internally displaced villagers, who went mostly to the big cities of western Turkey or towns around the southeast.

Miroglu said that a total of 12,666 people have returned to their villages in Diyarbakir to date, emphasizing that the state provided TL 1.5 trillion in assistance to help them rebuild their houses.

[...]

Officials are trying to unite small settlement units in order to provide efficient services and are carrying out projects to improve farming and stock breeding as economic problems top the agenda of the region following years of bloody fighting.

A total of 46,281 people returned to their villages in Diyarbakir, Mardin, Siirt, Sirnak and Batman in the past two years while governors' offices provide bricks, iron, sand and cement to villagers to help them rebuild their houses.

Besides these, those who return to their villages are given various plants such as peanuts, vines, walnut saplings and cattle to earn their living.

The state targets to make villagers return to the region but there are serious problems faced in this process. Displaced villagers are keen to resume their former productive live, but after a decade separated from their livelihoods, they do not have the capital or necessary equipment, livestock or seeds, etc.

NGOs also argue that village guards, who were used in the fight against PKK terrorism, implement a new kind of terror in Southeastern cities and villages as they aimed to hinder the village return project.

According to allegations, families who resisted becoming village guards were forced to leave the villages. The Village guards then used the land and houses of those who had left for ten years. After the 'Return to Village' project gained speed, village guards resisted the change and were involved in murders in order to not to return land and other property. " (Turkish Daily News 13 August 2003)

Van province: some 5,000 displaced participated in the Return to the Villages Project, but problems remain (August 2002)

- In Van province, some 5,000 displaced returned under the Return to the Villages Project
- Some families who returned in 2002 were expelled again by soldiers and village guards

"Van Provincial Governor Durmus Koc stated that some 5,000 people have participated in the return to villages project. Koc inspected the Tasyazi village of Gurpinar to which 36 families have returned. The families had moved to the central city of Van because of terrorism, but returned when security and peace were restored in the village.

Stating that infrastructure studies conducted in 14 villages have been completed in a bid to enable the families to return to their homes, Koc said: 'The number of people that have returned has reached 5,000, but this figure will rise to 15,000. The problems facing the families will be overcome. Their houses, which were demolished, will be reconstructed, and we will help them. The citizens who immigrated to Van went through difficult times. They have now returned, and they will have a peaceful and comfortable life from now on. We will give them support to make their own living.'" (Turkish Daily News 1 August 2002, "Return to villages ongoing")

HRFT reported on renewed evacuation after return:

“Villagers from Ünlücü village in Çatak district (Van) alleged that one week after they had been allowed to return to their village on 17 May [2002], which they had been forced to leave in 1999, soldiers and village guards forced them to leave again. Soldiers from Büyükagaç Gendarmerie Station had confiscated the material for construction work and ignored the written permission from the governor. The villagers suspected that the soldiers and village guards would make use of their woods and fields.” (HRFT June 2002)

Bitlis province: IDPs temporarily stayed in schools and tents (July 2002)

- Displaced originally from Bitlis returned there and were sheltered in schools and tents, as long as their houses were under reconstruction

“After many years, Bitlis residents have returned to their village and are temporarily living in schools and tents. The villagers said that encountered many difficulties while living in Istanbul, and could not cope up with the urban conditions, so they decided to return to their homeland. They said that their first aim is to reconstruct their wrecked houses and solve the electricity and water problems. They also want the support of the state in order for this to materialize.

Bitlis Governor Ugur Boran stated that work for the 'Return to the Village Project' is continuing rapidly and pointed out that the villagers want to stay in tents. Boran said that they have provided tents to the villagers through assistance of the Civilian Defense and therefore prevented the villagers from going to city center and spend money on transportation. The governor said the villagers will temporarily live in these conditions until winter and 'we will endeavor to provide all their needs until then.’” (Turkish Daily News 11 July 2002)

Villages were opened to displaced for settlement (August 2001)

- Sirmali and Besbudak villages in Çatak and Gürpınar district were opened for settlement, while aid was given to the villagers
- A total of 384 families with 2,500 people from the Alan tribe returned to their homes in Besbudak village and the surrounding hamlets Karyagdi, Çizgili, Bağlıdere, Baltutan, Arkaç, Geçkalmaz and Atabinen
- 20 members of the Zümrüt family, who had been driven from Konuklu (Duderya) village in 1993, were prevented from going back to their home
- Some families from Yolveren village, who had fled to Germany in 1994, could not return since village guards had occupied their fields

"At the beginning of August Van Governor Durmus Koç said that Sirmali and Besbudak villages in Çatak and Gürpınar district had been opened for settlement. The infrastructure had been established and a total of 600 sheep had been given to the villagers. He argued that the official aid would increase after the end of the economic crisis. Sirmali and Besbudak villages, where village guards from the Alan tribe were living, had been evacuated in 1995 on the allegations that the inhabitants supported the PKK.

During the beginning of summer 384 families with 2,500 people from the Alan tribe, who had gone to Van, returned to their homes in Besbudak village and the surrounding hamlets Karyagdi, Çizgili, Bağlıdere, Baltutan, Arkaç, Geçkalmaz and Atabinen. Reportedly they did not receive the promised help and had to be content with 80 tents from the Red Crescent.

20 members of the Zümrüt family, who had been driven from Konuklu (Duderya) village, Kulp district (Diyarbakir) in 1993, were prevented from going back to their home, although they had permission from the governor. Nesibullah Zümrüt, headman of the village, before it had been evacuated, had appealed to the Governor of Diyarbakir on 29 December 1998 and received a positive answer. On 2 April the family attempted to go back, but was prevented by a lieutenant of Sivrice Gendarmerie Station. The family made another attempt on 28 July and settled in the village. Later the elderly brother Yusuf Zümrüt was called to the gendarmerie station and told that they had been informed not to return. The family went back to Diyarbakir and on 1 August received a second permission from the deputy governor. This time they were told by an officer called Menaf that the gendarmerie did not care about what the governor said and that everybody had to behave according to their orders. Nesibullah Zümrüt went to the Diyarbakir branch of the Human Rights Association (HRA) and complained that they were unable to look after their crops and gardens. He also filed an official complaint against the commander of Sivrice Gendarmerie Station.

Some families from Yolveren (Çêniri) village in Besiri district (Batman), who had gone to Germany after their villages had been evacuated in 1994, wanted to return home this summer. However, village guards had occupied their fields. The victims of the Yezidi faith appealed to the authorities to intervene.

Villagers from Çirali (Heraki) village in Lice district (Diyarbakir) filed an official complaint against those, who set their homes on fire and forced them to migrate. The complaint of 7 August stated that the village had been put on fire in 1992 and 61 out of 68 homes had been destroyed. Representatives of the association Göc-Der said many families had returned this summer." (HRFT August 2001)

Policy

Return or resettlement? (2003)

- The International Federation for Human Rights and Human Rights Watch have expressed concern that the return programmes of the government are actually resettlement programmes
- The Turkish authorities have counted on the creation of “central villages” and “village townships” to implement return
- IDPs who have wanted to return to their hamlets have been told by the authorities that they could do so only if their hamlets were regrouped in new “village townships”
- International organisations have expressed concern that the programmes aim at resettling people in villages dominated by government control, such as the village guards
- There has also been concern that such operations could be used as means to gather international funds under the guise of a “return” programme

“Return to village v. Resettlement: There is an unfortunate tendency to include resettlement operations among so-called ‘Return to village’ projects whereas ‘Return’ and ‘resettlement’ should not be confused. Resettlement, even in the case of people ‘resettled’ in the region from where they were displaced, means that these people will not go back to their house or village. This is the case when the Turkish authorities count on the creation of ‘central villages’ and ‘village-townships’ to implement the return to village projects. In its 2002 reports on displaced persons, Human Rights Watch provided extensive information on these central villages and village townships. The international organisation feared that these initiatives would aim at maintaining control on the people by resettling them in villages dominated, for example, by village guards. It also said that these operations could be seen as means to gather international funds, including World Bank funds, under the legitimacy of the ‘return to village’ objective. The investigation carried out by the FIDH in May 2003 confirmed fears expressed by HRW. For example, people who want to go back to the hamlets which are situated around Sirnak were reportedly told by public authorities that

they could do so only if these hamlets were regrouped in new 'villages-townships'. This perspective is very distressing for these people and do not provide for an incitement to apply for a 'return to village' authorisation.

In Ekinyolu village (Eruh district), 25 people made their application in November 2002 to come back to their village. The government said it would consider the question. In May 2003, these people had no further information on their application.

FIDH reminds that the UN Guiding Principles on Internal Displacement provide that international humanitarian organisation and other appropriate actors have the right to offer their services in support of internally displaced persons, and that such organisations should have unimpeded access to internally displaced persons. However, in practice, Turkish government has consistently cut non-state agencies out of the whole return plans' process and NGOs have never been invited to give their input. Far from providing 'appropriate actors' access to internally displaced persons, the judicial authorities have relentlessly persecuted organisation, including GOC-DER and GIYAV that provide assistance to them." (FIDH July 2003, p.16-17)

See also "Displaced and Disregarded: Turkey's Failing Village Return Programme" Human Rights Watch, 30 October 2002 [Internet]

Implementation of the Return to Village and Rehabilitation Project is slow and inconsistent (2002-2003)

- The latest government programme for the displaced is the Return to Village and Rehabilitation Project (RVRP) was announced in 1999
- The Turkish government has produced numerous return initiatives since 1995, the majority of which have been superficial and which have failed due to lack of funding and political drive
- Aside from a statement from the State Minister for Human Rights, there is a lack of public documentation on the project aims, methods, resources, or timeframe (2003)
- Neither Human Rights Watch nor Göç-Der, the leading organisation in internal displacement in Turkey have been able to obtain any documentation on the 1999 return project (2002)
- Some displaced villagers believe that the Village Return and Rehabilitation Project is a disguised form of forced resettlement, devised to keep them permanently away from their former villages
- The number of areas where access is still prohibited has been reduced but authorisation to return is still difficult to obtain
- IDPs have not received sufficient financial support to return to villages, to fix destroyed properties and to develop basic infrastructure in areas previously subject to armed clashes

"Implementation of the Return to Village and Rehabilitation Project has continued, though at a very slow pace and inconsistently, some regions progressing quicker than others. According to official sources, 82000 people were authorised to return to their villages in the period between January 2000 to January 2003. There is, however, concern regarding the lack of transparency and adequacy of consultation in the development of this project and disquiet about the absence of a clear strategy that explains the project aims, scope and budgetary implications. The number of areas where access is still prohibited has been reduced, but authorisation to return is still difficult to obtain. Although limited financial assistance has been provided to some returnees, there is a more general lack of financial resources to support return to villages, to compensate villagers for the destruction of houses or dwellings and to develop basic infrastructure in areas previously subject to armed clashes." (European Commission 5 November 2003, p.40)

“The latest government program for the displaced is the Village Return and Rehabilitation Project, announced in March 1999. The prime minister’s press introduction for the Village Return and Rehabilitation Project closely resembled that of the ill-fated ‘Village Return Project,’ stating: ‘Within the framework of the project, those families who wish to return to their villages will be determined; infrastructure facilities of the villages will be completed; housing developments will be increased with the labor of families; and social facilities especially in health and education will be completed to increase the standard of living of the local people. Moreover, activities such as beekeeping, farming, animal husbandry, handicrafts and carpet weaving will be supported so that these families can earn a living.’

To Human Rights Watch’s knowledge this is the only publicly available official, written information about the Village Return and Rehabilitation Project, although it was initiated more than three years ago. In the absence of any details on paper setting out the aims, methods, resources, or schedule of what is supposed to be a major construction and rural development project to serve hundreds of thousands of citizens, it must be questioned whether the government is truly committed to the project. Public officials responsible for implementing the Village Return and Rehabilitation Project, when contacted by Human Rights Watch, were unable to supply a policy paper or project summary. Neither the leading nongovernmental organizations in the field of internal displacement in Turkey (GIYAV, Göç-Der, HRA), nor those municipalities hardest hit by migration from the countryside, have received comprehensive information about the scope and work of the Village Return and Rehabilitation Project. The lack of written information reinforces Human Rights Watch’s impression that the Village Return and Rehabilitation Project is not a major coordinated interdepartmental enterprise, but rather an ad hoc scheme that officials can quote in response to questions put by parliamentary deputies, journalists, and intergovernmental organizations.

Some displaced villagers suspect that the Village Return and Rehabilitation Project is a disguised form of forced resettlement, devised to keep them permanently away from their former villages. These suspicions were increased when Prime Minister Ecevit submitted a draft housing law to parliament in July 1999, four months after introducing the Village Return and Rehabilitation Project. The draft law would provide for the resettlement of former nomads, Turkic immigrants from abroad, and people internally displaced by security forces, but it ensures that anyone who refuses to go where they are told loses immediately all rights to rehousing. Article 13 of the draft law states that the Council of Ministers will decide who is to be counted as having been moved ‘for reasons of national security’ in accordance with recommendations by the National Security Council. Article 14 states that ‘if [the displaced] do not accept to live in the places directed by the Office of the Prime Minister, their rights [to resettlement] will be cancelled by the local housing commission. Families in this situation may not make a second housing application.’” (HRW 30 October 2002)

“The Turkish government has produced various return initiatives since 1995, all badly flawed by lack of funding and insufficient political drive.[...] Their main purpose was apparently to give an impression of government action to deflect questions from petitioning villagers, parliamentary deputies from the southeast, and foreign diplomats, as well as pressure from metropolitan populations and municipalities concerned about the influx of peasants who squat on vacant land and put up gecekondus, or shanty dwellings.

Tansu Çiller’s government announced a ‘Central Villages Project’ in November 1994, but this was indefinitely postponed when it failed to receive Council of Europe funding. When the ‘Village Return Project’ was announced in 1995, State Minister for Human Rights Algan Hacaloglu urged his colleagues working on the scheme to ensure that this time there should be a genuine effort to solve the problems of the displaced: ‘We should stop making fake, artificial attempts just to convince the European Parliament,’[...] he declared, but nearly a year later, the governor of Diyarbakir province conceded that ‘no matter how regrettable, from that day [of the announcement of the project] to today nothing has been done and the project remains on paper only.’” (HRW, 30 October 2002)

Planned feasibility study on the “Return to Village and Rehabilitation Project” sheds little light on return policy (2002)

- The Office of the Prime Minister delegated management of the Village Return and Rehabilitation Project to the corporation South East Anatolia Project (GAP)
- As part of the return initiative, the Office of the Prime Minister, through GAP, requested research on the problem of displacement to be conducted by the Turkish Social Sciences Association
- HRW investigations into the planned feasibility study found that it is not designed to answer key questions, including the number of IDPs and the causes and reasons for displacement
- There has also been concern that the survey may be based on an unrepresentative sample of the displaced
- Experts interviewed by HRW also noted that the feasibility study has not been prepared in light of the Guiding Principles on Internal Displacement

“The Office of the Prime Minister delegated management of the Village Return and Rehabilitation Project to the giant South East Anatolia Project (Güneydogu Anadolu Projesi-GAP). [1]
[...]

Once tasked with the project of designing a return program, GAP decided that it was necessary to collect further information about the scope of the problem, and to this end put the task of preparing a feasibility study out to competitive tender. The tender was awarded to the Turkish Social Sciences Association (TSBD), a nongovernmental organization that finances and implements a wide variety of social research. In October 2002, most of the project data and feasibility plan had been delivered to GAP, with some cartographic work still outstanding. The TSBD director, Professor Oguz Oyan, described the feasibility study as developing ‘a standard approach without going to a lot of expense. An attempt at something practical.’ His staff was engaged in a one-year project to collect data and make proposals for a model for future village reconstruction.

They had talked to displaced people in provincial centers and had selected one hundred empty villages from a list of three hundred for more detailed study. Professor Oyan emphasized that one hundred was the number of villages chosen for deeper study and not the number of villages considered appropriate for repopulation. From the initial one hundred, they selected one village per province in the affected region, and for each of these the association was developing a reconstruction plan on the basis of large scale maps. According to Professor Oyan, the plans were mainly focused on the physical aspects of reconstruction—the layout of the houses and infrastructure including electricity and water supply, roads and sewage disposal—and did not go much into details of implementation.
[...]

First of all, the project leaves the most basic questions unanswered: how many people were displaced, how were they displaced and who are they? The Parliamentary Commission on Migration shed some doubt on the official figure of 378,335, calling it ‘problematic’ and suggesting that it may be an underestimate. Göç-Der estimates the number of displaced to be four-and-a-half times higher, at 1.7 million. The TSBD did not know whether the government had kept any complete register of displaced persons. In the absence of such information about the true number of people displaced, it is difficult to see how the government can set an effective budget for reconstruction. Without contact details for the displaced, government agencies will not be able to communicate with them in order to collect information, nor keep them informed of policies and potential benefits for which they qualify. If the government ignores the original circumstances of the displacement, it ignores its responsibility to provide full restitution. [T]he U.N. Guiding Principles state that the government has a duty to restore property and possessions, and that where this is not possible, it should provide or assist people to obtain appropriate compensation or another form of just reparation. In his meeting with Human Rights Watch, Professor Oyan was skeptical about the possibility of such reparation given Turkey’s financial situation. He cautioned that the feasibility study had not been prepared in the light of the U.N. Guiding Principles, and that the TSBD’s allocated task was ‘not concerned with human rights though we are sensitive to human rights.’

It seems likely that the research sample may be at least unrepresentative and perhaps badly lopsided. The TSBD's plan will be based on interviews with displaced persons, and if this group is not representative of the overall population of displaced persons then it will produce misleading results. The TSBD identified the villagers for interview and the settlements for consideration as models from lists and petitions supplied by local governors. Local governors clearly have better relations with former village guard villages displaced by PKK activities than with non-village guard communities displaced by the security forces, and they usually do not accept petitions from villagers who declare that they were displaced by security forces.

[...]

In view of the description of the feasibility study as a 'practical' scheme, it is curious that the government had not given the TSBD a budget for the project, and had not asked the TSBD to prepare one. (Professor Oyan said that in spite of this the TSBD was anyway considering preparing a budget.) The lack of budgetary information is not consistent with the stated objective of avoiding expense (unless the aim is to avoid expense altogether) and puts a question mark over the government's commitment to implementation.

Finally, the Village Return and Rehabilitation Project is moving so slowly that there must be some doubt whether it will ever bring practical benefit to the displaced. The TSBD planned to finish its initial field study in March 2002 (five years after the Return Project's original conception). It would then provide an assessment of one hundred villages and proposals as to how the return process might be carried out in twelve model villages—no more than 12 percent of the emergency region governor's estimate of evacuated villages (820), or 3 percent of the figure for all evacuated settlements including mezra (2,345).

The relevant ministries would then presumably begin deliberation about implementation of the program as a whole, and bargaining for resources. As this report went to press, in October 2002, it is unclear whether this process was in train. Until a comprehensive and fully-funded plan is up and running, villagers will remain cut off from their homes and livelihoods. The Parliamentary Human Rights Commission reported that the Interior Ministry's Village Return and Rehabilitation Project goal for 1999 was to secure the return of 1,017 families.⁹⁹ At this rate, the 10,539 families who have petitioned Göç-Der might expect to wait up to a decade before they could return to their homes, unless, as is widely feared, the Village Return and Rehabilitation Project will be limited to only a small number of selected settlements.

The Village Return and Rehabilitation Project has taken five years to get twelve model villages onto the drawing board. Those villages, for the reasons given above, are likely to be villages favored by the state because of a history of village guard membership. It would not be surprising if the other villagers, who do not have a special relationship with local governors and security forces, never benefit from the Village Return and Rehabilitation Project, and never return." (HRW, 30 October 2002)

[Footnote 1] GAP is a corporation under the authority of the Office of the Prime Minister that is primarily responsible for coordinating the program of large-scale hydro-electric and irrigation projects in southeast Turkey.[...]

Parliament declared return policy comprehensive and voluntary, but human rights activists disagreed (July-August 2001)

- The Turkish parliament stated that the project was based on voluntariness, unity, non-evacuation of settlements, development, and aid
- It was maintained that there were no obstacles to those who wanted to return, and that the village guards were part of the project
- A member of the HRC said that he had witnessed how the return to the villages was hindered and that the military authorities in particular imposed difficulties for the return

- The governor stated that 5,853 houses had been built and 18,600 people had returned to their homes

"Deputy chair of the Bliss Party (SP) and member of the Human Rights Commission in the Grand National Assembly, Mehmet Bekaroglu tabled an official question to Prime Minister Bülent Ecevit on 9 June relating to the project 'Return to the Villages' and received an answer by State Minister Mustafa Yilmaz on 5 July.

The answer stated that the 'return to the villages' project was continuing according to the decree by the Prime Minister of 27 January 1998. The basics were named as follows:

- * The return is a voluntary act.
- * The principle of unifying settlements is being followed. It will not be allowed to establish sub-units to the villages.
- * Priority will be given to those settlements that do not require additional measures for security.
- * The settlements to be reopened for accommodation will not be subjected to migration for reasons of security or other reasons.
- * Priority of additional security measures and housing will be given to those settlements, whose inhabitants are without a home.
- * During all these activities efforts for economic, social and cultural development will continue.
- * All kinds of aid will be given to those citizens, who after leaving their villages build their own house in forms such as 'Help for those, who build their own home'.

Mustafa Yilmaz added that the last item had not been applied, because the families involved had not shown an interest in it. He said that the 'return to the villages' project had started in 1999 and was still continuing.

Minister Mustafa Yilmaz mentioned the fact that 9 families had been settled in Asagi Beyan village of Diyarbakir and 68 families had been settled in Kaymakam and Cesme villages of Sirnak. For the provinces Diyarbakir, Batman, Bingöl, Bitlis, Hakkari, Kars, Mus, Siirt and Van a total of 2859 families had been included in the project and the building works of 555 houses was continuing, while investigations were being carried out in 52 villages.

Mustafa Yilmaz maintained that there were no obstacles to those, who wanted to return and argued that after applications handed over to the governors a detailed investigation was carried out on security and social conditions and, if necessary, the families were shown alternative places and everything was done to secure the infrastructure. He stated that the village guards were part of the project and there was certainly no pressure deriving from them or at least there was no information to that effect. The Minister left the question on land mines open.

On 3 August Mehmet Bekaroglu stated that the answer was far from being satisfactory. He said that he had witnessed how the return to the villages was hindered and that the military authorities in particular imposed difficulties for the return. Mehmet Bekaroglu argued that a return to the villages was not possible as long as the village guard system existed.

Mehmet Bekaroglu reported that he had carried out inspections in Bingöl, Tunceli and Diyarbakir province. He had talked to people, who wanted to return to their villages, but were prevented from doing so. He said that the military authorities were discouraging the people by saying that the area was not safe and they could not guarantee for their security. 'The commander may say 'yes' or he may say 'no'. But since the answer is 'no' the people don't go back to their places.'

Mehmet Bekaroglu called the material aid provided by the governors arbitrary and demanded that this must change, if people are to be encouraged to return. He further said that one should stop to look at the people as 'potential criminal' and that it was high time for the people to get back to their homes.

Regarding the official answer Mehmet Bekaroglu complained that no answers had been given to the number of applications made so far; no details had been provided as to how the return is being planned. Figures on the money given to the governors were missing. He reminded of an incident in Hakkari, when 6 villagers went to collect nuts and were found dead. He asked for an investigation into this incident to find out, who the murderers were.

On 7 August Gökhan Aydiner, Governor for the Region under a State of Emergency talked during a ceremony in Saklat village, Kocaköy district, Diyarbakir stating that the Ministry of the Interior had made available TL 3.2 billion for the project 'Return to the Villages'. 5,853 houses had been built and 18,600 people had returned to their homes. For Diyarbakir the figure was 3,000. In July 900 people had returned home. Saklat village had been evacuated in 1992 and was opened for accommodation again in May.

In July and August allegations that local governors forced the enforced migrants, who wanted to return to their villages, to sign papers. Lawyer Serdar Talay, chairman of the Diyarbakir branch of Göc-Der, said in July that the villagers were forced to sign statements saying, 'I left my village because of the pressure of terror. I want to return to my village and since there is no more pressure from terror I do not ask the authorities for any help.' Mr. Talay demanded that such a practice should be abandoned, the state of emergency should be lifted, the area should be cleaned from mines and the enforced migrants should be furnished with all constitutional rights." (HRFT August 2001)

Return and resettlement programmes

Overview of government return initiatives (1994-2003)

- The first major plan initiated by the government in 1994 attempted to encourage return to a number of "centralized" villages
- The second plan, announced in 1995, the 'Return to the Village Project of the Southeast Restoration Project' was designed to resettle the displaced population in stages to relieve the pressure on the cities
- The third plan was to provide assistance to displaced persons to return to their villages or relocate to new, centralized villages in the region
- The government's return policy and projects have been overwhelmingly critiqued for being consistently under-funded and ill conceived and falling far short of established international standards
- The return projects have also frequently required displaced people to fill out special applications to return which are subsequently rejected by the government
- In other cases, villagers given permission by the provincial governors to return to their homes, and 'authorised' returnees have often not been allowed to enter their villages by the local military

The Centralised Villages Project (1994)

"The first major plan was aimed not at enabling the displaced to return to their original villages, but at concentrating them in more easily controllable large settlements. This was the '*Centralised Villages Project*': a plan to settle mountain villagers into large 'centralised' villages near population centres.[...] Announcing the programme in November 1994, Prime Minister Tansu Çiller said that as a first step, the Government would create 'secure areas' in Southeast Turkey for 12,000 displaced families. The Government says the programme is designed to consolidate some of the abandoned hamlets in order to make it easier 'to deliver infrastructure and services and attract jobs'. [...] However, the Turkish authorities will not agree to return to the previous set up of Kurdish communities, particularly those small isolated communities in the mountains, fearing a return to armed struggle.[...]"

In order to fund the Centralised Villages Project, Turkey applied for 10 trillion liras (an estimated U.S. \$275 million) from the Council of Europe. In its application, the government avowed that the programme would be entirely voluntary, promising to establish resettlement sites in the provinces of Batman and Diyarbakir. When Turkey's application was rejected, with the Council of Europe expressing concern that the funds would be used to coerce people to resettle, that particular project foundered.[...]

Despite this setback, Turkish governments have continued to try to create centralized villages aimed at establishing manageable settlements ancillary to towns and cities in the Southeast as a solution for displaced Kurds.

[...]

Some centralized villages have indeed been created. By November 2000, the resettlement programme had spent U.S. \$100,000 on a pilot project to rebuild Cetinkol, a village located outside of the provincial capital of Siirt. Other centralized villages have been established at Basagac, Konalga and Bayrakli. By June 2001, the government had established a system of satellite settlements organized around the larger urban centres of Southeastern Turkey. The US State Department Report for 2001 stated that 4,000 people lived in the centralized villages.[...]

[...]

The centralized village project has encountered considerable criticism from many quarters. [...] The programme was developed without consultation with those affected or any public debate, and was apparently prepared in its entirety (including field research) in only 9 weeks.[...]

Crucially, the project has been criticized as inappropriate for the region and inattentive to its people's culture, skills or desires.[...] In some cases, it is village guards that have moved in rather than displaced persons.[...]

[T]he government has been accused of a lack of commitment to the programme and of intentionally delaying the return of displaced villagers by withholding funds from the project; by the spring of 2000, the government had dispensed only 10% of the project's estimated budget of TL 700 million.[...] The military and regional State of Emergency officials also actively opposed the programme.

Göç-Der has stated that almost 40% of internally displaced persons have never heard of the Centralised Village project. Among the ones who heard about this project only 6% of them agreed to go to the city-village [...]"(KHRP/Goç-Der/HRA September 2003, p.41-43)

The Return to the Village Project of Southeast Restoration Project (1995)

"In 1995 the Government proposed the 'Return to the Village Project of the Southeast Restoration Project'. The new programme was designed to resettle the displaced population in stages so as to relieve the pressure on the cities. In order to mitigate the economic burden that would be borne by those who relocated, the programme provided financing to encourage traditional agrarian occupations, such as bee keeping, animal husbandry, and weaving. The government proceeded with the programme and in November 2001 Interior Minister Kazim Yucelen declared that the government had allocated 3.2 trillion liras for the *Return to the Village Project*. [...] But once again, the military and regional State of Emergency officials claimed that the project posed serious security risks.[...] As a result, individuals wishing to return were required to submit special applications. Only a few villagers have been given permission by the provincial governors to return to their homes, and 'authorised' returnees have often not been allowed to enter their villages by the local military.[...] Sharp criticism came from Human Rights Watch, who suggested that the project was largely fictional with most abandoned settlements remaining no-go areas, which in some cases have been occupied by government-armed village guards.[...]" (KHRP/Goç-Der/HRA September 2003, p.43-44)

East and Southeast Anatolia Action Plan (2000)

"In a further plan announced by the Turkish government, the 'East and Southeast Anatolia Action Plan' began in May 2000.[...] The plan provides assistance to displaced persons to return to their villages or relocate to new, centralized villages in the region. The Turkish Daily News reported in May 2000 that 7.5

trillion Turkish lira had been allocated to the East and Southeast Anatolia Action Plan, whereas according to the Mayor of Diyarbakir, 700 trillion was actually needed to address the problem.[...] In November 2001 Interior Minister Kazim Yucelen announced that programmes relating to health, education and social, economic and cultural fields were underway within the framework of the East and Southeast Anatolia Action Plan.

Human Rights Watch has stated that these schemes, 'have consistently been under-funded and ill conceived, falling far short of established international standards. In fact, it is difficult to avoid the conclusion that the government's main goal is to gain time and wear the villagers down to a state of resignation. The Village Return and Rehabilitation Project announced in March 1999, for example has since yielded nothing more than an unpublished feasibility study for return to twelve model villages. A mere twelve, when even according to official statistics it is acknowledged that more than three thousand villages and hamlets were evacuated'". (KHRP/Goç-Der/HRA September 2003, p.44-45)

For more information:

- ***"Internally Displaced Persons: The Kurds in Turkey", September 2003, Kurdish Human Rights Project, see the [KHRP's website](#) [Internet]***
- ***"Turkey fails displaced villagers" Human Rights Watch, 30 October 2002 [Internet]***

HRW questions implementation of the Village Return Project (2003)

- Returning villagers have been systematically barred from their land
- The government's return projects have been consistently under-funded, ill conceived and have fallen short of international standards
- The Village Return and Rehabilitation Project has produced nothing more than an unpublished feasibility study

"Again and again, village guards have barred returning villagers from their land, and in several recent cases, even killed them. In July 2002 Yusuf Abdurrahim and Abdulsamet Unal returned with their families to Nureddin village in Mush (ph) Province to collect their hay crop. A truckload of village guards came to stop them gathering the hay and began to beat the males. The relatives scattered, but heard gunshots shortly after. All three men had been shot dead.

When pressed, the Turkish government pumps out inflated return statistics and periodically announces initiatives for return. But these schemes have consistently been underfunded and ill conceived, falling far short of established international standards. In fact, it is difficult to avoid the conclusion that the government's main goal is to gain time and wear the villagers down to a state of resignation." (CSCE, 10 June 2003)

"The Village Return and Rehabilitation Project, announced in March '99, for example, has since then yielded nothing more than an unpublished feasibility study for return to 12 model villages. That's just 12, when even according to official statistics, it's acknowledged that more than 3,000 villages and hamlets were evacuated.

What is particularly frustrating in all this is that because the government's schemes don't meet international standards, in particular the U.N. guiding principles on internal displacement, no international organizations want to get involved with them. The World Bank, for example, looked into funding a return-related project, but backed away once it determined that the Turkish scheme wouldn't fully respect returnee rights.

Other potential donors have encouraged Turkey to develop appropriate projects for return. For example, Council of Europe's reporter recommended that the development bank of the Council of Europe

Development should consider return projects in the southeast. And the Turkish government should have seized that invitation with both hands and done something with it. But instead of helping villagers to get international assistance, the government, with its flawed plans, is actually standing in their path.

A fair and effective return program would also serve Turkey's interest in accession to the European Union. In 18 months time the E.U. will decide whether or not to proceed with Turkey's application on the basis of its performance on a range of human rights indicators, including provisions for the return of the displaced.

The E.U. has called for a comprehensive approach to reduce regional disparities, and in particular to improve the situation in the South-East, as a short-term priority for Turkey on the road to E.U. membership. So E.U. resources should be very likely made available to help Turkey meet this goal." (CSCE, 10 June 2003)

More central villages to be established in Eastern and South-eastern Anatolia (2002)

- The Turkish authorities launched a joint project to set up five "central villages" in the Eastern and South-eastern Anatolia regions, designed to gather the scattered settlement units in these regions
- The regional governor stated that the villagers had accepted to move and said that every family would be given land, a housing loan, and facilities providing health, social and cultural services
- A parliamentary member stated that central villages inappropriate to local needs

"The Interior Ministry Southeastern Anatolia Project (GAP) Development Administration and the Rural Affairs General Directorate and the GAP regional governors have launched a joint project to set up five 'central villages' in the Eastern and Southeastern Anatolia regions.

"Designed to gather the scattered settlement units in these regions, the project aims at lowering the number of these units in the rural areas and providing improved services. In the scope of the project, five central villages will be set up in Diyarbakir's Cungus, Bingöl's Karlıova, Erzurum's Karayazı, Hakkari's Cukurca and Siirt's central districts.

Diyarbakir Governor Cemil Serhadli told the Anatolia news agency that they had conducted researches in 21 provinces, adding that the project would first be implemented in these five provinces. Serhadli said that they were carrying out land sequestration studies on the central village to be established in Cungus and added that a total of 216 families, currently living in the Yenikoy, Aydinli, Alpadere, Seferusagi, Bagcilar and Elifusagi villages, will be settled in the central village.

Serhadli stressed that the villagers had accepted to move and said that every family would be given 1,000 square meters of land free of charge in the central village. They will also be provided with a TL 6 billion long-term housing loan at low interest rates.

Serhadli also said that there would be many facilities providing health, social and cultural services in the central village. Pointing out that job opportunities would also be created in the villages, Serhadli noted that wine plants, marble workshops and dairies would be established." (Turkish Daily News 25 January 2002)

"Several 'central villages' have been founded or are planned: at İslamköy and Çüngü° in Diyarbakır province, Karlıova in Bingöl province, Karayazı in Erzurum province, Ba°ağaç in °ırnak province, and Konalga in the district of Çatak, Van province. Shortly after it opened, Konalga village was criticized by Van's parliamentary deputy, Hüseyin Çelik, as being inappropriate to local needs. He stated that villagers were not happy to live so far from their lands and were insufficiently provided with agricultural buildings. He added that the villagers had been induced to accept this form of resettlement by their tribal chief who was also leader of a troop of village guards and brother of the headman. In July 2001 a Human Rights

Watch delegate visited Konalga, a smart development of 383 houses with a population of about 2,300. The houses had piped water, a sewage system, and employment creation schemes including a carpet production workshop and thousands of newly planted walnut trees.” (HRW, 30 October 2002)

The World Bank's position on the Village-Township project (2002)

- Turkey’s application for World Bank funding for its earlier Village Return Project in the mid-1990s was turned down for reasons that the Bank has not disclosed
- In 2001, there was indication that the WB would support the Village Township approach
- HRW expressed concern about the possible WB funding of a project that was flawed
- The World Bank informed HRW that the village-township approach was distinct from the Village Return and Rehabilitation Project and central village projects
- In 2002, World Bank officials informed HRW that the bank was avoiding involvement with village-township schemes in areas that had suffered internal displacement
- ON this basis had decided not to fund the Mus and Siirt projects
- It did intend to fund the project in areas where there had been no displacement

“Turkey’s application for World Bank funding for its earlier Village Return Project in the mid-1990s was turned down for reasons that the Bank has not disclosed. Now Turkey is making a new application for international finance—for the Village-Township project. When Prime Minister Ecevit attended the initiation of the the first village-township project at Mesüdiye, near Bolu, on the Black Sea coast in September 2000 (far from the southeast), he introduced the scheme as one that would combat, and even reverse, migration from the country to the city. The government had identified lack of rural infrastructure as one of the chief causes of migration. This scheme funded the provision of health, education, and cooperative agriculture and industry facilities. Ten villages that would not have warranted such investment on an individual basis are to share these health centers, schools, and agricultural storage facilities.

[...]

The World Bank’s representative in Turkey, Ajay Chhibber, attended the opening ceremony of the Mesüdiye project in November 2001 and, according to the Turkish newspaper *Akşam* (Evening) of November 22, 2001, spoke optimistically about providing U.S.\$300 million finance for village-townships elsewhere in Turkey. By January 2002, the World Bank had a team in the country collecting information for a proposal.

There is little information available about the aims, methods, and budget for village-townships. However, in his opening speech, the Prime Minister made it clear that some village-townships were planned for the southeast, and that they were to be part of the government’s plan for the return of the internally displaced. Human Rights Watch wrote to the World Bank in February 2002 expressing concern about its possible funding of a project that was an integral part of the Turkish government’s flawed 'return' arrangements, noting that the government had failed to fully inform the public about its plans and was not consulting displaced villagers, nongovernmental organizations working on their behalf, or professional bodies in the region.

The World Bank replied to Human Rights Watch stating that the Turkish government had emphasized that the village-township approach was distinct from the Village Return and Rehabilitation Project and central village projects and that since there would be no overlap between the village-townships and the other projects, there should be no grounds for concern. The World Bank’s letter to Human Rights Watch stated that the problems of the internally displaced were the concern of other U.N. agencies that 'lead the effort in collaboration with the Turkish government.' Unfortunately, as will be seen below, the other U.N. agencies in Turkey have little involvement in the return process.

[...]

Human Rights Watch fears that the Village-Township Project may be used to channel funds into unsatisfactory return schemes: that international money received for Village-Townships could be used, for example, to pay for infrastructure such as educational and health resources for clusters of central villages.

[...]

In May 2002, the government announced that it intended to found village-townships in three of the twelve southeastern provinces in which most displacement occurred: Muğ, Siirt, and Van. In August 2002, World Bank officials working on Turkey's Village-Township application informed Human Rights Watch that the bank was scrupulously avoiding involvement with village-township schemes in areas that had suffered internal displacement and on this basis had decided not to fund the Muğ and Siirt projects. It did intend to fund the project in Şanlıurfa, Van province, however, since there had been no displacement in this area.

In distancing itself from the government's problematic return plans, the World Bank's principled approach has left it in the awkward position of deliberately withholding funding from what most observers agree is the most pressing problem in the southeast. Hundreds of thousands of villagers are either living in poverty in the towns and cities or are rebuilding their homes and livelihood with little or no help from the government that (in most cases) burned them out in the first place, and no financial assistance or expertise from the major international organizations. It is to be hoped that the World Bank will now put pressure on the Turkish government to redesign its return program, and bring it into a form that the World Bank and others would feel confident in supporting.

[...]

In keeping with the Bank's operational policy on Development Cooperation and Conflict, the World Bank is in a position to engage directly with the Turkish government to encourage sound projects for return that are in keeping with the U.N. Guiding Principles. Positive World Bank involvement in the Village Return and Rehabilitation Project could serve as a catalyst for ensuring that the government's return efforts comply with such standards." (HRW, 30 October 2002)

Displaced often receive support from family members (January 2002)

- Due to strong family ties, IDPs find support from relatives after being forcibly displaced
- Underlying factors of this family support system is the inability to integrate, authorities' failure in dealing with the problem, and the absence of a settlement policy

"It is observed that the migrants generally receive support from their kin in their new living environments. Since the kind of migration is a forced mass-displacement, the villagers generally migrate together with other kin. Although the relations among kin have been destroyed to some degree in the urban social settings, there still exists considerable solidarity among the kin. Even it is known that extended-traditional family relations, the solidarity within the family and among the kin performed important roles in dealing with many of the structural crises in the history of Turkey."

(Göç-Der 2002, p.32-III)

The findings reveal that the people from whom the migrants received any kind of support are generally the kin and the amount of support the migrants received from the settled groups of the cities and acquaintances is very low. Being unable to integrate with the settled groups of the cities or public and local administrators's failure in estimating the extent of such a mass-displacement and its consequences, not employing any settlement policy for the large migrant population are important factors leading the migrants use their own possibilities and kinship relations in settling in their new living environments." (Göç-Der 2002, pp.32-33-III)

The "central villages" or "village-town" relocation scheme (1994-2001)

- The project aims to settle people from mountain villages into large centralized villages on state lands under the surveillance of security forces
- Several problems affected the implementation of the project including lack of international support, lack of consultation with the beneficiaries, and deficient planning
- Only 4,000 displaced persons were living in such central villages by the end of 2000
- There are reports that villagers are admitted to central villages only if they join the village guards

The Central village project was announced by Prime Minister Tansuiller in November 1994

"The Village Centers (*merkez köy*) Project was intended to settle people from mountain villages into large centralized villages on state lands near major population centers. The state planned to provide housing and arable land based on loans to be paid back within a 15-to-20 year period. Although the general outlines of the plan were not geared specifically to the displaced (or even to southeastern Turkey), in announcing the plan, Prime Minister Tansuiller said that its first beneficiaries would be 12,000 homeless families from Ovacik. The Netherlands Kurdistan Society traced the history of the idea of a centralized villages in Turkey:

Similar projects have been proposed in the 1970s in more peaceful circumstances, both by the left-of-centre Republican People's Party (CHP) of Mr. Ecevit and the right-wing Nationalist Movement Party of Mr. Türkeş. Then named 'village-town' (köykent) and 'agricultural town' (tarm kent), the foreseen large settlements were to provide the rural population with better infrastructure and employment opportunities than would be possible in the myriad of existing villages and hamlets. Never implemented, the idea was revived in 1992 or 1993 by the late President Turgut Zal, who posthumously published position paper on the Kurdish question recommended the massive resettlement of Kurdish mountain villages in more easily controllable large settlements.

The government requested \$278 million from the European Resettlement Fund of the Council of Europe to implement the Village Centers Project. It reportedly failed to secure the funding, and, therefore, did not move forward with the project." (USCR 1999, pp. 20-21)

"[T]he Government lacked a clear will to return all displaced villagers to their original homes and was still pressing forward with its projects for 'central villages' (köykent), into which some villagers would be permanently resettled on government land in communities under the eye of the security forces. In any event, returns to villages were slow: the U.S. Department's annual human rights report for 1999 quoted a government figure amounting to no more than 6.59% of the Parliamentary Commission's conservative figure." (IHF 2001, p. 303)

"The victims of forced displacement did not show much interest in official projects such as the project of central villages or village-town, that were developed by the government in order to present conditions for return. These projects were developed without the wish and intent of the victims and rather than securing an atmosphere of social peace and trust only represented the official ideology. Considering the rural way of productivity they also do not carry much weight for the future. All kinds of criticism and alternative models for solution that either the victims themselves or NGOs developed, were not taken into consideration.
[...]

In a speech of 12 December [2000], Diyarbakir Governor Cemil Serhadli accepted the fact that the village-town project had not raised much interest. He pointed out that in Diyarbakir alone, the building of 5,864 houses was still continuing and added that out of 23,000 people who had asked to return to villages in Diyarbakir province only 3,000 had done so. The governor did not deal with the criticism on conditions and permission for a return and claimed that the migrants wanted to stay in town. 'Some are sending their

children to school and other have set up their own work. The youth has become used to life in town.' However, the longer necessary steps are not being taken to allow for the return of the migrants and as long as they are forced to move to other settlements the problems of them will only increase. (Human Rights Foundation of Turkey January 2001, sect. 2)

"The government's organized return program appeared toward establishing heavily guarded and controlled 'central villages' in the southeast. About 4,000 displaced persons were living in such central villages at year's end." (USCR 2001, p. 263)

"The only civilian project (even though partly) of the government on the issue of forced displacement presently is the project for building 'City Villages' (Köy Kent) or concentration and urbanisation of groups of villages in pre-determined locations. The implementation of the project has started without any public or political debate. The Chairman of the Chamber of Agricultural Engineers under the TMMOB, Prof. Dr. Gürol Ergin, commented in a speech he made in February that the project had no chance of success even within its own logic. He emphasised that rural development was one of the prerequisites of return to villages, and that people should be able to return on voluntary grounds. In this sense, he said, the State of Emergency regime should be abolished and the land should be cleared of mines. Prof. Ergin also projected that the villagers should be given monetary aid of 18 billion TL for reconstruction. He commented that huge amounts of public funds were spent for the project without any discussion in detail or in general, implementing technically insufficient and badly prepared projects on the basis of commands. He also commented that even the defenders of the 'Köy Kent' were not taking it seriously. He said, the fact that the entire project was prepared within 9 weeks including the field research justified concerns about the quality of the project." (Human Rights Foundation of Turkey February 2001, sect. 2)

"It appears that resettlement into central villages may be conditional on security checks. In May 1999 Human Rights Watch was informed that villagers had been told that they would not be admitted to the 'central village' of Konalga village, near Van, unless they agreed to join the village guard corps." (HRW September 2000, endnote 52)

Opinion of the Chairman of the Parliamentary Committee on Displacement in Southeastern Turkey, Mr. Hasim Hasimi, Member of the Turkish Grand National Assembly

"TDN: What do you think about Prime Minister Ecevit's Village-Town project?

HASIMI: There are two striking examples that put on record that the Village-Town does not work. One of these involve the Dogankent experience in Hakkari in 1994. The Dogankent settlement was built for the inhabitants of the Uzungecit area. However, people did not settle in Dogankent. They migrated to Van. This is because there were no resources in Dogankent which would enable them to earn a living. The second example involves what happened in Sirnak's Basagac Village six months ago. That village [built to serve as a central town to provide basic urban services to the villages in the vicinity] lacked drinking water. The settlements get constructed in such an unplanned, unprogrammed manner.

Furthermore, the Village-Town project is not in line with the realities of the East and the Southeast. At that time due to security problems villagers were unable to go to their fields or vegetable plots. The project envisages to merge several villages into one. And people would go to their hamlets, fields or vegetable plots in the morning and return in the evening. But there wouldn't be enough time for them to do that. Also, there is another hazard. When you bring together the population of several villages how will you enable them to earn a living? Due to local factors people have blood feuds and some other disputes and, as a result, avoid being together. They go away and set up a hamlet of their own. When even the inhabitants of the same village who know one another and are even related to one another cannot live together, how can people who do not know one another get along?

There is no sense in continuing to stubbornly implement a project that has met with failure right from the start. I say that the money to be spent on that project will be wasted." (Turkish Daily News, 30 January 2001)

Obstacles to return and resettlement

Overview: Return remains a hazardous process (2003-2004)

- Most displaced people cannot return due to paramilitary village guards and uncleared mines or because they cannot afford to restore their homes and local infrastructure
- Provincial authorities cited security concerns as a reason to continue to deny villagers access to fields and pastures for grazing
- Human rights activists, villagers, and some southeast members of Parliament claim some displaced villagers were not allowed to return unless they signed a government-issued document
- IDPs were forced to sign a document stating that they fled their homes due to PKK terrorism and not to government actions, and attest that they would not seek Government assistance to return
- Village guards occupied homes abandoned by IDPs and attacked or intimidated IDPs attempting to return to their homes with official permission
- Twenty-four village guards are on trial for murder but there has been a general reluctance to convict village guards and other members of the security forces
- Several returnees were killed by landmines in 2003 and in one case an displaced person and his two sons were shot and killed while returning to their village to collect their hay crop
- The appeals of 178 inhabitants from 31 villages who had appealed to the governor in May 2002 and asked for permission to return but were refused were rejected by the courts

“Lack of progress on the internal displacement of Kurdish villagers remained a key human rights concern. During their bitter armed conflict with the illegal armed Kurdish Workers’ Party (PKK) from 1984 to 1999, Turkish armed forces forcibly evacuated hundreds of thousands of Kurdish villagers from their homes in the southeast. Most villagers are still unable to return to their property because of the threat posed by paramilitary village guards and uncleared mines, or because they cannot afford to restore their homes and local infrastructure.” (HRW 26 January 2004)

“Citing security concerns, southeastern provincial authorities continued to deny some villagers access to their fields and high pastures for grazing, but have allowed other villagers access to their lands. Voluntary and assisted resettlements were ongoing. In some cases, persons could return to their old homes; in other cases, centralized villages have been constructed. Only a fraction of the total number of evacuees has returned. The Government claimed that 94,000 persons returned to the region from June 2000 to October. More than 400 villages and hamlets have reportedly been reopened with government assistance. These figures could not be independently verified. (U.S. DOS 25 February 2004, Sect. 2d)

“Moreover, return is still a hazardous process. Three newly returned villagers were killed by landmines in separate incidents in 2003. In July 2002, Yusuf Ünal and his two sons Abdurrahim and Abdulsamet were killed when they returned to Nureddin village in Muş province to collect their hay crop. Family members reported that a truck full of village guards came to stop them collecting the crop, and that they began to beat the three men. Fleeing relatives heard gunshots shortly afterwards. Twenty-four village guards are currently on trial for the murders, but to date courts have been very reluctant to convict serving members of the security forces, including village guards, for such offences.” (HRW 26 January 2004)

“According to human rights activists, villagers, and some southeast members of Parliament, the Government did not allow some displaced villagers to return unless they signed a document stating that they had left their homes due to PKK terrorism, rather than due to Government actions, and that they would

not seek Government assistance in returning. Village guards have occupied homes abandoned by IDPs, and have attacked or intimidated IDPs attempting to return to their homes with official permission.” (U.S. DOS 25 February 2004, Sect. 2d)

“In Hozat and Ovacik district some 178 inhabitants from 31 villages had appealed to the governor in May 2002 and asked for permission to return. Their applications were turned down and they filed official complaints on the accusation of misconduct of duty. The prosecutor rejected the complaints and the objection of the lawyers of the villagers to a criminal court was turned down in December.

Mehmet Gencer complained to the Van branch of the HRA [*Human Rights Association*] in December. He stated that he was forced to leave Arpinis hamelt in 1993 because of the pressure of soldiers and village protectors. Since his return this year soldiers from Kulludere Gendarmerie Station in Hizan district (Bitlis) were again putting him under pressure. He related the events:

‘On 25 November I left the village in the evening with the permission of the head village guard in order to find my sheep. When I came back to the shed I was shot at and called to the gendarmerie station. I went there with two sons of mine. They were angry because I had left the village. I told them that I got permission from the head village guard, but he did not confirm it. I was released in the evening of the following days.

‘After two days they called me again to Kulludere Gendarmerie Station and asked me about the number of my children. I told them that two sons were accompanying me and the others were living in Van. This time they wanted to know why two sons of mine were in prison. I told them that they were political prisoners and the files existed at the gendarmerie station. Having said this the commander threatened me not to leave the village at night. Otherwise he would shoot me and my sons.’” (HRFT December 2003)

IDPs fear returning to their villages due to the ongoing threat from the village guards (2001-2004)

- The system of “village guards” was introduced in 1985 and it is estimated that there are still about 90,000 village guards as of 2003
- Village guards are armed and paid by the government
- Village guards have consistently opposed the return of IDPs and incidents of threats and murder of returnees by village guards continued to be reported in 2003
- Village guards have also occupied the homes and lands of displaced people
- Several communities who resettled have been displaced a second time because of clashes between civilians and security forces (*jandarma*)
- The Minister of the Interior acknowledged two incidents of illegal occupation of land by village guards and stated that appropriate action had been taken and the property returned to its lawful owners
- The Government claimed that it was in the process of disarming village guards and finding them alternative employment opportunities (2002)

“The system of ‘temporary village guards’ was introduced by amendment of the Village Law n° 442 on 4 April 1985. The temporary system became systematic and permanent in the OHAL region. Armed and paid by the government, village guards became uncontrolled but locally powerful militias. They were found to be responsible for a large number of human rights violations. The Inspection Committee of the Prime Ministry stated in its Susurluk Report in January 1998 that village guards were the part of society that had most intensely been involved in ‘dirty jobs’. In 2002, village guards reportedly committed 11 killings[...].

Not only do village guards maintain the region in a state of violence, they are also resented as a move backward, the recreation of a feudal society in rural areas.

This situation might be the most important obstacle to the return of displaced persons; village guards repeatedly oppose the return despite official authorisation. It is frequent that villagers who were granted the permission to go back to their village have to face strong, and sometimes armed opposition, from the village guards. This was reportedly the case, for example, in Bayramli Village (Siirt region). In Sept. 2002, in Urlak village, despite official authorisation, the opposition of village guards to the return of former inhabitants resulted in the killing of 3 people and 4 were injured. In April 2003, village guards had reportedly installed checkpoints at some places around Sirnak, while returning to their village, some men also fear to be forced to become village guards themselves.”(FIDH July 2003, p.15)

“Village guards are mainly Kurdish paramilitaries armed and paid by the Turkish government to fight the PKK. There are still about 90,000 village guards in southeastern Turkey. A 1995 report of the Turkish Parliament's Commission on Unsolved Political Killings confirmed that village guards were involved in a wide range of lawless activities, including killing and extortion, and called for the corps to be abolished. Almost every intergovernmental human rights mechanism that has since reported on southeastern Turkey has echoed that plea, including most recently the U.N. Special Rapporteur on extrajudicial, summary or arbitrary executions who recommended in her December 2001 report to the U.N. Human Rights Commission: ‘The village guard system, to which a large number of extrajudicial killings have been attributed, should be disarmed and disbanded without delay.’

Village guard abuses continue in southeastern Turkey. Even in the relative calm and stability of the past eight months, it has been reported that village guards have deliberately killed five displaced villagers attempting to return to their homes. In view of the evidence linking village guards with drug smuggling, abduction, killings, and ‘disappearance,’ Human Rights Watch was surprised and alarmed to hear reports that in early 2003 the Turkish army began to train several hundred village guards in the border area under the name of ‘Lightning Group’ (*Simsekler Grubu*) for service in Northern Iraq. Village guards who have undergone this training have been told that they may be required to work in the camps along the border that have been established to prevent a refugee influx into Turkey.” (HRW March 2003)

“Many Kurds still fear to return to their villages until the Village Guards are abolished.[...] Village Guards shot and killed three returning villagers in Nurettin village in July 2002, and two returning villagers and one child in Ugrak, Diyarbakir, in September.” (KHRP/Goç-Der/HRA September 2003)

“Villagers considering return are even more afraid of village guards than they are of the gendarmerie. The village guard system has been recognized for years as a corrupt and destructive institution. The April 1995 report of the Turkish Parliament’s Commission on Unsolved Political Killings confirmed that village guards were involved in a wide range of lawless activities, including killing and extortion, and called for abolition of the village guard system. [...] Villagers are extremely wary of heading back into an unstable countryside where their former neighbors, sometimes from rival tribal groups, are paid and licensed by the government to bear arms. The government armed the village guards and permitted them to acquire considerable de facto power in the region. Human Rights Watch heard accounts from several provinces that village guards had taken over the lands vacated by the displaced, stolen timber, or exploited the land by renting it out to others.

[...]

Returning villagers have had considerable difficulties recovering their lands from village guards. In June 2002, inhabitants attempting to return to Kaçan and Evrek villages in the Beytüşsebat district of Sýrnak were reportedly turned back by a village guard chief from the nearby town of Mezra. The villagers applied to the local governor but were forced to return to Van where they have been living since they were forcibly displaced in 1994.” (HRW, 30 October 2002)

“The armed forces present a more threatening obstacle to return even than the civilian authorities. Outside the cities, police duties are entirely in the hands of gendarmes, the same military units that carried out the

original displacements. Many villagers told Human Rights Watch how they were turned back by gendarmes after receiving official permission to return.

[...]

Several communities who have resettled their homes have been displaced a second time as a consequence of a divergence of attitude between the civilian and military authorities.” (HRW, 30 October 2002)

“The Representative also raised allegations that displaced persons who had obtained permission from provincial governors to return to their villages were subsequently prevented from doing so by the security forces or *jandarma* and by village guards. The Minister of the Interior informed the Representative that the role of the *jandarma* in the context of return was limited to giving advice on which villages were suitable for return and on the strategic location of new resettlement areas, noting that with some 4,000-5,000 PKK fighters still present in the border regions, it was not feasible to allow the displaced to settle in vulnerable areas and that they should have an opportunity to resettle elsewhere and begin their lives anew.

The Representative referred to reports of expropriations by village guards of property belonging to the displaced and threatening those displaced persons who had returned and tried to reclaim what was rightfully theirs. In this connection, the Representative also noted that the village guard system was considered in various quarters as a major obstacle to the return process and that there had been calls for its abolition, most recently by the Rapporteur of the Committee on Migration, Refugees and Demography of the Parliamentary Assembly of the Council of Europe. The Minister of the Interior acknowledged two incidents of illegal occupation of land by village guards and stated that in both cases, appropriate action had been taken and the property returned to its lawful owners. The Minister told the Representative that the same steps would be taken in any other such cases that were brought to his attention. As for the abolition of the village guard system, the Minister noted that the system had been an instrumental part of the Government’s attempts to combat the PKK threat and that while that threat had essentially been contained, the Government could not simply make the guards redundant. However, he assured the Representative that the Government was in the process of disarming village guards and was finding them alternative employment opportunities.” (UN OHCHR, 27 November 2002)

"One of the most serious obstacles for a return is the fact that the land belonging to the evacuated villages has been occupied by village guards. Sefika Gürbüz, chairwoman of the migrants' association Göç-Der, said that they had forwarded 17,914 petitions for a return to the villages to the Grand National Assembly of Turkey (GNAT). Adding that those willing to return met with physical obstacles, she stated: 'In the first place these are obstacles directly deriving for the state of emergency. The second biggest obstacle are the village guards. The land of many villagers who left their homes has been confiscated by village guards. They are trying to prevent people from returning in order not to lose that land. The village-town project that was developed by Prime Minister Bülent Ecevit did not meet the expectations. Only village guards moved there, but the areas are not suitable for agriculture or cattle breeding and, therefore, the people have problems to make their living.' The former chairman of Göç-Der, Mahmut Özgür, said that the people who return to their villages are faced with a variety of problems. They have to establish a new order, must repair their homes and need money to buy animals. For all this they have to get compensation. Forced displacement is a problem that deeply affects Turkey's social, political and economic life. The illegal import of meat and the fraud termed 'Buffalo' can easily be linked to this problem. Before the forced displacement Turkey was exporting meat, but now has to import it." (Human Rights Foundation of Turkey January 2001, sect. 2)

"Oppression and threats targeting the villagers who attempt to return their villages to settle or to work in their property continued. A few villagers attempted to utilise the remedies apparently available in theory. For instance, a villager named Kadri Yasa filed an official complaint with the Kocaköy Public Prosecutor's Office against the village guards for threatening him, for illegally possessing his own property and for cutting down thousands of his trees. He had been forced to emigrate from Kýmataş village of Diyarbakır in 1995.

Efforts of internally displaced persons to resort to national remedies often put them into risk of at least getting threatened by, for instance, village guards." (Human Rights Foundation in Turkey February 2001, sect. 2)

See also:

- [*The Human Rights Foundation of Turkey monthly reports on the situation of human rights in the country. A section on abuses committed by the Village Guards is frequently included in the HRFT's reports \[Internet\].*](#)
- [*A report issued by the Human Rights Association, "DIYARBAKIR PROVINCE BISMIL DISTRICT UGRAK VILLAGE RURAL GUARD ATTACK OBSERVATION- INVESTIGATION REPORT" which documents an armed attack of the rural guards on families displaced in 1994, who returned to their villages for settlement in 2002, September 2002 \[Internet\].*](#)
- [*"Village Guards under the spotlight" Turkish Daily News, 16 August 2003 \[Internet\]*](#)
- [*"Continuing human rights violations with impunity by law enforcement and security forces, particularly in the south-east \(2002-2004\)" \[Internal Link\]*](#)

Allegations of new landmine fields along border with northern Iraq (2003)

- The International Federation for Human Rights has expressed concerns about allegations of new landmine fields along the Iraqi border
- In February and March 2003, the Turkish Army increased its presence in the region in response to the situation in Northern Iraq
- An increase in landmine accidents were reported since the army expanded its presence in the region
- The FIDH delegation made inquiries to the Gendarmerie and the municipality, who responded that the PKK-KADEK is responsible for the new landmine fields

"[T]he FIDH is also very much preoccupied by allegations that new landmines fields are being established near the Iraqi Border. In February and March 2003, in relation with the situation in Northern Iraq, the Turkish Army increased its presence in the region around Cizreh and Sirnak; since then, between 2 and 3 accidents take place every month due to landmines explosions in the fields and mountains around Cizre, which leads the people the FIDH's delegation interrogated think that the Army has installed new landmines fields without telling the population. This average of casualties is likely to increase dramatically during spring and summer, as the weather will allow more people to go out of the city. A delegation reportedly went to the Gendarmerie and the municipality to ask information on these events and, at the very least, communication on the places where the new mines were inserted. The authorities responded in saying that the PKK-KADEK is responsible for these new landmines fields, which seems hard to believe as one can legitimately wonder what would be the interest of the PKK-KADEK in doing so.

While the fact-finding mission could not inquire further on the subject due to the lack of time, it found the source of information very credible. The FIDH therefore urges the government to urgently investigate and ensure, if this information is verified, that the population is immediately informed of the places where the mines are, that these places are soon cleared and that these events, which remind the worst period of the conflict in the Southeast, may not happen again." (FIDH July 2003, p.16)

Landmines: an obstacle to the return of displaced people (2002-2003)

- As a result of 15 years of conflict in the south-east, predominantly rural areas are covered by landmine fields; government estimates in 2002 indicated over 900,000 mines

- Many evacuated villages are mined in the south east, presenting an obstacle to the return of displaced people
- According to the Landmines Committee of the Human Rights Association, the most mined areas include Mardin, Sirnak, Hakkari, Siirt, Diyarbakir, Bitlis, Batman, Van and Bingöl provinces

“The 15 years conflict in the Southeast resulted in a large amount of rural areas covered by landmines fields. Here is a major problem that has to be faced by the government, regardless of the question of who is responsible for the placement of these engines. The idea of freedom of circulation tends to be sadly ironic in many areas of the South East, where casualties caused by landmines regularly take place.

It is obvious that this danger is an obstacle for the return of displaced persons. Returning to the homelands implies a minimum level of safety; it is hardly surprising that many people do not want to come back to their village when they fear that landmines will kill their children and prevent them from working in the fields. Without undermining the efforts made by the government to tackle this issue, the FIDH found out during the mission in May 2003 that the situation is still very serious.

In Kasric Village, landmines have reportedly killed 3 persons and seriously injured 3 others since 1992, not counting the casualties on animals. The last casualty took place in April 2003, and resulted in one person being seriously injured. The victims and their relatives in Kasric are reportedly experiencing pressure from security forces to avoid the introduction of complains.”(FIDH July 2003, p.16)

“In May and June 2002, Turkish officials declared that 900,000 to 935,000 mines were laid between 1956 and 1959 to prevent ‘illegal border trespassing;’ these were said to be ‘all marked, monitored and covered by fencing or other means to ensure the effective protection of civilians.’[...]

The November 2002 report of the Landmines Committee of the Human Rights Association said there was evidence that in the southeast a number of evacuated villages are mined, presenting an obstacle to the return of displaced people. The report identified the most mined areas as the provinces of Mardin, Sirnak, Hakkari, Siirt, Diyarbakir, Bitlis, Batman, Van and Bingöl.

[...]

There were reports of continuing casualties from mines and UXO, especially to children, in 2003. [...] (Landmine Monitor Group August 2003)

“Southeast Turkey has been a battlefield for fifteen years, during which both sides in the conflict used anti-vehicle and anti-personnel mines. According to press reports, hundreds of people—many of them children—were killed by landmines and unexploded shells or rockets between 1992 and 1998. Villagers considering return therefore understandably seek some level of reassurance from the authorities that at least the immediate vicinity of their homes has been cleared of explosives. A villager who had returned, with government assistance, to the former village guard community of Besbudak told Human Rights Watch that soldiers had spent a month checking the area for mines before it was reoccupied. The local governor of Çatak province mentioned that the asphaltting of roads was a priority as a protection against mining, and the deputy provincial governor of Van confirmed that within his area of authority, villages would be cleared of mines before reoccupation by villagers. But several villagers told Human Rights Watch that the authorities had given permission to return while giving no information about mine-clearing. [...] We have received no confirmation that it has been cleared of mines.’ Inhabitants of eleven villages in the Berwar district of Hakkari, evacuated in 1996, applied to the office of the Van provincial governor asking that their villages be cleared of mines and that they be given assistance to return. In early 2002 the governor reportedly called the headmen of the villagers to his office and told them to reapply, saying that in their new applications, they should not mention mine clearance or assistance.

[...]

That there is a genuine risk of lethal mines is beyond question, but soldiers may also have used stories about mines as a way of keeping the villagers at a distance. A villager from the Kulp district said that when villagers burned out in 1992 had prematurely tried to return in 1993, soldiers had warned them off by

saying that the area was mined: ‘When they did not want us to go back to the mezra, they told us that there were mines there. I do not think there are any mines actually and that they just said this in order to scare us.’” (HRW, 30 October 2002)

Displaced people face problems returning due to administrative procedures (2002-2003)

- Displaced persons have faced problems returning to their villages of origin due to the practice employed by the government of requiring returnees to complete “return” forms
- The forms request the applicant to provide a reason for his or her displacement yet provide no option for those evacuated by government security forces
- Another reported problem with the forms is the inclusion of a declaration on the form which states that the applicant will not seek compensation from the state
- The government denied the existence of the clause on compensation, though NGOs were able to produce copies of the form
- IDPs who refused to sign the declaration were withheld permission to return

“In discussing the return issue, the Representative referred to reports of problems confronting displaced persons who wished to return. Reference was made to the practice of requiring persons who wished to return to complete printed application forms, including stating the reason for their displacement. While there is nothing inherently wrong in requiring the displaced to apply formally for return, as this would provide the authorities with an indication of the numbers involved and the resources required to facilitate the exercise, concerns were raised about the need to indicate on the form the reason for the original displacement. A number of possible options were given, including ‘employment’, ‘health’ and ‘terror’. There was, however, no option for those evacuated by the security forces, and it was alleged that only those persons who stated that they had been displaced as a result of ‘terror’ were allowed to return.

Reports also suggested that the reverse side of some forms bore a printed declaration which the applicant had to sign and which stated that they would not seek damages from the State. Refusal to sign this declaration reportedly resulted in being denied permission to return.

These problems were raised with the Minister of the Interior, who explained that knowing the reason for flight was required for statistical purposes. This nevertheless raised the question of why there was no express option regarding evacuation by the security forces. According to one official, as the purpose was to collect statistical data, an ‘evacuations’ option was unnecessary as the Government possessed that information already. The Governor of OHAL, on the other hand, stated that the ‘terror’ category applied to those displaced by both PKK and the security forces. The Minister of the Interior denied the existence of a non-litigation clause and a copy of the form shared with the Representative and copies provided by the Governor of Sirnak contained no such clause. However, in Diyarbakir, an NGO provided the Representative with a form bearing the non-litigation clause on the back.

On his return to Ankara, the Representative brought this to the attention of officials at the Ministry for Foreign Affairs. While they doubted the form’s authenticity and its legal standing, were it to be contested in court, they undertook to examine the matter further and suggested that it might be addressed within the context of an administrative inspection of the functioning of the judicial system in Diyarbakir, which had been initiated by the State Minister for Human Rights.” (UN OHCHR, 27 November 2002)

“Villagers are reluctant to collude in the official cover-up of the illegal forced displacement by signing such declarations. They also know that by signing, they will probably lose any chance of making a claim against the state for compensation for the abuses they have suffered. At the same time, the temptation to sign is strong. If they do sign it may open the way to their early return; if they do not, they know that they may be

struck off any central register of the displaced, forfeit the chance to get even the most meager state assistance to return, and perhaps never be permitted to go home.” (HRW, 30 October 2002)

CoE report: despite improvements, security remains main obstacle to mass return movements (March 2002)

- Displaced returning either go to original villages or to central villages
- Some human rights organisations remain critical of the resettlement into government-constructed central villages
- The application form returnees have to fill in includes a question on the reason for leaving the village, with PKK action being the only accepted answer by the authorities
- Despite obvious improvements, security remained the main concern conditioning mass return movements
- IDPs in most cases are unable to return without state financial or subsistence assistance and sometimes also reluctant because of fresh memory of the atrocities committed in the past

“The GAP finances a number of return projects including the project presented to the Rapporteur by the Turkish Social Science Association (TSSA), which is aimed at providing guidelines and models for the resettlement of the displaced persons. According to the survey conducted by the TSSA around 93% want to go back to their villages. These figures are questioned by the officials who claim that many displaced persons have successfully settled down in towns and have no intention to return. Moreover, in many cases only a part of the family (usually elderly people) wish to return, the rest want to stay in towns.

Voluntary and assisted resettlements began in 1997. In every case people have to apply for the authorisation and, possibly, for financial or material assistance. The latter is usually granted for whole villages. In July 2001, the state of emergency governor announced that 65 000 out of 131 000 applications have been given a positive follow up. About 28 000 persons have returned to 200 villages up to July 2001. Obviously, only a fraction of the total number of displaced persons have returned so far, but there is a noticeable increase in the pace of returns.

In some cases, persons may return to their old homes, in others, centralized villages (town-villages project) have been constructed. Rather than restoring the destroyed dwellings and small villages, most of which were situated in remote and isolated areas, the Turkish authorities prefer to rebuild new villages in safer and more accessible places. Over 4000 persons live in centralized villages. Every project includes infrastructure, school, medical centre as well as material assistance (usually animals, trees, beehives and looms) to the villagers. From June to October 2000, financial and other assistance was provided to 14 000 persons in 96 villages and 87 hamlets.

The Rapporteur visited a number of resettled centralized villages (see Programme). In all cases the inhabitants said they were pleased with the new accommodation.

However, some human rights organisations remain critical of government's efforts to resettle villagers in government-constructed "central villages" instead of original village sites.

Human rights organisations informed the Rapporteur that the application form for those willing to return includes a question concerning the reason for leaving the village. According to their evidence the only 'acceptable' answer for the authorities evokes the actions of the PKK as a reason for leaving. Any other reply implies a negative decision concerning the authorisation for return and financial assistance. Furthermore, reportedly only villages within the village guard system are likely to be given authorisation for return.

[...]

Despite obvious improvements, security remains the main concern conditioning mass return movements. On one hand, the authorities feel reluctant to allow for a large influx of returnees fearing the return of PKK militants. For that reason they scrutinize every application for return and do not authorize returns to certain areas. On the other hand, the displaced population is in most cases unable to return without state financial or subsistence assistance and sometimes also reluctant because of fresh memory of the atrocities committed in the past. The armed conflict has cost about 30,000 human lives and human rights have been violated by both sides of the conflict on a regular basis.” (CoE 22 March 2002)

“The government’s return programs often involve a political loyalty test, such as agreement to participate in the Village Guards. In fact, many of the displaced fled their homes under threat from the Village Guards themselves or were forced to leave for refusing to join the Village Guards in the first place. The government’s organized return program appeared geared towards establishing heavily guarded and controlled 'central villages' in the southeast. Several thousand formerly displaced persons were living in such central villages at year’s end.” (USCR 2002)

Turkish authorities allegedly allowed only very restricted return to villages (June 2002)

- Göc-Der criticized the government’s policy on return and stated that many petitions for compensation have been rejected
- Despite the fact of the lifting of the OHAL in Dersim, a great number of villagers are being prevented from returning to their villages

“Migrants Solidarity and Culture Association (GOC-DER) Izmir Branch Manager Ibrahim Uzelun stressed that the State was lukewarm to the demands of people who want return to their villages.

[...]

Criticising the government's policy in regards to southeastern Turkey, Uzelun stressed that the State was disinterested in those who wanted to return to their villages. 'We have sent 17,914 petitions to Parliament regarding the return to villages. They said, 'you can return to your village,' but they are lukewarm about the return to villages and compensation for the people. They do not provide opportunities or support for these people. In these petitions, people have asked for compensations for their loss, but most of them have been rejected; only two petitions have ended positively. People migrating to Izmir are mostly Kurdish people. This situation is causing ethnic, cultural, social and integration problems."

[...]

Uzelun emphasized that these people, because of poverty, were becoming a major social problem. 'The State should be seriously interested in this problem. They are a problem for the metropolises, because they are living in poverty in the shantytowns without health care, education. Maybe this cannot be solved in a short time, but it can be solved.'" (Turkish Daily News 6 July 2002)

The case of Dersim:

“Noting that the authorities in Dersim have refused to grant 166 families that were forced to migrate from their villages in 1994 permission to return to their villages, Tunceli Bar Association Chairman Huseyin Aygun applied to the Governor's Office.

During the intense operations launched in 1994, 151 villages and 800 rural areas were evacuated on grounds that these villages provided logistic support to the PKK. Last year, the Governor's Office granted the villagers permission to return to 30 villages. This year, in turn, permission was granted to return to 20 villages. Despite the fact that the MGK's recent decision to lift the OHAL in Dersim, a great number of villagers are being prevented from returning to their villages. Applying to the Tunceli Governor's Office on behalf of 166 families that want to return to 31 villages, Bar Association Chairman Huseyin Aygun said: 'In its reply, the Governor's Office noted that it can currently grant the villagers permission to return to four villages and that it cannot grant permission to return to the remaining 27 villages.' Drawing attention to the fact that the four villages in question are very close to the district centers and the military bases, Akgun

underlined that this is why the Governor's Office agrees to grant the villagers permission to return to these villages. Akgun said: 'It is oblivious [sic!] that the state does not want to resolve this problem. Our people are suffering more every passing day. We will apply to the European Court of Human Rights in order to defend the rights of our villagers.'" (Kurdistan Observer 19 June 2002)

"The following villages were not seen suitable for return: in Hozat district: Kurukaymak, Akören, Boydas, Oruköy, Kalecik, Bilekli, Agirbasak, Yenibas (Amutka), Yüceldi, Kozluca, Kizilkilise and in Ovacik district: Çambulak, Eskigeldik, Sahverdi, Kozluca, Elgazi, Agaçpınar, Çat, Yalmanlar, Yöğunçam, Otlubahçe, Çalbasi, Aktas, Buzultepe, Isikvuran, Yakatarla and Egimli.

Suitable villages were in Hozat district: Karaca, Tasitli and Dervis Cemal and in Ovacik district: Büyükköy village." (HRFT June 2002)

HUMANITARIAN ACCESS

General

Government continued to put pressure on organisations working on displacement (2004)

- An investigation was started in June 2002 against Göc-Der after publishing the Migration Report
- The president of the Turkish NGO "GÖC-DER" (Immigrants for Social Cooperation and Culture) was fined in February 2004 for publishing a report on the forced displacement of the Kurds in Turkey
- GÖC-DER (established 1997) conducts research on the socio-economic and socio-cultural conditions of the Kurdish people in Turkey who are forcibly displaced due to the armed conflict
- The initial sentence of 10 months in prison was converted later to a fine for "inciting enmity and hatred"
- Although Turkey amended numerous provisions of the penal code in 2002, new provisions have also been used to silence human rights defenders peacefully expressing their views
- International organisations, including FIDH and OMCT urged the Turkish authorities to drop the charges and to comply with international and national human rights instruments
- GÖC-DER and other organisations advocating for the rights of the displaced Kurdish population have had their activities limited by the government since 1999

"The courts handed down a 10-month prison sentence—later converted to a fine—to Sefika Gurbuz, director of an organization addressing the plight of internally displaced persons, for publishing a report on the issue." (HRW 3 March 2004)

"On 19th January, the Istanbul State Security Court n°4 sentenced Sefika Gürbüz, President of the Turkish NGO 'GÖC-DER' (Immigrants for Social Cooperation and Culture), to pay a fine of TL 2.180 billions. The court acquitted Mehmet Barut, also a board member of the organization. The Observatory for the Protection of the Human Rights defenders - a joint programme of the FIDH and the OMCT - sent an observer to attend the trial against Sefika Gürbüz and Mehmet Barut. In addition to the representative of the Observatory, several international observers attended the hearing, including Mr Luigi Vinci, European Deputy and Dr Bernard Granjon, President d'honneur de Médecins du Monde (France).

Sefika Gürbüz and Mehmet Barut were prosecuted before Istanbul State Security Court under article 312/2 of the Turkish Penal Code, which prohibits 'incit[ing] people to enmity and hatred because of class, racial, religious, confessional, or regional differences'. The prosecution is connected to a press conference that GÖC-DER held on April 2002 to present the publication of a report concerning forced displacement of Kurdish people in Turkey.

'GÖC-DER', established in 1997 in Istanbul, conducts research on the socio-economic and socio-cultural conditions of the Kurdish people living in Turkey who are forcibly displaced due to the armed conflict, and release extensive reports on forced displacement issues.

Said the Observatory delegate : 'It is unfortunate to note that despite the amendment made to Article 312/2 of the TPC by the Third Harmonization Package adopted on August 3, 2002, State Security Courts continue to use this legal ground as a tool for repression against human rights defenders. The Court's decision

clearly demonstrates that the Turkish judiciary does not pay due consideration to international human rights conventions ratified by Turkey, and persist to refrain from implementing legislative reforms in Turkey’

On February 6, and August 3, 2002, Turkey amended several provisions in the penal code that have frequently been used to sentence human rights defenders for peacefully expressing their views in human rights reports. The new provisions narrow the use of Article 312/2 (incitement to enmity and hatred) by requiring ‘that the incitement endanger public order’. However, this requirement has been used to increase Mr. Gürbüz sentence.

The Turkish Penal Code further defines expression of thoughts, ideas and opinions very vaguely. A large number of ‘thought and expression crimes’ are tried under the section ‘Felonies against the State’, and dealt with by the State Security Courts. The reform of the Judicial system, in particular the abolition of the State Security Court, should urgently become a priority for the Turkish government in its bid to join the European Union.

The Observatory recalls that the E.U. Accession Partnership required Turkey to ‘improve the situation in the south-east, with a view to enhancing economic, social and cultural opportunities for all citizens.’ The two organisations have pointed out that the Kurdish question in Turkey may not be solved without an effort towards the recognition of the role and importance of the civil society in the country, and including organisations such as Göç-Der who advocate for the rights of displaced persons in the country.

The implementation of the Return to Village and Rehabilitation Program by the Turkish government shows serious deficiencies, including the exclusion of local non-governmental organizations in the implementation of the program and their persecution for expressing an interest in the program

In light of yesterday’s decision, the Observatory urges the Turkish authorities to comply with its international obligations and with the EU Accession Partnership. In particular, the Observatory urges Turkey :

1. to lift the penalty against Sefika Gürbüz, drop the charges against other board members of the association Göç-Der and put an end to any kind of judicial harassment against human rights defenders who exercise their freedom of expression in Turkey ;

2. to conform with the provisions of the Declaration on Human Rights defenders, adopted by the United Nations General Assembly on December 9, 1998, in particular its articles 6.b, which states that ‘everyone has the right, individually and in association with others [...] freely to publish impart or disseminate to others views, information and knowledge on all human rights and fundamental freedoms’ and article 8.2, which states that ‘everyone has the right [...] to submit to governmental bodies and agencies and organisations concerned with public affairs criticism and proposals for improving their functioning and to draw attention to any aspect of their work that may hinder or impede the promotion, protection and realisation of human rights and fundamental freedoms’ ;

3. to conform with the international and regional human rights instruments ratified by Turkey, as well as with the Principle 25 § 2 of the U.N. Guiding Principles on Internal Displacement ;

4. to abolish the State Security Court in Turkey as they raise serious concerns with regards to the recognition of the freedom of expression in Turkey ;

5. to develop a comprehensive and effective Return to Village and Rehabilitation Program that will ensure that internally displaced persons can return to their homes in safety and dignity and can resume their livelihoods. The program should be consistent with the U.N. Guiding Principles on Internal Displacement, respect the rights of internally displaced persons by notably ensuring the lifting of the village guards system as which poses a psychological obstacle against return.” (FIDH 21 January 2004)

“June [2002] appeared to be a month, during which the issue of enforced migration was discussed intensely. The difficulties for villagers to return to their homes remained. In many provinces ‘migration week’ celebrated by the Social Support and Culture Association for Migrants (Göç-Der) for the fifth year between 16 and 23 June was banned. Pressure on NGOs working on the issue of enforced migration continued. The prosecutor at Istanbul SSC started an investigation against Sefika Gürbüz, chairwoman of Göç-Der, and the sociologist Mehmet Barut concerning the “Migration Report”. In Övecek village, Çatak district (Van) a second sample village-town project was started. The first one had been finished in the same district in Konalga village in 1999.” (HRFT June 2002)

"The Mersin Migrants' Association (Goc-Der), which was shut down in 1998, in February 1998, in February was given written permission by the Mersin governor to reopen. The Kurdish-led organization assists migrants from the southeast. Goc-Der had been closed pending a verdict in a case accusing its founders of several technical violations of Turkey's Associations Law and of possession of illegal publications. In December 1999, a court acquitted the defendants of all but one minor charge and fined them \$2 (1,5 million TL)". (U.S. DOS February 2001, sect. 4)

“In December [2002] prosecutors indicted 21 founding members of the Migration and Humanitarian Aid Foundation (GIYAV)—a Mersin-based group whose declared purpose was to provide assistance to displaced persons—on charges of aiding and abetting an illegal organization. Also in December, the General Directorate of Foundations applied to a penal court to have GIYAV disbanded on the grounds that it established relationships with foreign associations without seeking the required approval of the Interior and Foreign Ministries.” (U.S. DOS, 31 March 2003)

Representatives of the Diyarbakir's Bar Association were brought to Court on the grounds of "abusing their legal responsibility" and "misconducting duty" in connection with the compensation cases of 96 villagers from the South-east. See "Trial against four lawyers of the Diyarbakir's Bar Association (South-east)," FIDH, 9 December 2003 [Internet]

See also:

- “Section 4: Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights” in “*Turkey: Country Reports on Human Rights Practices*,” US Department of State, Bureau of Democracy, Human Rights, and Labor, 25 February 2004 [Internet]
- The section on Human Rights Defenders in “*Concerns in Europe and Central Asia: January to June 2003: Turkey*,” AI, 1 October 2003 [Internet]

Human rights defenders continue to be targeted for harassment and intimidation by the state despite reforms (2003-2004)

- In spite of legal and constitutional reforms, human rights activists in the country have been targeted by a number of laws and regulations
- According to AI, the right to freedom of association, assembly and expression are frequently curbed for human rights defenders
- Anti-Terror laws, public order legislation, laws on association and foundation, and press laws have been used to curb the activities of human rights defenders

“Despite recent legal and constitutional reforms in Turkey, human rights defenders in that country continue to be targeted for harassment and intimidation by state officials, and their activities are still restricted through a huge number of laws and regulations. Those used against human rights activists include Anti-Terror laws, public order legislation, laws on associations and foundations and press laws, with the result that the rights to freedom of association, assembly and expression cannot be exercised fully and freely.

Infringement of these rights can also lead to activists suffering violations of other rights, such as to liberty, to security of the person and to a fair trial. The broad restrictions in law on the activities of human rights defenders give state officials many pretexts to exert pressure on such activists, including through arbitrarily detaining them, prosecuting them, and prohibiting their actions.

The existence of these restrictive laws and regulations, their abusive interpretation in ways that curtail the rights of human rights defenders, and the failure to implement in practice relevant legislative reforms play out in a pattern of harassment that sits at odds not only with Turkey's international obligations but also with the current reform agenda that has produced positive legislative change in other areas. Human rights defenders are placed under surveillance by police officers, and their offices are searched on spurious grounds. Small demonstrations and meetings where press releases are read out are surrounded by large numbers of riot police, who sometimes outnumber the participants, while other police officers record and photograph those attending. The use of excessive force to disperse public events - and on occasion the mass detention of participants - can also be seen as an attempt to intimidate and silence human rights activists. All of these measures discourage others from becoming involved in such activities, and bolster the perception that the authorities are innately suspicious of - if not outright hostile towards - non-governmental organizations (NGOs).

Human rights defenders are also now facing a pattern of pressure, which appears to have evolved concurrent with the reform process in Turkey, through the huge number of investigations and trials opened against them under various laws and regulations. While such trials usually end in acquittal or a sentence which is suspended or commuted to a fine, the effect is a form of judicial harassment designed to intimidate human rights defenders and hinder their public activities.

Most of the cases cited in this report relate to human rights defenders actually working with human rights NGOs, and to lawyers and doctors working on human rights related cases. However, the problems that they face are also encountered by many other sections of civil society that take up and campaign on human rights issues - including trade unionists; gay, lesbian and transsexual activists; women's groups; students; and anti-war campaigners.

All such activists must be able to carry out their legitimate actions without fear of harassment, intimidation or prosecution, and Turkey must take immediate steps to ensure that this is the case. This report concludes with a number of recommendations to the Turkish authorities, aimed at ensuring that human rights defenders can contribute fully, freely and in safety to the promotion and defence of human rights.” (AI 12 February 2004)

For the full report, see “Turkey: Restrictive laws, arbitrary application- the pressure on human rights defenders”, Amnesty International, 12 February 2004 [Internet]

See also, the section on Restrictions on Freedom of expression and the criminalization of non-violent decent in “From Paper to Practice: Making Change Real: Memorandum to the Turkish Prime Minister on the occasion of the visit to Turkey of a delegation led by Irene Khan, Amnesty International’s Secretary General, February 2004”, 12 February 2004 [Internet]

Humanitarian agencies and NGOs have long been denied access to the displaced populations (2002-2003)

- International NGOs have been able to visit but under close surveillance
- ICRC has been refused access to places of detention or to displaced populations
- Humanitarian nongovernmental organizations are more or less absent from the southeast

- Attempts by Médecins Sans Frontières to provide medical aid to vulnerable groups in Diyarbakır were blocked by the Turkish government
- No OSCE body has been asked for advice on the Village Return and Rehabilitation Project

“Principle 25, paragraphs 2 and 3, of the U.N. Guiding Principles state: 'International humanitarian organizations and other appropriate actors have the right to offer their services in support of the internally displaced. Such an offer shall not be regarded as an unfriendly act or an interference in a State's internal affairs and shall be considered in good faith. Consent thereto shall not be arbitrarily withheld, particularly when authorities concerned are unable or unwilling to provide the required humanitarian assistance. All authorities concerned shall grant and facilitate the free passage of humanitarian assistance and grant persons engaged in the provision of such assistance rapid and unimpeded access to the internally displaced.'

International nongovernmental organizations such as Amnesty International and Human Rights Watch are able to visit the southeast, though under close surveillance. Human Rights Watch was initially denied access to one returned village in July 2001, but permitted to travel two days later. Humanitarian nongovernmental organizations are more or less absent from the southeast. Attempts by Médecins Sans Frontières to provide medical aid to vulnerable groups in Diyarbakır were blocked by the Turkish government.

[...]

Turkey, a state party to the 1949 Geneva Conventions, continues to refuse the ICRC access to places of detention or to the displaced populations of the southeast. The OSCE has gained considerable experience on forced migration from its work in several Balkan and Caucasus states, but to Human Rights Watch's knowledge, no OSCE body has been asked for advice on the Village Return and Rehabilitation Project, much less become actively involved in the design and implementation of the project.” (HRW, 30 October 2003)

“Human Rights Watch is calling on the Turkish government to give much greater urgency to facilitating the return and resettlement of the hundreds of thousands of Turkish citizens who were forced from their homes during the PKK conflict, the majority of them by government troops. In particular, the Turkish government should develop and implement its return projects in accordance with the United Nations Guiding Principles on Internal Displacement, which emphasize the importance of consultation with the internally displaced and access by relevant humanitarian organizations.

The Turkish government has avoided involving expert intergovernmental organizations in the implementation of the current return program. Indeed, the program is so ill-conceived that several major organizations have specifically refused to participate in it. But a sound program would stand a good chance of receiving international funding and expertise. In similar post-conflict situations around the world, and in the nearby Balkans in particular, displaced populations have received considerable material assistance in reconstruction from the European Commission, the World Bank, the European Bank for Reconstruction and Development, the European Investment Bank and many other donors. The Turkish government's intransigence seems to be the main obstacle between the displaced villagers of the southeast and the international assistance they deserve.

The Turkish government could show its readiness to take a new direction by hosting a forum on return involving representatives of the internally displaced themselves, as well as concerned nongovernmental organizations and international organizations with a specific interest and expertise in displacement, including the United Nations High Commissioner for Refugees (UNHCR), the United Nations Development Program (UNDP), the International Committee of the Red Cross (ICRC), and the Organization for Security and Co-operation in Europe (OSCE).” (HRW, 30 October 2002)

“[...] An investment in return to Turkey's southeast would help redress a long-standing violation of fundamental rights and help ensure the future stability and prosperity of this strategically vital region.

Donors certainly appreciate that and only need the Turkish government to commit to a plan they can support.

So my appeal to you is for something rather straightforward and relatively inexpensive. If you could please just get the ball rolling. Use your influence to press the Turkish government, as a matter of urgent priority, to convene a planning forum, inviting representatives of interested governments, nongovernmental and intergovernmental organizations with relevant expertise and representatives of the displaced, to develop a plan for safe return in conformity with international standards.

Dr. Deng himself called on the Turkish government to do this more than a year ago. This, if it gets done, would be a critical first step on a process that would be beneficial for the displaced, for Turkey and for its allies interested in the stability of the region.” (CSCE, 10 June 2003)

Low presence of international NGOs in south-eastern Turkey (2002)

- The Government has systematically obstructed assistance to IDPs through denial of access to the region
- There is still no international NGO concerned with IDPs directly operating in the southeast
- The Turkish Foreign Ministry reportedly refused the permission to operate in the region to several international NGOs

"It should be stated that the Government has systematically obstructed humanitarian organisations including the International Committee of the Red Cross (ICRC) and *Médecins sans Frontières* (MSF) to assist the affected population by denying them access to the region. According to the explanation received from the Turkish authorities, numerous humanitarian organisations are in fact disguised supporters of the PKK. According to Deputy Chief of Police, NGOs were supplying arms including missile launchers to the terrorists. The Rapporteur cannot accept this explanation with regard to some of the most respected internationally known humanitarian organisations.

Although the situation has improved over the last two years, there is still no international NGO concerned with displaced persons directly operating in the southeast. Furthermore according to the information transmitted to the Rapporteur, national NGOs including human rights monitors often encounter difficulty, restrictions and intimidations." (COE 18 February 2002)

See also "The Wall of Denial: Internal Displacement in Turkey," USCR 1999, p. 34 [Internet]

Amnesty International was allowed to re-open its office in Turkey (February 2002)

- After a rejection in November 2001, Amnesty International was invited in 2002 to re-open office
- Amnesty International closed its Turkey office in the early 1980s

"State Minister responsible for human rights Nejat Arseven said on Tuesday that a decree allowing Amnesty International to reopen office in Turkey is signed by Parliament and is sent to President Ahmet Necdet Sezer for his approval.

Earlier this year, Turkey had invited Amnesty International to return to the country, nearly two decades after the human rights watchdog left.

After the approval of Sezer, the legal procedure allowing Amnesty International to return to Turkey will be completed.

[...]

The government gave no reason in November when it rejected the London-based Amnesty International's bid to restart operations, but has since decided to review the application.

[...]

Amnesty closed its Turkey office in the early 1980s after a 1980 military coup in which thousands of political activists and civic group members were jailed." (Turkish Daily News 13 February 2002)

Human rights delegation faced obstruction after visit to villages (August 2001)

- A human rights delegation investigated allegations about the forced displacement of villages in July 2001 and the imposition of a food embargo
- Villagers interviewed were intimidated by security forces
- On returning, the delegation was threatened by the Jandarma and forced to give all videotapes and camera films used during the mission

"A human rights delegation was formed by the Human Rights Association (IHD) with the participation of representatives from the Organisation of Human Rights and Solidarity for Oppressed People (Mazlum-Der), the Board of the Union of Chambers of Architects and Engineers of Turkey (TMMOB), the Human Rights Foundation of Turkey (TIHV), the Board of the Turkish Medical Association (TTB), Immigrants Association for Social Co-operation and Culture (Göç-Der) and the Diyarbakir Democracy Platform, in order to investigate the allegations about the forced displacement of Asat village with 15 households and Ortakli village with 30 households on 20 July 2001, the implementation of a food embargo, the ban on entering and leaving the villages of Ilicak with 70-80 households, Dagalti with 40-50 households and Hisarkapi with 12 households and their risk of being evacuated, as well as allegations of torture practices in the Beytüşsebat District of Sirnak Province. The delegation conducted its mission from 8 to 10 August 2001 in Beytüşsebat and made investigations about the above-mentioned incidents.

[...]

The delegation noticed that the control point for the embargo and the barricades on the road to the village had been dismantled one day before the delegation's visit. It was also reported by villagers that soldiers and village guards, usually on duty at this control point, had only been withdrawn for the day of the delegation's visit. Residents of Ilicak village reported that the embargo had been lifted slightly in recent days and villagers had been able to obtain limited food supplies, but only after the approval of a list concerning foodstuff presented to the Jandarma Commander of Beytüşsebat District.

[...]

The delegation was not subjected to any pressure other than the normal practices in the state of emergency region on the way to Beytüşsebat. However, during discussions with victims, plain-clothes security forces tried to record talks and identify speakers. This led victims to avoid talking openly. The Muhtar of the village told the delegation that they had left their village of their own free will. But women there denied what the Muhtar had said and stated that the Muhtar was being threatened and was forced to talk to the delegation in that way.

[...]

The security escort accompanied the delegation on its way back to Sirnak. The delegation's car was stopped at the Jandarma control point at the entrance of Sirnak. Members of the delegation were threatened and asked to relinquish all videotapes and camera films used during their mission. All videotapes, camera films and notes were confiscated by the Jandarma." (Delegation-report, August 2001, in *Turkey and Refugees* (April 2002), pp.41-42)

NATIONAL AND INTERNATIONAL RESPONSES

National response

Government initiates collaboration with international agencies on the situation of IDPs (2004)

- The government invited the Special Rapporteur, Mr. Deng on internally displaced persons to visit Turkey in 2002
- Following Mr. Deng's visit, and in line with his recommendations, State authorities initiated cooperation with the UN, World Bank and European Commission representatives in Turkey
- Meetings between the Turkish institutions, UN Resident Coordinator, UNHCR, UNDP, UNICEF, World Bank and EU Commission were held in December 2003 and January 2004
- A technical experts working group was established and held its first two meetings in January and February 2004

“At the invitation of the Government of Turkey, Mr. Francis Deng, Representative of the UN Secretary General on internally displaced persons, visited Turkey from 26 May to 2 June 2002. The visit of Mr. Deng was within the scope of a series of visits to Turkey by the thematic procedures of the Commission on Human Rights. Turkey has extended standing invitations to the thematic procedures of the UN Commission on Human Rights and is committed to cooperating with these procedures. Mr. Deng's visit to Turkey was but one example of such cooperation. Mr. Deng, in his report regarding his visit to Turkey (E/CN.4/2003/86/Add.2), acknowledged the Government's contribution to the success of his visit and that the visit took place in an atmosphere of openness, transparency and cooperation.

In line with the recommendations of Mr. Deng, we have initiated a dialogue with the United Nations, World Bank and the European Commission representatives in Turkey with the aim of identifying possible cooperation areas. Meetings on 17 December 2003 and 12 January 2004 with the participation of the representatives of the Turkish institutions and UN Resident Coordinator, UNHCR, UNDP, UNICEF, World Bank and the EU Commission were held. Subsequently, a technical experts group was set up which held its first two meetings on 23 January 2004 and 20 February 2004.” (Permanent Mission of Turkey to the UN 18 March 2004)

Government drafts legislation that would provide compensation for IDPs (2004)

- A law is being drafted to provide compensation to the displaced who suffered “from acts of terrorist organisations and from measures taken by the state in the struggle against terror”
- Government officials also promised to make amends to Kurds who had been subjected to violence by the former PKK
- The law would provide compensation for damage ranging from injuries to death, as well as the destruction of property, livestock and crops
- No amount had yet been announced
- International officials link this initiative to the overall reform process initiated by the country's accession to the EU

- International human rights organisations welcomed the bill, though reserving comments on its effectiveness until it had been implemented
- Amnesty International also expressed concern that the measure does not address the issue of bringing justice to those involved in extrajudicial executions, 'disappearances', and torture

"Another significant step is the adoption of the draft law on compensation arising from terror and the struggle against terror by the Government. The draft bill will soon be presented to the Parliament and we expect that it will be on the agenda of the Turkish Grand National Assembly in the near future" (Permanent Mission of Turkey to the UN Geneva, 18 March 2004)

"Turkey's Kurds could soon be compensated for the state terror they endured during 15 years of armed insurrection in the south-east under new legislation aimed at boosting the country's bid to join the EU.

Ankara's moderate Islamic government has proposed plans to compensate those who suffered at the hands of the security services during the campaign to defeat the separatist Kurdish Workers Party, PKK. Human rights groups estimate that as many as 1 million ethnic Kurds were victims of the 1984-99 conflict.

Presenting the draft bill, the justice ministry also promised to make amends to Kurds who had been subjected to violence by the outlawed PKK.

The law provides compensation for people who have suffered 'both from acts of terrorist organisations and from measures taken by the state in the struggle against terror', it says.

Victims and their families could claim for damage ranging from injuries to death, as well as the destruction of property, livestock and crops. No figure has yet been given for a compensation deal.

The measure was announced days after Romano Prodi urged Turkey to forge ahead with reforms in the first visit by a European commission president to the Muslim-dominated country in four decades.

The legislation, the latest in a package of human rights reforms Ankara has pledged to enact, is expected to be presented to parliament in the coming months.

'This is yet another example of how the EU accession process is helping [the Turkish prime minister] Tayyip Erdogan's government move forward with a very bold reform agenda,' said John Sittler of the Western Policy Centre, a Washington-based thinktank.

The Turkish government's unexpected about-turn follows years of martial law in the Kurdish-populated south-east. A state of emergency, limiting freedom of expression and movement, was finally lifted under EU pressure last year.

Until the PKK abandoned its armed struggle after the arrest of its leader, Abdullah Ocalan, in 1999, the Kurds had been subjected to a campaign of state-sanctioned terror.

Human rights groups say torture and death, in the form of 'disappearances' and extrajudicial executions, were commonplace. Fearful that ethnic Kurds were providing logistical support to the rebels, the army burned, looted and destroyed villages, displacing hundreds of thousands.

Human Rights Watch claims that by 1994 'more than 3,000 villages had been virtually wiped from the map and more than a quarter of a million peasants made homeless'.

Helicopters, armed vehicles, troops and 'village guards' - Kurds drafted by the state - were all used in the campaign.

‘When Turkish police, gendarmes, or soldiers had difficulty in distinguishing between rural civilian populations and armed insurgents, they drove the peasantry off their land and burned down thousands of settlements to create free-fire zones in the countryside,’ Human Rights Watch’s UK branch wrote in a recent report.

‘Soldiers torched villagers’ homes, destroyed their crops and orchards and machine-gunned their livestock.’

It said government return programmes were ‘a sham’, devoid of sufficient funding or political will to regenerate the fragile peasant economy.

Human rights activists welcomed the legislation yesterday, but said they would reserve judgment on its effectiveness until it had been implemented.

Some suggested the move would serve the government by protecting it from compensation claims in the European court of human rights.

James Logan, a specialist on Turkey at the London branch of Amnesty International, said: ‘We obviously welcome any measure that brings some degree of justice to the victims of the widespread human rights violations that occurred in the south-east.’

‘However, such a bill would not bring to justice those who carried out and ordered extrajudicial executions, ‘disappearances’ and torture at the time. Such issues should not go unaddressed.’” (The Guardian 22 January 2004)

See also, “[Government announces drafting legislation on compensation for harm caused by the security forces during anti-terrorism operations \(2003\)](#)” [Internal link]

Permanent Mission of Turkey to the UN issues observations in response to the report of the UN Special Representative on IDPs (2003)

- The letter of the Permanent Mission of Turkey to the UN (August 2003) outlines observations by the government in response to the visit of Mr. Deng, Special Representative on IDPs in 2002
- The government claims two decades of terrorism as the root cause of internal displacement in Turkey
- The government notes that it is incorrect to portray the cause of displacement as the equal responsibility of the authorities and the terrorist organisation (the former PKK, presently KADEK)
- The government claims that activities of the former PKK displaced the majority of citizens whereas a small number of settlements were evacuated by state authorities as a safety measure
- The importance of the Government’s return/resettlement programme is highlighted, noting a key factor of the programme is providing suitable conditions for return/resettlement
- The document indicates that 82,000 people have been able to return between June 2000 and January 2003

Letter dated August 2003 from the Permanent Mission of Turkey to the United Nations Office at Geneva addressed to the Acting High Commissioner for Human Rights

“OBSERVATIONS OF THE GOVERNMENT OF TURKEY REGARDING THE REPORT OF THE REPRESENTATIVE OF THE SECRETARY GENERAL ON INTERNALLY DISPLACED PERSONS

1. At the invitation of the Government of Turkey, Mr. Francis Deng, Representative of the Secretary General on internally displaced persons, visited Turkey from 26 May to 2 June 2002. The visit of Mr. Deng falls within the scope of a series of visits to Turkey by the thematic procedures of the Commission on Human Rights. Turkey is among the countries which have extended a standing invitation to the thematic procedures of the Commission on Human Rights and is committed to closely cooperating with these procedures. Mr. Deng's visit to Turkey was another example of such cooperation. Like other mandate holders who visited Turkey, he enjoyed full cooperation of the Turkish authorities. It is noted with satisfaction that Mr. Deng recognized the Government's contribution to the success of the visit and that the visit took place in an atmosphere of openness, transparency and cooperation.
2. Mr. Deng's report regarding his visit to Turkey (E/CN.4/2003/86/Add.2) has been carefully examined by the relevant Turkish authorities with a view to benefiting from its findings and conclusions. This document aims to outline the observations of the Turkish Government on the said report.
3. The root cause of internal displacement in Turkey has been the scourge of terrorism that Turkey has suffered for two decades. Large number of our citizens were compelled to leave their homes due to the terrorist organization PKK's intimidation, harassment and attacks. A small number of settlements had to be evacuated by the relevant authorities to ensure the safety of our people as a precaution. This being the case, it is indeed incorrect to portray the cause of displacement as the equal responsibility of the terrorist organisation and the authorities.
4. PKK (alias KADEK today) is a terrorist organization responsible for the death of over 30,000 Turkish citizens particularly in the south-east of Turkey. It is internationally labeled as such. Therefore, lack of reference to the PKK as a terrorist organisation in the report constitutes a serious shortcoming.
5. The Turkish Government attaches great importance to the successful return of our displaced citizens on a voluntary basis. In that regard, Back to Village and Rehabilitation Project has been launched with the purpose of enabling return and resettlement as well as the establishment of necessary social and economic infrastructure and sustainable living standards. The ongoing efforts within the project also aim to increase the productivity capacity of the people as well as their education level. With this perception in mind, the project comprises measures to promote activities such as agriculture, animal husbandry and handicrafts. A campaign to promote education is stipulated under the coordination of governors.
6. The project aims not only to enable voluntary return to original settlements but also to create a more balanced and effective settlement pattern with a view to enabling a more rational and effective settlement pattern with a view to enabling a more rational and effective distribution of public investments and public services. To this end, centralization of settlements will be encouraged and supported. In that regard, one model village in every province covered by the project is chosen, areas for resettlement are identified, and their construction and development plans are prepared accordingly.
7. A significant dimension of the voluntary return process is to maintain the economic, social and cultural development in the region and to eradicate terrorism, which are interlinked. The state of emergency was completely lifted as of 30 November 2002. Maintaining the security situation in the region remains significant in the realization of regional development and the voluntary return process.
8. Due to the complex and multi-dimensional nature of the process, close coordination and cooperation among various Ministries and public institutions as well as allocation of necessary financial resources is essential. The progress achieved so far has been positive and encouraging. In this regard, tens of thousands of people have returned to hundreds of villages and other rural settlements and necessary assistance has been provided to these people. The number of returnees from June 2000 to January 2003 is around 82 thousand. In spite of the budgetary restraints and serious economic difficulties, the Government continues to allocate increasing amount of resources for the effective implementation of the project. However, availability of resources remains a dominant factor affecting the pace of the realisation of the project.

9. Turkey will continue to take all feasible measures for the success of the voluntary return process and stands ready to maintain the ongoing cooperation with the Representative.” (OHCHR 7 November 2003)

Government adopts legislation for accession to Mine Ban Treaty (2003)

- On 12 March 2003, the Grand National Assembly unanimously adopted legislation for accession to the Mine Ban Treaty, which was also signed by the President
- The government has reported ongoing mine clearance in the country

“On 12 March 2003, the Grand National Assembly unanimously adopted legislation for accession to the Mine Ban Treaty, which was subsequently signed by the President. On 3 May 2003, the foreign ministers of Greece and Turkey issued a joint statement that they would proceed to adhere to the treaty simultaneously. Also in May 2003, Turkey announced that its armed forces had started planning the destruction of the stockpile of antipersonnel mines. Turkey announced that mine clearance along the Turkish side of the border with Bulgaria was completed in mid-2002. Clearance elsewhere is ongoing. The government reported 21 new mine casualties in 2002, as compared to 58 new casualties in 2001. On 26 April 2003, Turkey without Mines organized the first national conference on antipersonnel mines, held in Istanbul.” (Landmine Monitor Group August 2003)

“NGO reports noted that civilians and military personnel had been killed or injured by landmines in the south-east in 2000 and 2001. There were reports of villagers being given permission to return without being told whether the areas had been demined. It should be noted that in April 2001, the Government announced its intention to begin the process of accession to the 1997 Convention on the Prohibition of the Use, Stockpiling, Production and Transfer of Anti-personnel Mines and on Their Destruction. The Government has also announced plans in recent years to demine border areas with Georgia, Bulgaria and the Syrian Arab Republic. Turkey has also participated in mine-clearance activities in Kosovo and elsewhere and has organized mine-clearance training through the North Atlantic Treaty Organization’s ‘Partnership for Peace’ programme and bilateral agreements. The country has significant experience to apply to its own domestic context.” (UN OHCHR, 27 November 2002)

Returning displaced lack government compensation and restitution for losses (April 2002)

- The Turkish government only paid compensation after ECHR rulings and denies responsibility for displacement
- Allowed returns are not accompanied by compensation for restoring settlements and returnees are forced to sign forms stating that they left due to terrorism

“Furthermore, the government is not planning the restitution of the entitlements or remedying the losses of internally displaced people. Despite a number of judgements made by the European Court of Human Rights on the violations of the Articles of the European Convention on Human Rights regarding torture, respect to family and home, and property rights since 1996, the government has done nothing more than pay the compensation awarded by the Court to individual applicants in specific cases, including their losses until the date of the judgement. The core of the issue is that the government does not admit responsibility for internal displacement, including the widespread practice of eviction and destruction of human settlements, on the sole ground that such practices were not conducted under prescribed laws or regulations. Whereas the government seems to plan to allow the return of some of the IDPs to a small number of specified villages, such permissions are not accompanied by compensatory assistance for restoring those settlements.

Moreover, consistent allegations and reports by villagers and human rights groups, most significantly by the IDP organization Göc-Der, suggest that returned villagers are constantly intimidated by the Jandarma and other paramilitary forces.

[...]

Furthermore, when the government authorities accepted applications for relocation by the IDPs, authorities forced the IDPs to sign forms where they indirectly declared that they “left their villages due to terrorism”, and excluded those who were unwilling to sign such forms. Under Article 14 of the Bill, families entitled to be relocated, including those to be relocated for concerns of national security, “*shall lose their entitlements for resettlement, and shall not apply for resettlement again*.” (B. Peker, April 2002, in *Turkey and Refugees*, p.37)

Turkey regrets occurrence of individual cases of destruction (2002)

“The case [ECHR: *Kinay v. Turkey*] has been struck out following a friendly settlement in which EUR 59,000 is to be paid for any non-pecuniary and pecuniary damage, costs and expenses. Turkey has, moreover, made the following declaration:

“The Government regrets the occurrence of individual cases of destruction of home, property and possessions resulting from the acts of agents of the State in south-east Turkey, obliging civilians to leave their villages... It is accepted that such acts and failures in the applicants’ case constituted a violation of Articles 8 and 13 of the Convention and Article 1 of Protocol No. 1 and, given the circumstances of the destruction and the emotional suffering entailed, of Article 3 of the Convention.” (HRFT, November 2002)

National authorities have long prevented civil society's involvement in displacement and return issues (2002)

- The UN Guiding Principles on internal displacement underline the unimpeded access to displaced populations by appropriate actors offering their services in support of IDPs
- The authorities have relentlessly persecuted organizations that take an interest in IDPs
- National organisations offering their services to the displaced have had their offices raided and have been regularly persecuted by national authorities

“The U.N. Guiding Principles provide that international humanitarian organizations and other appropriate actors have the right to offer their services in support of internally displaced persons, and that such organizations should have unimpeded access to internally displaced persons (Principles 25 and 30).

A genuine project for the return of Turkey’s forcibly displaced villagers would be a huge undertaking with enormous financial, planning, and humanitarian implications. Consequently, the government would need to benefit from the experience, expertise, and energy that local and international nongovernmental organizations and intergovernmental organizations have to offer. The representatives of GAP and TSBD spoke enthusiastically of their ‘participative’ approach, and local governors echoed this theme. But in practice, the government has consistently cut non-state agencies out of the whole process.

[...]

Far from providing ‘appropriate actors’ access to the internally displaced, the authorities have relentlessly persecuted organizations that take an interest in them. At the moment, access by nongovernmental organizations to the southeast is extremely difficult. The three local organizations most interested in the problems of the internally displaced are the HRA, the Göç-Der, and HADEP. The authorities view all three with great suspicion, and local security forces subject them to constant harassment. Almost every day a branch of HADEP is raided, members detained and often ill-treated. In January 2001 HADEP officials Serdar Taný° and Ebubekir Deniz, who were trying to establish a branch of the party in “yrnak province,

'disappeared' after being summoned to a gendarmerie station. The authorities first denied and then admitted that the HADEP officials visited the gendarmerie, but claimed they had left after half an hour. In October 2001 Burhan Koçkar, a HADEP member, was allegedly extrajudicially executed by masked security forces in Agrý in eastern Turkey.

[...]

The HRA reports that it is also subject to constant persecution by security forces—particularly when it ventures into more remote areas to investigate abuses in villages.

[...]

Göç-Der offices are constantly under police surveillance and have been repeatedly raided. In May 2001 police entered the Istanbul office, confiscated documents, and detained then President Mahmut Özgür and a member of the board, Metin Çelik, who was held incommunicado for two days. It was plain that the authorities were unhappy that Göç-Der was bringing unwelcome information about the Village Return and Rehabilitation Project into the public arena.” (HRW, 30 October 2002)

Turkish Government failed to provide emergency assistance to IDPs (February 2002)

- IDPs were not provided with shelter or food after displacement
- They had to rely on relatives or scarce assistance from humanitarian organisations

"It has to be made clear that generally, the Turkish Government has failed to provide emergency assistance to people forcibly displaced in the south-east, including persons displaced directly as a result of the actions of Turkish military and security forces. These people have not been provided with any shelter or food in the immediate aftermath of the displacement. The Government has not arranged for any temporary accommodation in tents or collective facilities and the displaced persons could count only on their relatives or scarce assistance from humanitarian organisations. As a result, the majority of the displaced persons have flooded the provincial cities (mainly Diyarbakir, Batman, Sirta, Hakkari) crowding into homes of relatives, sometimes with more than thirty people residing in dwellings intended for a single family and setting up shanty towns in the outskirts." (COE 18 February 2002)

Turkish Parliament reviews the issue of internal displacement and other related human rights concerns in south-eastern Turkey (1997-2001)

- The Parliament created specific commissions in 1994 and 1997 which presented reports on the scope of the displacement process in the conflict area
- The issue of torture is closely monitored by the Parliament's Human Rights Commission

"In January 1994, a Turkish parliamentary commission under the chairmanship of the then-ruling DYP party formed in mid-1993 to investigate the conflict in southeastern Turkey released its findings. One conclusion of the Committee's report was that, 'In many operations carried out by security forces - even if this was not intended - the personal security of citizens was damaged and preventative measures were insufficient.'" (HRW June 1996, "The situation of the displaced in the words of the Turkish officials and government ministers")

"A step forward the clarification of this important question has been undertaken by the Turkish Parliament. At the request of one of its members, Mr Algan Hacaloglu of the Republican People's Party (CHP), a former state minister for human rights, the Turkish Parliament set up a Committee on Migration in 1997 to investigate the causes of displacement and to provide aid to the displaced." (COE 3 June 1998, para. 16)

"During the 20th term of the Turkish Grand National Assembly (TBMM) the 'Commission for Research into the Problems of the Citizens Who Have Migrated Due to the Evacuation of Settlements in the Eastern

and Southeastern Anatolia Regions' was formed in line with a motion to this effect presented by 10 deputies including Algan Hacaloglu, Istanbul deputy from the Republican People's Party (CHP).

"The TBMM's (Parliament's) General Assembly formally created that commission during its 101th session on June 9, 1997. It worked for nearly one year and presented its report to the Parliament Speaker's Office in mid 1998.

The commission, which was formed at a time the Welfare Party (RP)-True Path Party (DYP) coalition was in power, had for a chairman Diyarbakir Deputy Hasim Hasimi who was a RP member at that time and later a Virtue Party (FP) deputy. At a more recent date he resigned from the FP and joined the Motherland Party (ANAP).

The commission report made waves because it contained radical suggestions such as 'recognition of the right to education and broadcast in Kurdish,' an issue still alive on the country's agenda since the European Union Accession Partnership Document too refers to it.

The report said that during a 14-year process in the course of which the security forces fought with the militants of the outlawed Kurdistan Workers' Party (PKK) some 4,000 villages and hamlets had been evacuated in the East and the Southeast and that 1 million people had migrated from the region." (Turkish Daily News 30 January 2001)

See interview of Mr. Hasimi, Chairman of the Committee on Migration in Turkish Daily News 30 January 2001 [Internet]

"In May 2000 the Human Rights Commission of the Turkish Parliament issued six long and detailed reports documenting the persistence of torture. A seventh was published in October [2000]. Based on hundreds of interviews conducted during unannounced visits to police stations in the provinces of Istanbul, Batman, Erzincan, Erzurum, Sanliurfa and Tunceli, the commission's work was a model of parliamentary supervision." (HRW 2000, p. 327)

"Since May 2000, the TGNA Human Rights Committee has published nine reports on torture in Turkey, based on inspections of police stations and prisons in 1998-2000 and supported by detailed interviews with prisoners, their families and officials. Although they note improvements over the period, notably in the attitude of police and prison personnel, these reports strongly criticise the lack of supervision and inspection of the system by governors and chief prosecutors. It is hoped that the debate that has been launched in a bold manner by the TGNA Committee, together with the promises made by the government in September 2000, will be followed by concrete action, notable concerning the establishment of effective inspection mechanisms." (European Commission 8 November 2000, p. 15)

State authorities opposed research project by local authorities (2001)

- Diyarbakir municipality was refused the permission to organise a survey on the impact of migration on municipal services

"The organs of the government, instead of meeting their own obligations toward the internally displaced people, are still barring any attempts for solution, even the research on the issue. For instance, the Ministry of Interior banned the Metropolitan Municipality of Diyarbakir from implementing a survey on this issue in February. The Municipality wanted to organise a survey on 'the Impacts of Migration on Municipal Services'. In a letter by the State Statistics Institute, informing the Municipality on the decision to ban, it was said 'although there are no inconvenience in your survey form in technical terms, the Ministry of Interior finds the survey inconvenient in terms of its subsistence [sic]. Therefore, you are not allowed to implement the survey in the field'. The survey form included 27 questions, and one was on the 'reasons of

leaving the village'; options included the answers 'due to pressure to become village guards', 'due to religious pressures', 'due to the State of Emergency practices', 'due to PKK pressures', and due to the pressures by security forces." (Human Rights Foundation in Turkey February 2001, sect. 2)

Government's development project for South-eastern Anatolia (GAP): unfulfilled promises

- A comprehensive development project for South-eastern Anatolia has been launched by the government as an effort to gap regional disparities
- It consists mainly in the construction of hydroelectric plans, and irrigation schemes to develop commercial farming
- According to local observers, the GAP causes more people to emigrate rather than preventing emigration, in particular as a result of dam constructions
- GAP projects do not remedy the concentration of land ownership

"Turkey has launched a comprehensive development project, the South-eastern Anatolia Project (GAP), in order to contribute to the welfare of the whole country. The process of economic development and social progress in Turkey resulted in regional disparities in terms of urbanisation and growth. This made it necessary for the system of incentives to focus on specific regions. In order to give effectiveness to the overall system of incentives, a distinction is observed as 'Normal areas' and 'Areas with priority in development'. As far as the GAP Region is concerned, all provinces in the region with the exception of Gaziantep and Kilis are in the status of 'development priority'. Turkey invites foreign investors to the region and has already signed bilateral agreements encouraging joint ventures with other countries. In spite of all the encouraging precautions taken by the government, terrorism still prevents the targeted levels of national and foreign investments from being reached. It is clear that improvement of the welfare of the whole country and the region depends on the success achieved in the fight against terrorism." (COE 13 June 2001, para. 166)

"The GAP region comprises nine provinces - Gaziantep, Diyarbakir, Sanliurfa, Mardin, Adiyaman, Batman, Kilis, Sirnak and Siirt and the project covers an area of 74,000 km². It includes irrigation and domestic water supply projects and hydroelectric energy plans. Seven projects lie in the Euphrates river basin and six lie in the Tigris river basin. It is expected that on completion the GAP will enable 1.7 million hectares to be irrigated, approximately 50% of the total irrigated area in Turkey. Economic development in the region is expected as a result of improved irrigation so that the region can contribute to rather than be a burden on the national economy. The objective is to encourage commercial farming in order to develop cash crops production and agro-industries, such as food processing in the region for export." (ECGD 22 December 2000, sect. 2.0)

"Turkish officials, and people sympathetic to the government, praise initiatives to develop the south-east and to encourage return migration. The focal point of this activity is the Southeastern Anatolian Project, known as the GAP (Güneydogu Anadolu Projesi).

But the GAP is not seen universally as beneficial. USCR also met with a local professor who had served as a GAP advisor, but who has become a vocal critic of the project. He told USCR, 'GAP has been sold as for the good of the society [of the southeast], but it actually is the opposite, and some of its effects are causing more people to emigrate rather than preventing emigration.'

The professor contradicts the government's claims on four points. First, he says, the dams and reservoirs that control the headwaters of the Euphrates are not being used as extensively for irrigation as the government claims, and the land that is being irrigated is concentrated in a few hands in a region where land ownership remains feudally based. He said that only 7 percent of the 1.7 million hectares of land that

the government claimed would be irrigated actually have been irrigated. Second, he says that the electricity produced by the GAP project is not being used to build industry in the southeast, but is being used outside the region. Third, he says that, despite the rhetoric, there have not been health and education reforms accompanying the GAP project.

Finally, the professor claims that the reservoirs themselves have displaced upwards 100,00 people by putting about 150 hamlets and villages under water. He said that the government promised displaced villagers that it would rebuild modern villages on their behalf. Instead, he said, they were given cash compensation. Most, he said, moved to western Turkey, spent the money after a year or two, and have now joined the ranks of the migrant urban poor.

Whatever the benefits of the Gap project might be, Kurds tend to look upon such government initiatives with suspicion. There is a skepticism both about unfulfilled promises as well as ulterior motives. Henri J. Barkey and Graham E. Fuller characterize most purported state investments in the southeast as 'ghost investments', saying 'The state would initiate plans to build a factory, but, more often than not, the investment would fail to materialize.'" (USCR 1999, pp. 25-26)

For more information, consult the official website of the South-eastern Anatolia Project [\[Internet\]](#)

For a review of the developmental effects of the GAP in south-eastern Turkey, see "The Story of Eastern and South-eastern Turkey", by Mustafa Sonmez, published in Turkish Probe (Turkish Daily News publication), Issue 43, 15 July 2001 [\[Internet\]](#)

International response

EU Regular Report: "serious efforts" needed to address problems of IDPs and socio-economic development of the south-east (November 2003)

- The 2003 report commends the government for accelerating the pace of reforms bringing about substantial reform to the political and legal system
- The EC expresses concern that Turkey has not executed many judgements of the ECtHR, by means of ensuring payment of just satisfaction or reversing decisions made in contravention of the ECHR
- The report notes that the lifting of the state of emergency in the Southeast has in general eased tensions amongst the population
- The report notes that the programme for the return to villages proceeds at a very slow pace
- The EC calls for serious efforts to address the problems of the IDPs and the socioeconomic development of the region in a comprehensive fashion and of cultural rights in general

Selected issues raised in the 2003 Regular Report on Turkey's progress towards accession

"Over the past year the Turkish government has shown great determination in accelerating the pace of reforms, which have brought far-reaching changes to the political and legal system. It has also taken important steps to ensure their effective implementation, in order to allow Turkish citizens to enjoy fundamental freedoms and human rights in line with European standards. Four major packages of political reform have been adopted, introducing changes to different areas of legislation. Some of the reforms carry great political significance as they impinge upon sensitive issues in the Turkish context, such as freedom of expression, freedom of demonstration, cultural rights and civilian control of the military. Many priorities under the political criteria in the revised Accession Partnership have been addressed.

Progress is being made in streamlining the functioning of public administration and government. The government has, in particular, started reforms with a view to promoting a more transparent management of human resources in the public service. This also serves to strengthen the fight against corruption.

[...]

More efforts are still needed to enhance the efficiency and the independence of the judiciary. Already, the judicial system has been strengthened with the establishment of a new system of family courts. The competence of military courts to try civilians has been abolished. Positive changes have been made to the system of State Security Courts, in particular the abolition of incommunicado detention. However, the functioning of these courts still needs to be brought fully in line with the European standards in particular with the defence rights and the principle of fair trial.

On the ground, implementation of the reforms is uneven. In some cases, executive and judicial bodies entrusted with the implementation of the political reforms relating to fundamental freedoms adopted by Parliament have narrowed the scope of these reforms by establishing restrictive conditions, hindering the objectives initially pursued. The government has recognised that the reforms are not being put into practice systematically and has set up a Reform Monitoring Group in order to ensure their implementation.

Turkey has ratified the Civil Law Convention on Corruption, so that on 1 January 2004 it will become a member of the Council of Europe's Group of States against corruption (GRECO). However, in spite of several initiatives, corruption remains at a persistently high level and affects many spheres of public life.

Turkey has ratified major international as well as European Conventions such as the International Covenant on Civil and Political Rights, on Social and Economic Rights as well as Protocol 6 of the European Convention on Human Rights.

It is, however, of great concern that Turkey has not executed many judgements of the ECtHR, by means of ensuring payment of just satisfaction or reversing decisions made in contravention of the ECHR. One example is the *Loizidou* case, as it is now five years since the ECtHR ruled on this matter.

The fight against torture and ill-treatment has been strengthened and the Turkish legal system has come closer to European standards in this respect. The scale of torture has declined but there are still reports about specific cases, which continues to cause concern.

The reform of the prison system has continued and rights of detainees have been improved. In practice, the right to access a lawyer is not always ensured.

The possibility of retrial has been introduced but in practice few cases have been subject to retrial. In the case of *Zana* and others, retrial has so far largely resulted in a repetition of the previous trial, leading to persistent concerns about the respect for the rights of defence.

The adoption of the reform packages has led to the lifting of several legal restrictions on the exercise of freedom of expression. The enforcement of the revised provisions of the Penal Code has led to many acquittals although cases against persons expressing nonviolent opinion continue to occur. A number of persons imprisoned for non-violent expression of opinion, under provisions that have now been abolished, have been released.

Notable progress has been achieved in the area of freedom of demonstration and peaceful assembly where several restrictions have been lifted. Nevertheless, in some cases of peaceful demonstration, the authorities have made a disproportionate use of force.

As regards freedom of association, some restrictions have been eased, but associations still experience cumbersome procedures. Cases of prosecution against associations and particularly human rights defenders continue to occur.

The law on political parties has been amended to make closure of parties more difficult. However, HADEP has been banned by the Constitutional Court and DEHAP is facing proceedings in view of its closure.

Concerning freedom of religion, the changes introduced by the reform packages have not yet produced the desired effects. Executive bodies continue to adopt a very restrictive interpretation of the relevant provisions, so that religious freedom is subject to serious limitations as compared with European standards. This is particularly the case for the absence of legal personality, education and training of ecclesiastic personnel as well as full enjoyment of property rights of religious communities.

Measures have been taken to lift the ban on radio and TV broadcasting and education in languages other than Turkish. So far, the reforms adopted in these areas have produced little practical effect.

The lifting of the state of emergency in the Southeast has in general eased tensions amongst the population. There has been greater tolerance for cultural events. The programme for the return to villages proceeds at a very slow pace. Serious efforts are needed to address the problems of the internally displaced persons and the socioeconomic development of the region in a comprehensive fashion and of cultural rights in general.

[...]

Overall, in the past 12 months Turkey has made further impressive legislative efforts which constitute significant progress towards achieving compliance with the Copenhagen political criteria. Turkey should address the outstanding issues highlighted in this report, with particular attention to the strengthening of the independence and the functioning of the judiciary, the overall framework for the exercise of fundamental freedoms (association, expression and religion), the further alignment of civil-military relations with European practice, the situation in the Southeast and cultural rights. Turkey should ensure full and effective implementation of reforms to ensure that Turkish citizens can enjoy human rights and fundamental freedoms in line with European standards.

Furthermore, Turkey should provide determined support for efforts to achieve a comprehensive settlement of the Cyprus problem.” (EC 5 November 2003, Sect. C)

See also:

- *The full “2003 Regular Report on Turkey’s progress towards accession” European Commission, 5 November 2003 [Internet].*
- *The 1998 – 2002 regular reports on Turkey’s progress towards accession are available on the website of the European Commission [Internet].*

COE Parliamentary Assembly Monitoring Committee fact-finding visit in 2003: Turkey has yet to implement 1998 and 2002 recommendations on situation of IDPs (2003-2004)

- In 2002 the Council of Europe Parliamentary Assembly, Monitoring Committee appointed two new rapporteurs
- The rapporteurs carried out the first fact-finding visit to the country from 17-21 February 2003 and a second mission between 25-28 May 2003
- On the issue of IDPs, the rapporteurs invited the government to take early and appropriate steps to encourage the return of those who wish to return or to offer them fair compensation
- The rapporteurs also noted positively that the government plans to establish closer contacts with the United Nations and the World Bank and that legislation on compensation is about to be passed
- The co-rapporteurs referred to the Assembly's two previous adopted recommendations on the humanitarian situation of the Kurdish refugees and displaced persons in south-eastern Turkey, whose recommendations have not been implemented

“Turkey has been a Council of Europe member state since 1949. Its honouring of obligations and commitments have been monitored since 1996, when the Assembly adopted Recommendation 1298 (1996) on Turkey's respect of commitments to constitutional and legislative reforms. Since then the Assembly has twice assessed the situation in Turkey, when it examined the reports presented by its Monitoring Committee in January 1999[...] and June 2001[...].

Resolution 1256 in response to the 2001 report states that the Assembly ‘welcomes the progress Turkey has made in the honouring of its obligations as a member state of the Council of Europe since the start of the monitoring procedure, and in particular the open and sincere dialogue that has developed on still outstanding issues. The Assembly therefore encourages the Turkish authorities to implement the National Programme and to continue taking the legislative and administrative measures necessary to comply with the outstanding obligations ...’.

In 2002 the Monitoring Committee appointed two new rapporteurs. They carried out the first fact-finding visit to the country from 17-21 February 2003 and their second from 25-28 May 2003.” (COE Parliamentary Assembly Monitoring Committee, March 2004, p.3)

“The co-rapporteurs refer to the Assembly's two previous adopted recommendations [...] on the humanitarian situation of the Kurdish refugees and displaced persons in south-eastern Turkey, whose recommendations have not been implemented, and invites the Turkish authorities to take early and appropriate steps to encourage the return of those who wish to do so or offer them fair compensation. They note with satisfaction that the Government plans to establish closer contacts with international lenders, particularly the United Nations and the World Bank, and that the legislation on compensation is about to be passed by the Grand National Assembly.” (COE Parliamentary Assembly Monitoring Committee, March 2004, p.45)

See also:

- [Recommendation 1377 of 25 June 1998](#) (Report of the Committee on Migration, Refugees and Demography, Doc. 8131) *[Internet]*
- [Recommendation 1563 of 29 May 2002](#) (Report of the Committee on Migration, Refugees and Demography, Doc. 9391) *[Internet]*

See also the full text by the co-rapporteurs, “Turkey: Explanatory Memorandum by the co-rapporteurs”, Parliamentary Assembly Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe (Monitoring Committee), Co-rapporteurs Mrs Delvaux-Stehres and Mr. Vand den Brande, March 2004 [Internet]

Council of Europe Parliamentary Assembly committee monitoring Turkey's human rights commitments winds down (1996-2004)

- Turkey has been under a monitoring process by the COE Parliamentary Assembly's Monitoring Committee since 1996
- The Monitoring Committee announced that Turkey had demonstrated the commitment and ability to fulfil its obligations as a COE member state (2004)
- The Committee is considering a “post-monitoring dialogue” with Turkey to ensure the country's fulfilment of 12 outstanding issues, including recognition of national minorities
- The final decision on ending monitoring is to be announced at the end of April 2004
- The Committee noted a number of positive reforms, including the abolishment of the death penalty and the lifting of the state of emergency in the south-eastern provinces

- The Council of Europe Council of Ministers adopted a resolution in 1999, condemning human rights violations committed by security forces against Kurdish civilians
- In 1998, the Parliamentary Assembly adopted a resolution on the humanitarian situation of Kurdish displaced in South-East Turkey and North Iraq

“Over the last three years Turkey has clearly demonstrated its commitment and ability to fulfil its statutory obligations as a Council of Europe member state and the monitoring procedure under way since 1996 should therefore be closed, according to the Monitoring Committee of the organisation’s Parliamentary Assembly.

But the parliamentarians were also in favour of a ‘post-monitoring dialogue’ with Turkey on a twelve-point list of outstanding issues, including a major reform of the 1982 constitution, further recognition of national minorities, continued efforts to combat violence against women, the fight against corruption and amendments to the electoral code.

Approving a report by Mady Delvaux-Stehres (Luxembourg, SOC) and Luc Van den Brande (Belgium, EPP/CD) during a meeting in Paris today, the committee recognised that: ‘The Turkish authorities have not deviated from their efforts to implement the reforms necessary for the country’s modernisation. Turkey has achieved more reforms in a little over two years than in the previous ten.’ In particular it congratulated the authorities on abolishing the death penalty and instituting ‘zero tolerance’ towards torture, and welcomed the lifting of the state of emergency in south-eastern provinces.

The final decision on ending monitoring now lies with the plenary Assembly, which is due to debate the committee’s recommendation during its spring session in Strasbourg (26-30 April 2004).

The Parliamentary Assembly’s monitoring procedure – which applies to ten of the Council of Europe’s 45 member states[...]– involves regular visits to the country and dialogue with the authorities.

Turkey has been a member of the Council of Europe since 1949, when it undertook to honour the obligations concerning pluralist democracy, the rule of law and human rights enshrined in the organisation’s founding statute.

The monitoring procedure as regards Turkey was begun in 1996, the only one applying to an existing Council of Europe member state. For other countries, the monitoring procedure has been opened at the time of their accession.” (COE 3 March 2004)

See the provisional draft of the resolution “Honouring of obligations and commitments by Turkey” adopted by the Monitoring Committee, Council of Europe, 3 March 2004, which calls on the government to compensate IDPs and to invest in economic and social reconstruction of the south-east [Internet]

See also,

- *“COE Parliamentary Assembly Monitoring Committee calls on government to compensate IDPs and invest in economic and social reconstruction of the south-east (2004)” [Internal link]*
- *Recommendations and resolutions by the Parliamentary Assembly on Turkey’s obligations and commitments and on the situation of the displaced Kurdish population in Turkey:*

In 1996, the Parliamentary Assembly adopted Recommendation 1298 [Internet] on Turkey’s respect of commitments to constitutional and legislative reforms, in which it instructed its committees concerned to open the monitoring procedure in respect of Turkey under Order N° 508 (1995) [Internet]. In 1998, the Assembly also adopted its Order N° 545 [Internet] on the humanitarian situation of the Kurdish refugees and displaced persons in south-east Turkey and northern Iraq, in which it instructed its Monitoring Committee to study the issue of the Kurdish minority in the framework of the monitoring procedure concerning Turkey. See the following documents:

- Recommendation 1563 (2002) of the Parliamentary Assembly on Humanitarian situation of the displaced Kurdish population in Turkey [\[Internet\]](#)
- Resolution 1256 (2001), Honouring of obligations and commitments by Turkey [\[Internet\]](#)
- Report of the Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe (Monitoring Committee): Honouring of obligations and commitments by Turkey, Doc. 9120, 13 June 2001 [\[Internet\]](#)
- Information report of the Committee on Committee on the Honouring of Obligations and Commitments by Member States of the Council of Europe: Honouring of obligations and commitments by Turkey, Doc. 8300, 15 January 1999 [\[Internet\]](#)
- Recommendation 1377 (1998), Humanitarian situation of the Kurdish refugees and displaced persons in south-eastern Turkey and northern Iraq [\[Internet\]](#)
- Report of the Committee on Migration, Refugees and Demography: Humanitarian situation of the Kurdish refugees and displaced persons in South-east Turkey and North Iraq, Doc. 8131, 3 June 1998 [\[Internet\]](#)

"The European Committee for the Prevention of Torture (ECPT), an intergovernmental body under the Council of Europe mandated by the European Convention on Human Rights to conduct site visits to places of detention, reported finding torture equipment during surprise inspections of the Istanbul, Ankara, and Diyarbakir police headquarters. According to Amnesty, 'The Turkish Government not only ignored the findings and recommendations of the ECPT and the UN Committee against Torture..., the government made an extraordinary public statement attempting to discredit the methods and impartiality of the Committee'" (USCR 1999, p. 31)

For more information on the work of the European Committee on the Prevention of Torture, consult the section on Turkey of the website of the Committee [\[Internet\]](#)

"On 9 June 1999, the Council of Europe 41-member ministerial committee made an unprecedented criticism of a member state when it criticised Turkey for 'repeated and serious' human rights violations which security forces have committed against Kurds. In the interim resolution (Interim Resolution DH (99) 434) the ministerial committee refers to the European Court of Human Rights condemning Turkey in the previous two years in more than a dozen cases related to the security forces. The committee stated that 'no significant improvement' was evident in the past two years. It called upon the Turkish authorities to take the necessary measures to halt torture, destruction of property, illegal killings and disappearances." (Atreya, N.; McDowall, D.; Ozbolat, P. February 2001, p. 46)

See the full text of the Ministerial resolution Int ResDH (99) 434 [\[Internet\]](#)

Recent judgments by the European Court for Human Rights concerning IDPs (2003-2004)

- On February 24, 2004 the European Court of Human Rights found the Turkish State responsible for disappearance, torture and village destruction in *Ipek v. Turkey*
- On 24 July 2003, the Court found the Turkish State, among other violations, to be responsible for village destruction in *Yöyler v. Turkey*

Ipek v. Turkey

"In one of its strongest judgments for many years, the European Court of Human Rights (ECtHR) has today unanimously found that two men must be presumed dead following their unacknowledged detention by Turkish state security forces, in violation of the European Convention on Human Rights (ECHR). The Court also ruled that soldiers had destroyed villagers' homes, belongings and livestock, in addition to further ECHR violations (*Ipek v. Turkey*).

The case was brought by KHRP on behalf of the applicant, Abdurrezak Ipek, concerning the disappearance of his two sons, Ikram and Servet Ipek, as well as the destruction of his family home and property by security forces. The incidents had occurred in the course of an operation conducted in his hamlet of Dahlezeri, near Lice, on 18 May 1994. He also maintained that no effective investigation was carried out concerning either his sons' disappearance or the destruction of his property.

The European Court held unanimously that Turkey had multiply violated the right to life, prohibition of torture and ill-treatment, right to liberty and security, right to an effective remedy and right to respect for the protection of property under the ECHR (Articles 2, 3, 5, 13 and 38(1)(a) of the ECHR and Article 1 of Protocol No. 1).

The application was declared admissible on the 14 May 2002. Because the facts of the case were in dispute between the parties, KHRP requested a fact-finding hearing to resolve the facts of the case. The European Court complied and appointed three delegates to take evidence from witnesses at hearings conducted in Ankara between 18 and 20 November 2002.

Kerim Yildiz, Executive Director of the KHRP, says, 'This is one of the strongest condemnations yet of the actions of the Turkish state security forces and the Government's responsibility for disappearances, torture and village destruction. We believe the fact-finding hearing and the European Court procedure has provided crucial and much needed investigation of these serious human rights violations, as well as providing answers to the relatives of the 'disappeared'. KHRP will continue to monitor the case to ensure the Government now accepts its obligation to execute the judgment.'" (17 February 2004)

Yöler v. Turkey

"The European Court of Human Rights has today ruled that Turkish security forces deliberately destroyed a man's house and possessions, thus forcing his family to leave the village, in violation of the European Convention on Human Rights (*Yöler v. Turkey*).

The applicant, Celatettin Yoyler, was the imam (religious leader) of Dirimpinar, attached to the Malazgirt district in the province of Mus. Gendarmes raided his village and burned down his house on 18 September 1994, prompting Mr Yoyler to leave the village with his wife and children. The house and possessions of a further six villagers around him were also destroyed.

Over 3 million people were forced from their homes and over 3,500 settlements destroyed during a campaign by Turkish security forces that peaked in severity in the mid-1990s. The ECHR has condemned the practice in a series of cases brought on behalf of displaced villagers by KHRP.

The Court noted that his home had been burned down in front of members of his family, depriving them of shelter and support and obliging them to leave their home and family friends. This was held to have constituted a violation of the prohibition on inhuman and degrading treatment (Article 3).

The Court also held that there was no doubt that the acts also constituted grave and unjustified interference with the applicant's rights to respect for his private and family life and home, and to the peaceful enjoyment of his possessions, in violation of Article 8 and Article 1 of Protocol No. 1 of the Convention.

The Court concluded that the authorities had failed to conduct a thorough and effective investigation into the applicant's allegations. Furthermore, access to any other available remedy, including a claim for compensation, had also been denied to him, in violation of the right to an effective remedy (Article 13)." (KHRP 24 July 2003)

The judgments of Ipek v. Turkey (17 February 2004), and Yöler v. Turkey (24 July 2003) are available on the [website of the European Court of Human Rights](#) [Internet]

Helsinki Commission on Security and Cooperation in Europe addresses situation of IDPs in Turkey (June 2003)

- The United States Helsinki Commission held a hearing to highlight the plight of internally displaced persons in southeastern Turkey
- Key speakers included, Dr. Francis Deng, Representative of the UN Secretary General on IDPs, Roberta Cohen of Brookings-SAIS Project on IDPs, and Human Rights Watch
- The hearing addressed the conditions faced by IDPs in south-eastern Anatolia (Turkey), with experts assessing the situation on the ground and steps that governments need to take to create safe conditions for IDPs to return
- Particular attention was given to recommendations to the U.S., OSCE and UN policy to encourage and assist the government in finding just, realistic and durable solutions to the plight of IDPs

“No Place Like Home Plight of Internally Displaced Focus of Helsinki Commission Hearing

(Washington) - The United States Helsinki Commission will hold a hearing to highlight the plight of internally displaced persons (IDPs) in the north Caucasus region of the Russian Federation, Azerbaijan, Georgia and southeastern Turkey. Hundreds of thousands of individuals are displaced in refugee-like situations and remain unable to safely return home.

Internally Displaced Persons in the Caucasus Region and Southeastern Anatolia
Tuesday, June 10, 2003
2:00 PM – 4:30 PM
334 Cannon House Office Building

Witnesses:

Dr. Francis Deng, Representative of the UN Secretary-General on Internally Displaced Persons
Roberta Cohen, Co-Director, Brookings-SAIS Project on Internal Displacement
Gabriel Trujillo, Head of Mission, Doctors Without Borders - Russian Federation
Maureen Lynch, Director of Research, Refugees International
Jonathan Sugden, Researcher, Europe and Central Asia Division, Human Rights Watch

The north Caucasus region of the Russian Federation, Georgia, Azerbaijan, and Turkey represents the greatest concentration of IDPs anywhere in the 55-nation Organization for Security and Cooperation in Europe (OSCE). As the current prospects for significant numbers of individuals returning home in safety and dignity seem remote, the hearing will bring additional attention to these protracted situations.

The hearing will address the conditions faced by IDPs in the Caucasus region and southeastern Anatolia (Turkey), with experts assessing the situation on the ground as well as steps that relevant governments need to take to create safe conditions for IDPs to return. Particular attention will be given to recommendations on how U.S., OSCE and UN policy can encourage and assist these governments in finding just, realistic and durable solutions to the plight of IDPs.

[...]

The United States Helsinki Commission, an independent federal agency, by law monitors and encourages progress in implementing provisions of the Helsinki Accords. The Commission, created in 1976, is composed of nine Senators, nine Representatives and one official each from the Departments of State, Defense and Commerce.” (USCSCE 5 June 2003)

See the full report "Hearing: Internally Displaced Persons in the Caucasus Region and Southeastern Anatolia", US Commission on Security and Cooperation in Europe (Helsinki Commission), 10 June 2003 [Internet]

OSCE High Commissioner on National Minorities' mandate does not permit him to consider national minority issues in situations involving terrorism (1999-2003)

- In January 2003, the OSCE High Commissioner on National Minorities was invited for the first time to visit Turkey to initiate dialogue on the situation of minorities
- No dialogue had followed since the initial meeting as of November 2003
- The US Committee for Refugees recommended the OSCE be more involved in the issue of the Kurdish minority in Turkey (1999)

"In January 2003 the OSCE High Commissioner on National Minorities was, for the first time, permitted to visit Turkey with the aim of starting a dialogue on the situation of national minorities. However, no such dialogue has followed from this initial meeting." (EC 5 November 2003, p.38)

"The Office of the OSCE High Commissioner on National Minorities was established in 1992 to identify and seek early resolution of ethnic tensions that might endanger peace, stability or friendly relations between OSCE participating States." (OSCE 2004)

"Restrictions on the High Commissioner's activities

The mandate contains a number of provisions restricting the High Commissioner's activities.

Explicitly excluded from the High Commissioner's mandate are individual cases concerning persons belonging to national minorities. With regard to the High Commissioner's activities in general, and to his information-gathering and fact-finding activities in particular, his mandate does not permit him either to consider national minority issues in situations involving organized acts of terrorism or to communicate with or acknowledge communications from any person or organization that practices or publicly condones terrorism or violence." (OSCE 2004)

USCR recommendations to the OSCE

"2. The High Commissioner on National Minorities (HCNM) should reassess the Kurdish situation in Turkey and determine whether engagement on the Kurdish question fits within the HCNM mandate. The HCNM should take into account the PKK's formal renunciation of terrorism and whether the restriction in the HCNM's mandate against considering the cases of minorities in 'situations involving organized acts of terrorism' still applies to the situation in Turkey.

3. The OSCE should revisit the HCNM's mandate generically to ensure that the existence of relatively small terrorist groups does not preclude the HCNM from becoming engaged on behalf of an entire minority group, whose members may not identify or support the terrorist group in question.

4. The Council of Ministers should use the OSCE's human dimension mechanism to initiate good offices missions and dialogue with the Turkish government relating to internal displacement in Turkey. If consensus cannot be reached with the Turkish government, the OSCE should use its 'consensus-minus-one' authority to authorize investigation of Turkish compliance with OSCE commitments without Turkey's consent.

5. The Office for Democratic Institutions and Human Rights (ODIHR) should work with Turkey for the creation of an ombudsman on human rights for Turkey.

6. The OSCE ought to consider appointing a contact point within the ODIHR to consider Kurdish issues (comparable to the contact point established with regard to Roma and Sinti issues)." (USCR 1999, p. 38)

See also "Turkey's Foreign Minister Blocks OSCE Visit", in Info-Turk, October 2000 [Internet]

Consult OSCE website for more information on the High Commissioner for National Minorities [Internet]

ICRC establishes temporary mission in Ankara (2003)

- On 7 April 2003, the ICRC signed a memorandum of understanding with the Turkish Ministry of Affairs covering the ICRC's presence in Turkey
- The ICRC mission in Ankara activities in 2003 related to the crisis in neighbouring Iraq
- ICRC has not received the consent of Turkish authorities to enter south-eastern Turkey or to visit detention centres (1999)
- The PKK declared its intent to respect the Geneva Conventions in 1995

"On 7 April 2003 the ICRC and the Turkish Ministry of Foreign Affairs signed a memorandum of understanding covering the ICRC's presence in Turkey. This agreement made it possible for the ICRC to establish, with immediate effect, a temporary mission in Ankara with activities related to the crisis in neighbouring Iraq." (ICRC 23 May 2003)

"Throughout 2000, the ICRC intensified its contacts with the Ministry of Foreign Affairs in Ankara. Officials were briefed on the ICRC's activities, with particular emphasis on its operations in Kosovo and elsewhere in the Balkans, in Iraq and in the northern Caucasus.

In May, at the invitation of the Turkish General Staff, the ICRC took part in a seminar on the law of armed conflict organized by the Partnership for Peace training academy in Ankara. Subsequently, the authorities and the ICRC agreed to further develop training activities in this area. In June, senior officers of the Turkish General Staff participated in a conference ('HOT 4') on the law of armed conflict held by the ICRC in Geneva for heads of training. The following month, officers attended a regional seminar on the same subject in Budapest.

The Inter-Parliamentary Union/ICRC *Handbook for Parliamentarians* was translated into Turkish, as were other texts on international humanitarian law. Interest in humanitarian law continued to run high at universities and contacts were made and assessments carried out with a view to the future inclusion of humanitarian law modules in university curricula.

On two occasions, the ICRC was invited to address the General Assembly of the Turkish Red Crescent. The new President of the National Society and other senior officials visited ICRC headquarters in Geneva in July. The ICRC also supported training courses for National Society staff." (ICRC 1 June 2001)

"[D]espite Turkey's signing of the Geneva Conventions, the International Committee of the Red Cross (ICRC) has been frustrated in its attempts to gain access to civilian populations affected by the conflict in the southeastern part of the country and to visit Kurdish combatants and civilians detained by Turkish security forces. It has yet to receive the consent of the Turkish government to enter southeastern Turkey or to visit detention centers, a *sine qua non* for its involvement. It has reached an impasse with the Turkish

government on its interpretation of its obligations under the Geneva Conventions, and on whether the Geneva Conventions apply to the situation in southeastern Turkey.” (USCR 1999, pp. 31-32)

Check the ICRC website for more information on ICRC activities in Turkey [Internet]

"[D]espite Turkey's signing of the Geneva Conventions, the International Committee of the Red Cross (ICRC) has been frustrated in its attempts to gain access to civilian populations affected by the conflict in the southeastern part of the country and to visit Kurdish combatants and civilians detained by Turkish security forces. It has yet to receive the consent of the Turkish government to enter southeastern Turkey or to visit detention centers, a *sine qua non* for its involvement. It has reached an impasse with the Turkish government on its interpretation of its obligations under the Geneva Conventions, and on whether the Geneva Conventions apply to the situation in southeastern Turkey.

The ICRC has negotiated with the Ministry of Defense to conduct training seminars on international law for army officers. The ICRC has had somewhat more success in its dealings with the PKK. This came about as a result of a 1994 conference organized by the Kurdistan Human Rights Project in which prominent international lawyers advised the PKK unilaterally to declare itself bound by the Geneva Conventions. Following that advice, in 1995, the PKK contacted the Swiss government and declared its intent to respect the Geneva Conventions and the two protocols additional to the conventions. The PKK has also permitted ICRC to visit Turkish soldiers held by the PKK in northern Iraq and to accompany released soldier/prisoners back to the Turkish border. Despite its formal agreement to abide by the Conventions, the PKK in the field has continued to target unarmed civilians in violation of the Conventions." (USCR 1999, pp. 31-32)

"The International Committee of the Red Cross (ICRC) continued to be denied access to prisoners in accordance with its standard procedures." (HRW 2000, p. 324)

Human rights delegations visited displaced villages in Beytüşsebap (August 2001)

- A human rights delegation visited Beytüşsebap in August 2001 to investigate allegations about forced displacement, a food embargo, restrictions of movement, as well as torture
- After this mission, delegations of the EU and the US visited the region

“A human rights delegation was formed by the Human Rights Association (IHD) with the participation of representatives from the Organisation of Human Rights and Solidarity for Oppressed People (Mazlum-Der), the Board of the Union of Chambers of Architects and Engineers of Turkey (TMMOB), the Human Rights Foundation of Turkey (TIHV), the Board of the Turkish Medical Association (TTB), Immigrants Association for Social Co-operation and Culture (Göc-Der) and the Diyarbakir Democracy Platform, in order to investigate the allegations about the forced displacement of Asat village with 15 households and Ortakli village with 30 households on 20 July 2001, the implementation of a food embargo, the ban on entering and leaving the villages of Ilicak with 70-80 households, Dagalti with 40-50 households and Hisarkapi with 12 households and their risk of being evacuated, as well as allegations of torture practices in the Beytüşsebap District of Sirnak Province. The delegation conducted its mission from 8 to 10 August 2001 in Beytüşsebap and made investigations about the above-mentioned incidents.

[...]

A month after the delegations visit of the, representatives of the Belgian Presidency (Embassy of Belgium) and the Representation of the European Commission in Turkey visited Sirnak and Beytüşsebap in order to get information on the subject. Following their visit the US Embassy organised another mission to the region. Before this mission, evacuated villagers were allowed to return to their villages.” (Delegation-report, August 2001, in *Turkey and Refugees* (April 2002), pp.41-42)

EU monitors Turkey's ability to assume obligations of membership (2000)

- EU recognized Turkey as a candidate for membership in the union in December 1999
- "Copenhagen criteria" for membership include the stability of institutions guaranteeing human rights and respect for and protection of minorities
- In 2000, Turkish State released proposals for reforms for a better protection of fundamental rights but failed to indicate precise timeline for implementation
- European Parliament proposed the linking of aid package to progress on Kurdish cultural rights and the economy in the southeast (September 2000)
- EU Partnership Draft Agreement with Turkey did not address the issue of internal displacement (November 2000)

"At its Helsinki Summit in December 1999, the EU recognized Turkey as a candidate for membership in the union. It decided that prior to actual negotiations for membership Turkey must meet the political criteria for EU membership established in Copenhagen in 1993. The necessary steps include 'stability of institutions guaranteeing democracy, the rule of law, human rights, and respect for and protection of minorities.'

Turkey's first real indication of its readiness for the Accession Partnership appeared in the 28 February 2000 *Report on the Political Criteria of the Special Committee on Turkey - E.U. Relations* prepared by the Special Committee on Turkey–EU relations attached to the Turkish Prime Minister's Office. Another indication was the document entitled *Calendar for Democracy, the Rule of Law and Human Rights*, produced by the Secretariat of the High Coordinating Council for Human Rights of the Office of the Prime Minister in mid-2000, after the above-mentioned report was published. Both documents contained a large number of proposals for constitutional, legal and administrative reform in the direction of better protection of fundamental rights, including, for example, measures for reshaping the National Security Council (a powerful semi-military body established under the Constitution to advise the state leadership on national security matters); abolishing the death penalty; redrafting laws in order to ensure freedom of expression; establishing judicial police; abolishing incommunicado police detention and combating domestic violence. The documents also proposed the signing and ratification of the ICCPR and the ICESCR, both of which were signed by Turkey on 15 August 2000. However, the omissions and the lack of precision regarding the final shape of such reforms, as well as the time line for reforms indicated in the Calendar (by the end of 2001 or 2002), left room for concern because numerous changes were already long overdue, for example those regarding freedom of expression and torture, incommunicado detention, language rights, and asylum issues." (IHF 2000, pp. 296-297)

"The particular emphasis that the European Union places on minority rights in Turkey was a cause of friction. In September [2000], the Turkish Foreign Ministry expressed irritation that the European Parliament on releasing an aid package of 135 million euros (U.S.\$117 million) to Turkey had proposed linking the funds to progress on Kurdish cultural rights and the economy in the southeast." (HRW 2000, p. 329)

"On 8 November [2000], just under a year since Turkey acquired its EU candidacy status, the European Commission publicly announced its EU Accession Partnership Draft Agreement with Turkey. Although there is much to commend within the document, there are a number of glaring omissions to the agreement which include the absence of the words 'Kurd' and 'Kurdish' throughout. Equally worrying is the fact that the crucial issue of internally displaced peoples in Turkey is not specifically addressed in the criteria to be met by Turkey for EU membership. In addition, most of the agreement's criteria are general with no specific deadlines or benchmarks in place to mark Turkey's progress in cleaning up its appalling human rights record." (KHRP Summer/Autumn 2000, p. 1)

See also:

- *The Turkish National Programme for the adoption of the *acquis communautaire* (Introduction and Political Criteria), Appendix IV of the Report of the PACE Monitoring Committee "Honouring of obligations and commitments by Turkey", Doc. 9120, 13 June 2001 [Internet]*
- *Consult the website of the European Commission for more EU documents regarding Turkey's accession [Internet]*
- *For background information on EU accession criteria and the Copenhagen Criteria, see website of the European Union [Internet]*

Selected UN activities

Representatives of UNDP, UNHCR, UNICEF, World Bank and EU meet with government authorities to discuss cooperation (2004)

“Also in February, the Turkish government publicly signaled its readiness to cooperate with the United Nations on the return of the more than quarter of a million people internally displaced from Turkey’s south-east. The government's move toward genuine collaboration with international agencies would be a welcome change from the previously ineffective return policies, and would constitute progress on a key EU accession requirement.” (HRW 3 March 2004)

Government authorities met with UNDP, UNHCR, UNICEF, World Bank and the EU in the first months of 2004 to outline a framework for cooperation. (Permanent Mission of Turkey to the UN Geneva, 18 March 2004)

UN human rights treaty committees' and Special Procedures address displacement and human rights in the country (1996-2003)

- The Committee against Torture (CAT) considered the 2nd periodic report submitted by Turkey under the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment
- In its consideration of Turkey’s periodic report, the CAT raised the issue of demolition of dwellings and the forced displacement of Kurdish populations in some locations
- The Committee called on the government to provide information on the implementation of the “Return to Village Programme” regarding IDPs in its next report due in 2005
- The UN CAT also stated that prosecution and sanctioning of the security forces for torture and ill-treatment are rare, proceedings too long, and sentences not commensurate with the gravity of the crimes
- The Representative of the Secretary-General on Human Rights Defenders was invited to undertake a fact-finding mission to the country in December 2003 to review the situation of human rights defenders
- UN Special Rapporteurs for torture, disappearances, extrajudicial executions and religious intolerance received invitations to visit the country since 1996
- UN Representative on Internally Displaced Persons finally received invitation from Turkish Government to visit the country in the course of 2001

“Serving as Rapporteur on the report of Turkey was Committee Expert FERNANDO MARIÑO-MENENDEZ, who remarked among other things that it had been 13 years since consideration of Turkey's initial report, and obviously the Turkish State had undergone major changes, including through its

participation in the Council of Europe and through the activities and rulings of the European Court of Human Rights. Recent changes had been so rapid, especially after the lifting of the state of emergency, that it was difficult to discern the current situation in Turkey. It was praiseworthy that so many reforms had been carried out by the Government.

[...]

He also queried the Government delegation about standards for the detention of children -- if they were provided with legal counsel from the moment of detention, and if they were protected from maltreatment, including from other children; about minorities and how they were treated, including the Kurdish population, as there had been consistent complaints of a policy of the demolition of dwellings and the forced displacement of Kurdish populations in some locations; about reports of sexual violence against women in custody; about allegations that impunity for acts of torture or maltreatment was a problem, in part because of slow functioning of the judicial system when State officials had been charged with such offenses; about reports that complaints of ill-treatment were often ignored; and if examples could be cited where prosecutors or judges had been dismissed because of corruption, as there were consistent complaints of judicial corruption.” (UNHCHR 2 May 2003)

“Recommendations

The Committee recommends that the State party:

[...]

Provide in the next periodic report information on the implementation of the ‘Return to Village Programme’ regarding internally displaced persons [...]

The State party is invited to submit its next periodic report, which will be considered as the third, by 31 August 2005.”(UNOHCHR/CAT 27 May 2003)

See also the 2nd Periodic Report submitted by Turkey to the Committee, “[Second periodic reports of States parties due in 1993: Turkey](#)” 22 July 2002, CAT/C/20/Add.8 (State Party Report) [Internet] For more information, see [the website of the Committee Against Torture](#) [Internet]

The Representative of the Secretary-General on Human Rights Defenders undertook a fact-finding mission to Turkey from 1 to 10 2003 December at the invitation of the Government to assess the situation of human rights defenders in the country [Internet].

"In its 1996 report, Turkey: No Security without Human Rights, Amnesty International reported that the Turkish government had not responded to requests for invitations to visit from the UN special rapporteur on extrajudicial, summary, or arbitrary executions, the special rapporteur on torture, the UN Working Group on Enforced or Involuntary Disappearance, and the Working Group on Arbitrary Detention. Since that report, through persistent pressure from the EU as well as human rights groups, the government has become more open to UN missions. In September 1996, Turkey permitted a visit by the special rapporteur on the promotion and protection of the right of freedom of opinion and expression, Abid Hussain. Hussain noted that he 'much appreciated the perfect balance the Turkish Government has struck between assistance and discretion in receiving the mission,' and said that the mission received 'full freedom of movement, including a visit to Diyarbakır,' and 'full freedom of inquiry.'

Turkey's openness was rewarded with a generally positive report. The special rapporteur said that he received a large number of allegations on infringements on the right to freedom of expression, but that 'only a minority of the allegations that were communicated to the Special Rapporteur met basic standards of accuracy and good faith.'

In September 1998, the UN Working Group on Disappearances visited Turkey. In November 1998, the UN's special rapporteur on torture visited the country. In 1999, the Turkish government invited the UN special rapporteur on extrajudicial, summary or arbitrary executions and the rapporteur on religious intolerance to visit.

The UN Commission on Human Rights has not, however, appointed rapporteurs or representatives specifically to investigate human rights abuses in Turkey (although it has created such mandates to investigate and report on human rights violations in neighboring Iran and Iraq, and its special rapporteurs have reported extensively on internal displacement in Sudan, Congo/Zaire, and Burma). (USCR 1999, pp. 32-33)

Report of the Special Rapporteur on the question of torture, 27 January 1999 [Internet]

Report of the Working Group on Enforced or Involuntary Disappearances on the visit to Turkey (20-26 September 1998), 28 December 1998 [Internet]

Report of the Special Rapporteur of elimination of all forms of intolerance and of discrimination, visit to Turkey from 30 November to 9 December 2000, 11 August 2000 [Internet]

Representative of the Secretary-General on Internally Displaced Persons

"In 1992, the UN secretary-general appointed Deng to be his representative on internally displaced persons. The representative is the only figure in the UN system with an exclusive mandate relating to internally displaced persons. Among his tasks are monitoring situations of displacement by undertaking fact-finding missions and establishing dialogues with governments. As Deng writes in *Masses in Flight*, 'At present, governments that wish to evade the attention associated with a fact-finding mission can do so with impunity, leaving countries with more cooperative governments to become the focus of the representative's attention. The only country Deng specifically cites as having not responded to his request to visit is Turkey. In 1999, he renewed his request.'" (USCR 1999, p. 32)

"The Representative has also accepted invitations from the Governments of Philippines and Turkey to undertake missions to those countries and plans to do so in the course of 2001." (UNCHR 17 January 2001, para. 98)

UN Special Representative on IDPs saw opportunities for return and resettlement following his mission to Turkey (2002)

- Francis Deng, the UN Special Representative on IDPs, visited Turkey in May 2002 to study the IDP situation and to dialogue with actors concerned
- He noted a gap between the negative perception of Government policy and the positive attitude he found during his mission
- Deng stated that there is an opportunity for the international community to assist the Government of Turkey in the task of facilitating the voluntary return, resettlement and reintegration of the displaced population

"At the invitation of the Government of Turkey, the Representative of the United Nations Secretary-General on Internally Displaced Persons, Dr. Francis M. Deng, undertook an official visit to Turkey from 27-31 May [2002].

The objectives of the Representative's visit were to study the situation of internal displacement in the country and to dialogue with the Government, international agencies, representatives of donor countries and non-governmental organizations (NGOs) towards ensuring effective responses to the conditions of the internally displaced in Turkey.

Prior to undertaking the mission, the Representative was acutely aware that the problem of internal displacement in Turkey, in particular that arising from the conflict in the south-east of the country between

security forces and the Kurdistan Workers Party (PKK), was the cause of extensive concern for a number of governmental, intergovernmental and non-governmental actors. Indeed, there appears to be a widely shared perception that the Government has been largely in denial of the problem to the point of not seeking international assistance in meeting the needs of those affected. As a result of the alleged sensitivity of the Government to the issue the international community, in particular United Nations agencies in the country, avoided open discussion of the problem with the authorities and refrained from providing protection and assistance to those displaced by the conflict, except within the context of projects implemented in areas of the country in which the displaced were located but for which they were not specifically targeted.

[...]

On the basis of his discussions with Government Ministers and officials, the Representative noted a gap between the negative perception of Government policy and the positive attitude he found during his mission. The Representative's discussions with Ministers and officials at all levels revealed surprising openness and transparency on the part of the authorities to discuss the various aspects of the displacement problem, including its causes, in particular the conflict in the south-east and the responsibility of both sides for the displacement of the civilian population, as well as the steps which are being taken to facilitate the return and resettlement of the internally displaced, following the marked reduction in the level of hostilities towards the end of the 1990s. Indeed, the Government's decision to invite the Representative to visit the country was taken as an initial indication of a possible change in approach on its part. The continuing improvement in the situation was reflected by the Government's decision to lift the state of emergency in two of the four provinces during the Representative's mission, with the declared policy of lifting it in the remaining two in the near future.

What is critically important in the view of the Representative is that an opportunity now exists for the international community to assist the Government of Turkey in the challenging task of facilitating the voluntary return, resettlement and reintegration of the displaced population. To facilitate this process the Representative made several preliminary proposals, among them the need for the Government to formulate a clear policy on the issue, to make that policy and related programmes transparent to all concerned, to establish focal points within the Government, to improve coordination among the relevant Government institutions, including regional authorities, as well as with the international community and to convene a joint meeting in the near future to formulate programmes and strategies for cooperation with the international community in meeting the urgent needs of the affected populations. In discussions with Government authorities and representatives of the NGO community, the Representative called for close cooperation between them in the service of the affected communities. He observed that an open and constructive partnership involving the Government, civil society, and international agencies would serve to facilitate the timely and effective implementation of the Government's return policy, while at the same time alleviating the concerns expressed by NGOs and improving the perception of the problem, both within and outside the country." (UN 5 June 2002)

See the report issued by the UN Special Representative on Internally Displaced Persons, Dr. Francis Deng following his mission in the country, 27 November 2002 [\[Internet\]](#)

UNHCR and WFP do not implement any programme relating to internal displacement in Turkey (1999-2001)

"Although UNHCR does work on behalf of refugees and asylum seekers in Turkey, and has field offices in several cities in the southeast, to date it has done nothing with regard to internally displaced persons." (USCR 1999, p. 33)

"The World Food Programme (WFP) has not been involved in either relief or development in Turkey. WFP notes that Turkey is a country with a food surplus; it purchases food in Turkey for transport to other countries with food needs." (USCR 1999, p. 33)

UNDP: attention to vulnerable groups in development programmes (1999-2001)

- UNDP resident representative has not dealt specifically with the issue of internal displacement
- UNDP promotes sustainable and participatory schemes for vulnerable groups in the government development programmes for southeastern Turkey
- Issues of urban settlements in western Turkey have also been addressed

"Unlike UNHCR, the UN Development Programme (UNDP) can be said to have a standing mandate on behalf of internally displaced persons. The UN General Assembly has delegated to UN resident coordinators—who generally are UNDP resident representatives in the country—the task 'of coordinating assistance to the internally displaced, in close cooperation with Governments, local representatives of donor countries, and the United Nations agencies in the field.'

Despite this mandate, UNDP in Turkey has basically turned a blind eye to the humanitarian assistance needs of the internally displaced. In 1995, the UN resident coordinator informed the office of the representative of the secretary-general on internally displaced persons that UN agencies were not then involved in any activities in support of internally displaced persons in Turkey.

In the resident coordinator's view, the Turkish government was addressing the problem in its efforts to protect the human rights of the affected persons, as well as to resettle the uprooted. The UN system was not planning future involvement because the government had not requested international assistance and had stated that the displacement problem did not exist. The resident coordinator further noted that people displaced as a result of the dam construction of the Southeast Anatolia Project (GAP) should not be considered as displaced persons because they had been or were being resettled, and because they would in fact benefit from UNDP-supported activities for sustainable human development in that region.

Although UNDP is not geared specifically to address the humanitarian assistance needs of displaced persons, to its credit, it has shifted its development focus from western to eastern Turkey. In November 1995, the UNDP resident coordinator established an Inter-Agency Social Development Programming Committee (ISDPC) to coordinate the work of ten UN agencies engaged in development activities in Turkey. UNDP has budgeted \$5 million, including government cost sharing and donor funding, to support 28 sub-projects in the GAP region. Activities include income-generation programs for women and girls in rural eastern and southeastern Turkey and a World Health Organization (WHO) project to eradicate malaria in the southeast. At the same time, UNDP has focused some attention on the *gecekondu* of western Turkey. In Ankara, UNDP is working with the Chamber of City Planners and local authorities to work toward upgrading squatter settlements by legalizing existing settlements and developing local communities." (USCR 1999, pp. 33-34)

GAP programme

"The aim of this programme is to spur regional-development planning, management and project implementation to consolidate local capacities and to engage them in development processes. The programme seeks to do this through a matrix of projects concerned with economic and social growth, implemented at the local level in the provinces of the South Eastern Anatolia (SEA) region. The challenges of regional development persist and especially with regard to basing regional-development planning and investment on sound participatory mechanisms. Strengthening the catalytic role of UNDP will result in more sustainable and participatory local-development schemes. With UNDP support, programme partners will target vulnerable groups better in their project designs. This makes it possible to incorporate the goals of the World Summit for Social Development (WSSD) in programme interventions and to build necessary linkages among the many activities and subprojects supported under the programme. This in turn will lead to a more measurable impact." (UNDP 13 December 2000, para. 29)

Selected NGO activities

Selected IDP lobby groups (2004)

Kurdish Human Rights Project

The Kurdish Human Rights Project was founded in December 1992 and based in London. KHRP works “to protect and promote the human rights of all persons living throughout the Kurdish regions of Iran, Iraq, Syria, Turkey and the former Soviet Union. The KHRP is a registered charity. It is committed to the protection of the human rights of all persons within the Kurdish regions, irrespective of race, religion, sex, political persuasion or other belief or opinion. The Kurdish Human Rights Project has also brought numerous cases to the European Court for Human Rights on behalf of internally displaced persons. The KHRP has recently submitted an application to the ECtHR concerning 38 displaced persons.

“Unal and 37 Others v Turkey (village destruction)”

In May 2003 KHRP submitted a full application on behalf of 38 internally displaced women and men, who have been unable to return to their village since it was destroyed by village guards in 1994. They complain that village guards seized and destroyed land, crops and the remains of their homes. Three of the applicants complain of the killing of their relatives. All of the applicants are now Internally Displaced Persons (IDPs) in Turkey as they are unable to return to their homes and land. The case raises issues concerning the right to life (Article 2), right to respect for privacy (Article 8), right to an effective remedy (Article 13) and protection of property (Article 1 of Protocol No. 1). [...]A series of ECtHR cases brought by KHRP has established incontrovertible evidence of a widespread practice of village destructions in that period.” (KHRP 1 March 2004)

For more information, see the website of the KHRP [Internet]

GÖÇ-DER

“Göç-Der was founded in 1996 to investigate the reasons underlying migration and to publicise its analysis. It has established a network for effective co-operation within the migrant population, providing migrants with the means to preserve and improve their socio-cultural values. It also assists migrants in their accommodation, nutrition, health, unemployment and educational problems.” (KHRP/GÖÇ-DER/HRA September 2003)

See the website of Göç-Der [Internet]

Human Rights Association (IHD)

The Human Rights Association (IHD) was established by 98 human rights defenders on 17 July 1986. IHD strives for the creation of social, political and cultural conditions that are in line with democratic standards and human dignity in Turkey. During 17-years of existence, the IHD has organised more than 15 campaigns on specific issues ranging from freedom of opinion to abolition of the death penalty.” (KHRP/GÖÇ-DER/HRA September 2003)

See the website of the IHD [Internet]

Human Rights Foundation of Turkey

“The Human Rights Foundation of Turkey (HRFT) is a non-governmental, non-profit organization established in 1990. In face of the grave human rights violations in Turkey after the military coup in 1980, the HRFT was mainly established to provide medical and psychological assistance to survivors of torture and to document human rights violations in Turkey.” (HRFT 2001)

See the website of the HRFT [Internet]

Policy and recommendations

COE Parliamentary Assembly Monitoring Committee draft resolution: Government should compensate IDPs and invest in economic and social reconstruction of the south-east (2004)

- The Assembly noted that the government should approve the draft legislation to compensate the victims of terrorism or of measures taken by the government to combat terrorism
- The Assembly further underlines that it is time to invest more in the economic and social reconstruction of the south-east
- The Assembly welcomed the Turkish authorities' commitment to developing the 'village return' programme, with the assistance of the World Bank and the UN

"The Assembly welcomes the lifting of the state of emergency in the remaining four south-eastern provinces where it was still in force, and the passing of the Reintegration Act in July 2002, which has permitted the release, among others, of several thousand Turkish citizens of Kurdish origin and a return to normal life for hundreds of other persons who have given themselves up to the authorities. The Assembly also hopes that parliament will shortly approve the draft legislation to compensate the victims of terrorism or of measures taken by the government to combat terrorism. Nearly five years after the end of hostilities, the Assembly believes that the time has come to invest more in the economic and social reconstruction of the south-east. It notes the Turkish authorities' commitment to developing the 'village return' programme, with the assistance of the World Bank and the UN. The Assembly also welcomes the adoption of the recent law encouraging investments in low income provinces." (COE 3 March 2004, "Honouring of obligations and commitments by Turkey")

See also, "Parliamentary Assembly of the Council of Europe monitoring Turkey's human rights commitments winds down (1996-2004)" [\[Internal link\]](#)

Human Rights Watch calls for a comprehensive plan for the return of the displaced in accordance with international standards (2004)

- EU Accession partnership requires the country to "improve the situation in the south-east with a view to enhancing economic, social and cultural opportunities for all citizens"
- The EU's 2002 regular report contrasts an estimated 378,000 to 1,000,000 IDPs
- There is poverty and overcrowding in the country's south-east rural areas and financial and official obstacles which prevent return
- HRW also underlines the lack of serious technical, financial and political support to returning villagers on behalf of the government
- HRW calls on the new Turkish government to begin the process of developing a comprehensive and effective return program in accordance with international standards
- HRW calls for the government to host a forum on return involving representatives of IDPs, as well as concerned nongovernmental organizations and relevant international organizations
- The forum should propose a return program that will ensure that internally displaced persons can return to their homes in safety and dignity and can resume their livelihoods

- Any return program should be consistent with the U.N. Guiding Principles on Internal Displacement and respect the rights of internally displaced persons

“Developing a comprehensive plan for return of the displaced in accordance with international standards

The E.U. Accession Partnership required Turkey to ‘improve the situation in the south-east, with a view to enhancing economic, social and cultural opportunities for all citizens.’ Drawing attention to the situation of the displaced, arguably the most pressing problem in the south-east, the E.U.’s 2002 Regular Report contrasts the estimated 378,000-1,000,000 displaced with the mere 37,000 who, according to official figures, have been able to return. Human Rights Watch’s recent report, *Displaced and Disregarded, Turkey’s Failing Village Return Program* (October 2002), documents the poverty and overcrowding of displaced villagers living in the cities, and the financial and official obstacles that prevent them from returning. Chief among these obstacles is the continuing insecurity in rural areas caused not so much by continuing political violence (which has diminished ‘to zero’ according to some government sources) but by the threat of violence or persecution from the security forces: gendarmes and village guards. In many cases, village guards have occupied vacated land and consider themselves entitled to use force to assert their tenancy. Since July 2002, at least six returning villagers have been shot dead by village guards.

The government’s Return to Village and Rehabilitation Program offers no serious technical, financial, or political support to returning villagers. Worse, to participate in the program at least some villagers have been required to relinquish their legal rights to seek compensation for their displacement.

Successive governments have refused to involve intergovernmental organizations with a legitimate interest in development and displacement that are already working in Turkey—the World Bank, the United Nations High Commissioner for Refugees (UNHCR), and the United Nations Development Program (UNDP)—in the implementation of the current return program. Local non-governmental organizations have not only been kept out of the loop, but also have been persecuted for expressing an interest.

The state of emergency was finally lifted in November 2002 - a welcome contribution to stability in the region that has been under emergency or martial law since 1978. Conditions are now ripe for the Turkish government to take the next step to develop a comprehensive and effective return program and to enlist the international community to support it.

The new Turkish government should begin the process of developing a comprehensive and effective return program that comports with international standards. Specifically, it should host a forum on return involving representatives of the internally displaced themselves, as well as concerned nongovernmental organizations and relevant international organizations, including the United Nations High Commissioner for Refugees (UNHCR), the United Nations Development Program, the United Nations Special Representative of the Secretary-General on Internal Displacement, the International Committee of the Red Cross, the Council of Europe, the Organization for Security and Cooperation in Europe (OSCE), the World Bank, and relevant bilateral donor agencies. The forum should propose a return program that will ensure that internally displaced persons can return to their homes in safety and dignity and can resume their livelihoods. Any return program should be consistent with the U.N. Guiding Principles on Internal Displacement and respect the rights of internally displaced persons.”(HRW 30 January 2004)

- *See also “[Turkey: Open Letter](#)” regarding the human rights agenda for the 31 January 2003 E.U. Troika – Turkey ministerial meeting, HRW, 29 January 2004 [Internet].*
- *Human Rights Watch has issued numerous reports documenting the situation of the displaced in Turkey, as well as, issued regular recommendations. For more information, [see the website of HRW](#) [Internet].*

UN Special Representative on IDPs, Francis Deng's conclusions and recommendations based on his mission to Turkey (2002)

- Clarification and dissemination of government policy on internal displacement and clarity and consultation on the return issue
- Addressing the current needs of IDPs and collection of data on the nature and scale of the problem
- Cooperation and an enhanced role with international agencies
- Ensuring non-discrimination in return
- Clarifying the role of the security forces in the return process
- Disarmament and abolition of the village guards system
- Mine Clearance
- Compensation including establishing a system for the efficient handling of claims

“On the basis of discussions with government ministers and other officials, the Representative is firmly of the view that an opportunity now exists for the international community, national NGOs and civil society to work with the Government of Turkey in the challenging task of addressing the needs of those still displaced and facilitating the voluntary return, resettlement and reintegration of the displaced population. An open and constructive partnership with all concerned would serve to facilitate the timely and effective implementation of the Government's return and resettlement policy, while at the same time alleviating the concerns expressed by various sources and improving the perception of the problem and the official response to it, both within and outside the country. With these considerations in mind, the Representative makes the following recommendations.

Clarification and dissemination of government policy on internal displacement: In order to reconcile the disparity between the prevailing negative perceptions of government policy and the positive attitude which the Representative witnessed during his mission, there is an urgent need for the Government to clarify its policy on internal displacement, including return, resettlement and reintegration, to make that policy widely known, to create focal points of responsibility for the displaced at various levels of the government structures, and to facilitate coordination and cooperation among government institutions and with NGOs, civil society and the international community.

Addressing the current conditions of the displaced: While the improved possibilities for return must be welcomed, it should be recognized that the return of the displaced to their original homes and lands may be a lengthy process and that there is a need for the Government, in the meantime, to enhance its efforts to address their current conditions, which are reported to be poor, in cooperation with NGOs and United Nations agencies. It should be acknowledged that many of the social and economic problems affecting the displaced also confront the host communities and that measures to address these are ongoing, including within the context of the South Eastern Anatolia Project (GAP) and in cooperation with local NGOs and United Nations agencies. However, attention should be paid to addressing those problems that are specific to the displaced, such as access to adequate housing, health care and psychosocial care for women and children.

Collection of data on the nature and scale of the problem: In order to gain a more accurate picture of the immediate needs of the displaced vis-à-vis the larger population, and in view of the Government's current efforts to facilitate return and resettlement, there is a need for more comprehensive and reliable data on the number of persons displaced as a result of the actions of both the Kurdistan Workers Party (PKK) and the security forces, on their current whereabouts, conditions and specific needs, and on their intentions with respect to return or resettlement. It is recommended that the Government, in cooperation with local NGOs and civil society organizations which are in daily contact with displaced communities in the south-east and throughout the country, undertake a comprehensive survey of the displaced population to better inform ongoing efforts to meet their needs and to facilitate return and resettlement.

Clarity and consultation on the return issue: In view of the various return initiatives and the apparent lack of clarity about how these initiatives relate to one another, at which segments of the displaced population they are aimed and the concerns to which these issues give rise, the Government is strongly encouraged to facilitate broad consultation with the displaced and the NGOs and civil society organizations working with them. Assuming that the Village Return project remains the Government's principal vehicle for facilitating large-scale return and resettlement in the south-east, the Government should consider producing a document that clearly outlines the objectives, scope and resource implications of the project. Furthermore, the GAP administration should make available, if it has not already done so, the results of the feasibility study undertaken by the Turkish Social Sciences Association and facilitate an open discussion with the displaced and NGOs on the findings of this study and the steps which should be taken to implement them.

Cooperation with international agencies: In its efforts to meet the current needs of the displaced and to facilitate their return and resettlement, it is strongly recommended that the Government examine areas of possible cooperation with the international community. So far, the international community has not contributed to the Government's return efforts, and the Government has not requested any such international assistance. However, the task ahead of the Government is a formidable one for which assistance from international agencies would be a significant asset. The Government might consider convening a meeting with international agencies, including the World Bank, and representatives of the potential partners to explore ways in which the international community could assist the Government in responding to the needs of the displaced.

Enhanced role for United Nations agencies: In connection with the foregoing, it is recommended that United Nations agencies in the country review their activities with a view to identifying ways in which they might enhance their role in supporting the Government in its efforts to assist the displaced. The Representative also recommends that the United Nations Development Assistance Group expressly request the Resident Coordinator to develop, in cooperation with the United Nations Country Team, a strategy to assist the Government, in particular with regard to its efforts to return and resettle the displaced. In addition, and with a view to facilitating cooperation between the Government and United Nations agencies, the Resident Coordinator and Country Team are encouraged to consider the establishment of a thematic group on internally displaced persons to bring together the relevant United Nations and government actors and provide a forum for regular dialogue on this issue.

Ensuring non-discrimination in return: The Government should ensure a non-discriminatory approach to return by investigating and preventing situations in which former village guards are allegedly given preference in the return process over those persons perceived as linked to PKK. In order to avoid such problems, or the perception that such practices are taking place, it is recommended that local authorities review the need for the displaced to indicate the specific reason for their displacement when applying to return or, alternatively, present a single option which clearly applies to displacement as a result of both terrorist activities and evacuation by the security forces. The authorities should also investigate allegations concerning the use of forms bearing a non-litigation clause. In this connection, the Representative would appreciate receiving information from the Government on the outcome of the administrative inspection of the judicial system in Diyarbakir which provided a context in which, according to officials in the Ministry for Foreign Affairs, this issue might be addressed.

Clarifying the role of the security forces in the return process: The Government should ensure that the role of the security forces, or *jandarma*, in the return process is primarily one of consultation on security matters, as the Government told the Representative was the case. Displaced persons who have been granted permission by the authorities to return to their villages - the decision being based on the advice of the *jandarma* - should be allowed to do so without unjustified or unlawful interference by the *jandarma*.

Disarmament and abolition of the village guards system: The Government should take steps to abolish the village guard system and find alternative employment opportunities for existing guards. Until such time as the system is abolished, the process of disarming village guards should be expedited.

Mine clearance: Given the Government's commitment to accede to the Convention on the Prohibition of the Use, Stockpiling, Production and Transfer of Anti-personnel Mines and on Their Destruction and its expertise and role in demining activities overseas, and in view of the serious obstacle which landmines pose to the safe return of displaced persons, the Government is strongly urged to undertake mine clearance activities in the relevant areas of the south-east to which displaced persons are returning, so as to facilitate that process.

Compensation: The Representative welcomes the steps that are being taken within the Government to develop legislation providing compensation to those affected by the violence in the south-east, including those who were evacuated from their homes by the security forces. While aware of the fiscal pressures under which the Government is currently operating, the Representative encourages the early submission of this legislation to Parliament and in the meantime urges the Government to begin considering the modalities of establishing a system for the efficient handling of claims that will arise under the proposed legislation.

Finally, it should be reiterated that the mission of the Secretary-General's Representative on Internally Displaced Persons provided him with the opportunity for a constructive dialogue with the Government, which, contrary to the general view that had prevailed internationally about its denial of the problem, was remarkably open and receptive to a candid discussion of the situation and expressed interest in exploring positive solutions in cooperation with the international community. A number of factors may account for the perception that had prevailed before the mission that the Government was reluctant to address the issue of internal displacement, whereas the Representative found the climate to be positive. Among these factors, perhaps the most significant was that the violence generated by PKK and the Government's anti-insurgency campaign in the south-east had virtually come to an end and that the situation had gradually returned to normal, which allowed significant numbers of displaced persons to return. Whatever the explanation, the Representative is grateful not only for the invitation extended to him by the Government, but also for all that was done to facilitate the success of the mission. What is important now is for the Government and the international community to provide protection and assistance to those still displaced and to facilitate the voluntary return of the displaced, in safety and with dignity, or to provide opportunities for alternative resettlement to those not wanting to return, and to assist both the returnees and the resettled to integrate into their communities." (UN OHCHR 27 November 2002, paras. 33-45)

EU should provide more accurate picture of displacement in Turkey (2002)

- Turkey became a candidate for EU membership in 1999
- Human Rights Watch notes that early EU reports on Turkey's progress towards accession were superficial
- Although HRW notes later EU reports more accurately depicted the situation, the organisation stressed that the EU's treatment of the return question was "disappointing"
- The EU has merely quoted Government figures without checking them against facts on the ground
- HRW called on the EU to utilise its unique position and ability to access areas of displacement to uncover a true picture of internal displacement in the country

"Turkey became a candidate for E.U. membership at the Helsinki summit in 1999. In theory, the demand that Turkey fulfill strict political conditions concerning human rights and democracy (the Copenhagen Criteria) should have provided excellent leverage on a wide range of human rights problems, including the treatment of the internally displaced. Progress has been much slower than hoped. At first, the European Union was too easily convinced by rhetoric from the Turkish government. With experience, the Commission has become more shrewd in its evaluations, and the *2001 Regular Report On Turkey's Progress Towards Accession* gave a more realistic assessment of progress. But its treatment of the return

question (under the heading ‘Minority rights and the protection of minorities’) was disappointing. The report merely reproduced government statistics on the rate of return, apparently without checking them against the facts on the ground. The 2002 Regular Report gave a sharper picture, contrasting an estimated figure of 378,000 to one million for the number of displaced, with an official figure of 37,000 for the number of villagers that have returned. The E.U. representation has an unequalled level of access to Turkish government information and also to the region where the displacements occurred. It should use its unique position to uncover the true picture of what is happening in the countryside and also to influence the Turkish government to adopt and implement a more acceptable policy.’

[...] if the government is prepared to bring its Village Return and Rehabilitation Project into line with the U.N. Guiding Principles and other international human rights and humanitarian standards relating to internally displaced people, it is not too late to make it into an enterprise in which international donors, government agencies, nongovernmental organizations, and the villagers themselves can believe and collaborate. This would not only go some way toward a remedy for the violations of past decades, but also contribute to the regeneration of the eastern provinces, an unfulfilled aim of every administration since the foundation of the republic. Such a project would be fully consistent with the European Union’s requirement of Turkey, contained in the Accession Partnership, to ‘develop a comprehensive approach to reduce regional disparities, and in particular to improve the situation in the South-East, with a view to enhancing economic, social and cultural opportunities for all citizens,’ a goal echoed by the Turkish government as a medium term objective in its National Program for E.U. accession.” (HRW, 30 October 2002)

Recommendations from the Council of Europe on the IDP situation in Turkey (March 2002)

- The report on the humanitarian situation of displaced Kurdish population in Turkey notes positive developments
- The COE called, inter alia, for international humanitarian access, the lifting of OHAL, and the end to evacuations
- The COE also called for the abolishment of the village guard system, allowing more returns, to exclude a terrorism statement on return, and compensation for destroyed property

"The report notes positive developments in the humanitarian situation of the displaced Kurdish population as compared to the last report on the subject in 1998. The decrease in violence in the south-eastern part of Turkey along with revitalization of the economy have encouraged the process of returns. The returnees receive financial and material assistance from the Turkish authorities. However, the state of emergency, still in force in the 4 remaining provinces has an impeding effect on the economic and social revitalization of the region. The Rapporteur proposes a number of measures aimed at facilitating mass returns of the displaced population. Moreover, the recommendation calls for additional international financial assistance with a view to fostering economic development in the south-eastern part of Turkey.” (COE 22 March 2002)

"1. The Parliamentary Assembly recalls and reaffirms its Recommendation [1150](#) (1991) on the situation of the Iraqi Kurdish population and other persecuted minorities, and Recommendation [1377](#) (1998) on the humanitarian situation of the Kurdish refugees and displaced persons in south-eastern Turkey and northern Iraq.

2. The Assembly notes with satisfaction positive developments in the humanitarian situation in the region as compared to the situation presented in the last report on the subject in 1998.

3. In particular, the Assembly welcomes the considerable decrease in violence and tension in the region over the last two years. The Assembly is aware that full security in the area is the essential precondition for mass returns of the displaced Kurdish population.

4. The Assembly strongly condemns the violence and terrorism perpetrated by the Kurdistan Workers' Party (PKK), which has contributed to the displacement of the population, and urges the remaining armed fighters in the region to stop all the violence.
5. At the same time, however, the Assembly expresses its deep concern at the reports of fresh village and hamlet evacuations by the Turkish security forces. These actions should be stopped immediately.
6. The revitalisation of the economy is another main precondition for mass returns. In this context the Assembly welcomes the elaboration and implementation of the South-eastern Anatolia Project aimed at the integrated economic development of the region.
7. The Assembly notes with satisfaction that the process of returns is under way and that the returnees receive financial and material assistance from the Turkish authorities.
8. Assistance in the reconstruction of destroyed villages should be given high priority. It should not be preconditioned by the obligation to enter the village guard system or people's declaration that the cause of their displacement was fear of the PKK.
9. The state of emergency in force in the four remaining provinces is impeding the economic and social revitalisation of the region, and should be lifted by the parliament as soon as possible.
10. Similarly, the village guard system continues to raise the most serious human rights concerns. It should be abolished as quickly as possible.
11. Access to the region for international humanitarian organisations should be granted. The Assembly cannot accept that respected organisations, such as *Médecins sans frontières*, are denied access for allegedly supporting terrorism.
12. The Parliamentary Assembly therefore recommends that the Committee of Ministers:
 - i. urge Turkey to take the following steps:
 - a. lift the state of emergency in the four remaining provinces as quickly as possible;
 - b. refrain from any further evacuations of villages;
 - c. ensure civilian control over military activity in the region and make security forces more accountable for their actions;
 - d. step up investigations into alleged human rights violations in the region;
 - e. properly implement the rulings of the European Court of Human Rights;
 - f. abolish the village guard system;
 - g. continue its efforts to promote both the economic and social development and the reconstruction of the south-eastern provinces;
 - h. involve representatives of the displaced population in the preparation of return programmes and projects;
 - i. speed up the process of returns;
 - j. allow for individual returns without prior permission;
 - k. not to precondition assistance to displaced persons with the obligation to enter the village guard system or the declaration on the cause of their flight;
 - l. present reconstruction projects to be financed by the Council of Europe's Development Bank in the framework of return programmes;
 - m. adopt measures to integrate those displaced persons who wish to settle in other parts of Turkey and provide them with compensation for damaged property;
 - n. grant full access to the region for international humanitarian organisations, and provide them with support from local authorities;
 - ii. urge the member states to step up financial assistance with a view to fostering economic development in the south-eastern part of Turkey;
 - iii. invite the Council of Europe Development Bank to consider positively the projects related to the returns of displaced persons in the south-eastern regions of Turkey.
13. The Assembly strongly recommends that the two parties start a dialogue and find a peaceful solution to the Kurdish question recognising the cultural and social rights of the Kurdish people.
14. The Assembly invites the Congress of Local and Regional Authorities of Europe to consider extending its network of Local Democracy Embassies and town twinning to the south-eastern region of Turkey.

Text adopted by the Standing Committee, acting on behalf of the Assembly, on 29 May 2002 (see Doc. 9391, report of the Committee on Migration, Refugees and Demography, rapporteur: Mr Connor).” (COE PA 29 May 2002)

See also, [Recommendation 1377 \(1998\) Humanitarian situation of the Kurdish refugees and displaced persons in south-eastern Turkey and northern Iraq](#), COE PMC, 25 June 1998 [Internet]

HRW recommendations to the Turkish government and the international community (October 2002)

Recommendations to the Turkish Government

- Publish comprehensive information about the progress of returns, including a verifiable list of communities that have returned and those that have not.
- Publish detailed information about programs for return, including the names of villages open for return or temporarily closed to return, project aims and objectives, government departments responsible for the returns, budgets, and progress updates.
- Establish a specialist agency dedicated to implementing the return of internally displaced persons.
- Set up a planning forum with representatives of governmental, nongovernmental and intergovernmental organizations with relevant expertise, as well as representatives of displaced villagers. The forum should develop a return program that will ensure that internally displaced communities can return to their homes in safety and dignity and can resume their livelihoods. All return programs should be consistent with the U.N. Guiding Principles on Internal Displacement and respect the rights of internally displaced communities. Such an agency should inquire into allegations of appropriation of land by village guards, and take steps to end this practise, including informing the local prosecution service to initiate legal action as necessary.
- Take measures at all levels of government to stop the harassment of internally displaced persons, the recently returned, and those who assist them.
- Abolish the village guard system.
- Permit villagers to return to their own homes unless there are legitimate security reasons to prevent this, such as continued armed conflict or the presence of landmines that would endanger civilian lives.
- Clear landmines from villages and surrounding farmland, and give villagers documentary evidence that their village has been cleared of mines and munitions before they return.
- Ensure that infrastructure for villages and hamlets is restored at least to the standard prior to their destruction and evacuation, at state cost.
- Where villages are inaccessible for security reasons or because they have been mined, pay appropriate levels of compensation, including maintenance for the internally displaced, and ensure their access to health, education, and employment or other basis for an adequate standard of living.
- Ensure unfettered access for nongovernmental organizations throughout the southeast, especially for national and international human rights and humanitarian nongovernmental organizations.
- Publish the secret “Action Plan for the East and Southeast” adopted by the National Security Council in May 2000.
- Establish an interim program for practical and financial support of villagers before, during, and after return, without prejudice to subsequent litigation they may open in the courts.

Recommendations to Intergovernmental Organizations with an Interest in Displacement, including the United Nations High Commissioner for Refugees (UNHCR), the United Nations Development Program (UNDP), and the Organization for Security and Co-operation in Europe (OSCE)

- Urge the Turkish government to set up a planning forum involving interested local and international nongovernmental and intergovernmental organizations and representatives of displaced villagers. The forum should put in place a return program that will ensure that internally displaced persons can return to their homes in safety and dignity and can resume their livelihoods. All return programs should be consistent with the U.N. Guiding Principles on Internal Displacement and respect the rights of internally displaced persons.

- Assure the Turkish government of their willingness to contribute their expertise and experience to assist with the design and implementation of a fair, safe, and sustainable program of return.
- Assist the Turkish government in obtaining funding for appropriately designed and implemented programs that are consistent with the U.N. Guiding Principles on Internal Displacement.

Recommendations to the Committee of Ministers of the Council of Europe

- Urge the Turkish government to set up a planning forum involving interested local and international nongovernmental and intergovernmental organizations and representatives of displaced villagers. The forum should put in place a return program that will ensure that internally displaced communities can return to their homes in safety and dignity and can resume their livelihoods. All return programs should be consistent with the U.N. Guiding Principles on Internal Displacement and respect the rights of internally displaced communities.
- Make supervision of the return program a regular agenda item of the Committee's meetings.
- Assist the Turkish government in obtaining Council of Europe funding for appropriately designed and implemented programs that are consistent with the U.N. Guiding Principles on Internal Displacement and respect the rights of internally displaced communities.

Recommendations to the World Bank

Maintain its current policy of withholding support for any Village-Township projects in southeast Turkey that are not consistent with the U.N. Guiding Principles on Internal Displacement, or that may indirectly facilitate other projects that are contrary to the Guiding Principles.

- Use its influence to encourage the Turkish government to redesign its return program in accordance with the U.N. Guiding Principles on Internal Displacement, and to develop projects that the World Bank and other international bodies could feel confident in supporting.
- To this end, urge the Turkish government to set up a planning forum involving interested local and international nongovernmental and intergovernmental organizations and representatives of displaced villagers. The forum should put in place a return program that will ensure that internally displaced communities can return to their homes in safety and dignity and can resume their livelihoods. All return programs should be consistent with the U.N. Guiding Principles on Internal Displacement and respect the rights of internally displaced communities.
- Assist the Turkish government with funding for appropriately designed and implemented return programs that are consistent with the U.N. Guiding Principles on Internal Displacement and respect the rights of internally displaced communities.

Recommendations to the European Union

Not rely on unsubstantiated and unverifiable Turkish government statements concerning the return process, but use its high level of access to carry out field research in the region that would contribute to the sum of information about returns through the annual Regular Report.

- Closely monitor the situation of the internally displaced in the cities and in the countryside after return, and pool information with other intergovernmental bodies and interested nongovernmental organizations.
- Urge the Turkish government to set up a planning forum involving interested local and international nongovernmental and intergovernmental organizations and representatives of displaced villagers. The forum should put in place a return program that will ensure that internally displaced communities can return to their homes in safety and dignity and can resume their livelihoods. All return programs should be consistent with the U.N. Guiding Principles on Internal Displacement and respect the rights of internally displaced communities.
- Not finance return or resettlement projects in southeast Turkey if they are not consistent with the U.N. Guiding Principles on Internal Displacement, or if they indirectly facilitate other projects that are contrary to the Guiding Principles.
- Assist the Turkish government with funding for appropriately designed and implemented return programs that are consistent with the U.N. Guiding Principles on Internal Displacement and respect the rights of internally displaced communities.

Recommendations to E.U. Member Governments and the U.S. Government

- Urge the Turkish government to set up a planning forum involving interested local and international nongovernmental and intergovernmental organizations and representatives of displaced villagers. The forum should put in place a return program that will ensure that internally displaced communities can return to their homes in safety and dignity and can resume their livelihoods. All return programs should be consistent with the U.N. Guiding Principles on Internal Displacement and respect the rights of internally displaced communities.
- Not finance return or resettlement projects in southeast Turkey if they violate the U.N. Guiding Principles on Internal Displacement, or if they indirectly facilitate other projects that violate the principles.
- Assist the Turkish government with funding for appropriately designed and implemented return programs that are consistent with the U.N. Guiding Principles on Internal Displacement and respect the rights of internally displaced communities.
- The U.S. government, in its annual State Department report on human rights practices, should not rely on unsubstantiated and unverifiable government statements concerning the return process, and should use its high level of access to carry out field research in the region that would contribute to the sum of information about returns." (HRW, 30 October 2002)

References to the Guiding Principles on Internal Displacement

Known references to the Guiding Principles (as of March 2004)

Reference to the Guiding Principles in the national legislation

None

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None

Availability of the Guiding Principle in local languages

The Guiding Principles have been translated into Turkish
Documents:
• GP in Turkish [Internet]

Training on the Guiding Principles

None

ABBREVIATIONS AND ACRONYMS

ANAP	Motherland Party
CHP	Republican People's Party
DHKP/C	Revolutionary People's Liberation Party/Front
DKP	Democratic Mass Party
DSI	State Hydraulic Works
ECHR	European Court of Human Rights
ECPT	European Committee for the Prevention of Torture
EU	European Union
FP	Virtue Party
GAP	Southeast Anatolia Project
HADEP	People's Democracy Party
HCNM	High Commissioner on National Minorities
HEP	People's Labour Party
HIC	Habitat International Coalition
HRA	Human Rights Association of Turkey
HRF	Human Rights Foundation
IBDA-C	Islamic Raiders of the Big East-Front
ICCPR	International Covenant on Civil and Political Rights
ICESCR	International Covenant on Economic, Social and Cultural Rights
ICRC	International Committee of the Red Cross
IHD	Human Rights Association of Turkey
KESK	Confederation of the Public Labour Unions
MHP	National Action Party
MSF	Médecins Sans Frontières
NCO	Non-Commissioner Officer
NGO	Non-governmental organisation
NSC	National Security Council
OHAL	State of Emergency
OSCE	Organization for Security and Co-operation in Europe
PKK	Kurdistan Workers' Party
TB	Tuberculosis
TBMM/TGNA	Turkish Grand National Assembly
TIKB	Turkish Revolutionary Communist Party
TIKKO	Workers and Peasants' Army of Turkey
UK	United Kingdom
UN	United Nations
UNDP	United Nations Programme for Development
UNHCR	United Nations High Commissioner for Refugees
UNWGEID	United Nations Working Group on Enforced or Involuntary Disappearances
USCR	U.S. Committee for Refugees

WFP	World Food Programme
WHO	World Health Organisation
WSSD	World Summit for Social Development

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